

Standard Subcontract

Regional Treatment Plant Capital Works Program

Subcontract No. 7216-SUB-090

John Holland PTY LTD

John Holland 11 004 282 268

Pensar Water Pty Ltd 75 622 157 484

Subcontractor

For: WP8 – Hanlon Street

Table of Contents

1.	Definitions And Interpretation	14
1.1	Definitions	14
1.2	Interpretation	23
2.	Works prior to date of Subcontract	24
2.1	Works carried out prior to date of this Subcontract	24
3.	Subcontractor's Obligations	24
3.1	Key obligations	24
3.2	Laws	25
3.3	Co-operation	25
3.4	Attending meetings	25
4.	Security	26
4.1	Form	26
4.2	Recourse	26
4.3	Release	26
4.4	Interest	27
4.5	Parent Company Guarantee	27
5.	Information And Project Risks	27
5.1	Non-Reliance	27
5.2	Request for Information	28
6.	The Site	28
6.1	Site Information	28
6.2	Site Access	28
6.3	Site Obligations	28
6.4	Facilities	29
6.5	Valuable Objects Found on Site	29
7.	Design and Subcontractor Documentation	30
7.1	Subcontractor Documentation	30
7.2	Review	30
7.3	No Obligation to Review	30
8.	Provisional Sums	31
8.1	Provisional Sum Work	31
8.2	Provisional Sum Work with Design	31
8.3	Provisional Sum Work without Design	31
8.4	Letting Provisional Sum Work	31
8.5	Adjustments of Subcontract Sum for Provisional Sum Work	32
9.	Construction	32
9.1	Description of Works	32
9.2	Setting Out	32
9.3	Working Hours	32
9.4	Cleaning Up	32
9.5	Urgent Protection	32
9.6	Survey	32
9.7	Environmental Requirements	32
9.8	Document Management and Transmission	33
10.	Personnel	33
10.1	Authority	33
10.2	Appointment of Representatives	33
10.3	Key People	33
10.4	Removal of Persons	34
11.	Quality	34
11.1	Construction	34
11.2	Quality Assurance	34
11.3	Testing and Cost of Testing	35

11.4	Defects	35
11.5	Correction of Defect or Variation	35
11.6	Acceptance of Work	35
11.7	Extension of Defects Liability Period	36
11.8	Notice of Defective Prior Work	36
11.9	Direction about Prior Work	36
11.10	Failure to Inspect Prior Work	36
12.	Time	36
12.1	Progress and Time for Completion	36
12.2	Programming	36
12.3	Subcontractor's obligation unaffected	37
12.4	Acceleration by Subcontractor	37
12.5	Delays Entitling Claim	37
12.6	Notice of Delay	37
12.7	Claim	38
12.8	Conditions Precedent to Extension	38
12.9	Extension of Time	38
12.10	Unilateral Extensions	39
12.11	Suspension	39
12.12	Acceleration by direction	40
12.13	Time Not at Large	40
12.14	Concurrent Delays	40
12.15	Delay Costs	40
13.	Variations	41
13.1	Variation Orders	41
13.2	Variation Price Request	41
13.3	Direction Subcontractor considers to be a Variation	41
13.4	Valuation of Variation	42
13.5	Rates and Prices	42
13.6	Daywork	42
13.7	Valuation of Daywork	42
13.8	Omissions	43
13.9	Variation for Subcontractor's convenience	43
14.	Payment	43
14.1	Basis for payment and sufficiency of Subcontract Sum	43
14.2	Lump Sum Breakdown	44
14.3	Quantities	44
14.4	Completion of Bill of Quantities	44
14.5	Schedule of Rates and Limits of Accuracy	45
14.6	Payment Claims	45
14.7	Payment Schedules and Notice of Disputes	45
14.8	Payment	46
14.9	Timesheets	46
14.10	Correction of Payment Schedules and Notice of Disputes	46
14.11	Payment on Account	47
14.12	Unfixed Goods and Materials	47
14.13	Conditions Precedent to Payment	47
14.14	Final Payment Claim and release	47
14.15	Interest	48
14.16	Statutory declaration	48
14.17	Right of Set-Off	48
14.18	Security of Payment Act	49
14.19	GST	50
14.20	Payroll Tax	51
15.	Intellectual Property Rights and Moral Rights	51
15.1	Documents supplied by or on behalf of John Holland	51
15.2	Intellectual Property Rights	51
15.3	Infringement of Intellectual Property Rights	52
15.4	Moral Rights	52
16.	Completion	53

16.1	Subcontractor to Notify	53
16.2	Completion Notice	53
16.3	Take Over Upon Completion	53
16.4	Part of the Works or Stage	53
16.5	Effect of Completion Notice	53
16.6	General Damages	53
17.	Confidentiality	53
17.1	Confidential Information	53
17.2	No Publicity	54
18.	WHS	54
19.	Industrial Relations Compliance	55
20.	Insurance	56
20.1	Insurance by Principal and John Holland	56
20.2	Insurance by Subcontractor	56
20.3	Professional Indemnity Insurance	57
20.4	Public Liability Insurance	58
20.5	Insurance of employees	58
20.6	Comprehensive motor vehicle insurance	58
21.	Liability, Risk and Indemnities	58
21.1	Care of the Works	58
21.2	Reinstatement	59
21.3	Excepted Risks	59
21.4	Indemnity – Damage and Injury	59
21.5	Indemnity – Breach	59
21.6	Reduction of Indemnity	59
21.7	Proportionate Liability	60
21.8	Limitation of Liability	60
21.9	Consequential Loss	60
22.	Termination by John Holland	61
22.1	Notice of Default of Subcontractor	61
22.2	Termination for default, Insolvency, breach or Change in Control	62
22.3	Rights and obligations on termination	62
23.	Termination by the Subcontractor	62
23.1	Termination for default or Insolvency Event	62
23.2	Rights and obligations on termination	63
24.	Termination for Convenience or Head Contract Termination	63
24.1	Head Contract Termination and Termination for Convenience	63
24.2	Rights and obligations following Head Contract Termination and Termination for Convenience	63
24.3	Deemed Termination	64
25.	Dispute Resolution	64
25.1	Application of Clause	64
25.2	Negotiations	65
25.3	Expert Determination	65
25.4	Costs	66
25.5	Arbitration or Litigation	66
25.6	Arbitration	66
25.7	Survive Termination	67
25.8	Urgent relief	67
25.9	Continuation of Works	67
26.	Notification Of Claims	67
26.1	Notices of Other Claims	67
26.2	Continuing Events	67
26.3	Bar	68
26.4	Service of Notices	68
26.5	Payment Platform	68
27.	Modern Slavery	69

28. Sanctions Requirements	69
29. General	71
29.1 Governing law	71
29.2 Waiver	71
29.3 Assignment and Subcontracting	71
29.4 Joint and several liability	71
29.5 John Holland may Act	72
29.6 Survival	72
29.7 Indemnities to survive	72
29.8 Amendment	72
29.9 Severability	73
29.10 Counterparts	73
29.11 Further action	73
29.12 Costs	73
29.13 Entire Agreement	73
Schedule A – Special Conditions	74
Schedule B – Form of Unconditional Undertaking	84
Schedule C – Deed of Guarantee & Indemnity	85
Schedule D – Final Account and Release	88
Schedule E – Form of Statutory Declaration	90
Schedule F – Scope of Works	94
Schedule G – Project Conditions	114
Schedule H – Expert Determination Agreement	141
Schedule I – RCTI Agreement	144
Schedule J – Compliance with the State Code	145
Schedule K – Provisional Sums	147
Schedule L – Supplier Code of Conduct	148

Formal Instrument Agreement

Date **21** August 2024

Parties

Name	John Holland PTY LTD
ABN	11 004 282 268
Short form name	John Holland
Address	Level 3, John Holland Building, Emporium, 1000 Ann Street, Fortitude Valley, QLD, 4006
	Attention: Robert Bonner

Name	Pensar Water Pty Ltd
ABN	75 622 157 484
Short form name	Subcontractor
Address	168 Robertson St, Fortitude Valley QLD, 4006
	Attention: Troy Elder

Recitals

- A. John Holland has entered into the Head Contract with the Principal to carry out the Head Contract Works.
- B. The Subcontractor has tendered to perform the Works which form part of the Head Contract Works to facilitating a successful Project and enable John Holland to perform and comply with the Head Contract.
- C. The Subcontractor has the expertise, capability and knowledge to perform its obligations and to carry out the Works in accordance with the terms and conditions of this Subcontract for the Subcontract Sum.
- D. John Holland has agreed to engage the Subcontractor under this Subcontract to carry out the Works in accordance with the terms and conditions of this Subcontract.

Signing Page

Executed by the parties as a deed on the date set out in the Formal Instrument of Agreement.

Signed for and on behalf of John Holland PTY
LTD by its Authorised Representative:

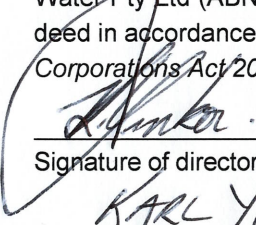
Signature of Authorised Representative

Signature of witness

Name of Authorised Representative

Name of witness

Signed, sealed and delivered by Pensar
Water Pty Ltd (ABN 75 622 157 484) as a
deed in accordance with section 127 of the
Corporations Act 2001 (Cth):



Signature of director

Name of director (print)



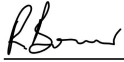
Signature of director/company secretary

Name of director/company secretary (print)

Signing Page

Executed by the parties as a deed on the date set out in the Formal Instrument of Agreement.

Signed for and on behalf of John Holland PTY
LTD by its Authorised Representative:



Signature of Authorised Representative

Robert Bonner

Name of Authorised Representative



Signature of witness

Dean Misso

Name of witness

Signed, sealed and delivered by Pensar
Water Pty Ltd (ABN 75 622 157 484) as a
deed in accordance with section 127 of the
Corporations Act 2001 (Cth):

Signature of director

Patrick Newell

Name of director (print)

Signature of director/company secretary

Karl Yunker

Name of director/company secretary (print)

Subcontract Details

Item	Issue	Details									
1.	Project (clause 1.1)	Project 7216 – Regional Treatment Plants – Capital Works Program									
2.	Principal (clause 1.1)	Central SEQ Distributor-Retailer Authority trading as Queensland Urban Utilities									
3.	John Holland's Representative (clause 1.1)	Robert Bonner, Program Director									
4.	Subcontractor's Representative (clause 1.1)	Troy Elder, Operations Manager - Water									
5.	Subcontractor's Payroll Tax Number (clause 14.20)	Click here to enter text.									
6.	Site (clause 1.1)	The Site is located at Hanlon Street, Bundamba – Sewage Pump Station (SP322).									
7.	Works (clause 1.1)	The Works relate to civil and mechanical works as described in Schedule F.									
8.	Stage (clause 1.1)	Not Applicable.									
9.	Subcontract Sum (clause 1.1)	The Subcontract Sum is: (a) a lump sum component of \$9,909,283.46; and (b) Provisional Sum Work component of \$638,000; consisting of a total Subcontract Sum of \$10,547,283.46 (inclusive of the Provisional Sum Work, exclusive of GST).									
10.	Key People (clauses 1.1 and 10.3)	<table> <tr> <th>Name</th><th>Position</th><th>Period</th></tr> <tr> <td><i>Robert Bonner</i></td><td><i>Program Director</i></td><td><i>NA</i></td></tr> <tr> <td><i>Troy Elder</i></td><td><i>Operations Manager – Water</i></td><td><i>NA</i></td></tr> </table>	Name	Position	Period	<i>Robert Bonner</i>	<i>Program Director</i>	<i>NA</i>	<i>Troy Elder</i>	<i>Operations Manager – Water</i>	<i>NA</i>
Name	Position	Period									
<i>Robert Bonner</i>	<i>Program Director</i>	<i>NA</i>									
<i>Troy Elder</i>	<i>Operations Manager – Water</i>	<i>NA</i>									

Item	Issue	Details		
		Click or tap here to enter text.	Click or tap here to enter text.	Click or tap here to enter text.
11.	Completion (clause 1.1)	Additional requirements to be satisfied by the Subcontractor prior to Completion: Not Applicable		
12.	Date for Completion (clause 1.1)	(a) for the Works: 60 weeks from contract award (b) for each Stage:		
		Stage	Date for Completion	
		Not Applicable	Not Applicable	
		Not Applicable	Not Applicable	
		Not Applicable	Not Applicable	
13.	Defects Liability Period (clause 1.1)	Commencing on the Date of Completion and expiring 24 months after the Commissioning Completion Date for the Project or 30 months after Completion of the Subcontractor Works, whichever is earlier.		
14.	Extension of Defects Liability Period (clause 11.7)	24 months		
15.	Reference date (clauses 1.1, 14.6, 14.14 and 16.2(a))	Up to the date Completion is achieved, or if there is more than one date upon which Completion is achieved or there are Stages, up to the last date Completion is achieved, on the 25th day of each month. With respect to the Final Payment Claim submitted under clause 14.14, the date Completion is achieved of all of the Works.		
16.	Subcontractor's Insurance (clause 20)			
	Professional Indemnity	(clause 20.3)		

Item	Issue	Details
	Professional Indemnity: Period of Insurance (clause 20.3(a)(v))	Professional indemnity insurance must be maintained, until the expiration of 7 years following expiry of the Defects Liability Period or, if there is more than one, the expiry of the last Defects Liability Period.
	Public Liability (clause 20.4)	Minimum of \$ 50,000,000 in the joint names of John Holland, the Subcontractor, all subcontractors and with cross liability so that the insurance applies to each named insured as a separate insured
	Motor Vehicle Third Party Liability (clause 20.6)	As required by law, but \$30,000,000 for third party property damage.
17.	Security (clause 4)	(a) The Subcontractor must provide security for [insert % or if nothing stated it shall be 5%] of the Subcontract Sum in the following manner: (i) Two (2) unconditional undertakings in the form and on the same terms set out in Schedule B and given by a bank or financial institution which has a credit rating equal to or better than a Standard or Poor's A minus rating with operating branches within Sydney, Melbourne or the State or Territory in which the project is located. (b) Top-up security: Further security permitted if the Subcontract Sum increases by more than 20% or \$100,000. (c) Additional security for unfixed goods and materials: An unconditional undertaking in the form and on the same terms set out in Schedule B and given by a bank or financial institution which has a credit rating equal to or better than a Standard or Poor's A minus rating with operating branches within Sydney, Melbourne or the State or Territory in which the project is located, in an amount equal to the value of the unfixed goods and materials.
18.	Access (clause 6.3(a)(iii)(C))	Other access restrictions applying to the Site are: Described in Schedule F.
19.	Submission and Resubmission (clause 7.2(a))	The period within which John Holland may reject Subcontractor Documentation is 21 days.

Item	Issue	Details
20.	Working Hours (clause 9.3)	The hours of work applicable to the Works to be carried out on Site are Monday to Friday, 6:30am to 5:30Ppm
21.	Reference Development (clause 11.1(a)(i)(A))	If applicable, the reference development is: Not Applicable.
22.	Extension Event (clause 1.1)	See Special Conditions
23.	Extension of Time: Additional Information (clause 12.7(a)(iv))	Additional information reasonably required to be submitted with a claim for an extension of time is: Critical path program.
24.	Extension of Time: Further Delay Period (clause 12.7(b)(i))	Time to submit claims is within 5 Business Days of each Further Delay Period.
25.	Extension of Time: Notification by John Holland (clause 12.9)	(a) pursuant to clause 12.9(a), within 35 after receipt of the Subcontractor's claim (b) pursuant to clause 12.9(b), within 35 after receipt, of the Subcontractor's claim
26.	Acceleration (clause 12.12)	The percentage (if any) applicable to extra costs is 0%
27.	Delay Costs (clause 12.15)	Delay Cost are the Subcontractor's demonstrated actual costs, reasonably and necessarily incurred by reason of the delay up to a cap of \$1000 per day. Evidence of such costs must be provided to the satisfaction of John Holland
28.	Notice of Variation (clause 13.3)	(a) Time for giving notice under clause 13.3(a): N/A (b) Time for performing the works under clause 13.3(c): N/A
29.	Limits of Accuracy (clause 14.5)	The Limits of Accuracy, for increases and decreases is 20%.
30.	Unfixed goods and materials for which Payment Claims may be made (clause 14.12)	N/A

Item	Issue	Details
31.	Negotiations – Senior Executives (clause 25.2)	The Senior Executives are: (a) John Holland: Natasha Roy (b) Subcontractor: Patrick Newell
32.	Expert determination – threshold amount of money claim (clause 25.3(a))	The Dispute is in respect of a monetary claim of less than or equal to the amount of \$500,000.00.
33.	Expert determination – location for meetings with Expert (clause 25.3(b)(ii))	<i>Brisbane, Queensland</i>
34.	Expert determination – threshold amount a party is required to pay (clause 25.3(c)(ii))	The Expert's decision requires a party to pay in excess of the amount of \$100,000.00.
35.	Seat of Arbitration (clause 25.6(d))	The seat of arbitration is Brisbane, Queensland
36.	Project System (clause 1.1)	Document delivery system: Aconex
37.	Payment Platform (clause 1.1 and 26.5)	Clause 26.5 does not apply Payment Platform: N/A
38.	Service of Notices (clause 26.4)	(a) for John Holland, at: (i) Person to be recipient: Robert Bonner (ii) Address: Level 3, 1000 Ann Street, Fortitude Valley, Qld 4006 (iii) Email address: Robert.Bonner@jhg.com.au (iv) Project System email address: 7216.accounts@jhg.com.au (b) for the Subcontractor, at: (i) Person to be recipient: Troy Elder (ii) Address: 168 Robertson St Qld 4006 (iii) Email address: troy.elder@pensar.com.au

Item	Issue	Details
39.	Law of Subcontract (Clause 29.1)	(iv) Project System email address: accounts@pensar.com.au (a) This Subcontract is subject to and is to be construed in accordance with the laws of Queensland, Australia

General Conditions

1. Definitions And Interpretation

1.1 Definitions

Unless the context otherwise indicates, each word or phrase defined in this clause 1.1 and elsewhere has that meaning given to it whenever used in this Subcontract.

Acceleration Order means a written notice issued by John Holland to the Subcontractor to accelerate the Works or a Stage or any part thereof (including by taking any reasonable measures necessary to achieve Completion in advance of the Date for Completion) or to overcome or minimise the extent and effects of some or all of a delay and, if applicable, in order to achieve Completion by the Date for Completion.

Administrator has the same meaning as in section 9 of the Corporations Act.

Ambiguity means any ambiguity, discrepancy, omission, inconsistency or conflict.

Approvals means any approval, authorisation, accreditation, permit, requirement, determination, licence, consent, certificate or permission from or of any Authority or under any Law.

Associates means, in respect of a party, its subcontractors, employees, officers and agents, provided that:

- (a) with respect to the Subcontractor, it includes the Sub-Subcontractors, the Subcontractor's Representative and anyone else for whom the Subcontractor is responsible and their respective Associates; and
- (b) with respect to John Holland, it includes the Other Contractors but does not include the Principal, or the Subcontractor or the Subcontractor's Associates

Authority means any government or governmental, semi-governmental, local government, statutory, public, ministerial, administrative, fiscal or judicial body, department, commission, authority, tribunal or agency.

Business Day means any day except:

- (a) Saturdays, Sundays or public holidays in the State or Territory in which the Site is located; or
- (b) a day that is excluded under the Security of Payment Act applicable in the State or Territory in which the Site is located.

Change of Control means where:

- (a) a body corporate or entity that Controls the Subcontractor ceases to directly or indirectly have Control of the Subcontractor; or
- (b) a body corporate or entity that does not Control the Subcontractor at the date of this Subcontract, either alone or together with others, comes to directly or indirectly have Control of the Subcontractor.

Claim means any claim, action, demand or proceeding whatsoever including for payment of money, damages, expenses or for an extension of time:

- (a) under, arising out of, or in any way in connection with, this Subcontract, the Works or the Project;
- (b) under, arising out of, or in any way in connection with either party's conduct prior to the date of this Subcontract; or

- (c) otherwise at law or in equity, including under or for breach of any statute, in tort for negligence or otherwise (including negligent misrepresentation), or for restitution (including restitution based on unjust enrichment).

Completion means when:

- (a) the Works are or a Stage is complete except for minor Defects which:
 - (i) do not prevent the Works or the Stage from being reasonably capable of being used for the intended purpose of the Works or the Stage; and
 - (ii) correction of which will not prejudice or disrupt the lawful and convenient use of the Works or the Stage; and
- (b) the Subcontractor has satisfied the following requirements:
 - (i) the Subcontractor has provided John Holland with copies of all documents evidencing compliance with sub paragraph (c) of the definition of Law relevant to the Works including those necessary to occupy and use the completed Works or Stage;
 - (ii) the Works or Stage have been satisfactorily commissioned and tested as required by this Subcontract;
 - (iii) all services and installations performed as required by this Subcontract;
 - (iv) the Subcontractor has provided John Holland with all warranties, operation and maintenance manuals, as-built drawings and other technical information for the Works or Stage required by this Subcontract; and
 - (v) the Subcontractor otherwise has done everything which this Subcontract requires it to do prior to Completion (including the specific requirements set out in the Subcontract Details).

Completion Date Adjustment Notice means a notice in writing from John Holland to the Subcontractor confirming an adjustment to the Date for Completion in accordance with the Subcontract.

Confidential Information means details of the Works, the Scope of Works, this Subcontract and all information provided to the Subcontractor (of whatever nature and medium of communication) by or on behalf of John Holland in connection with the provision of the Works, the Head Contract, the Head Contract Works or the Project, including the Subcontractor Documentation and any information communicated to, available to, or accessible by the Subcontractor prior to the date of this Subcontract and any discussions concerning the Subcontractor Documentation, but Confidential Information excludes:

- (a) information that is already in the public domain; or
- (b) information which subsequently becomes part of the public domain other than as a result of an unauthorised disclosure by the recipient or its representatives.

Consequential Loss means:

- (a) loss of income, loss of revenue, loss of profit, loss of financial opportunity, loss of investment return, loss of business or loss of business opportunity, loss of contract, loss of goodwill, loss of use, loss of production or failure to realise anticipated savings (whether the loss is direct or indirect); or
- (b) increase in direct or indirect financing costs.

whether present or future, fixed or unascertained, actual or contingent, or suffered or incurred by a party or a third party to which the party is liable.

Construction Program is the program prepared by John Holland for the Head Contract Works and provided to the Subcontractor.

Control has the meaning given to that term in section 50AA of the Corporations Act.

Controller has the same meaning as in section 9 of the Corporations Act.

Corporations Act means the *Corporations Act 2001* (Cth).

D&BP Act means the *Design and Building Practitioners Act 2020* (NSW).

Date for Completion means the date or dates for completion of the Works or a Stage of the Works, or a period of time for completion of the Works or a Stage of the Works, as identified in the Subcontract Details and as may be adjusted in accordance with the Subcontract.

Date of Completion means the date or dates the Works or a Stage achieve Completion, as certified by John Holland pursuant to clause 16.2.

Defects mean any defect, deficiency, error, fault, shrinkage or omission in the Works or a Stage of the Works including any other aspect of the Works or a Stage of the Works which is not in accordance with the requirements of this Subcontract.

Defects Liability Period means the period or periods commencing on the Date of Completion and which continues for the period identified in the Subcontract Details, as extended in accordance with clause 11.7.

Delay Costs means the amount specified in the Subcontract Details in relation to clause 12.15.

Direction means any agreement, approval, assessment, authorisation, certificate, decision, demand, determination, direction, instruction (including a site instruction), notice, order, rejection, permission, request or requirement of John Holland other than a Variation Order.

Dispute has the meaning given under clause 25.1(a).

Dispute Notice means a dispute notice issued in accordance with clause 25.1(a).

Excepted Risks has the meaning given under clause 21.3.

Expert means the person appointed pursuant to clause 25.3(b)(i).

Extension Event means:

- (a) a breach of this Subcontract by John Holland, other than a breach caused or contributed to by the Subcontractor or the Subcontractor's Associates;
- (b) a Suspension Order directed by John Holland under clause 12.11(b);
- (c) a Variation Order directed by John Holland except where such Variation is directed as a result of an act or omission by the Subcontractor or the Subcontractor's Associates;
- (d) an act or omission by John Holland or John Holland's personnel or officers, not being an act or omission to the extent:
 - (i) expressly permitted or allowed by this Subcontract, or which arises as part of the exercise of any rights of John Holland and John Holland's personnel or officers under this Subcontract; or
 - (ii) caused or contributed to by an act or omission of the Subcontractor or the Subcontractor's Associates; and
- (e) any other event specified in the Subcontract Details (if any).

Final Payment Claim means the Payment Claim made by the Subcontractor to John Holland strictly in accordance with clause 14.14.

Further Delay Period means each 5 day period from the date of the notice required under clause 12.7(a), until the cessation of the delay.

Good Industry Practice means that degree of skill, care, prudence, foresight and practice which may reasonably be expected from time to time of a skilled and experienced contractor carrying out work similar to the Works for a project of a similar size, scope, complexity and nature of the Project.

GST means any tax, levy, charge or impost implemented under the GST Act or an Act of the Parliament of the Commonwealth of Australia substantially in the form of, or which has a similar effect to, that Act.

GST Act means *A New Tax System (Goods and Services Tax) Act 1999* (Cth).

Head Contract means the agreement between John Holland and the Principal with respect to the Project (if any).

Head Contract Works means the whole of the works to be performed under the Head Contract.

Insolvency Event means:

- (a) a Controller, Administrator or similar officer is appointed in respect of a person or any asset of a person;
- (b) a liquidator or provisional liquidator is appointed in respect of a person;
- (c) any application (not withdrawn or dismissed within 7 days) is made to a court for an order, an order is made, a meeting is convened or a resolution is passed, for the purpose of:
 - (i) appointing a person referred to in paragraph (a) or (b) of this definition;
 - (ii) winding up or deregistering a person; or
 - (iii) proposing or implementing a scheme of arrangement, other than with the prior approval of the Principal under a solvent scheme of arrangement pursuant to Part 5.1 of the Corporations Act;
- (d) any application (not withdrawn or dismissed within 7 days) is made to a court for an order, a meeting is convened, a resolution is passed or any negotiations are commenced, for the purpose of implementing or agreeing:
 - (i) a moratorium of any debts of a person;
 - (ii) any other assignment, composition or arrangement (formal or informal) with a person's creditors; or
 - (iii) any similar proceeding or arrangement by which the assets of a person are subjected conditionally or unconditionally to the control of that person's creditors or a trustee,or any agreement or other arrangement of the type referred to in this paragraph (d) is ordered, declared or agreed to;
- (e) as a result of the operation of section 459F(1) of the Corporations Act, a person is taken to have failed to comply with a statutory demand (as defined in the Corporations Act);
- (f) any writ of execution, garnishee order, mareva injunction or similar order, attachment or other process is made, levied or issued against or in relation to any asset of a person;
- (g) anything analogous to anything referred to in paragraphs (a) to (f) (inclusive) of this definition, or which has a substantially similar effect, occurs with respect to a person under any law; or
- (h) a person is, or admits in writing that it is, or is declared to be, or is taken under any applicable law to be (for any purpose), insolvent or unable to pay its debts.

Institute means the Chapter of the Resolution Institute in the State or Territory specified in clause 29.1 (or if no Chapter exists in that State or Territory, in the State of New South Wales).

Intellectual Property Rights means any statutory and other proprietary right in respect of inventions, innovations, patents, utility models, registered and registrable designs, circuit layouts, mask rights, copyright (including future copyright), confidential information, trade secrets, technical data and know-

how, trademarks and any other right in respect of intellectual property as defined in Article 2 of the Convention establishing the World Intellectual Property Organisation of July 1967.

John Holland's Representative means the person named in the Subcontract Details (or any subsequent replacement of that person notified in writing to the Subcontractor by John Holland).

Key People means the personnel identified in the Subcontract Details, or any replacements of such personnel pursuant to clause 10.3.

Law means:

- (a) any applicable Commonwealth, State, Territory or local government legislation including regulations, ordinances, by-laws, orders, awards, proclamations and other subordinate legislation;
- (b) principles of law or equity established by decisions of courts;
- (c) codes, standards, policies, Approvals, exemptions and other lawful requirements of organisations having jurisdiction in connection with the carrying out of the Works, including the requirement of any Authority and any codes, standards and policies specified in or reasonably ascertainable from the Scope of Works;
- (d) all relevant Australian Standards and the Building Code of Australia and any other relevant standards, as amended, replaced or updated from time to time;
- (e) all relevant State Code and other relevant codes for the construction industry, as amended, replaced or updated from time to time; and
- (f) fees and charges payable in connection with the above.

Limits of Accuracy means the percentage specified in the Subcontract Details in relation to clause 14.5(c).

Loss includes any loss, damage, cost, expense (including legal and other professional charges and expenses), fee or liability of any kind whether actual, prospective or contingent, currently ascertainable or not or arising under or in any way in connection with the Subcontract or arising at Law and any liability under an indemnity.

Lump Sum Breakdown means, where the Subcontract Sum includes a lump sum component, a breakdown of that lump sum by the Subcontractor to a level of detail as required by John Holland.

Modern Slavery Laws means any law, statute and regulation which prohibits exploitation of a worker, human trafficking, slavery, servitude, forced labour, debt bondage or deceptive recruiting for labour or services, or similar types of conduct, and applicable or otherwise in force in the jurisdiction in which John Holland or the Subcontractor is registered or conducts business or in which activities relevant to the Subcontract are to be performed (including the *Modern Slavery Act 2018* (Cth) and the *Modern Slavery Act 2018* (NSW) (if applicable)).

Moral Rights has the same meaning as defined in section 189 of the *Copyright Act 1968* (Cth).

Moral Rights Owner means any person who has Moral Rights in relation to any thing made, created, provided or procured as part of the performance of the Works.

Notice of Dispute means a notice of dispute issued by John Holland in accordance with clause 14.7.

Other Contractor means any contractor (other than the Subcontractor and its Sub-Subcontractors), consultant, supplier, artist, tradesperson or other person engaged by any person (including John Holland, and the Principal) to do work in relation to the Project.

Payment Claim means a claim for payment for an amount in respect of the Subcontract Sum and any other amounts that the Subcontractor may be entitled to claim under this Subcontract submitted by the

Subcontractor to John Holland strictly in accordance with the Subcontract (including the requirements of clause 14.6).

Payment Platform means the software system as stated in the Subcontract Details, or such other platform notified by John Holland to the Subcontractor from time to time, through which the parties may manage the payment claim and payment schedule process.

Payment Schedule means a payment schedule issued by John Holland in accordance with clause 14.7.

Preliminary Design means any preliminary design of the Works included in the Scope of Works.

Prescribed Notices means the notices described in clause 26.1.

Pricing Schedule means the bill of quantities or schedule of prices or rates described in the heading entitled 'Pricing Schedule (Bill of Quantities, Schedule of Prices or Rates) of Schedule F.

Principal has the meaning given in the Subcontract Details.

Prior Work means work carried out on or in relation to the Site by a party other than the Subcontractor prior to the Subcontractor's work.

Project has the meaning given in the Subcontract Details.

Project System means the information, quality or document management system(s) being utilised by John Holland for the Project, as stated in the Subcontract Details, or such other information, quality or document management system notified by John Holland to the Subcontractor.

Proportionate Liability Legislation means, where the governing law of this Subcontract is:

- (a) Victoria - Part IVAA of the *Wrongs Act 1958* (Vic);
- (b) New South Wales - Part 4 of the *Civil Liability Act 2002* (NSW);
- (c) Queensland - Chapter 2 Part 2 of the *Civil Liability Act 2003* (Qld);
- (d) Western Australia - Part 1F of the *Civil Liability Act 2002* (WA);
- (e) South Australia - Part 3 of the Law Reform (Contributory Negligence and Apportionment of Liability Act 2001 (SA);
- (f) Tasmania - Part 9A of the *Civil Liability Act 2002* (Tas);
- (g) the Australian Capital Territory - Chapter 7A of the *Civil Law (Wrongs) Act 2002* (ACT) and the *Building Act 2004* (ACT); or
- (h) the Northern Territory - Part 2 of the *Proportionate Liability Act 2005* (NT).

Provisional Sum is the provisional sum for a Provisional Sum Work as identified in Schedule K.

Provisional Sum Work means the portion or element of the Works which is a provisional sum as identified in Schedule K.

RCTI means Recipient Created Tax Invoice, which has the meaning given in the GST Act.

RCTI Agreement means a written agreement which satisfies the requirements of section 29-78(3) of the GST Act.

Reference Date means the date stated in the Subcontract Details and to the extent relevant, if this Subcontract is terminated, where the Works are being carried out in New South Wales, the date of termination.

Resubmission means the amended Subcontractor Documentation as described in clause 7.1(a)(ii) and 7.2.

Sanctioned Person means any individual or entity:

- (a) listed on any of the following:
 - (i) the Consolidated Sanctions List of Specially Designated Nationals and Blocked Persons, Foreign Sanctions Evader List, and Sectoral Sanctions Identification List administered by the Office of Foreign Assets Control of the US Department of the Treasury;
 - (ii) the EU Consolidated Financial Sanctions List administered by the European Union;
 - (iii) the Consolidated List of Financial Sanctions Targets in the United Kingdom administered by His Majesty's Treasury;
 - (iv) the Consolidated List administered by the Australian Department of Foreign Affairs and Trade;
 - (v) the United Nations Security Council Asset Freeze List; or
 - (vi) any other Sanctions-related list of designated persons maintained by a Sanctions Authority,
- (b) operating in, ordinarily resident in, or organised under the laws of a country or territory that is the target of country-wide or territory-wide Sanctions (being, as at 31 March 2022, Cuba, the Crimea Donetsk Luhansk and Sevastopol regions of Ukraine, Iran, North Korea and Syria); or
- (c) owned or controlled (as such terms are interpreted in accordance with applicable Sanctions) by, or any person acting on behalf of, a person falling within paragraph (a) or (b) of this definition.

Sanctions means any economic or financial sanctions or trade embargoes enacted, imposed, administered or enforced by any Sanctions Authority.

Sanctions Authority means:

- (a) the US government;
- (b) the United Nations;
- (c) the European Union;
- (d) the Australian government;
- (e) the United Kingdom government;
- (f) the Hong Kong government;
- (g) any other governmental institution or agency of any of the foregoing (including, without limitation, the Office of Foreign Assets Control and the US Department of the Treasury, the Australian Department of Foreign Affairs and Trade, His Majesty's Treasury of the United Kingdom and the Hong Kong Monetary Authority); or
- (h) any other applicable governmental, inter-governmental or supranational sanctions authority.

Scope of Works means the scope of works, specifications, drawings, design brief and other documents (if any) as described, referred to, or set out in Schedule F.

Security of Payment Act means:

- (a) in New South Wales only, the Building and Construction Industry Security of Payment Act 1999 (NSW);
- (b) in Victoria only, the Building and Construction Industry Security of Payment Act 2002 (Vic);
- (c) in Queensland only, the Building Industry Fairness (Security of Payment) Act 2017 (Qld);
- (d) in Western Australia only, the Construction Contracts Act 2004 (WA) or if applicable, the Building and Construction Industry (Security of Payment) Act 2021 (WA);
- (e) in the Northern Territory only, the Construction Contracts (Security of Payment) Act 2004 (NT);
- (f) in South Australia only, the Building and Construction Industry Security of Payment Act 2009 (SA);
- (g) in Tasmania only, the Building and Construction Industry Security of Payment Act 2009 (TAS); or

- (h) in Australian Capital Territory only, the Building and Construction Industry (Security of Payment) Act 2009 (ACT).

Senior Executives means the persons named in the Subcontract Details.

Site means the place described in the Subcontract Details.

Special Conditions means the special conditions, if any, set out in Schedule A.

Stage means a stage or stages comprising of a part or parts of the Works as identified and described in the Subcontract Details.

State Code means:

- (a) where the Site is located in New South Wales, the New South Wales Code of Practice for Procurement and the New South Wales Industrial Relations Guidelines: Building and Construction Procurement (July 2013);
- (b) where the Site is located in Queensland, the Queensland Code of Practice for the Building and Construction Industry and the Implementation Guidelines to the Queensland Code of Practice for the Building and Construction Industry;
- (c) where the Site is located in the Northern Territory, the Northern Territory Procurement Code;
- (d) where the Site is located in South Australia, the Code of Practice for the South Australian Construction Industry and its Implementation Guidelines;
- (e) where the Site is located in Western Australia, the Western Australian Building and Construction Industry Code of Conduct;
- (f) where the Site is located in Tasmania, the National Code of Practice for the Construction Industry and the Tasmanian Annexure to the National Code of Practice for the Construction Industry; and
- (g) where the Site is located in the Australian Capital Territory or Victoria, any applicable State or Territory equivalent Code of Practice or other requirement that may be in place at the time (including the Government Procurements (Secure Local Jobs) Code 2020 if the Site is located in the Australian Capital Territory).

Subcontract means this document constituted of the following documents:

- (a) the Formal Instrument of Agreement;
- (b) the Subcontract Details;
- (c) the General Conditions; and
- (d) the Schedules (and any annexures to the Schedules).

Subcontract Details means the part of this Subcontract headed 'Subcontract Details'.

Subcontractor Documentation means all material (stored by any means) which is created or produced by (or on behalf of) the Subcontractor as part of the Works or for the purpose of performing the Works or which the Subcontractor is required to produce as part of the Works, and includes the documents which the Scope of Works requires the Subcontractor to prepare, drawings, specifications, sketches, plans, designs, estimates, calculations, reports, models, computer source codes, articles, equipment, photographs, information, files and data.

Subcontractor's Representative means the person identified in the Subcontract Details or any other person appointed from time to time in writing as the Subcontractor's Representative in accordance with clause 10.2(a).

Subcontract Sum means:

- (a) the lump sum specified in the Subcontract Details inclusive of the amounts specified as the price for Provisional Sum Work; and
- (b) where the Pricing Schedule includes a schedule of rates, the amount calculated by multiplying the quantity of work performed to which the schedule of rates applies by the rate or price in the schedule of rates for that work,

as adjusted from time to time by any additions or deductions required to be made under the Subcontract to be paid to the Subcontractor for compliance with its obligations under this Subcontract.

Submission means the submission of Subcontractor Documentation as described in clause 7.1(a)(ii).

Sub-Subcontractor means a subcontractor, supplier or consultant engaged by the Subcontractor.

Suspension Order means a written notice by John Holland to the Subcontractor to suspend all or part of the Works in accordance with clause 12.11.

Supplier Code of Conduct means John Holland's Supplier Code of Conduct as may be updated from time to time. The version current as at the date of this Subcontract is set out in Schedule L.

Taxable Supply has the meaning given in the GST Act.

Variation means any change to the Works and includes any additions, increases, decreases, omissions and deletions to or from the Works, any change to character, quality, levels, lines, positions, dimensions and demolition or removal of works.

Variation Order means a written instruction issued by John Holland to the Subcontractor to carry out a Variation in accordance with clause 13.1 which will include all relevant details in a Completion Date Adjustment Notice.

Variation Price Request means a written instruction by John Holland to the Subcontractor requesting a proposed Variation.

Variation Quotation means a written notice by the Subcontractor to John Holland setting out, amongst other things, the effect (if any) which the proposed Variation will have on the Subcontract Sum and the Date for Completion and any other relevant information related to the carrying out of the proposed Variation.

WHS means work health and safety.

WHS Law means the following legislation where the Works are being carried out and/or in the location of the Site (as applicable):

- (a) in New South Wales, the Work Health and Safety Act 2011 (NSW) and the Work Health and Safety Regulation 2017 (NSW);
- (b) in Queensland, the Work Health and Safety Act 2011 (Qld) and the Work Health and Safety Regulation 2011 (Qld);
- (c) in Victoria, the Occupational Health and Safety Act 2004 (Vic) and the Occupational Health and Safety Regulations 2007 (Vic);
- (d) in Western Australia, the Occupational Health and Safety Act 1984 (WA) and the Occupational Health and Safety Regulations 1996 (WA);
- (e) in South Australia, the Work Health and Safety Act 2012 (SA) and the Work Health and Safety Regulations 2012 (SA);
- (f) in the Australian Capital Territory, the Work Health and Safety Act 2011 (ACT), the Crimes Act 1900 (ACT) and the Work Health and Safety Regulation 2011 (ACT);

- (g) in Tasmania, the Work Health and Safety Act 2012 (Tas) and the Work Health and Safety Regulations 2012 (Tas);
- (h) in the Northern Territory, the Work Health and Safety (National Uniform Legislation) Act 2011 (NT) and the Work Health and Safety (National Uniform Legislation) Regulations 2011 (NT); and
- (i) the Work Health and Safety Act 2011 (Cth) and the Work Health and Safety Regulation 2011 (Cth),

as amended or replaced from time to time, and also includes industry codes of practice, safety standards, handbooks and guidelines applicable to the Works.

Works means all works, services, tasks and other things which the Subcontractor is or may be required to carry out, complete or handover to John Holland to comply with the terms and conditions of this Subcontract including the physical works, Variations, the provision of Works Material and Subcontractor Documentation, the Scope of Works, Provisional Sum Work and temporary work, such works being briefly described in the Subcontract Details.

Works Material means those things used by the Subcontractor to construct or perform the Works but which do not form part of the Works.

1.2 Interpretation

In this Subcontract, unless the context indicates a contrary intention:

- (a) words denoting the singular include the plural and vice versa and a gender includes all genders;
- (b) headings are for convenience only and do not affect the interpretation of this Subcontract;
- (c) references to a party to this Subcontract include that party's successors and permitted assignees;
- (d) references to a clause, Part, Annexure, Schedule, attachment or exhibit is a reference to a clause, Part, Annexure, Schedule, attachment or exhibit of or to this Subcontract;
- (e) references to this Subcontract and to any deed, agreement or instrument are deemed to include the relevant document as amended, novated, supplemented, varied or replaced from time to time;
- (f) references to John Holland include references to John Holland's nominees;
- (g) an expression importing a person includes any company, firm, partnership, joint venture, association, unincorporated body, corporation or other body corporate and any government agency or statutory body as well as an individual;
- (h) a reference to a body, other than a party to this Subcontract (including an institute, association or authority), whether statutory or not:
 - (i) which ceases to exist; or
 - (ii) whose powers or functions are transferred to another body,is a reference to the body which replaces it or which substantially succeeds to its powers or functions;
- (i) a reference to any legislation (or any code) or to any section or provision of any legislation (or any code) includes any statutory modification, replacement, consolidation, amendment or re-enactment of or any statutory provision substituted for that legislation (or code), section or provision and ordinances, by-laws, regulations and other statutory instruments issued under that legislation (or code), section or provision;
- (j) a reference to "\$" is to Australian currency;
- (k) references to "day" means calendar day;
- (l) where the day on or by which any thing is to be done is not a Business Day, that thing must be done on or by the next Business Day;

- (m) if an act or event under this Subcontract to be done by a party on or by a given day is done after 5:00pm on that day, it is taken to be done on the next day;
- (n) a reference to consent, approval, opinion, satisfaction (or words of similar effect) of or by John Holland means a consent, approval, opinion, satisfaction of or by John Holland in its sole and unfettered discretion unless expressly stated otherwise, and will not relieve the Subcontractor from responsibility for completion with this Subcontract;
- (o) the words "including", "includes" or other similar expressions will be read to mean "including, without limitation", "includes, without limitation" or for other similar expressions does not limit what else is included; and
- (p) if there is any Ambiguity in or between a document (or documents) which forms part of this Subcontract or a document which forms part of this Subcontract does not, as at the date of this Subcontract, comply with any Law relevant to the Works:
 - (i) the party discovering the Ambiguity or non-compliance must, promptly after such discovery, give notice of the Ambiguity or non-compliance to the other party;
 - (ii) unless directed to the contrary by John Holland, the obligation or document which imposes the higher or more onerous standard of performance or compliance will prevail;
 - (iii) if between the Scope of Works and any part of the Subcontractor Documentation (the use of which has not been rejected by John Holland under clause 7.2), then, unless otherwise directed in writing by John Holland (acting reasonably), the Scope of Works will prevail;
 - (iv) John Holland must in accordance with clause 1.2(p)(ii) direct the Subcontractor as to the course it must adopt within 7 days of receipt or issue (as applicable) of the notice under clause 1.2(p)(i); and
 - (v) the Subcontractor has no Claim against John Holland arising out of or in connection with this clause (q) (including any instruction or direction given by John Holland in accordance with clauses (p)(iii) and (p)(iv)), including a claim for an adjustment to the Subcontract Sum, an extension of time or any additional Losses.

2. Works prior to date of Subcontract

2.1 Works carried out prior to date of this Subcontract

Where the Subcontractor performs, before the date of this Subcontract, any works, services, tasks and other things that form part of the Works, the parties hereby agree that the terms and conditions of this Subcontract will apply to such works, services, tasks and other things.

3. Subcontractor's Obligations

3.1 Key obligations

- (a) The Subcontractor must carry out and complete the Works and its obligations under this Subcontract in accordance with:
 - (i) the requirements of this Subcontract (including the Scope of Works and any Variation directed in accordance with clause 13);
 - (ii) Good Industry Practice;
 - (iii) John Holland's Supplier Code of Conduct; and
 - (iv) all applicable Laws.
- (b) The Subcontractor warrants that:
 - (i) the Subcontractor Documentation will be fit for its intended purpose; and
 - (ii) the Works will, upon Completion, be fit for their intended purpose as such purpose is stated in, or reasonably ascertainable from, this Subcontract.

- (c) The Subcontractor must (within the time required or, if no time is specified, promptly) comply with all Directions and Variation Orders given by John Holland in accordance with this Subcontract and is not entitled to an extension of time or to recover any additional Losses incurred by it consequent upon a Direction or Variation Order issued by John Holland unless such entitlement is expressly provided for under a provision of this Subcontract (including clause 13).
- (d) The Subcontractor must:
 - (i) immediately commence performance of its obligations under the Subcontract; and
 - (ii) subject to clause 6.2:

diligently commence construction of the Works on the Site;

diligently carry out and perform the construction of the Works; and

take all reasonable steps to expedite the performance of the Works to, if reasonably possible and at its own cost, complete the Works in a shorter period to that stated in the Subcontract Details.

3.2 Laws

In carrying out the Works and its activities, the Subcontractor must warrant that it will, at its cost:

- (a) comply with all relevant Laws and Approvals; and
- (b) apply for, obtain and give John Holland copies of all Approvals in accordance with the Scope of Works (except for Approvals that will or must be obtained by John Holland or its Other Contractors (as notified by John Holland to the Subcontractor from time to time))

3.3 Co-operation

- (a) The Subcontract acknowledges that Other Contractors may be carrying out works or services with respect to the Project on the Site concurrently with and in close proximity to the execution of Works by the Subcontractor.
- (b) The Subcontractor shall:
 - (i) do everything reasonably practicable to assist John Holland to integrate the Works with the services or works of Other Contractors;
 - (ii) comply with all reasonable directions from John Holland for the co-ordination and integration of the Works with the works or services of Other Contractors;
 - (iii) liaise and co-operate with the Other Contractors to ensure the co-ordination and interfacing of the works or services of the Other Contractors with the execution of the Works by the Subcontractor and not obstruct, delay, interfere, hinder or cause any damage to the works or services of the Other Contractors;
 - (iv) monitor the progress of works or services being performed by Other Contractors and notify John Holland of any interface or sequence activities which may affect the commencement, progress or completion of any aspect of the Works; and
 - (v) promptly notify John Holland if it becomes aware of any delay affecting or caused by an Other Contractor in respect of the Project.
- (c) The Subcontractor is not entitled to any compensation or extension of time resulting from delay or disruption caused by an Other Contractor's works or services or a direction given by John Holland under clause 3.3(b)(ii).

3.4 Attending meetings

- (a) The Subcontractor must attend all meetings relating to the Works or the Project as required by John Holland (acting reasonably), including:
 - (i) meetings required under the Head Contract;
 - (ii) site, training, audit, review and design co-ordination meetings; and

- (iii) meetings with user groups, Authorities, Other Contractors, third parties and other stakeholders.
- (b) John Holland must provide reasonable notice to the Subcontractor of such meetings referred to in this clause 3.4.
- (c) John Holland may nominate specific Subcontractor's Associates to attend meetings referred to in clause 3.4(a) and the Subcontractor must ensure that the nominated Subcontractor's Associates attend the required meetings.
- (d) Unless approved by John Holland (in writing) (such approval not to be unreasonably withheld or delayed), the Subcontractor must not attend meetings relating to the Works or the Project with any Authority, the Principal or Other Contractors without a John Holland representative. If John Holland provides its prior written approval, the Subcontractor must, promptly after the meeting, provide John Holland with a full report of the relevant meeting and copies of any relevant correspondence (including any minutes).

4. Security

4.1 Form

- (a) On the date of this Subcontract, the Subcontractor must provide security for the amount and in the manner specified in the Subcontract Details.
- (b) Where the security required to be provided by the Subcontractor are unconditional undertakings:
 - (i) the Subcontractor must provide John Holland the unconditional undertakings on or before the date of this Subcontract; and
 - (ii) if the Subcontract Sum increases by more than the percentage specified in the Subcontract Details, John Holland may (acting reasonably) require from the Subcontractor such further security as required to ensure the amount of security held continues to equal the amount required for security under this clause.

4.2 Recourse

- (a) John Holland may only have recourse to the security provided by the Subcontractor under this Subcontract to:
 - (i) satisfy a debt due or amount owing by the Subcontractor to John Holland under this Subcontract; or
 - (ii) satisfy any bona fide Claim for Loss John Holland may have against the Subcontractor arising out of or in connection with this Subcontract or the Works.
- (b) John Holland is entitled to convert the security into cash at any time.
- (c) John Holland's right to have recourse to the security as set out in this clause reflects the commercial agreement of the parties as to who will be in funds while any dispute about John Holland's entitlement to have recourse to security and any amount of such entitlement is determined. [As such:
 - (i) John Holland may have recourse to the security notwithstanding:
 - (A) the Subcontractor disputes John Holland's entitlement to have recourse or the amount to which it has had or seeks recourse;
 - (B) proceedings are on foot to determine such entitlement; and
 - (ii) the Subcontractor undertakes to not injunct John Holland from having recourse to the security or the security provider from complying with the unconditional undertaking to reflect the agreed intention of the parties that security is a risk allocation tool pending the final resolution of any dispute between the parties.

4.3 Release

John Holland must:

- (a) within 10 Business Days after the issue of a Completion notice for the Works or the date all Defects referred to in this clause 4.3(a) have been rectified to the satisfaction of John Holland (as the case may be), release 50% of any security held under clause 4.1, provided all Defects which were identified on or before the issue of a Completion notice have been rectified to the satisfaction of John Holland; and
- (b) release the balance of the security held under clause 4.1 on the later of:
 - (i) subject to clause 4.3(c), the expiry of the Defects Liability Period (as extended in accordance with this Subcontract) (or, if there are Stages, the expiry of the last Defects Liability Period (as extended in accordance with this Subcontract));
and
 - (ii) the Subcontractor providing John Holland with a release in the form set out in Schedule D or any other form that John Holland may approve.
- (c) If at the time of the release of security under clause 4.3(b) there are unperformed obligations of the Subcontractor or unremedied Defects, in each case of which the Subcontractor has been given notice, John Holland may retain from the security otherwise required to be released an amount equal to 120% of the estimated cost to remedy the Defect or perform the obligation (as applicable).

4.4 Interest

- (a) John Holland is not obliged to pay the Subcontractor interest on any security held under clause 4.1 (including on the proceeds of the unconditional undertakings (if lawfully converted into cash)).
- (b) John Holland will not hold the proceeds referred to in this clause 4.4 on trust for the Subcontractor. If John Holland has improper recourse to the security in breach of clause 4.1:
 - (i) John Holland must return the proceeds to the Subcontractor plus interest calculated in accordance with clause 14.15 from the date of the improper recourse; and
 - (ii) The Subcontractor will have no other Claim against John Holland regarding the improper recourse.

4.5 Parent Company Guarantee

The Subcontractor, unless otherwise agreed to in writing by John Holland, must provide to John Holland, on or before the date of this Subcontract, third party security in the terms of the Deed of Guarantee and Indemnity as contained in Schedule C, duly executed by a corporation approved by John Holland.

5. Information And Project Risks

5.1 Non-Reliance

- (a) The Subcontractor:
 - (i) warrants that it did not in any way rely upon:

any information, data, representation, statement or document made by or provided to the Subcontractor by John Holland or anyone on behalf of John Holland; or

the accuracy or adequacy of such information, data, representation, statement or document,
for the purposes of entering into the Subcontract;

- (ii) warrants that it entered into this Subcontract based solely on its own investigations, interpretations, deductions, information and determinations;
- (iii) warrants that it has examined and carefully checked:

any Preliminary Design included in the Scope of Works made available to the Subcontractor; and

all drawings, specifications and other documents referred to in the Scope of Works and other documents relevant to the Works made available to the Subcontractor,

and agrees that it has no Claim that the Preliminary Design, the Scope of Works and documents referred to in clause 5.1(a)(iii)(B):

are not suitable, appropriate and adequate for their intended purpose as such purpose is stated in, or reasonably ascertainable from, this Subcontract;

are not consistent with and do, or will, not conform with and meet the requirements of this Subcontract; and contain any Ambiguity; and

- (iv) acknowledges that it is aware that John Holland has entered into the Subcontract relying upon the warranties in clauses 5.1(a)(i), 5.1(a)(ii) and 5.1(a)(iii).

5.2 Request for Information

If requested by John Holland, the Subcontractor must provide within the reasonable time requested by John Holland all such information and evidence required by John Holland (acting reasonably) that are relevant to the Project, this Subcontract and the Subcontractor's performance under this Subcontract (including if information is requested by the Principal under the Head Contract or to assist John Holland to assess Claims made by the Subcontractor).

6. The Site

6.1 Site Information

John Holland does not warrant, guarantee or make any representation about the accuracy or adequacy of any information or data made available to the Subcontractor as to the existing conditions at, beneath or in relation to, the Site and where that information or data does not form part of the Subcontract. The Subcontractor acknowledges that:

- (a) clause 5 will apply to this information or data; and
- (b) John Holland will not be liable for any Claim by the Subcontractor, and the Subcontractor has no Claim against John Holland, about any fact, matter or thing arising out of or in any way connected with that information or data.

6.2 Site Access

Subject to clauses 3.3, 4, 6.3 and 18(b), John Holland must give the Subcontractor sufficient access to the Site to allow it to commence Work on Site, by the later of the date of this Subcontract and satisfaction of the requirements set out in clause 20. .

Delay by John Holland in giving access to the Site in accordance with this clause 6.2 shall not be a breach of this Subcontract, but will entitle the Subcontractor to claim an extension of time in accordance with clause 12.

6.3 Site Obligations

- (a) The Subcontractor's right of access to the Site and to perform the Works on the Site is subject to the following conditions and limitations:
 - (i) the Subcontractor shall not access the Site unless it satisfies the requirements in this clause 6;
 - (ii) as a condition of continued access to the Site, the Subcontractor must be able to demonstrate to the reasonable satisfaction of John Holland at any time and at all times that it is complying with its obligations under clause 20;
 - (iii) access is subject to:

the rights of Other Contractors, or any persons nominated from time to time by John Holland as having an interest in the Works or the Project, to carry out and complete works or other activities in their own right;

any rights reserved under the Head Contract for any person, including the Principal and its contractors and consultants, to carry out inspections or exercise rights or powers in connection with the Site; and

any other restriction or limitation specified in the Subcontract Details;

(iv) John Holland is not obliged to:

provide the Subcontractor with sole, exclusive, uninterrupted or continuous access to the Site; or

perform any work or provide any facilities to the Subcontractor (other than those required under clause 6.4);

(v) John Holland may from time to time discontinue the Subcontractor's use of or access to the Site as necessary to achieve the Construction Program. This direction may entitle the Subcontractor to an extension of time in accordance with clause 12;

(vi) John Holland may, from time to time, impose such reasonable restrictions upon the Subcontractor's right of access to the Site as may be necessary to facilitate the works or services being performed by Other Contractors; and

(vii) access to the Site will confer on the Subcontractor a right only to such use and control as is necessary to enable it to carry out the Works.

(b) If the restrictions imposed by John Holland under clause 6.3(a)(vi) arise as a result of:

(i) the Subcontractor's failure to perform its obligations in accordance with the Subcontract, then the Subcontractor has no Claim against John Holland arising out of or in connection with the restrictions imposed, including a claim for an adjustment to the Subcontract Sum, an extension of time or any additional Losses; or

(ii) a cause other than the Subcontractor's failure to perform its obligations in accordance with the Subcontract:

the restrictions imposed may entitle the Subcontractor to claim an extension of time in accordance with this clause 12 and be paid by John Holland the extra costs directly and reasonably incurred by it as a result of the restrictions imposed provided the restrictions imposed have delayed it in achieving Completion;

the Subcontractor must take all steps possible to mitigate the extra costs reasonably incurred by it as a result of the restrictions imposed; and

the entitlement under clause 6.3(b)(ii)(A) will be the Subcontractor's only entitlement to payment of money arising from the restrictions imposed.

(c) The Subcontractor must give John Holland, the Principal and any other person authorised by John Holland or the Principal access to the Works, the Site and any areas off-Site where Works are being carried out as John Holland may require (acting reasonably) from time to time and also provide these persons with every facility necessary for the supervision, examination and testing of the Works.

6.4 Facilities

John Holland must provide to the Subcontractor the facilities and services set out in item 1 of Schedule G and the Subcontractor must provide all other facilities and services necessary for the proper performance of the Works.

6.5 Valuable Objects Found on Site

Any things of value or archaeological or special interest found on or in the Site will, as between the parties, be the property of John Holland. Where such an item is found the Subcontractor must:

(a) immediately notify John Holland;

(b) protect it and not disturb it further; and

(c) comply with any reasonable Direction of John Holland in relation to the item.

The Subcontractor agrees that it has no Claim against John Holland arising out of or in connection with this clause 6.5 (including in relation to any Direction given by John Holland under clause 6.5(c)), including a claim for an adjustment to the Subcontract Sum, an extension of time or any additional Losses.

7. Design and Subcontractor Documentation

7.1 Subcontractor Documentation

- (a) The Subcontractor must:
 - (i) as part of the program it is to prepare under clause 12.2, submit to John Holland for approval (acting reasonably) a documentation program setting out the manner in which and times by which it is to provide John Holland with the Subcontractor Documentation; and
 - (ii) submit to John Holland for consideration the Subcontractor Documentation prepared in accordance with the documentation program approved by John Holland under clause 7.1(a)(i) and resubmit to John Holland for consideration the amended Subcontractor Documentation, where the documentation is rejected under clause 7.2.

7.2 Review

- (a) John Holland may, within the period identified in the Subcontract Details, provide a written notice to the Subcontractor rejecting the Subcontractor Documentation if the Subcontractor Documentation:
 - (i) does not comply with the Scope of Works or any other requirement of this Subcontract, stating or showing the reason; or
 - (ii) contains an Ambiguity, stating or showing the Ambiguity.
- (b) If John Holland rejects the Subcontractor Documentation pursuant to clause 7.2(a), the Subcontractor must within 10 Business Days after receipt of the notice issued by John Holland pursuant to clause 7.2(a), submit amended Subcontractor Documentation to John Holland and this clause 7.2 will apply to the amended Subcontractor Documentation.
- (c) Subject to any other restrictions under this Subcontract, the Subcontractor must not commence construction of any part of the Works, unless:
 - (i) the Subcontractor Documentation which applies to that part has been the subject of a Submission or if rejected a Resubmission; and
 - (ii) John Holland has not rejected the Subcontractor Documentation within the period of time specified in the Subcontract Details of that Submission or Resubmission, as the case may be.

7.3 No Obligation to Review

- (a) Nothing in this clause 7 (or otherwise in this Subcontract) obliges John Holland to review or comment upon the Subcontractor Documentation submitted by the Subcontractor under clauses 7.1 and 7.2 or otherwise for Ambiguities or compliance with the Subcontract.
- (b) No review of, comment upon, approval of, consent of, or rejection of the Subcontractor Documentation in connection with a Submission, Resubmission or otherwise (including any failure to review, reject, comment or approve), any failure by John Holland to identify an Ambiguity or a non-compliance in the Subcontractor Documentation in connection with a Submission, Resubmission or otherwise or any Direction by John Holland in respect of the Submission or a Resubmission will:
 - (i) relieve the Subcontractor from or alter or affect the Subcontractor's liabilities, obligations or responsibilities under the Subcontract or otherwise and the Subcontractor will remain responsible for the performance and completion of the Works in accordance with this Subcontract;
 - (ii) of itself constitute a Variation; or
 - (iii) entitle the Subcontractor to make a Claim against John Holland.

8. Provisional Sums

8.1 Provisional Sum Work

Provisional Sum Work (if any) is set out in Schedule K. Where applicable, John Holland will give the Subcontractor a Variation Order either deleting the Provisional Sum Work from the Subcontract or requiring the Subcontractor to proceed with the Provisional Sum Work. If any Provisional Sum Work is deleted from the Subcontract:

- (a) the Subcontract Sum will be reduced by the amount allowed for the Provisional Sum Work;
- (b) John Holland may carry out the Provisional Sum Work itself, or engage an Other Contractor to carry out the Provisional Sum Work; and
- (c) the Subcontractor shall have no Claim against John Holland as a result of the deletion and the carrying out by others of the Provisional Sum Work.

8.2 Provisional Sum Work with Design

If the Subcontractor is directed to proceed with Provisional Sum Work and that work includes an obligation that the Subcontractor must design the Provisional Sum Work, or any part thereof, the Subcontractor must:

- (a) progressively prepare the documents which are to form part of the Scope of Works and which must define the nature and scope of the Provisional Sum Work;
- (b) inform John Holland when these documents are being discussed at design and other meetings and John Holland may attend all such meetings; and
- (c) comply with clause 7 in respect of the documents.

8.3 Provisional Sum Work without Design

If the Subcontract does not provide that the Subcontractor must design the Provisional Sum Work:

- (a) John Holland's designers or others will progressively prepare the documents which will define the nature and scope of the Provisional Sum Work; and
- (b) the Subcontractor must attend such design and other meetings as required by John Holland to assist these designers in completing these documents and to advise upon:
 - (i) buildability issues and the choice of materials to be incorporated in the Works; and
 - (ii) the sufficiency and completeness of the proposed documents,and when finalised, John Holland will provide these documents to the Subcontractor.

8.4 Letting Provisional Sum Work

Where the Subcontractor is instructed to proceed with Provisional Sum Work and that work is not performed by the Subcontractor itself, it must be performed under subcontracts or supply agreements entered into by the Subcontractor as follows:

- (a) after the design for any Provisional Sum Work has been provided to the Subcontractor under clause 8.3, or if prepared by the Subcontractor after it has been reviewed and not been rejected by John Holland under clause 7.2, the Subcontractor must either contract with a person as directed by John Holland or invite tenders from at least 3 persons as either specified by John Holland or otherwise nominated by the Subcontractor and approved by John Holland; and
- (b) if tenders are called for Provisional Sum Work, the Subcontractor must:
 - (i) do so on the terms of a subcontract or supply agreement containing similar terms to the Subcontract and approved by John Holland;
 - (ii) give John Holland such details of each tender as John Holland may require;

- (iii) recommend which tenderer it believes should be accepted and, if this tenderer is not the lowest priced tenderer, it must give reasons why the lowest priced tenderer is not recommended; and
- (iv) then enter into a subcontract or supply agreement with the tenderer instructed by John Holland.

8.5 Adjustments of Subcontract Sum for Provisional Sum Work

After the Subcontractor is instructed to proceed with Provisional Sum Work the Subcontract Sum will be adjusted, if and only to the extent that the amount, as incurred by the Subcontractor directly and valued in accordance with clause 13.3 or tendered by the person with whom the Subcontractor is instructed to enter into a subcontract or supply agreement, is more or less than the amount allowed in the Subcontract Sum for that Provisional Sum Work.

9. Construction

9.1 Description of Works

Without limiting clause 3.1, the Subcontractor must construct the Works in accordance with this Subcontract, including:

- (a) the Scope of Works;
- (b) any Subcontractor Documentation which complies with the requirements of the Subcontract and the use of which has not been rejected by John Holland under clause 7.2; and
- (c) any Direction or Variation Order given under a provision of the Subcontract.

9.2 Setting Out

The Subcontractor must set out the Works and carry out any survey which may be necessary for this purpose.

9.3 Working Hours

Unless otherwise specified by John Holland, the hours of work applicable to the Works to be carried out on Site are as specified in the Subcontract Details.

9.4 Cleaning Up

The Subcontractor must, in carrying out the Works, keep the Site, its surroundings and the environment clean and tidy and not pollute or otherwise harm or damage the environment.

9.5 Urgent Protection

John Holland may take any action necessary to protect the Works, other property, the environment or people where the Subcontractor has failed to take such action in accordance with the Subcontract or otherwise, in which case clause 29.5 will apply.

9.6 Survey

If reasonably required by John Holland and communicated within a reasonable period prior to Completion, the Subcontractor must as a condition precedent to Completion submit to John Holland a certificate signed by a licensed surveyor, procured at its cost, stating that:

- (a) the whole of the Works are within any particular boundaries as may be stipulated in this Subcontract except only for parts of the Works specifically required by this Subcontract to be outside those boundaries; and
- (b) structural elements of the Works are within the dimensional tolerances specified.

9.7 Environmental Requirements

In addition to complying with all relevant environmental laws, the Subcontractor must comply with the environmental requirements set out in item 5 of Schedule G.

9.8 Document Management and Transmission

- (a) The Subcontractor must, where reasonably required by John Holland:
 - (i) use the relevant Project System to manage and transmit all documentation connected with the Works in accordance with the processes, procedures and systems required in the Subcontract or as otherwise reasonably required by John Holland;
 - (ii) align its document management and quality processes to complement and utilise the functions and features of the relevant Project System;
 - (iii) use the relevant Project System mail module for all correspondence relating to the Works between the Subcontractor and John Holland;
 - (iv) upload all Subcontract Documentation and other documentation which is required for the performance of the Works to the relevant Project System; and
 - (v) adhere to the documentation numbering system, metadata structures and revision code sequences which are required by John Holland.
- (b) The Subcontractor has no Claim against John Holland arising out of or in connection with this clause 9.8 (including a claim for an adjustment to the Subcontract Sum, an extension of time or any additional Losses).
- (c) The Subcontractor must ensure that any documentation that it provides to John Holland in computer readable form contains no virus or computer software code which is intended or designed to:
 - (i) permit access to or use of a computer system by a third person not authorised by John Holland; or
 - (ii) disable, damage or erase, or disrupt or impair the normal operation of any other software or data on a computer system.

10. Personnel

10.1 Authority

Except where the Subcontract otherwise provides, all Directions given by John Holland must be in writing. John Holland may give a Direction orally but must as soon as practicable confirm it in writing.

10.2 Appointment of Representatives

- (a) The parties appoint as representatives the persons named in the Subcontract Details, or such other person the parties may nominate and notify to each other in writing from time to time.
- (b) Each representative has authority to:
 - (i) exercise all of the powers and functions of that party arising out of or in connection with this Subcontract; and
 - (ii) bind that party in relation to any matter arising out of or in connection with this Subcontract.
- (c) John Holland's Representative may by written notice to the Subcontractor delegate any of its powers, duties and discretions under this clause 10.2 to any other person.
- (d) John Holland may by written notice to the Subcontractor nominate or revoke the nomination of persons having the authority to exercise any or all of the powers and functions of John Holland arising out of or in connection with the Subcontract.
- (e) The Subcontractor must ensure that the Subcontractor's Representative is present on Site at all times when Works are being carried out on Site.
- (f) Any Direction or Variation Order given to the Subcontractor's Representative is deemed to be given to the Subcontractor.

10.3 Key People

The Subcontractor:

- (a) must ensure that the Key People:
 - (i) are engaged in the performance of the Works in the roles, and for the periods, stated in the Subcontract Details; and
 - (ii) allocate as much of their time as necessary to perform the Works and the Subcontractor's other obligations under this Subcontract;
- (b) must not without John Holland's prior written approval (not to be unreasonably withheld or delayed) remove or replace the Key People or substitute another person for one or more of the Key Person unless:
 - (i) John Holland (acting reasonably) directs that the relevant Key Person be removed from the Works;
 - (ii) the Subcontractor proposes that replacing the relevant Key Person is best for the Project and John Holland agrees;
 - (iii) the relevant Key Person is promoted within the Subcontractor; or
 - (iv) the relevant Key Person dies, becomes seriously ill or resigns from the employment of the Subcontractor; and
- (c) must ensure that any replacement or substitute Key Person has at the very least the equivalent experience, ability and expertise as approved by John Holland.

10.4 Removal of Persons

John Holland may by notice in writing direct the Subcontractor to remove any of the Subcontractor's Associates (including Key People) from the Site or the performance of the Works who:

- (a) in John Holland's opinion (acting reasonably) engages, or has engaged, in misconduct or is incompetent or negligent; or
- (b) is required by the Principal to be removed.

The Subcontractor must ensure that any such person removed from the Site or the Works is not again employed in the Works.

11. Quality

11.1 Construction

- (a) The Subcontractor must in performing the Works:

- (i) use workmanship which is:

of the standard prescribed in the Subcontract or to the extent it is not so prescribed, a standard consistent with Good Industry Practice and if applicable, which is at least to the same standard as that found in the reference development identified in the Subcontract Details; and

fit for its purpose;

- (ii) use good new materials:

which comply with the requirements of the Subcontract or if not fully described in the Subcontract, are consistent with Good Industry Practice; and

which are of merchantable quality and which are fit for their purpose and consistent with the nature and character of the Works; and

- (iii) comply with the requirements of the Subcontract and, to the extent they are not inconsistent, all relevant standards of Standards Australia.

11.2 Quality Assurance

The Subcontractor:

- (a) must comply with the quality assurance requirements set out in item 4 of Schedule G;

- (b) must utilise the relevant Project Systems to manage non-conformance reports (**NCRs**) (including raising NCRs in the relevant Project System) and hold and witness points (including the imposing and releasing of hold points in the relevant Project System);
- (c) must allow John Holland and the Principal access to the quality system of the Subcontractor and its Sub-Subcontractors which is necessary to enable monitoring and quality auditing; and
- (d) will not be relieved from compliance with any of its Subcontract obligations or any other matter for which it is responsible as a result of:
 - (i) compliance with the quality assurance requirements of the Subcontract;
 - (ii) any Direction by John Holland concerning the Subcontractor's quality assurance system or its compliance or non-compliance with that system; or
 - (iii) any audit or other monitoring by John Holland of the Subcontractor's compliance with the quality assurance system.

11.3 Testing and Cost of Testing

The Subcontractor must carry out all tests required by the Subcontract or as reasonably directed by John Holland. If John Holland directs the Subcontractor to carry out a test which is not otherwise required by the Subcontract or upon work in respect of which John Holland gave an instruction under clause 11.4 and the results of which show that the work is in accordance with the Subcontract, the Subcontractor will be entitled to be paid the reasonable extra costs incurred by it in carrying out the test.

11.4 Defects

If John Holland discovers a Defect, John Holland may, without prejudice to any other rights which John Holland may have under the Subcontract or otherwise, give the Subcontractor an instruction specifying the Defect and doing one of the following:

- (a) requiring the Subcontractor to correct the Defect, or any part of it, at the Subcontractor's cost and specifying the reasonable time within which this must occur; or
- (b) advising the Subcontractor that John Holland will accept the work, or any part of it, despite the Defect.

11.5 Correction of Defect or Variation

- (a) If an instruction is given under clause 11.4(a) prior to the expiration of the Defects Liability Period, the Subcontractor must correct the Defect within the reasonable time specified in John Holland's instruction. If an instruction is given under clause 11.4(a) after the issue of a Completion notice, the Subcontractor must correct the Defect at times and in a manner which causes as little inconvenience to the occupants of the Works or a Stage as is reasonably possible.
- (b) John Holland may request and the Subcontractor must supply evidence that the Subcontractor intends to and is complying with the instruction under clause 11.4(a).
- (c) Failing correction by the Subcontractor under clause 11.5(a) or if the Subcontractor is unwilling to comply with the instruction under 11.4(a), then John Holland may:
 - (i) give an instruction under clause 11.4(b); or
 - (ii) have the Defect corrected by itself or by others, the cost of which will be a debt due from the Subcontractor to John Holland.

11.6 Acceptance of Work

If an instruction is given under clause 11.4(b) prior to the expiration of the Defects Liability Period, the Subcontract Sum will be reduced by the amount reasonably determined by John Holland to be the cost of John Holland correcting the Defect or having the Defect corrected by others.

11.7 Extension of Defects Liability Period

If John Holland gives the Subcontractor an instruction under clause 11.4(a) during the Defects Liability Period, the Defects Liability Period for the work the subject of the Defect will be extended by the period specified in the Subcontract Details, commencing upon completion of the correction of the Defect.

11.8 Notice of Defective Prior Work

- (a) The Subcontractor must inspect any Prior Work as soon as is practicable and in any case within 7 days of John Holland giving the Subcontractor access to the Site under clause 6.2.
- (b) If the proper execution of the Works is dependent upon or appreciably affected by the quality or completeness of any Prior Work the Subcontractor must:
 - (i) if it discovers any defects or matters in or connected with the Prior Work which in its reasonable opinion renders the Prior Work unsatisfactory for the proper execution of the Works, promptly notify John Holland in writing providing:

full particulars of the defects or matters identified; and

the reasons for its opinion; and

- (ii) not commence or continue with the execution of any part of the Works dependent upon or appreciably affected by the Prior Work until it is directed to do so by John Holland.

11.9 Direction about Prior Work

After receiving the Subcontractor's notice under clause 11.8, John Holland must investigate the Prior Work and:

- (a) if John Holland agrees with the Subcontractor (both acting reasonably):
 - (i) arrange for the Prior Work to be rectified by others or issue a Variation Order to the Subcontractor to rectify the Prior Work; and
 - (ii) value any work carried out by the Subcontractor by reason of this instruction in accordance with clause 13.3; or
- (b) if John Holland disagrees with the Subcontractor (both acting reasonably), issue an instruction to the Subcontractor to commence or continue with the Works at the Subcontractor's expense.

11.10 Failure to Inspect Prior Work

If the Subcontractor fails to comply with clause 11.8:

- (a) the Subcontractor will be deemed to be satisfied with the quality and completeness of the Prior Work performed; and
- (b) if the Prior Work subsequently proves to be unsatisfactory for the proper execution of the Works, then any work which is required to be executed in order to render the Prior Work satisfactory must be performed by the Subcontractor at its own expense.

12. Time

12.1 Progress and Time for Completion

The Subcontractor must progress the Works:

- (a) regularly and diligently and without undue delay; and
- (b) in a manner and at a rate of progress to achieve Completion by no later than the Date(s) for Completion.

12.2 Programming

The Subcontractor must:

- (a) within 14 days of the date of this Subcontract prepare a program of the Works which contains the details required by item 5 of Schedule F and which is based upon the Construction Program;
- (b) update the program from time to time to take account of changes to the program or the Construction Program or delays which may have occurred and for which the Subcontractor is granted an extension of time under clause 12.9; and
- (c) give John Holland copies of all programs for its approval, in the format required by John Holland.

12.3 Subcontractor's obligation unaffected

The Subcontractor agrees that:

- (a) clause 12.2;
- (b) the provision of any program to the Subcontractor (including the Construction Program); or
- (c) any receipt, review, or approval or disapproval of, or comment on, any program by or on behalf of John Holland (or any failure by John Holland to review, comment or approve or disapprove of the program),

will not of itself:

- (d) affect the Subcontractor's obligations under clause 12.1;
- (e) constitute a Direction, Variation or the granting of an extension of time, by John Holland under this Subcontract;
- (f) relieve the Subcontractor from or alter its liabilities or obligations under the Subcontract, including (without limitation) the obligation to achieve Completion by no later than the Date(s) for Completion;
- (g) affect the time for performance of John Holland's obligations; or
- (h) affect John Holland's rights under this Subcontract or otherwise at Law (including the right to vary any part of the Construction Program).

12.4 Acceleration by Subcontractor

The Subcontractor shall have no Claim against John Holland if the Subcontractor, without written Direction from John Holland, accelerates progress of the Works including to reach Completion before the Date for Completion.

12.5 Delays Entitling Claim

If the Subcontractor is or will be delayed by an Extension Event in a manner which has or will prevent it from achieving Completion by the Date for Completion then the Subcontractor may claim an extension of time strictly in accordance with clause 12.7.

12.6 Notice of Delay

- (a) The Subcontractor must, within 3 days of the Subcontractor becoming aware, or when the Subcontractor ought reasonably to have become aware, of anything which will or is likely to delay the performance of the Works, give written notice to John Holland, providing details of the following (with as much detail as possible in the circumstances):
 - (i) the relevant circumstance or event of delay;
 - (ii) the activity or activities on the critical path delayed, or which will be delayed, and how the relevant circumstance or event of delay will or, is likely to, delay activities on the critical path;
 - (iii) the measures which the Subcontractor has adopted or proposes to adopt to overcome or minimise the consequences of the relevant circumstance or event of delay; and
 - (iv) the impact or expected impact on the performance and progress of the Works (including whether the Date(s) for Completion will be affected and an estimate of the extent or period of the delay).

- (b) If the effects of the delay continue beyond the period specified in the notice given under clause 12.6(a), the Subcontractor must provide a written report to John Holland in relation to the delay (and which includes the details set out in clause 12.6(a)) on a weekly basis until such time as the delay ceases. The Subcontractor must provide such further information in relation to the delay as John Holland may request (acting reasonably).

12.7 Claim

To claim an extension of time the Subcontractor must:

- (a) within 5 days of when the Subcontractor became aware, or ought reasonably to have become aware, of the delay, submit a written claim to John Holland for an extension to the Date(s) for Completion which:
 - (i) gives detailed particulars of the delay and the events or circumstances giving rise to the delay;
 - (ii) states the number of days of extension of time claimed together with the basis of calculating that period, including evidence that the delay will delay activities on the critical path to achieve Completion;
 - (iii) such further information or evidence as John Holland requires (acting reasonably); and
 - (iv) includes the information specified in the Subcontract Details (if any); and
- (b) if the effects of the delay continue beyond 5 days after the first occurrence of the delay and the Subcontractor wishes to claim an extension of time in respect of any further delay, submit a further written claim pursuant to this clause 12.7(b) to John Holland:
 - (i) for each Further Delay Period, within the time specified in the Subcontract Details;
 - (ii) containing the information required by clause 12.7(a) in respect of the delay as updated for each Further Delay Period; and
 - (iii) advising whether the claim is for continuing delay or that the effects of delay have ceased.

The Subcontractor shall have no Claim against John Holland if it fails to comply with the requirements of clause 12.7.

12.8 Conditions Precedent to Extension

It is a condition precedent to the Subcontractor's entitlement to an extension of time that:

- (a) the relevant delay is an Extension Event;
 - (b) the Subcontractor:
 - (i) must not have caused, or contributed to, the delay;
 - (ii) has taken all reasonably practicable steps both to either avoid or minimise the consequences of the delay;
 - (iii) must not have been given an instruction under clause 12.12; and
 - (iv) must have given the notices (including a notice of delay and any written report(s) or further information as requested by John Holland, strictly as required by clause 12.6) and must have made a claim for an extension of time strictly in accordance with clause 12.7; and
 - (c) the delay affects activities on the critical path to achieve Completion,
- and if the conditions precedent in this clause 12.8 are not satisfied, the Subcontractor agrees that it will have no Claim with respect to the relevant delay or its effect and that said failure by the Subcontractor bars it from making any Claim, including any Claim based on the prevention principle.

12.9 Extension of Time

If the conditions precedent in clause 12.8 have been satisfied, John Holland will extend the Date(s) for Completion as follows:

- (a) if clause 12.7(b) applies, by a reasonable period to be notified in a Completion Date Adjustment Notice to the Subcontractor, within the period specified in the Subcontract Details after receipt of:
 - (i) the first claim under clause 12.7(a), by way of an interim determination of the Subcontractor's claim for an extension of time; and
 - (ii) the Subcontractor's last claim under clause 12.7(b), determined after reviewing all the circumstances and making a final determination on the Subcontractor's claim for an extension of time with regard to the Extension Event; or
- (b) if clause 12.7(b) does not apply, by a reasonable period and notified in a Completion Date Adjustment Notice to the Subcontractor within the period specified in the Subcontract Details after receipt of the Subcontractor's claim under clause 12.7(a).
- (c) Except for clauses 12.11 and 12.15, an extension of time granted under this clause 12.9 is the Subcontractor's sole remedy for delay or disruption that the Subcontractor encounters in carrying out the Works or otherwise in connection with this Subcontract (including delay or disruption arising out of or in any way in connection with a breach of this Subcontract by John Holland), and:
 - (i) the Subcontractor has no other Claim in respect of such matters against John Holland; and
 - (ii) the Subcontractor's rights and remedies at common law (including the right to recover damages for breach of contract or otherwise) are excluded.

12.10 Unilateral Extensions

- (a) Whether or not the Subcontractor has made, or is entitled to make, a claim for an extension of time under this clause 12, John Holland may, by written notice in a Completion Date Adjustment Notice to the Subcontractor unilaterally extend the Date(s) for Completion and is not required to exercise this right for the benefit of the Subcontractor.
- (b) Except for clause 12.15, an extension of time granted under this clause 12.10 is the Subcontractor's sole remedy for delay or disruption that the Subcontractor encounters in carrying out the Works or otherwise in connection with this Subcontract, and:
 - (i) the Subcontractor releases and waives its right and entitlement to make any other Claim in respect of such matters against John Holland; and
 - (ii) the Subcontractor's rights and remedies at common law is excluded.

12.11 Suspension

John Holland may (where John Holland reasonably determines that it is desirable or required for the Project) give to the Subcontractor a Suspension Order. If the suspension arises as a result of:

- (a) the Subcontractor's failure to perform its obligations in accordance with the Subcontract or other wrongful act or omission, then the Subcontractor has no Claim against John Holland arising out of or in connection with the suspension, including a claim for an adjustment to the Subcontract Sum, an extension of time or any additional Losses; or
- (b) a cause other than the Subcontractor's failure to perform its obligations in accordance with the Subcontract:
 - (i) a Suspension Order will entitle the Subcontractor to claim an extension of time in accordance with this clause 12 and be paid by John Holland the extra costs directly and reasonably incurred by it as a result of the suspension;
 - (ii) the Subcontractor must take all steps reasonably practicable to mitigate the extra costs directly and reasonably incurred by it as a result of the suspension; and
 - (iii) the entitlement under clause 12.11 (b)(i) will be the Subcontractor's only entitlement to payment of money arising from the Suspension Order.

John Holland may (and must as soon as reasonably practicable after it determines that the suspension is no longer desirable or required) direct the Subcontractor to recommence the performance of Works the subject of a Suspension Order, in which case the Subcontractor must do so as soon as reasonably practicable.

12.12 Acceleration by direction

John Holland may give to the Subcontractor an Acceleration Order. If John Holland gives an Acceleration Order the Subcontractor must accelerate the Works and:

- (a) if and to the extent an Acceleration Order is or has the effect of overcoming or minimising the extent or effects of delays, where the Subcontractor is not entitled to an extension of time, the Subcontractor shall bear the costs of accelerating the Works;
- (b) subject to clause 12.12(a), the Subcontractor will be entitled to be paid the extra costs directly and reasonably incurred by it attributable to accelerating the Works pursuant to an Acceleration Order together with the percentage specified in the Subcontract Details applied to that extra cost (if any); and
- (c) if the Subcontractor would, but for the Acceleration Order, have been entitled to an extension of time to the Date for Completion:
 - (i) the Subcontractor's entitlement (if any) under clause 12.12(b) will be its only entitlement arising out of the Extension Event and/or the Acceleration Order, including any claim for an extension of time to the Date for Completion, which the Subcontractor might have had but for the Acceleration Order; and
 - (ii) the Subcontractor shall have no other Claim against John Holland.

12.13 Time Not at Large

No delay, nor a failure by John Holland to grant an extension of time under clause 12.9 (or to do so within the time required by that clause), nor a direction under clause 12.12, will set any Date(s) for Completion at large.

12.14 Concurrent Delays

Where more than one event causes concurrent delays and the cause of one or more of the events is a cause which does not, under this Subcontract, entitle the Subcontractor to an extension of time and accordingly for which the Contractor has accepted the risk, then to the extent that the delays are concurrent, the Subcontractor will not be entitled to an extension of time to any Date(s) for Completion.

12.15 Delay Costs

- (a) The Subcontractor will only be entitled to be paid the amount specified as Delay Costs in the Subcontract Details for each day by which the Date for Completion is extended:
 - (i) due to an event described in sub-clauses (a) or (b) of the definition of Extension Event ; and
 - (ii) in accordance with clauses [12.8] (Conditions Precedent to Extension) and [12.9] (Extension of Time).
- (b) This amount is the delay costs which will be payable by John Holland and the Subcontractor agrees that this amount payable to it under this clause 12.15 are its sole entitlement with respect to any Loss suffered or incurred by the Subcontractor arising out of or in connection with any delay or disruption that the Subcontractor encounters in carrying out the Works or otherwise in connection with this Subcontract, and the Subcontractor has no other Claim in respect of such matters.

13. Variations

13.1 Variation Orders

John Holland may give to the Subcontractor a Variation Order pursuant to clauses 13.2, 13.3, 13.8 or 13.9 and the Subcontractor shall carry out the Variation the subject of the Variation Order.

The Subcontractor agrees that, subject to clause 13.3:

- (a) no Variation can be executed and no Claim can be made for a Variation unless a Variation Order has been issued; and
- (b) the Subcontractor has no Claim against John Holland for a Variation unless it receives a Variation Order.
- (c) a Variation Order will be dealt with in respect of adjustments to Provisional Sum Work, in accordance with clause 8, and in any other case, in accordance with the provisions of this clause 13.

13.2 Variation Price Request

Where John Holland considers that a change to the Works is required, it may give to the Subcontractor a Variation Price Request, and:

- (a) within 7 days, or such other period as reasonably agreed by John Holland, of the receipt of which the Subcontractor must provide John Holland with a Variation Quotation; and
- (b) John Holland may issue a Variation Order (including a Completion Date Adjustment Notice) to require the Subcontractor to carry out a Variation and will provide notice to the Subcontractor stating (acting reasonably) either that:
 - (i) the Date for Completion and Subcontract Sum are adjusted as set out in the Variation Quotation; or
 - (ii) the adjustment (if any) to the Date for Completion and the Subcontract Sum to be determined having regard to clauses 12.9, 12.10 and 13.4 (as the case may be).

13.3 Direction Subcontractor considers to be a Variation

If the Subcontractor believes a Direction under this Subcontract involves a change to the Works, which constitutes or involves a proposed Variation, it must:

- (a) within 7 days, unless otherwise specified in the Subcontract Details, of receiving the Direction and before commencing work the subject matter of the Direction, give notice to John Holland under this clause that it considers that the Direction constitutes or involves a proposed Variation and includes, at a minimum, the same details as required in a Variation Quotation;
- (b) John Holland may issue a response to the Subcontractor either approving or rejecting (with reasons) the proposed Variation and if accepted, issue a Variation Order in accordance with clause 13.2(b).
- (c) within 7 days, unless otherwise specified in the Subcontract Details, of giving the notice under clause 13.3(a) and regardless of whether John Holland may have issued a Variation Order or not in respect of the proposed Variation, continue to perform the Works, in accordance with the Subcontract, including commencing the Works the subject of a Direction in respect of which notice has been given under this clause.
- (d) Where John Holland has not responded to a notice given under clause 13.3(a), within the later of:
 - (i) 10 Business Days of receipt of such notice; or
 - (ii) where applicable, 10 Business Days of the provision of any further information by the Subcontractor if required by John Holland (acting reasonably),the applicable notice of proposed Variation will be deemed to be rejected by John Holland.

The Subcontractor shall have no Claim against John Holland (including under this clause 13 or otherwise) in relation to Works that the Subcontractor believes constitutes or involves a proposed Variation if it fails to comply with this clause 13.3.

13.4 Valuation of Variation

Subject to clause 8 the Subcontract Sum will be adjusted for all Variations which have been the subject of a Variation Order by:

- (a) the amount (if any) stated in the Variation Order;
- (b) an amount determined by John Holland (acting reasonably) using any rates or prices to the extent they are applicable to, or it is reasonable to use them for, valuing the Variation and which appear in the Pricing Schedule;
- (c) to the extent clause 13.4(b) does not apply, a reasonable amount:
 - (i) to be agreed between the parties; or
 - (ii) failing agreement, as determined by John Holland (acting reasonably); or
- (d) the amount determined by John Holland under clause 13.7.

13.5 Rates and Prices

Where any rates and prices in the Pricing Schedule are used for valuing a Variation under clause 13.4(b), the rates and prices will be deemed to be all inclusive and, without limitation, cover all costs, expenses, overheads and profits of and incidental to performing all work the subject of the Variation, complying with the Subcontractor's obligations under the Subcontract and arising out of or in connection with the Variation delaying the Subcontractor.

13.6 Daywork

John Holland may instruct the Subcontractor to carry out as daywork any Variation or any quantities of work greater or less than those determined by reference to the limits of accuracy referred to in clause 14.5. Any such instruction must be in writing. The Subcontractor must:

- (a) perform all daywork in an efficient manner; and
- (b) after the instruction, each day provide John Holland with a written report (in duplicate) signed by the Subcontractor which:
 - (i) records particulars of all resources used by the Subcontractor for the execution of the daywork;
 - (ii) includes the particulars and copies of time sheets, wages sheets, invoices, receipts and other documents evidencing the cost of the daywork reasonably and properly incurred by the Subcontractor; and
 - (iii) John Holland will counter-sign the report acknowledging receipt and return one copy to the Subcontractor. John Holland may direct the manner in which these particulars are to be recorded.

13.7 Valuation of Daywork

In determining the value of work instructed by John Holland to be carried out as day work, John Holland will have regard to:

- (a) the written reports submitted under clause 13.6,
- (b) wages and allowances paid or payable by the Subcontractor at:
 - (i) rates pertaining at the Site at the time as established by the Subcontractor to the satisfaction of John Holland; or
 - (ii) other rates approved by John Holland;

- (c) the amount paid or payable by the Subcontractor in accordance with any statute or award applicable to day labour additional to the wages paid or payable under clause 13.6(b);
- (d) the amount of hire charges in respect of plant approved by John Holland for use on the work in accordance with the hiring rates and conditions:
 - (i) agreed between John Holland and the Subcontractor; or
 - (ii) failing agreement, as determined by John Holland;
- (e) the amounts paid for services, subcontracts and professional fees;
- (f) the actual cost to the Subcontractor at the Site of all materials supplied and required for the work; and
- (g) a charge agreed between John Holland and the Subcontractor to cover overheads, administrative costs, site supervision, establishment costs, attendance and profit, or, failing agreement, a reasonable charge determined by John Holland.

13.8 Omissions

John Holland may issue a Variation Order omitting any part of the Works in which case:

- (a) John Holland may thereafter either perform this work itself or employ or engage another person to perform the omitted work;
- (b) John Holland will not be liable for any Claim as a result of any part of the Works being omitted whether or not John Holland thereafter performs this work itself or employs or engages other persons to carry out and execute the omitted work; and
- (c) the work which has been omitted will be assessed in accordance with clause 13.2 (b)(ii). If John Holland omits all or substantially all of the Works the valuation will be made consistent with the principles in clause 24.2(a)(iv)(A) and (B).

13.9 Variation for Subcontractor's convenience

- (a) Where the Subcontractor proposes a Variation for its own convenience, it must give notice to John Holland under this clause, requesting John Holland to approve the proposed Variation and provide all information required by John Holland (acting reasonably) in respect of the proposed Variation, including at a minimum, the same details as required in a Variation Quotation.
- (b) John Holland will issue a response to the Subcontractor either approving or rejecting the proposed Variation and if accepted, issue a Variation Order in accordance with clause 13.2(b). Unless a Variation Order is issued by John Holland which approves the proposed Variation, the Subcontractor will not be entitled to any Claim (including for an extension of time or an adjustment to the Subcontract Sum) in respect of the proposed Variation.
- (c) The Subcontractor acknowledges that John Holland may approve or reject a Variation that is for the Subcontractor's convenience at John Holland's discretion.
- (d) Where John Holland has not responded to a notice given under clause 13.9(a), within the later of:
 - (i) 10 Business Days of receipt of such notice; or
 - (ii) where applicable, 10 Business Days of the provision of any further information by the Subcontractor if required by John Holland (acting reasonably),the applicable notice of proposed Variation will be deemed to be rejected by John Holland.

14. Payment

14.1 Basis for payment and sufficiency of Subcontract Sum

- (a) As consideration for the carrying out of the Works by the Subcontractor in accordance with this Subcontract, John Holland will pay the Subcontract Sum to the Subcontractor in accordance with this Subcontract, subject to clause 14.17 and to any other right to set-off and any adjustments that

John Holland is required or entitled to make under this Subcontract or otherwise at or under any Law.

- (b) The Subcontract Sum (and the respective lump sums and rates (if any)) stated in the Subcontract Details:
 - (i) may only be adjusted in accordance with an express provision of this Subcontract; and
 - (ii) are fixed and not subject to any adjustment for rise and fall.
- (c) Without limiting any other provision of this Subcontract, the Subcontractor agrees that it has allowed in the Subcontract Sum and the Subcontract Sum makes adequate allowance for, and is deemed to include, the cost to the Subcontractor of compliance with all of its obligations under this Subcontract including:
 - (i) the provision of all works and materials necessary to carry out the Works, whether or not expressly mentioned in the Scope of Works;
 - (ii) all costs relating to the execution of the Works and all the risks and liabilities which it is assuming under the Subcontract;
 - (iii) all customs, duties, tariffs, and similar taxes (excluding GST to the extent dealt with under clause 14.19) and charges paid or payable on all items which are intended to be used for or which are to be incorporated into the Works;
 - (iv) all royalties, licence fees and similar payments for Intellectual Property Rights in respect of the items which are intended to be used for or which are to be incorporated into the Works and all design documentation (including the Subcontractor Documentation); and
 - (v) all fluctuations in the value of the Australian dollar against other currencies.

14.2 Lump Sum Breakdown

Where the Subcontract Sum includes a lump sum, the Subcontractor will, within 7 days of the date of this Subcontract, provide to John Holland a Lump Sum Breakdown to the level of detail required by John Holland (acting reasonably). The Lump Sum Breakdown may be used by John Holland for the purposes of assessing payment and valuing Variations and other Claims under the Subcontract as it requires (acting reasonably).

14.3 Quantities

Subject to clauses 14.4 and 14.5, where the Pricing Schedule includes quantities:

- (a) unless those quantities are stated expressly and in writing by John Holland to be guaranteed quantities, those quantities are estimated quantities only and are not to be taken as actual or correct quantities of work to be carried out and John Holland does not warrant or make any representation as to the accuracy or adequacy of those quantities;
- (b) the Subcontractor warrants that it has placed no reliance on the accuracy or adequacy of the quantities in the Pricing Schedule and that it entered into the Subcontract based on its own investigations, interpretations and information and is aware that John Holland has entered into the Subcontract relying upon these warranties; and
- (c) the Subcontractor will not be entitled to make a Claim against John Holland if the items of work or quantities are incorrect in any way, including that they:
 - (i) contain an incorrect quantity;
 - (ii) contain an item which should not have been included; or
 - (iii) omit an item which should have been included.

14.4 Completion of Bill of Quantities

Where the Pricing Schedule is in whole or part in the form of a bill of quantities then, the Subcontractor must:

- (a) complete all items included in the Pricing Schedule which are in the bill of quantities with rates and prices and extend them so that, on addition, they equal the sum accepted by John Holland for the execution of the whole or the part of the Works to which the bill of quantities relates;
- (b) lodge the bill of quantities, so priced and extended, with John Holland within 14 days of the date of this Subcontract or such further time as may be directed by John Holland from time to time; and
- (c) modify the rates and prices if they are not approved by John Holland until they are so approved.

14.5 Schedule of Rates and Limits of Accuracy

Where the Pricing Schedule is in the form of or includes a schedule of rates and:

- (a) the actual quantity of an item required to perform the Works is greater or less than the quantity shown in the Pricing Schedule;
- (b) John Holland has accepted a rate for the item referred to in clause 14.5(a); and
- (c) the actual quantity of the item referred to in clause 14.5(a) is not greater or less than the quantity shown in the Pricing Schedule by the Limits of Accuracy,

then the scheduled rates will apply to the quantities within the Limits of Accuracy and only quantities outside the Limits of Accuracy will be:

- (d) valued by agreement between the Subcontractor and John Holland; or
- (e) failing agreement, valued by John Holland using reasonable rates.

14.6 Payment Claims

- (a) The Subcontractor may, on each Reference Date, serve a Payment Claim to John Holland. Each Payment Claim must:

- (i) clearly set out:

the total value of work completed in accordance with the Subcontract to the end of the period to which the relevant Payment Claim relates;

the amount previously paid by John Holland to the Subcontractor; and

the amount of payment then claimed by the Subcontractor;

- (ii) be calculated for the periods and submitted in accordance with the times required by clauses 14.6(a) and 14.14;
 - (iii) be in the format required by John Holland (acting reasonably);
 - (iv) include a statutory declaration in accordance with clause 14.16;
 - (v) (if applicable) include the daily time sheets referred to in clause 14.9;
 - (vi) be delivered to persons (at the relevant address or email address) nominated by John Holland from time to time;
 - (vii) include such evidence, supporting documentation and information reasonably required by John Holland to support the value of work completed in accordance with the Subcontract and the amount claimed by the Subcontractor; and
 - (viii) not include any claims which are barred by clause 26.3 or otherwise.

- (b) The Subcontractor is not entitled to submit more than one payment claim per month.

14.7 Payment Schedules and Notice of Disputes

- (a) Within 10 Business Days after receipt of a Payment Claim made in accordance with clause 14.6 John Holland must:

- (i) subject to clause 14.7(a)(ii), issue a Payment Schedule to the Subcontractor which:

identifies the relevant Payment Claim to which the Payment Schedule relates;

indicates the amount of the payment John Holland proposes to pay with respect to the relevant Payment Claim; and

if the amount John Holland proposes to pay is less than the claimed amount, indicates the reasons why the amount proposed to be paid is less and (if it is less because John Holland is withholding payment for any reason), John Holland's reasons for withholding; or

- (ii) if the Works are being carried out in Western Australia or the Northern Territory, provide a Notice of Dispute which:

identifies the relevant Payment Claim to which the Notice of Dispute relates;

indicates the amount of the payment John Holland proposes to pay with respect to the relevant Payment Claim; and

if the amount John Holland proposes to pay is less than the claimed amount, indicates the reasons why the amount proposed to be paid is less and (if it is less because John Holland is withholding payment for any reason), John Holland's reasons for withholding.

- (b) John Holland may issue a Payment Schedule or Notice of Dispute (as the case may be) notwithstanding that the Subcontractor has not issued a Payment Claim.

14.8 Payment

- (a) Subject to clauses 14.13, 14.16 and 14.17, on the due date for payment, John Holland must pay the Subcontractor or the Subcontractor must pay John Holland (as the case may be) the amount set out in the Payment Schedule or Notice of Dispute (as the case may be).
- (b) The due date for payment is, if John Holland is to pay, the expiry of the period of 20 Business Days after receipt by John Holland of a Payment Claim.
- (c) The due date for payment is, if the Subcontractor is to pay, the date on which the last of the following occurs:
 - (i) John Holland has submitted a tax invoice in accordance with the meaning of that term in the GST Act for the supply to which the payment relates; and
 - (ii) where:

the Subcontractor has submitted a payment claim, the expiry of the period of 20 Business Days after receipt by John Holland of a Payment Claim; or

clause 14.7(b) applies, the expiry of the period of 10 Business Days after the issue by John Holland of the Payment Schedule or Notice of Dispute (as the case may be).

14.9 Timesheets

- (a) Where the amount of the Subcontract Sum payable with respect to any portion of the Works is to be calculated by reference to rates (including Variations), the Subcontractor must:
 - (i) record daily timesheets for each and every Subcontractor's Associates who performs the relevant Works (such timesheets to include a description of the Works performed); and
 - (ii) provide to John Holland a true copy of the timesheets referred to in clause 14.9(a)(i) together with any Payment Claim submitted by the Subcontractor for payment of the relevant Works .
- (b) If the Subcontractor fails to comply with the requirements of clause 14.9(a) in any respect, the Subcontractor agrees that notwithstanding anything to the contrary in this Subcontract it will have no Claim with respect to the relevant Works.

14.10 Correction of Payment Schedules and Notice of Disputes

John Holland may, in the amount to be paid in a subsequent Payment Schedule or Notice of Dispute, correct any error in any previous Payment Schedule or Notice of Dispute or modify any previous Payment Schedule or Notice of Dispute.

14.11 Payment on Account

The issue of a Payment Schedule or Notice of Dispute (as the case may be) or the payment of any moneys under clause 14.8 is not evidence of the value of Work or that the Work has been satisfactorily carried out in accordance with the Subcontract or an admission of liability or approval by John Holland of the Subcontractor's performance or that the performance is in compliance with the Subcontract, but is only to be taken as payment on account only.

14.12 Unfixed Goods and Materials

- (a) John Holland is not liable to pay for unfixed goods and materials unless:
- (i) they are listed in the Subcontract Details or the Subcontractor has obtained John Holland's prior written consent to purchase the relevant unfixed goods and materials, at John Holland's cost;
 - (ii) the Subcontractor provides John Holland with:

the additional security in the Subcontract Details; and

such evidence as may be required to establish that title to the unfixed goods and materials has vested in John Holland and that the goods and materials have been paid for in full;

- (iii) the goods and materials are clearly marked and labelled as the property of John Holland and are on Site or available for immediate delivery to the Site; and
 - (iv) the goods and materials are properly stored and protected in a place approved by John Holland.
- (b) John Holland will release and return the additional security provided in accordance with clause 14.12(a)(ii)(A) to the Subcontractor within 14 days after those goods and materials are incorporated into the Works.

14.13 Conditions Precedent to Payment

Notwithstanding anything to the contrary in this Subcontract, the Subcontractor agrees that it is not entitled to submit any claim for payment under this Subcontract and John Holland is not obliged to make payment under clause 14.8, unless the Subcontractor has:

- (a) provided John Holland with and maintained the required security in accordance with clause 4.1;
- (b) effected and maintained the insurance required by clause 20 and if requested by John Holland, provided such evidence of this to John Holland;
- (c) complied with its quality assurance and programming obligations under clauses 11.2 and 12.2;
- (d) if applicable, complied with clauses 14.2 and 14.4 and this has been approved by John Holland;
- (e) provided to John Holland such evidence as John Holland may reasonably require that all relevant taxes in respect of the Works have been paid or deducted;
- (f) complied with clause 14.16;
- (g) the Subcontractor has provided to John Holland any document John Holland is required to procure under the Head Contract relevant to the Works as a condition to submitting a payment claim which John Holland has requested from the Subcontractor; and
- (h) provided a duly executed copy of this Subcontract to John Holland.

14.14 Final Payment Claim and release

- (a) The Subcontractor must, on the relevant Reference Date in respect of a Final Payment Claim, submit a Final Payment Claim to John Holland which:
- (i) complies with the requirements of clause 14.6;
 - (ii) must be submitted within 20 Business Days after the date Completion was achieved as stated in the Completion notice issued in accordance with clause 16.2; and

- (iii) includes all amounts the Subcontractor considers are payable to it by John Holland under the Subcontract or otherwise in respect of any fact, matter or thing arising out of or in connection with the Works or the Subcontract which occurred prior to the date of Completion.
- (b) Promptly after John Holland has issued a final Payment Schedule with respect to the Final Payment Claim submitted by the Subcontractor under clause 14.14(a), John Holland will issue a release in the form set out in Schedule D to the Subcontractor or any other form that John Holland may approve.
- (c) The Subcontractor must, within 10 Business Days after receiving the release under 14.14(b), execute the release and return a duly executed copy of the release to John Holland.
- (d) Where:
 - (i) the Subcontractor executes and returns a duly executed copy of the release in accordance with clause 14.14(c), the Subcontractor agrees that such release is final and binding and the Subcontractor will (from the date of the release) have no further Claim against John Holland and releases John Holland from any further Claim, action or proceeding that the Subcontractor has, or may in the future have, under or in any way in connection with the Works and this Subcontract; or
 - (ii) the Subcontractor fails to execute and return the release within the time required by clause 14.14(c), or returns the release within the time required by clause 14.14(c) but the release is not otherwise in accordance with the requirements of clause 14.14(c), the Subcontractor agrees that the release as issued by John Holland under clause 14.14(b) will be final and binding and the Subcontractor will (from the date of the release) have no further Claim against John Holland and releases John Holland from any further Claim, action or proceeding that the Subcontractor has, or may in the future have, under or in any way in connection with the Works and this Subcontract.

14.15 Interest

Simple interest calculated using the 90 day dealers bill rate, as quoted from time to time in the Financial Review (or such similar alternative should the Financial Review cease publication of said rate), is payable on any:

- (a) amount which is payable by a party but which is not paid by that party within the time required by the Subcontract; and
- (b) damages.

Except as provided in this clause 14.15, a party shall have no other Claim for interest or damages for loss of use of or the cost of borrowing money.

14.16 Statutory declaration

- (a) If the Works are being performed in New South Wales, the Subcontractor must provide to John Holland at the time of submitting each Payment Claim a statutory declaration in the form set out in Schedule E by the Subcontractor or, where the Subcontractor is a corporation, by a representative of the Subcontractor who is in a position to know the facts declared.
- (b) John Holland may withhold payment of moneys due to the Subcontractor until the Subcontractor has complied with this clause.

14.17 Right of Set-Off

- (a) Subject to clause 14.17(b), John Holland may set-off or deduct from monies payable to the Subcontractor under this Subcontract:
 - (i) any debt due or amount owed by the Subcontractor to John Holland under this Subcontract; or

- (ii) to satisfy any bona fide Claim for Loss John Holland may have against the Subcontractor whether for damages or otherwise, under or associated with the Subcontract and including those arising out of or in connection with a Claim (or set-off) against John Holland under the Head Contract (including in connection with the Works which form part of the Head Contract Works).
- (b) Except in the case of material breach or repudiation by, or insolvency of, the Subcontractor, John Holland may only exercise its rights under clause 14.17(a) where it has provided at least 5 days' written notice to the Subcontractor of its intention to make the set-off or deduction.
- (c) Nothing in this clause 14.17 affects John Holland's right to recover from the Subcontractor the whole or any balance that remains owing after the set-off or deduction.

14.18 Security of Payment Act

- (a) The Subcontractor must ensure that, within one Business Day after any notice or document under or in connection with the Security of Payment Act is given or received by the Subcontractor, a copy of that notice or document is given to John Holland or John Holland's Representative.
- (b) The Subcontractor must ensure that all of its Sub-Subcontractors are required, under their respective contracts, to provide to John Holland (at the same time that the Sub-Subcontractor gives the notice to the Subcontractor) a copy of any notice which the Sub-Subcontractor gives to the Subcontractor whereby the Sub-Subcontractor advises of an intention to suspend performance of its works (forming part of the Works) pursuant to the Security of Payment Act.
- (c) Where the *Contractors Debts Act 1997* (NSW) applies, the Subcontractor must ensure that within one Business Day of its receipt or provision of a notice or demand pursuant to the *Contractors Debt Act 1997* (NSW), a copy of that notice or demand is given to John Holland and John Holland's Representative.
- (d) To the extent permitted by Law, the times for making Payment Claims under clauses 14.6 and 14.14 are:
 - (i) for the purposes of the *Building and Construction Industry Security of Payment Act 1999* (NSW) (**NSW SOP Act**), the date for serving payment claims under section 13 of the NSW SOP Act; and
 - (ii) for the purposes of the Security of Payment Act (other than the NSW SOP Act) as applicable, the reference date as defined under the applicable Security of Payment Act.
- (e) The parties agree that:
 - (i) a Payment Schedule issued pursuant to clause 14.7(a)(i) is a payment schedule for the purposes of the Security of Payment Act (other than the *Construction Contracts Act 2004* (WA) (**WA SOP Act**) and the *Construction Contracts (Security of Payments) Act 2004* (NT) (**NT SOP Act**) as applicable); and
 - (ii) a Notice of Dispute issued pursuant to clause 14.7(a)(ii) is a notice of dispute for the purposes of the WA SOP Act and NT SOP Act as applicable.
- (f) If John Holland becomes aware that any party engaged in the Works is, or will be entitled to, suspend work forming part of the Works under the Security of Payment Act, then John Holland may (in its absolute discretion and without having any obligation to do either):
 - (i) pay such money to the party giving the notice; or
 - (ii) provide such security to the party giving the notice,
as will bring to an end that party's right to suspend work under the Security of Payment Act.The amount of money paid under this clause 14.18(g) will be a debt due and payable from the Subcontractor to John Holland.

- (g) The Subcontractor indemnifies John Holland against all Loss suffered or incurred by John Holland arising directly or indirectly out of:
- (i) a suspension pursuant to the Security of Payment Act by a party engaged by the Subcontractor related to the Works;
 - (ii) a failure by the Subcontractor to comply with this clause 14.18;
 - (iii) any lien claimed over unfixed goods or materials forming part of the Works by a Sub-Subcontractor;
 - (iv) where the *Building Industry Fairness (Security of Payment) Act 2017* (Qld) (**QLD SOP Act**) applies, any claim made by a Sub-Subcontractor under Chapter 4 of the QLD SOP Act;
 - (v) where the *Contractors Debts Act 1997* (NSW) applies, any claim made by a Sub-Subcontractor under the *Contractors Debts Act 1997* (NSW); and
 - (vi) where the NSW SOP Act applies, a payment withholding request being served on John Holland under section 26A of the NSW SOP Act in respect of money that is or may become payable by John Holland to the Subcontractor for the Works,
- to the extent caused or contributed to by any act or omission of the Subcontractor or an Associate of the Subcontractor or any breach of this Subcontract by the Subcontractor.

14.19 GST

The following provisions shall apply in connection with GST, as defined in the GST Act:

- (a) In this clause 14.19:
- (i) unless the context requires otherwise, words or expressions used in this clause 14.19 which are defined in the GST Act have the same meaning in this clause; and
 - (ii) any part of a supply that is treated as a separate supply for GST purposes (including attributing GST payable to tax periods) will be treated as a separate supply for the purposes of this clause 14.19.
- (b) Unless otherwise stated, all amounts payable and any consideration to be provided for any supply made (or to be made) under or in connection with this Subcontract is exclusive of GST (**GST exclusive consideration**).
- (c) If GST is payable by a supplier (or by the representative member for a GST group of which the supplier is a member) on any supply made under or in connection with this Subcontract, the recipient will pay to the supplier an additional amount equal to the GST payable on the supply (**GST Amount**). Subject to clause 14.19(f), the GST Amount is payable by the recipient in addition to, at the same time as any part of the GST exclusive consideration for the supply is first payable.
- (d) If a party is required to make any payment or reimbursement, that payment or reimbursement will be reduced by the amount of any input tax credits or reduced input tax credits to which the other party (or the representative member for a GST group of which it is a member) is entitled for any acquisition relating to that payment or reimbursement.
- (e) If any payment under this Subcontract is calculated by reference to or as a percentage of another amount or revenue stream, that payment must be calculated by reference to or as a percentage of that other amount or revenue stream net of any GST component.
- (f) Subject to clause 14.19(i), a party need not pay a GST Amount until the supplier has given the recipient a tax invoice in respect of that Taxable Supply.
- (g) If the GST payable in relation to a Taxable Supply made under or in connection with this Subcontract varies from the GST Amount paid by the recipient under clause 14.19(c), then the supplier will provide a corresponding refund or credit to, or will be entitled to receive the amount of that variation from, the recipient.

- (h) Where there is an adjustment event, the supplier must issue an adjustment note to the recipient within 10 Business Days of becoming aware of that adjustment event.
- (i) The parties confirm that by entering into this Subcontract they have agreed the terms of an RCTI Agreement as set out in Schedule I on the following basis:
 - (i) upon receipt by the Subcontractor of a direction from John Holland:

within 5 Business Days of the execution of this Subcontract; or

no less than 10 Business Days prior to the Subcontractor's entitlement to serve a Payment Claim,

John Holland will, thereafter, issue an RCTI in respect of the liability to pay in respect of subsequent Taxable Supplies;

- (ii) the RCTI will be issued on the date of determination of the value of the payment due under this Subcontract in connection with a Taxable Supply;
- (iii) the RCTI will not be payable before the due date for payment for the Taxable Supply under the Subcontract; and
- (iv) where the determination of the amount payable in respect of a Taxable Supply has been made in accordance with the Subcontract and John Holland has not issued a RCTI within 28 days of that determination, the provisions of clauses 14.19(f) and 14.19(h) will apply to payment of that amount for that Taxable Supply, but not otherwise and will not constitute a breach of the RCTI Agreement.

14.20 Payroll Tax

The Subcontractor warrants that:

- (a) it is registered in the relevant State or Territory for payroll tax (as required);
- (b) the payroll tax number set out in the Subcontract Details is correct;
- (c) it will comply with all Laws relating to payroll taxes and payroll tax registration requirements; and
- (d) it will pay all payroll tax that is or will become due in relation to the Work undertaken under this Subcontract.

15. Intellectual Property Rights and Moral Rights

15.1 Documents supplied by or on behalf of John Holland

Where, with respect to documents supplied by (or on behalf of) John Holland to the Subcontractor under this Subcontract or otherwise in connection with the Works:

- (a) John Holland is the owner of Intellectual Property Rights in such documents, the Subcontractor acknowledges that John Holland retains all Intellectual Property Rights in such documents; or
- (b) John Holland is not the owner of Intellectual Property Rights in such documents, John Holland may notify the Subcontractor of any terms that apply to the use of such documents and the Subcontractor must comply with such terms.

15.2 Intellectual Property Rights

Unless otherwise agreed in writing by John Holland with respect to particular Intellectual Property Rights, the Subcontractor grants to John Holland (and, where required under the Head Contract, the Principal), upon the creation of Intellectual Property Rights created, discovered or coming into existence as a result of, for the purposes of or in connection with, the execution of the Works (including the Subcontractor Documentation), an irrevocable, non-exclusive, royalty-free, perpetual and fully assignable licence to use, possess, modify, vary or amend (and to sublicense others to use, possess, modify, vary or amend) all such Intellectual Property Rights.

15.3 Infringement of Intellectual Property Rights

- (a) The Subcontractor warrants that in the performance of the Works, the Subcontractor and the Subcontractor's Associates will not, and that the Works and Subcontractor Documentation will not, infringe any Intellectual Property Rights and Moral Rights of any party, and will procure as necessary any assignment or licence of such rights necessary to satisfy its obligations under this Subcontract.
- (b) The Subcontractor indemnifies John Holland from and against any Loss suffered or incurred by John Holland, and any Claim against John Holland, arising out of or in connection with any actual or alleged infringement of any Intellectual Property Right created, discovered or coming into existence as a result of, for the purposes of or in connection with, the execution of the Works (including the Subcontractor Documentation) or arising out of or in connection with the performance of the Works by the Subcontractor or the Subcontractor's Associates. This indemnity is reduced to the extent that John Holland knowingly caused or contributed to any Loss or Claim. John Holland must use reasonable endeavours to mitigate any Loss.

15.4 Moral Rights

- (a) The Subcontractor must obtain, and warrants that it has obtained, from each Moral Rights Owner the necessary consents and waivers to ensure that:
 - (i) John Holland;
 - (ii) the Principal;
 - (iii) the Principal's Associates; and
 - (iv) any third party to whom John Holland or the Principal licences (whether express or implied), or grants any other rights to use, possess, modify, vary or amend any Intellectual Property Right, may use, disclose, reproduce, transmit, exhibit, communicate, publish, alter, adapt, change, relocate, demolish or destroy the whole or any part of any documentation (including the Subcontractor Documentation), building, structure or any other work produced during the performance of, or as a result of, the Works in any way (including any way which could otherwise be a breach of the Moral Rights of the Moral Rights Owner).
- (b) The Subcontractor, in respect of the Intellectual Property Rights set out in this clause 15, to the extent permitted by Law, will not, and will take reasonable steps to ensure that its Associates do not, sue, enforce any Claim, bring any action or exercise any cure in respect of any breach or alleged breach of any person's Moral Rights (whether before or after the date of this Subcontract) in respect of any Intellectual Property Rights against:
 - (i) John Holland;
 - (ii) the Principal;
 - (iii) the Principal's Associates; and
 - (iv) any third party to whom John Holland or the Principal licences (whether express or implied), or grants any other rights to use, possess, modify, vary or amend any Intellectual Property Right.
- (c) In procuring the necessary consents and waivers in clause 15.4(a), the Subcontractor must not (and must ensure that its Associates do not) apply any duress to any person or make a statement to any person knowing that statement to be false and misleading, or knowing that a matter or thing has been omitted from the statement without which the statement is false and misleading.
- (d) The Subcontractor indemnifies John Holland from and against any Loss suffered or incurred by John Holland, and any Claim against John Holland, arising out of or in connection with any failure by the Subcontractor to comply with its obligations under clauses 15.4(a), 15.4(b) and 15.4(c). This indemnity is reduced to the extent that John Holland caused or contributed to any Loss or Claim. John Holland must use reasonable endeavours to mitigate any Loss.

16. Completion

16.1 Subcontractor to Notify

The Subcontractor must give John Holland 14 days' written notice, and then again 7 days, before it anticipates reaching Completion.

16.2 Completion Notice

No later than 14 days after receiving the Subcontractor's second written notice under clause 16.1, John Holland must inspect the Works or the Stage and either:

- (a) if Completion has been achieved, issue a Completion notice stating the date Completion was achieved, together with any minor Defects of the type described in the definition of Completion in clause 1.1; or
- (b) if Completion has been achieved, so advise the Subcontractor and clause 16.1 will reapply.

16.3 Take Over Upon Completion

Upon the issue of a Completion notice, John Holland may take over the Works or the Stage.

16.4 Part of the Works or Stage

John Holland may use, and the Subcontractor, if instructed by John Holland, must permit the Principal to use, a part of the Works or Stage although the Works has not reached Completion.

16.5 Effect of Completion Notice

A Completion notice will not of itself:

- (a) constitute approval by John Holland of the Subcontractor's performance of its Subcontract obligations;
- (b) be taken as an admission or evidence that the Works comply with the Subcontract; or
- (c) prejudice any rights or powers of John Holland.

16.6 General Damages

If the Subcontractor does not reach Completion of the Works or a Stage, as the case may be, by the Date for Completion, John Holland will be entitled to recover common law damages as a result of the Subcontractor failing to achieve Completion of the Works or a Stage (as the case may be) by the Date for Completion.

17. Confidentiality

17.1 Confidential Information

- (a) The Subcontractor must, and must procure that its Associates:
 - (i) keep the Confidential Information confidential;
 - (ii) not use or access the Confidential Information for any reason except as is necessary to perform the Works and its obligations under this Subcontract; and
 - (iii) not disclose Confidential Information to a third party without John Holland's prior written consent (such consent not to be unreasonably withheld or delayed),
save to the extent that such disclosure:
 - (iv) is with the prior written approval of John Holland and upon such terms and conditions imposed by John Holland (in each case acting reasonably);
 - (v) is made to a third party to enable that third party to perform any Works or to provide professional advice to the Subcontractor with respect to this Subcontract or the Works (and the

Subcontractor first procures that such third party is bound by confidentiality undertakings, to John Holland, no less favourable than in this clause 17.1(a)); and

(vi) is required by Law.

- (b) The Subcontractor agrees to sign, and to procure that its Associates sign, a separate confidentiality agreement if reasonably requested by John Holland or required by the Principal.
- (c) If the Subcontractor is required by any Law to disclose details or information referred to in clause 17.1(a), the Subcontractor must, promptly after becoming aware of such requirement to disclose, notify John Holland in writing (providing details of the requirement to disclose and of the relevant the details and information to be disclosed).
- (d) It is a condition to any permitted disclosure of Confidential Information under this clause 17.1 that the Subcontractor must notify John Holland promptly if the Subcontractor becomes aware of any unauthorised disclosure of Confidential Information, whether by the Subcontractor, its Associates or a third party. The Subcontractor must give John Holland all assistance reasonably required by John Holland in connection with any Claim which John Holland may make in relation to the unauthorised disclosure of Confidential Information.

17.2 No Publicity

- (a) The Subcontractor must not, without John Holland's prior written approval:
 - (i) have any dealings with the media, or issue for publication any information, in relation to the Works, this Subcontract or the Project; or
 - (ii) prepare or submit submissions (or permit others to prepare or submit submissions on the Subcontractor's behalf) for awards, in connection with the Works or the Project, by technical or industry organisations, professional bodies or other similar bodies.
- (b) This clause 17 will survive termination of this Subcontract.

18. WHS

- (a) When performing the Works under this Subcontract, the Subcontractor must:
 - (i) comply with its obligations under the WHS Law and identify all risks to health and safety associated with the Works;
 - (ii) require (and, so far as reasonably practicable, ensure) that all Associates that it engages to perform the Works comply with the WHS Law;
 - (iii) at its cost comply with any Direction issued by John Holland about WHS (including industrial relations matters) in connection with the Works;
 - (iv) so far as is reasonably practicable, consult, co-operate and co-ordinate activities with all other persons that have a duty with respect to the same matter under the WHS Law in connection with the Works;
 - (v) not contravene, or not do anything that may cause John Holland to contravene, any WHS Law in connection with the Works;
 - (vi) no less than 5 Business Days prior to mobilisation of any person (involved in the performance of the Works) to the Site, provide John Holland with:

the name and classification of such person; and

details of the applicable industrial instrument (and, if requested by John Holland, provide a copy of such instrument);

- (vii) advise John Holland of any changes to the applicable industrial instruments referred to in clause 18(a)(vi);

- (viii) when attending a site managed or controlled by John Holland, including the Site, attend and participate in John Holland's WHS induction process;
 - (ix) immediately inform John Holland of all 'notifiable incidents' (as defined in the WHS Law) or any other incident in respect of which the Subcontractor is required to notify any Authority under a WHS Law relating to the Works; and
 - (x) allow John Holland sufficient access, and provide John Holland with sufficient information, to allow John Holland to accurately assess the compliance of the Subcontractor and its Associates with WHS Laws (including industrial relations matters).
- (b) The Subcontractor must, and must procure that its Associates and their respective invitees, when visiting or performing any Works:
- (i) on the Site; or
 - (ii) at John Holland's premises or other premises under John Holland's control, comply with all relevant Laws, John Holland's reasonable Directions, policies and procedures relating to site access, WHS, protection of the environment and employee relations (to the extent that John Holland has provided a copy of such policies or procedures to the Subcontractor).
- (c) To the extent that the Subcontractor, in carrying out the Works, is a designer (as defined in a WHS Law), the Subcontractor must prepare and provide to John Holland a written report that specifies the hazards associated with the design of the Works that create a risk to the health and safety of persons that will give effect to the design and that are associated with that particular design.
- (d) The Subcontractor acknowledges and agrees that:
- (i) John Holland may require the Subcontractor to prepare and submit for John Holland's approval a Workplace Relations Management Plan (**WRMP**), or to adopt and comply with a WRMP in place on the Project;
 - (ii) in order to assist in the preparation of the WRMP, the Subcontractor may be required to participate in an 'Industrial Relations Risk Workshop' or equivalent conducted by John Holland; and
 - (iii) once a WRMP prepared and submitted by the Subcontractor has been approved by John Holland, or John Holland has notified the Subcontractor of a WRMP that the Subcontractor must adopt and comply with, the Subcontractor must thereafter comply with such WRMP.
- (e) The Subcontractor will be responsible for any Loss incurred by any person arising out of the Subcontractor's failure to comply with John Holland's reasonable Directions under this clause 18.
- (f) The Subcontractor must perform the Works safely so as to protect persons and property and comply with the health and safety requirements set out in item 2 of Schedule G. If John Holland considers there is a risk of injury to people or damage to property arising from the Works, John Holland may direct the Subcontractor to change its manner of working or to cease working. The Subcontractor must, at its cost, comply with any Direction by John Holland under this clause 18(f).
- (g) The Subcontractor must ensure that, within one Business Day after receipt by the Subcontractor of any adverse decision, direction or order made by a court or tribunal for a breach of the *Independent Contractors Act 2006*, the *Fair Work Act 2009*, the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009*, the *Migration Act 1958* or a Commonwealth industrial instrument, a copy of that adverse decision, direction or order is given to John Holland or John Holland's Representative.

19. Industrial Relations Compliance

- (a) The Subcontractor acknowledges that industrial relations on all projects undertaken by John Holland are managed in compliance with all relevant industrial laws (including any applicable State Code).

- (b) To the extent applicable to the Works, the Subcontractor must comply with:
 - (i) Schedule J and the undertakings provided in the 'Declaration of Compliance'; and
 - (ii) the State Code.
- (c) The Subcontractor warrants that, at the time of tender, it has provided John Holland with a 'Declaration of Compliance'.
- (d) Before allowing any of the Subcontractor's Sub-Subcontractors to commence any part of the Works on the Site, the Subcontractor must provide to John Holland a 'Declaration of Compliance' and a compliant assessment report in respect of each Sub-Subcontractor.
- (e) Failure to comply with this clause 19, the requirements of item 3 of Schedule G and where applicable those obligations set out in Schedule J constitutes a substantial breach of the Subcontract by the Subcontractor and John Holland may in its absolute discretion terminate the Subcontract in accordance with clause 22.

20. Insurance

20.1 Insurance by Principal and John Holland

- (a) John Holland must provide, when reasonably requested by the Subcontractor, evidence of the insurance (if any) applying to the Subcontractor which:
 - (i) the Principal is obliged to effect and maintain under the Head Contract or in relation to the Project; and/or
 - (ii) John Holland is obliged to effect and maintain under the Head Contract or in relation to the Project.
- (b) The Subcontractor acknowledges that it:
 - (i) has satisfied itself as to the nature and extent of the Principal's and/or John Holland's insurance (including any exclusions, conditions and excesses noted on the policies) as provided by John Holland;
 - (ii) may if it requires, take out insurance to insure any risks not insured by the Principal's or John Holland's insurance or to cover any exclusions, conditions or excesses in that insurance;
 - (iii) must, in the case of an insurance:

the Principal is required to effect and maintain under the Head Contract or in relation to the Project; or

John Holland is required to effect and maintain under the Head Contract or in relation to the Project,

- (iv) bears the costs of any premiums, deductibles and excesses and any other costs incurred by John Holland under those insurances where:

the relevant Loss is caused or contributed to by the Subcontractor; or

there is a claim under those insurances for an event, act or circumstance for which the Subcontractor bears the risk or cost under the Subcontract.

20.2 Insurance by Subcontractor

- (a) The Subcontractor must before the commencement of the Works effect and thereafter maintain the insurances required by this clause 20.
- (b) Each insurance policy that the Subcontractor is required to effect and maintain under this Subcontract must:
 - (i) be with an insurer who has a credit rating equal to or better than a Standard and Poor's A minus rating;
 - (ii) include a cross liability clause in which the insurer agrees to waive all rights of subrogation or action against any person comprising the insured; and

- (iii) where the insurance policy covers third party liability, cover the Subcontractor for its potential liability to John Holland assumed by virtue of the exclusion under this Subcontract of the Proportionate Liability Legislation.
- (c) The Subcontractor must, within 10 Business Days after any request by John Holland, provide evidence (including by way of certificates of currency) to John Holland's reasonable satisfaction that the Subcontractor is complying with its insurance obligations under this Subcontract.
- (d) The Subcontractor must not do or fail to do anything which might prejudice the coverage of any insurance required to be maintained by the Subcontractor under this Subcontract.
- (e) The Subcontractor must, in the case of an insurance the Subcontractor is required to effect and maintain under this Subcontract, bear the costs of any premiums and (except to the extent of a claim made under the insurance by John Holland in respect of a Loss caused or contributed to by John Holland or its Associates) deductibles, excesses and any other costs incurred by the Subcontractor under those insurances.
- (f) The Subcontractor must ensure that each insurance policy it is required to effect under this Subcontract includes provisions requiring the insurer to inform John Holland whenever:
 - (i) it receives a notice or claim under or in connection with the insurance policy; and
 - (ii) it gives any insured a notice under or in connection with the policy,which in the case of a notice of cancellation must be given to John Holland 30 days prior to the cancellation of the policy.
- (g) The Subcontractor must:
 - (i) promptly inform John Holland in writing of any occurrence that may give rise to a claim under: any insurance policy required to be effected under the Subcontract; or any insurance policy which must be provided and maintained by the Principal or John Holland under the Head Contract;
 - (ii) keep John Holland informed of subsequent developments concerning the claim; and
 - (iii) ensure that its subcontractors similarly inform the Subcontractor and John Holland in respect of occurrences which may give rise to a claim by them.
- (h) If the Subcontractor fails to effect or maintain (in accordance with the requirements of this Subcontract) any insurance that it is required to effect and maintain under this Subcontract, John Holland may effect and maintain the insurance and pay such premiums as may be necessary for that purpose and the amount so paid by John Holland will be a debt due from the Subcontractor to John Holland. Any action by John Holland under this clause 20.2(h) will not relieve the Subcontractor of any liability under this Subcontract.

20.3 Professional Indemnity Insurance

- (a) The Subcontractor must effect and maintain a professional liability and indemnity insurance policy to cover liability for breach of professional duty, whether owed in contract or otherwise, which:
 - (i) provides cover from the commencement of the Works;
 - (ii) provides cover for all Works performed by the Subcontractor and its Associates in the amount stated in the Subcontract Details for any one claim and in the annual aggregate;
 - (iii) has provision for one automatic reinstatement per insurance period;
 - (iv) does not have an excess exceeding the amount stated in the Subcontract Details (unless agreed otherwise in writing by John Holland); and
 - (v) is maintained for the number of years stated in the Subcontract Details.

- (b) The Subcontractor must ensure that any Sub-Subcontractor performing the Works effects and maintains a professional liability and indemnity insurance policy to cover liability for breach of professional duty, whether owed in contract or otherwise.

20.4 Public Liability Insurance

The Subcontractor must effect and maintain a public liability insurance policy to cover its liability to third parties for loss of or damage to property (other than the Works) and the death of or injury to any person (other than liability which is required by Law to be insured under a workers compensation policy of insurance), which:

- (a) provides cover for the amount stated in the Subcontract Details for any one occurrence;
- (b) is in the joint names of the parties and the Sub-Subcontractors and has a cross liability clause so that the insurance applies to each named insured as a separate insured; and
- (c) is maintained until the expiry of the Defects Liability Period (as extended in accordance with the Subcontract) or if there are Stages, the expiry of the last Defects Liability Period.

20.5 Insurance of employees

- (a) The Subcontractor must insure against its liability for death of or injury to persons employed by the Subcontractor.
- (b) The insurance required by clause 20.5(a) must:
 - (i) be for the maximum amount available at Law;
 - (ii) be maintained until the expiry of the Defects Liability Period (as extended in accordance with the Subcontract) or if there are Stages, the expiry of the last Defects Liability Period; and
 - (iii) where required by Law, extend to indemnify John Holland and the Principal for their respective statutory liability to the Subcontractor's employees.
- (c) The Subcontractor must ensure that its Sub-Subcontractors (and other subcontractors further down the subcontracting chain) have in place similar insurance to the insurance required by clause 20.5(a).

20.6 Comprehensive motor vehicle insurance

- (a) The Subcontractor must effect and maintain comprehensive motor vehicle insurance (including third party liability insurance) from the commencement of the Works, in respect of all motor vehicles used in, or in connection with, the performance of the Works (including motor vehicles brought to Site in connection with the performance of the Works), which:
 - (i) provides cover:

(for an amount not less than market value) against loss or damage to such motor vehicles; and

(for not less than the amount stated in the Subcontract Details) against liabilities to third parties with respect to loss of or damage to property or the death of or injury to any person; and

- (ii) is, in respect of each such motor vehicle, maintained for as long as the motor vehicle is used in, or in connection with, the performance of the Works.

21. Liability, Risk and Indemnities

21.1 Care of the Works

Except as provided in clause 21.3, the Subcontractor will be responsible for care of:

- (a) the whole of the Works from and including the date of commencement of the Works to 4:00pm on the Date of Completion, at which time responsibility for the care of the Works (except to the extent provided in clause 21.1(b)) will pass to John Holland; and
- (b) outstanding work and items to be removed from the Site by the Subcontractor after 4:00pm on the Date of Completion until completion of outstanding work or compliance with clause 11.

Without limiting the generality of clause 21.1(a), the Subcontractor will be responsible for the care of unfixed items accounted for in a Payment Schedule and the care and preservation of things entrusted to the Subcontractor by John Holland or brought onto the Site by the Subcontractor's Associates.

21.2 Reinstatement

- (a) If Loss, other than that caused by an Excepted Risk, occurs to the Works, the Works Material and/or unfixed goods and materials during the period of the Subcontractor's care, the Subcontractor must, if required by John Holland:
 - (i) promptly rectify, replace, repair or otherwise make good all or any such Loss; and
 - (ii) bear the cost of and associated with such rectification, replacement or repair.
- (b) In the event of Loss being caused by any of the Excepted Risks (whether or not in combination with other risks), the Subcontractor must, to the extent directed by John Holland, rectify the Loss and such rectification will be a deemed Variation. If Loss is caused by a combination of Excepted Risks and other risks, John Holland in valuing the Variation will assess (acting reasonably) the proportional responsibility of the parties.

21.3 Excepted Risks

The excepted risks causing Loss, for which John Holland is liable, are:

- (a) war, invasion, acts of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or military or usurped power, martial law or confiscation by order of any government or public authority;
- (b) ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel not caused by the Subcontractor or its Associates; and
- (c) damage to the Works caused by the Principal's use of the Works or a Stage before Completion under clause 16.4.

21.4 Indemnity – Damage and Injury

- (a) The Subcontractor indemnifies John Holland from and against any Loss, Claim or liability in respect of:
 - (i) any personal injury (including death) to, or illness of, any person;
 - (ii) loss of, or damage to, any property, including property of John Holland or the Principal; and
 - (iii) any liability to or claims by a third party (including under statute) in respect of loss of, or damage to, any property or injury to, or death of, any persons, caused by or arising out of or in connection with the Works,to the extent caused or contributed to by any act or omission of the Subcontractor or an Associate of the Subcontractor or any breach of this Subcontract by the Subcontractor.

21.5 Indemnity – Breach

Without limiting any other clause of this Subcontract, the Subcontractor must indemnify John Holland against any Loss suffered or incurred by John Holland, any Claim against John Holland by the Principal, an Other Contractor or any other person, arising out of or in connection with:

- (a) any breach by the Subcontractor of a term of this Subcontract; and
- (b) (if applicable) any breach by the Subcontractor of the duty of care established under the D&BP Act.

21.6 Reduction of Indemnity

The Subcontractor's liability to indemnify John Holland under clauses 21.4 and 21.5 will be reduced proportionately to the extent that any breach of this Subcontract by, or any act or omission of, John Holland, contributed to the relevant Loss, Claim or liability John Holland must use reasonable endeavours to mitigate its Loss or liability.

21.7 Proportionate Liability

- (a) To the maximum extent permitted by Law, the parties agree that the Proportionate Liability Legislation will not have any application to this Subcontract, the performance of the Works or any obligations of the Subcontractor under this Subcontract or at Law.
- (b) To the extent permitted by Law:
 - (i) the Subcontractor must not seek to apply the provisions of the Proportionate Liability Legislation in relation to any Claim by John Holland to the extent an alleged wrongdoer is an Associate of the Subcontractor; and
 - (ii) if any of the provisions of the Proportionate Liability Legislation are applied to any Claim by John Holland against the Subcontractor, the Subcontractor will indemnify John Holland against any Loss which John Holland is not able to recover from the Subcontractor because of the operation of the Proportionate Liability Legislation.
- (c) For the purposes of the Proportionate Liability Legislation, the Subcontractor is entirely and solely responsible for any failure to take reasonable care on the part of any of its Associates.

21.8 Limitation of Liability

- (a) Subject to clause 21.8(b), the Subcontractor's aggregate liability to John Holland:
 - (i) arising out of, or in any way in connection with this Subcontract and the Works;
 - (ii) in tort (including negligence and misrepresentation);
 - (iii) under any statute; or
 - (iv) otherwise at law or in equity,is limited to 100% of the Subcontract Sum.
- (b) The limitation on liability in clause 21.8(a) does not apply to exclude, limit or restrict (and the following events described below shall not be included when calculating) the liability of the Subcontractor in respect of:
 - (i) claims by any person in respect of:

illness, personal injury or death;

loss of, or damage to, any property, including property of John Holland;

- (ii) criminal acts, wilful misconduct or fraud on the part of the Subcontractor or its Associates;
- (iii) events or circumstances for which the Subcontractor has an entitlement to recover or be indemnified under an insurance policy (or would have had such an entitlement if it had complied with its insurance obligations under the Subcontract or the relevant policy);
- (iv) any abandonment of the Subcontract by the Subcontractor;
- (v) any liability which, by law, the parties cannot limit or contract out of;
- (vi) any liability under clause 16.6;
- (vii) any liability which is the subject of the indemnities in clauses 15.3(b) and 15.4(d);
- (viii) (if applicable) Loss arising as a result of a breach by the Subcontractor of the duty of care established under the D&BP Act; and
- (ix) any liability that may arise out of the infringement of the Subcontractor's confidentiality obligations under clause 17.

21.9 Consequential Loss

- (a) Subject to clause 21.9(c), but notwithstanding anything else to the contrary in this Subcontract, John Holland has no liability to the Subcontractor, nor will the Subcontractor be entitled to make any Claim, in respect of any Consequential Loss suffered or incurred by the Subcontractor:

- (i) as a result of any act or omission of John Holland or its Associates (whether negligent or otherwise);
 - (ii) under any indemnity; or
 - (iii) as a result of a breach by John Holland of the Subcontract.
- (b) Subject to clause 21.9(d), but notwithstanding anything else to the contrary in this Subcontract, the Subcontractor has no liability to John Holland, nor will John Holland be entitled to make any Claim, in respect of any Consequential Loss suffered or incurred by John Holland:
- (i) as a result of any act or omission of the Subcontractor (whether negligent or otherwise);
 - (ii) under any indemnity; or
 - (iii) as a result of a breach by the Subcontractor of the Subcontract.
- (c) Clause 21.9(a) does not operate to exclude or limit any liability incurred or Claim made by the Subcontractor to the extent that any Loss suffered by the Subcontractor as a result of such liability or Claim is as a result of:
- (i) claims by any person in respect of:

illness, personal injury or death;

loss of, or damage to, any property, including property of the Subcontractor;

- (ii) criminal acts, wilful misconduct or fraud on the part of John Holland;
- (iii) any liability which, by law, the parties cannot limit or contract out of.

- (d) Clause 21.9(b) does not operate to exclude or limit any liability incurred or Claim made by John Holland to the extent that any Loss suffered by John Holland as a result of such liability or Claim is as a result of:

- (i) claims by any person in respect of:

illness, personal injury or death;

loss of, or damage to, any property, including property of John Holland;

- (ii) criminal acts, wilful misconduct or fraud on the part of the Subcontractor or its Associates;
- (iii) events or circumstances for which the Subcontractor has an entitlement to recover or be indemnified under an insurance policy (or would have had such an entitlement if it had complied with its insurance obligations under the Subcontract or the relevant policy);
- (iv) any abandonment of the Subcontract by the Subcontractor;
- (v) any liability which, by law, the parties cannot limit or contract out of;
- (vi) any liability in respect of an amount expressly payable under clauses 11.5 or 14.18(g);
- (vii) any liability which is the subject of the indemnities in clauses 15.3(b) and 15.4(d);
- (viii) any liability John Holland may have under the Head Contract; and
- (ix) any liability that may arise out of the infringement of the Subcontractor's confidentiality obligations under clause 17.

22. Termination by John Holland

22.1 Notice of Default of Subcontractor

If the Subcontractor is in breach of the Subcontract (including a breach of the Subcontractor's obligations under clause 27), John Holland may give the Subcontractor a written notice specifying the breach and requiring the Subcontractor to remedy the breach within 5 Business Days (or such longer period as John Holland may specify in the notice, acting reasonably) of receipt of the notice.

22.2 Termination for default, Insolvency, breach or Change in Control

If:

- (a) the Subcontractor fails to comply with a notice given by John Holland under clause 22.1 (including within the time required by such notice) in respect of a material or persistent breach of this Deed or a breach of a material term of this Deed (including clauses 3, 4.1, 6.3, 7.1, 9.1, 10.3, 11, 12.1, 12.2, 13.1, 14, 15, 17, 18, 19, 20 and 21);
- (b) an Insolvency Event occurs with respect to the Subcontractor;
- (c) the Subcontractor breaches its obligations under clause 27; or
- (d) a Change of Control occurs with respect to the Subcontractor and, in the reasonable opinion of John Holland, the Change of Control adversely affects the capacity of the Subcontractor to carry out the Works, or precludes the Subcontractor from carrying out the Works in accordance with this Subcontract,

John Holland may, subject to Chapter 5 of the Corporations Act and without prejudice to any other rights which John Holland may have:

- (e) in the case of clause 22.2(a), withhold any monies which are or may become due to the Subcontractor under this Subcontract until the relevant breach is remedied; or
- (f) terminate this Subcontract by written notice to the Subcontractor.

22.3 Rights and obligations on termination

If John Holland terminates this Subcontract under clause 22.2:

- (a) John Holland will be entitled to take over and use or have removed from the Site the Works Material;
- (b) John Holland will:
 - (i) pending an assessment of the Losses referred to in clause 22.3(g) below, be entitled to withhold any monies which are, or may become, due to the Subcontractor under this Subcontract; and
 - (ii) not be obliged to make any further payments to the Subcontractor, including (without limitation) any money the subject of a Payment Claim or a Payment Schedule;
- (c) John Holland may either by itself or by a third party complete the uncompleted part of the Works;
- (d) the Subcontractor must, promptly following a request by John Holland to do so, assign or novate any Sub-Subcontractor to John Holland or John Holland's nominee on such terms as John Holland requires (acting reasonably);
- (e) the Subcontractor must promptly provide to John Holland a copy of all Subcontractor Documentation produced by the Subcontractor prior to the date of the termination;
- (f) the Subcontractor must, promptly after any request to do so by John Holland, provide John Holland with such other assistance as John Holland reasonably requires in order to facilitate the completion of the balance of the Works by John Holland; and
- (g) the Subcontractor indemnifies John Holland against all Losses suffered or incurred by John Holland arising out of, or in connection with, such termination, including the reasonable costs of completing the Works to the extent such costs are greater than the amount that would have been paid to the Subcontractor under the Subcontract in respect of those Works. The indemnity under this clause (g) is reduced to the extent that John Holland caused or contributed to any Loss. John Holland must use reasonable endeavours to mitigate any Loss.

23. Termination by the Subcontractor

23.1 Termination for default or Insolvency Event

- (a) If an amount is due and payable to the Subcontractor under this Subcontract and John Holland has not paid such amount to the Subcontractor within 10 Business Days following a written notice from

the Subcontractor to John Holland requiring John Holland to do so (such notice to state that it is given under this clause 23.1(a)):

- (i) the Subcontractor may, by written notice to John Holland, suspend the performance of the Works until the Subcontractor is paid the relevant amount that is due and payable; and
 - (ii) if the relevant amount that is due and payable is not paid to the Subcontractor within 30 Business Days after the date that the Subcontractor suspends the Works pursuant to clause 23.1(a)(i), the Subcontractor may terminate this Subcontract by written notice to John Holland.
- (b) Subject to Chapter 5 of the Corporations Act, if an Insolvency Event occurs with respect to John Holland, the Subcontractor may (without prejudice to any other rights that it may have) terminate this Subcontract by written notice to John Holland.

23.2 Rights and obligations on termination

If this Subcontract is terminated pursuant to clause 23.1:

- (a) John Holland may either by itself or by a third party complete the uncompleted part of the Works;
- (b) John Holland will pay to the Subcontractor, within 20 Business Days after the date of termination for Works performed prior to the date of termination, the amount which would have been payable to the Subcontractor if this Subcontract had not been terminated and the Subcontractor had submitted a Payment Claim on the date of termination; and
- (c) the Subcontractor must, promptly following payment made under clause 23.2(a), provide to John Holland a copy of all Subcontractor Documentation produced by the Subcontractor prior to the date of the termination.

24. Termination for Convenience or Head Contract Termination

24.1 Head Contract Termination and Termination for Convenience

If:

- (a) the Head Contract is terminated at any time for any reason or work which includes the Works is, under the Head Contract, taken out of John Holland's hands; or
- (b) John Holland, in its sole and absolute discretion, elects to terminate this Subcontract for its own convenience,

then John Holland may, without prejudice to any other rights that it may have, terminate the Subcontract by written notice to the Subcontractor. To the extent that clause 24.1(a) applies, and John Holland is given prior notice of the proposed termination of the Head Contract, John Holland will use reasonable endeavours to give prior notice to the Subcontractor.

24.2 Rights and obligations following Head Contract Termination and Termination for Convenience

- (a) If the Subcontract is terminated under clause 24.1:
 - (i) the Subcontractor must, promptly following a request by John Holland to do so, assign or novate any Sub-Subcontractor to John Holland or John Holland's nominee on such terms as John Holland requires (acting reasonably);
 - (ii) the Subcontractor must, promptly following the termination, provide to John Holland a copy of all Subcontractor Documentation produced by the Subcontractor prior to the date of the termination;
 - (iii) John Holland may either by itself or by a third party complete the uncompleted part of the Works;
 - (iv) to the extent such termination was not due to any wrongful act or omission of the Subcontractor or any breach of the Subcontract by the Subcontractor, then John Holland will pay to the Subcontractor, within 20 Business Days after the date of termination:

any unpaid Subcontract value of the Works completed before the date of termination in accordance with the Subcontract; and

(to the extent not included in amounts otherwise paid or payable to the Subcontractor) all reasonable direct costs incurred by the Subcontractor:

- (I) prior to the date of termination, in the expectation of completing the whole of the Works (including the cost of goods or materials ordered by the Subcontractor for the Works and for which it is legally bound to pay); and
- (II) for removing from the Site the Works Material,
(subject to the Subcontractor taking all reasonable steps to mitigate those costs),
provided that:

upon payment of the amount payable under clause 24.2(a)(iv)(B)(I) title in the goods and materials referred to in clause 24.2(a)(iv)(B)(I) will vest in John Holland;

the amount payable under this clause 24.2(a)(iv) will not in any circumstances exceed the Subcontract Sum (as it was at the date of termination); and

the amount to which the Subcontractor is entitled under this clause 24.2(a)(iv) will be full compensation for the termination and the Subcontractor will not have any Claim against John Holland for any Loss suffered or incurred by the Subcontractor arising under or in connection with the termination other than for the amount payable under this clause 24.2(a)(iv) and in particular the Subcontractor will not be entitled to receive any amount on account of loss of profit or the inability to recover any of its off-site overheads; and

- (v) to the extent such termination was due to a wrongful act or omission of the Subcontractor or any breach of the Subcontract by the Subcontractor, then:

John Holland will:

- (I) pending an assessment of the Losses referred to in clause 24.2(a)(v)(C) below, be entitled to withhold any monies which are, or may become, due to the Subcontractor under this Subcontract; and
- (II) not be obliged to make any further payments to the Subcontractor, including (without limitation) any money the subject of a Payment Claim or a Payment Schedule;

the Subcontractor must, promptly after any request to do so by John Holland, provide John Holland with such other assistance as John Holland requires in order to facilitate the completion of the balance of the Works by John Holland; and

the Subcontractor indemnifies John Holland against all Losses suffered or incurred by John Holland arising out of, or in connection with, such termination, including the costs of completing the Works to the extent such costs are greater than the amount that would have been paid to the Subcontractor under the Subcontract in respect of those Works. This indemnity is reduced to the extent that John Holland caused or contributed to any Loss or Claim. John Holland must use reasonable endeavours to mitigate any Loss.

24.3 Deemed Termination

If any termination of this Subcontract by John Holland pursuant to clause 22.2 is held by a court of law or arbitrator or is agreed between the parties to have been invalid, then the relevant notice given by John Holland under clause 22.2 will be deemed to have been given under clause 24.1(b).

25. Dispute Resolution

25.1 Application of Clause

- (a) Subject to clause 25.1(b), if a dispute or difference arises between the parties in respect of any fact, matter or thing arising out of or in connection with the Works or the Subcontract, or either party's

conduct before but related to or associated with the Subcontract (**Dispute**), either party may give a notice in writing to the other party:

- (i) stating that the notice is given under this clause 25.1; and
- (ii) specifying, and providing particulars of, the relevant dispute or difference (including the amount (if any)),

(Dispute Notice).

- (b) Where a Dispute relates to a Direction given by John Holland, the Dispute Notice under clause 25.1(a) must be given to John Holland within 7 days of the date of the Direction the subject of the Dispute otherwise the Dispute is barred.

25.2 Negotiations

- (a) Within 10 Business Days after a Dispute Notice is given under clause 25.1(a), or such other period as may be agreed by the parties, the Senior Executives of each of the parties must meet at least once and undertake negotiations, genuinely and in good faith, with a view to resolving the Dispute.
- (b) The parties agree that:
 - (i) their respective Senior Executives have the authority to agree the resolution of the Dispute or methods for doing so; and
 - (ii) all aspects of every such meeting, and any communication between the Senior Executives or in connection with every such meeting, except the fact of occurrence of the meeting, will be subject to without prejudice privilege.

25.3 Expert Determination

- (a) If a Dispute is not resolved within 20 Business Days (or such longer period as the parties may agree in writing) after a Dispute Notice is given under clause 25.1(a), and:
 - (i) the Dispute is in respect of a monetary claim of less than or equal to the amount stated in the Subcontract Details; or
 - (ii) John Holland notifies the Subcontractor that the Dispute is one to which clause 25.3 applies, the Dispute must be submitted to an expert in accordance with clause 25.3(b).
- (b) The parties agree the following with respect to an expert determination under clause 25.3(a):
 - (i) it must be conducted by a person agreed by the parties (but if that person is not available or the parties are unable to agree on a person within 5 Business Days after the date that clause 25.3(a) provides that the Dispute must be submitted to an expert determination, then the expert determination must be conducted by a person who is an independent industry expert appointed at the request of either party by the Chairman for the time being of the Institute);
 - (ii) any meetings with the Expert must (unless the parties agree otherwise) be held in the location stated in the Subcontract Details;
 - (iii) it must be conducted in accordance with the Resolution Institute Expert Determination Rules;
 - (iv) the parties must share the cost of the Expert equally;
 - (v) the determination of the Expert must be in writing;
 - (vi) the Expert must act as an expert and not as an arbitrator and subject to clause 25.3(c), his or her decision will be final and binding on the parties; and
 - (vii) the parties will request the Expert to make a determination within 20 Business Days (unless otherwise agreed between the parties) after the execution by the parties and the Expert of an expert determination agreement in the form set out at Schedule H which:

describes the procedure by which the Expert will determine the matter;

entitles each party to lodge with the Expert a written submission setting out that party's position as to how the matter should be determined;

requires the Expert to select which of the alternative submissions lodged by the parties best reflect the terms of this Subcontract;

precludes the Expert from imposing on the parties a position other than one submitted by one of the parties; and requires each party to release the Expert from and against all claims, except in the case of fraud on the part of the Expert, which may be made against the Expert in connection with the Expert's appointment to determine the matter.

- (c) The determination of the Expert will be final and binding on the parties, unless:
 - (i) there is a manifest error of law; or
 - (ii) the Expert's decision requires a party to pay in excess of the amount stated in the Subcontract Details,
 - and a party gives to the other party a written notice of dissatisfaction within 21 days of the date of the determination, in which case clause 25.5 applies.
- (d) The Expert must disclose to the parties any interest the Expert has in the outcome of the determination and must not communicate with one party without the knowledge of the other party.

25.4 Costs

Each party will bear its own costs in respect of any expert determination.

25.5 Arbitration or Litigation

If:

- (a) the Dispute is not one to which clause 25.3 applies and the Dispute remains unresolved within 20 Business Days (or such longer period as the parties may agree in writing) after a Dispute Notice is given with respect to the Dispute; or
- (b) a party gives to the other party a written notice of dissatisfaction under clause 25.3(c),
the Dispute will be resolved by arbitration or litigation, as agreed by the parties or failing agreement determined by John Holland acting reasonably having regard to the nature of the Dispute.

If the latter, John Holland must promptly give written notice to the Subcontractor as to whether the Dispute is to be resolved by arbitration or litigation and if John Holland determines (acting reasonably) that the Dispute is to be resolved by arbitration, the Dispute will thereby be referred to arbitration.

25.6 Arbitration

If the Dispute is to be referred to arbitration, the arbitration will be conducted before a person to be:

- (a) agreed between the parties; or
- (b) failing agreement within 28 days after the giving of the notice by John Holland under clause 25.5, appointed by the Chairman for the time being of the Institute.

The Resolution Institute Arbitration Rules 2020 will apply to the arbitration. The arbitrator will have power to grant all legal, equitable and statutory remedies, including the power to open up and review a determination of an expert.

The parties agree the following with respect to an arbitration under clause 25.6:

- (c) there will be one arbitrator;
- (d) the place and seat of the arbitration is set out in the Subcontract Details; and
- (e) all proceedings will be conducted in English.

The arbitral decision will be final and binding on the parties, unless there is a manifest error of law and a party gives to the other party a written notice of dissatisfaction within 21 days of the date of the decision, in which case litigation will apply

25.7 Survive Termination

This clause 25 will survive termination of the Subcontract.

25.8 Urgent relief

Nothing in this clause 25 affects the right of a party to commence court proceedings to seek urgent injunctive relief.

25.9 Continuation of Works

Despite the existence of a Dispute between the parties, the Subcontractor must continue to carry out the Works and otherwise comply with its obligations under the Subcontract.

26. Notification Of Claims

26.1 Notices of Other Claims

Except for Claims for:

- (a) an extension of time under clause 12.7;
- (b) payment under clause 14.6 or clause 14.14 on account of the Subcontract Sum, or
- (c) a Variation to which clause 13.3 applies or a Variation that has been directed by way of a Variation Order,

the Subcontractor must give John Holland the Prescribed Notices if it wishes to make a Claim against John Holland in respect of any Direction, fact, matter or thing under, arising out of or in connection with the Works or the Subcontract.

The Prescribed Notices are:

- (d) a written notice by the Subcontractor that it proposes to make a Claim, such notice to:
 - (i) be given within 5 Business Days after the earlier of when the Subcontractor first became aware, or ought reasonably to have first become aware, of the events or circumstances on which the Claim is based;
 - (ii) expressly state that the Subcontractor proposes to make a Claim; and
 - (iii) provide details of the events and circumstances on which the Claim is based;
- (e) a further written Claim by the Subcontractor, to be given within 5 Business Days of giving the notice under clause 26.1(d), such claim to include:
 - (i) detailed particulars (including the relevant date or dates) concerning the events or circumstances on which the Claim is based;
 - (ii) the legal basis for the Claim, whether based on a term of this Subcontract (in which case the specific term must be clearly identified) or otherwise;
 - (iii) the facts relied upon in support of the Claim in sufficient detail to permit verification;
 - (iv) details of the amount claimed and how it has been calculated; and
 - (v) such other information as John Holland requires (acting reasonably).

26.2 Continuing Events

If the relevant events or circumstances upon which the Claim under clause 13.3 or clause 26.1 are based are ongoing, or the consequences of the relevant events or circumstances are continuing, the Subcontractor must continue to give the information required by clause 26.1(e) every 5 Business Days after the written Claim under clause 13.3 or clause 26.1 (as the case may be) was submitted or given, until the relevant events or circumstances, or the consequences of the relevant events or circumstances, have ceased.

26.3 Bar

If the Subcontractor fails to comply with clauses 26.1 or 26.2:

- (a) the Subcontract Sum will not be adjusted as a result of; and
- (b) John Holland will not be liable upon any Claim by the Subcontractor arising out of or in connection with,

the relevant Direction, fact, matter or thing (as the case may be) to which clauses 26.1 or 26.2 apply.

Nothing in this clause will prevent the Subcontractor from raising any defence in response to any Claim brought by John Holland.

26.4 Service of Notices

- (a) Any notice or other communication to be given or served under this Subcontract must be in writing and signed by the party giving the notice and must be:
 - (i) delivered by hand;
 - (ii) sent by prepaid post;
 - (iii) sent via email; or
 - (iv) sent via a Project System,in each case to the relevant address, email address or Project System email address stated in the Subcontract Details or the contact details as last notified in writing to the party giving the notice or other communication.
- (b) A notice or other communication given in accordance with clause 26.4(a) will be deemed to have been received:
 - (i) in the case of delivery by hand, on delivery, provided that where delivery is made after 5:00pm at the place of delivery, or is made on a day which is not a Business Day, then the notice will be deemed to have been given and received at 9:00am on the next Business Day;
 - (ii) in the case of prepaid post that is sent and received within Australia, on the 4th Business Day after the date of posting;
 - (iii) in the case of prepaid post that is sent from Australia and received outside Australia (or vice versa), on the 10th Business Day after the date of posting; and
 - (iv) in the case of sending via:

the Project System, upon the notice being uploaded onto the Project System (in accordance with the relevant protocols notified to the Subcontractor by John Holland from time to time); or

email, immediately upon the email being sent, unless the sender receives an automatically generated notification from the recipient, or the recipient's email system, that the notice or relevant email has not been delivered or received or that the delivery of the notice or relevant email has been delayed ('bounce back notification'), in which case the notice is not taken to have been effected,

provided that where the notice is uploaded or email is received after 5:00pm at the address of the recipient or where the notice is uploaded or email is received on a day which is not a Business Day, then the notice or email will be deemed to have been given and received at 9:00am on the next Business Day (and, for the purposes of this clause 26.4(b)(iv), the address of the recipient will be the physical address referred to in the Subcontract Details, as may be amended under this clause 26.4).

- (c) Each party must promptly notify the other of any change in address or contact details for the purposes of this clause 26.4.

26.5 Payment Platform

This clause 26.5 only applies if the relevant item in the Subcontract Details specifies that it applies.

- (a) Without limiting clauses 14.6, 14.16 and 26.4, the parties agree that:
 - (i) the Subcontractor may submit Payment Claims, including accompanying supporting documents, to John Holland; and
 - (ii) without prejudice to any other rights John Holland may have, John Holland may issue Payment Schedules or Notices of Dispute, including accompanying supporting documents, to the Subcontractor,
via the Payment Platform.
- (b) A Payment Claim and accompanying supporting documents given or served in accordance with clause 26.5(a)(i) will be deemed to have been received at the time it is submitted to John Holland in the Payment Platform unless the Payment Claim would be deemed to have been received:
 - (i) on a day that is not a Business Day; or
 - (ii) on a day that is a Business Day but later than 5:00pm at the address of the recipient,
then the Payment Claim will be taken to have been duly given or made at 9:00am on the next Business Day. For the purposes of this clause, the address of the recipient will be the physical address referred to in the Subcontract Details, as may be amended under clause 26.4.
- (c) The parties agree that a Payment Claim withdrawn from the Payment Platform by the Subcontractor is deemed to be clearly and unequivocally withdrawn for the purposes of the Subcontract and the Security of Payment Act.
- (d) The Subcontractor agrees that it will pay all fees and charges (including subscription costs) associated with its use of the Payment Platform and that it has no Claim against John Holland arising out of, or in connection with, the Subcontractor's use of the Payment Platform.
- (e) The parties agree that a Payment Schedule or Notice of Dispute and accompanying supporting documents given or served in accordance with clause 26.5(a)(ii) is a valid payment schedule or notice of dispute for the purposes of the Security of Payment Act which is deemed to have been received at the time it is submitted to the Subcontractor in the Payment Platform.
- (f) The parties further agree that documents that are accessible from hyperlinks within the Payment Schedule or Notice of Dispute form part of the Payment Schedule or Notice of Dispute and are deemed to have been given or served with the Payment Schedule or Notice of Dispute.
- (g) The parties agree that the email addresses for service of Payment Claims and Payment Schedules (or Notices of Dispute) via the Payment Platform will be those nominated within the Payment Platform, as updated by the parties from time to time within the Payment Platform.

27. Modern Slavery

- (a) The Subcontractor must ensure that:
 - (i) in performing its obligations under or in connection with this Subcontract, the Subcontractor must and will ensure that its Associates must:
not engage in any conduct or omission which may contravene any Modern Slavery Laws
 - (ii) it does all things reasonably required or necessary to mitigate or reduce modern slavery risks in its operations and supply chains and stay in compliance with all applicable Modern Slavery Laws.

28. Sanctions Requirements

- (a) The Subcontractor warrants that neither it nor any of its Associates is, or will be during the course of this Subcontract, a Sanctioned Person.
- (b) The Subcontractor will comply with all Sanctions in relation to the Project.

- (c) If the Subcontractor becomes a Sanctioned Person, or becomes aware that the Subcontractor has breached or is reasonably likely to breach any Sanction, then the Subcontractor must, in writing, immediately notify John Holland:
 - (i) in the case of becoming a Sanctioned Person, that the Subcontractor has become a Sanctioned Person; and/or
 - (ii) in the case of a breach of any Sanction, the relevant Sanction and the circumstance and nature of the breach of that Sanction;
 - (iii) in either case, all information:

to comply with a request by a regulatory authority that oversee Sanctions;

manage the risk of Sanctions being imposed on John Holland; and

comply with laws or regulations applying in the jurisdictions in which the Works are performed, the parties are located or in any other country.

- (d) If the Subcontractor becomes aware that a Sub-Subcontractor has become a Sanctioned Person, or becomes aware that a Sub-Subcontractor has breached or is reasonably likely to breach any Sanction, then the Subcontractor must, in writing, immediately notify John Holland:
 - (i) in the case of becoming a Sanctioned Person, that the Sub-Subcontractor has become a Sanctioned Person; and/or
 - (ii) in the case of a breach of any Sanction, the relevant Sanction and the circumstance and nature of the breach of that Sanction;
- (e) Where the Subcontractor is required to notify John Holland pursuant to clauses 28(c) or 28(d), the Subcontractor must also provide all information that John Holland requires from time to time in order for John Holland to:
 - (i) to comply with a request by a regulatory authority that oversee Sanctions;
 - (ii) manage the risk of Sanctions being imposed on John Holland; and
 - (iii) comply with laws or regulations applying in the jurisdictions in which the Works are performed, the parties are located or in any other country.
- (f) If John Holland suspects that the Subcontractor or its Associates, has become or is reasonably likely to become a Sanctioned Person or has violated any Sanction or is reasonably likely to violate any Sanction then (without limitation to any other right or remedy available to John Holland), John Holland may:
 - (i) suspend performance of this Subcontract; or
 - (ii) withhold any payment due and owing under this Subcontract.
- (g) Where clause 28(d) applies, John Holland may direct the Subcontractor to suspend the use of the Sub-Subcontractor or terminate the sub-subcontract. Upon receipt of a direction under this clause 28(g), the Subcontractor must promptly follow the direction at its cost.
- (h) The Subcontractor must ensure that terms of the contract with all Sub-Subcontractors imposes equivalent obligations to those in clause 28 and permit the Subcontractor to terminate the sub-subcontract and/or suspend the use of Sub-Subcontractor.
- (i) In circumstances where:
 - (i) John Holland has made payment for all or any part of the Works;
 - (ii) the Subcontractor is prevented from receiving or accessing (or is otherwise not permitted to receive or access) that payment due to or as a result of any Associate being or becoming a Sanctioned Person,

the parties acknowledge and agree that that payment is taken to have been validly made by John Holland and received by the Subcontractor for the purposes of this Subcontract, and the Subcontractor:

- (iii) is not relieved of its obligation to perform the Works (or any part of it);
- (iv) must continue to perform the Works (or any part of it) in accordance with this Subcontract; and
- (v) will not be entitled to recover from John Holland any loss or expense incurred by any Associate in complying with its obligations under this clause 28(i).

29. General

29.1 Governing law

- (a) This Subcontract is governed by and must be construed according to the laws in the jurisdiction stated in the Subcontract Details.
- (b) The parties irrevocably submit to the non-exclusive jurisdiction of the courts of the jurisdiction stated in the Subcontract Details.

29.2 Waiver

The parties acknowledge and agree that:

- (a) failure to exercise, or delay in exercising, a power or right under this Subcontract does not operate as a waiver of that power or right;
- (b) the exercise of a power or right does not preclude a party from exercising any such power or right in the future or the exercise of any other power or right;
- (c) a waiver is not effective unless it is in writing and signed by John Holland; and
- (d) a waiver of a power or right is effective only in respect of the specific instance to which it relates and for the specific purpose for which it is given.

29.3 Assignment and Subcontracting

- (a) The Subcontractor must not, without John Holland's prior written consent (such consent not to be unreasonably withheld or delayed):
 - (i) seek to novate this Subcontract; or
 - (ii) transfer or assign (in whole or in part) this Subcontract or any interest, benefit or right under this Subcontract.
- (b) The Subcontractor must not, without John Holland's prior written consent subcontract the whole of, or any part of, the Works.
- (c) Where the Subcontractor requests John Holland's consent under clause 29.3(a), the Subcontractor must provide John Holland with such information (including in relation to the proposed terms of assignment or transfer) as John Holland requires (acting reasonably) in relation to such request.
- (d) If John Holland gives its consent, such consent may be subject to such terms and conditions as John Holland considers appropriate (acting reasonably).
- (e) Any approval to subcontract given by John Holland will not relieve the Subcontractor of any obligation or liability under this Subcontract and the Subcontractor will be responsible to John Holland for the acts and omissions of the Subcontractor's Associates and be vicariously liable to John Holland for all acts, omissions and defaults of its Associates relating to or in any way connected with the Works.

29.4 Joint and several liability

Where a party to this Subcontract is comprised of more than one person:

- (a) the obligations of the party to this Subcontract are joint and several and each person constituting the party to this Subcontract acknowledges and agrees that it will be causally responsible for the acts and omissions (including breaches of this Subcontract) of the other(s) as if those acts or omissions were its own and the other party to this Subcontract may proceed against any one or all of them;
- (b) the rights of the party under this Subcontract (including the right to payment) jointly benefit each person constituting the party to this Subcontract (and not severally or jointly and severally);
- (c) any payment by the other party under this Subcontract to any account nominated in writing by the party to this Subcontract, or failing such nomination, to any one or more persons constituting the party to this Subcontract, will be deemed to be payment to all persons constituting the party to this Subcontract; and
- (d) the party to this Subcontract may not exercise any right under this Subcontract unless that right is exercised concurrently by all persons constituting the party to this Subcontract.

29.5 John Holland may Act

John Holland may, either itself or by a third party, perform any obligation under the Subcontract which the Subcontractor was obliged to perform but which it failed to perform within the time required in accordance with the Subcontract. The Loss suffered or incurred by John Holland in so performing such a Subcontract obligation will be a debt due from the Subcontractor to John Holland.

29.6 Survival

- (a) This clause 29.6 and clauses 0 (Definitions and Interpretation), 29.13 (Entire Agreement), 14.17 (Right of Set off), 15 (Intellectual Property Rights and Moral Rights), 17 (Confidentiality), 21.4 (Indemnity – Damage and Injury), 21.5 (Indemnity – Breach), 21.6 (Reduction of Indemnity), 21.7 (Proportionate Liability), 21.8 (Limitation of Liability), 21.9 (Consequential Loss), 22.3 (Termination by John Holland - Rights and obligations on termination), 23.2 (Termination by the Subcontractor - Rights and obligations on termination), 24.2 (Termination For Convenience or Head Contract Termination – Rights and obligations on termination), 24.3 (Deemed termination), 25 (Dispute Resolution), 29.1 (Governing law), 29.4 (Joint and several liability) and 29.7 (Indemnities to survive) and any other obligations which are expressed to or by their nature survive expiry or termination of this Subcontract or are necessary to give effect to the clauses referred to above, will survive the completion or termination of this Subcontract.
- (b) No clause of this Subcontract which is expressed to survive the completion, expiration or termination of this Subcontract will prevent any other provision of this Subcontract, as a matter of interpretation, also surviving the completion, expiration or termination of this Subcontract.

29.7 Indemnities to survive

- (a) Each indemnity given under this Subcontract is a continuing obligation, separate and independent from the other obligations of the parties and survives termination, completion or expiration of this Subcontract.
- (b) It is not necessary for John Holland to incur Loss or make any payment before enforcing a right of indemnity covered by this Subcontract.
- (c) The Subcontractor must pay on demand any amount it must pay under an indemnity in this Subcontract.
- (d) None of the warranties, indemnities nor any other provision of this Subcontract merge on completion of the Subcontract unless expressly set out in the Subcontract.

29.8 Amendment

This Subcontract may only be amended by the agreement of the parties in writing (but this clause does not limit John Holland's right to direct Variations under this Subcontract).

29.9 Severability

- (a) If part or all of a provision of this Subcontract is voidable or unenforceable, that provision (or part provision) will be severed and the rest of this Subcontract will remain in full force and effect.
- (b) Clause 29.9(a) does not apply where severing a provision in accordance with clause 29.9(a) would materially affect the nature or effect of the parties' obligations under this Subcontract.

29.10 Counterparts

This Subcontract may be executed in any number of counterparts. The counterparts together will form one instrument.

29.11 Further action

Each party must, at its own expense, do all things and execute all documents necessary to give full effect to this Subcontract and the transactions contemplated by it.

29.12 Costs

Each party is responsible for its own costs of the preparation, negotiation, completion and execution of this Subcontract.

29.13 Entire Agreement

This Subcontract constitutes the entire agreement and understanding between the parties in respect of its subject matter and supersedes all prior discussions, negotiations, understandings and agreements in respect of its subject matter and will have effect despite:

- (a) any prior agreement in conflict or at variance with the Subcontract; or
- (b) any correspondence or other documents relating to the subject matter of the Subcontract which may have passed between the parties prior to the execution of the Subcontract and which are not included in the Subcontract.

Schedule A – Special Conditions

To the extent Special Conditions are incorporated into this agreement, they will take precedence over any drafting in the General Conditions which may conflict or otherwise be inconsistent with these Special Conditions.

Special Condition 1 – Subcontract Details

The Subcontract Details are amended as follows:

Item 14 – Extension of Defects Liability Period; delete and insert:

Not Applicable.

Item 17(c) – Security; delete and insert:

Not Applicable.

Item 22 – Extension Event; insert:

Pandemic and/or Epidemic events declared by a local, state and/or federal authority, Quarantine Restrictions and Inclement Weather.

Item 25 – Extension of Time: Notification by John Holland; delete and insert:

(a) pursuant to clause 12.9(a), within 14 days after receipt of the Subcontractor's claim

(b) pursuant to clause 12.9(b), within 14 days after receipt, of the Subcontractor's claim

Item 26 – Acceleration; delete 0% and replace percentage with 15%.

Item 27 – Delay Costs; delete and insert:

Delay Costs are the Subcontractor's demonstrated actual costs, reasonably and necessarily incurred by reason of the delay using the Subcontractor's Schedule of Rates (provided in Schedule F). Evidence of such costs must be provided to the satisfaction of John Holland.

Item 30 – Unfixed goods and materials for which Payment Claims may be made; insert:

Unfixed Plants and Materials inclusive of Penstocks, Valves and Access Covers only.

Special Condition 2 – Definitions and Interpretation

The Definitions and Interpretations of the General Conditions of the Subcontract are amended by inserting the following new definitions:

Background IP means the intellectual property of a party developed prior to or independently of this Subcontract.

Claim means any claim whatsoever including for payment of money, damages, expenses or for an extension of time:

(a) under, arising out of, or in any way in connection with, this Subcontract, the Works of the Project;

(b) under, arising out of, or in any way in connection with either party's conduct prior to the date of this Subcontract; or

- (c) otherwise at law or in equity, including under or for breach of any statute, in tort for negligence or otherwise (including negligent misrepresentation), or for restitution (including restitution based on unjust enrichment).

Collateral means any plant, materials, equipment, tools or other incorporated into or to be incorporated into the Works.

Commissioning Completion Date means the date John Holland achieves commissioning completion for the Project under the Head Contract as stated in the applicable Commissioning Completion Certificate issued by the Principal to John Holland.

Constructional Plant means appliances and things used in the execution of the Works but not forming part of the permanent Works.

Defects Liability Period means the period or periods commencing on the Date of Completion and which continues for the period identified in the Subcontract Details.

Financing Change Statement has the meaning given to it in the PPSA.

Financing Statement has the meaning given to it in the PPSA.

Force Majeure means:

- (a) fire, lightning strike, explosion, earthquake, landslide or other natural disaster;
- (b) ionising radiation or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel;
- (c) riot, civil commotion, malicious damage, sabotage, war (whether declared or not), Act of Terrorism or revolution; or
- (d) order of a court, tribunal or Authority;

but only to the extent that the event or circumstance:

- (e) is not within the reasonable control of the affected party or a related body corporate;
- (f) is not reasonably able to be avoided, remedied or abated by the affected party by the exercise of reasonable diligence or effort; and
- (g) results in a party being unable to observe or perform an obligation under this Subcontract.

Latent Condition means any physical condition on or under the Site or in its surroundings (other than weather or the effects of weather), which differs materially from what should have been anticipated at the time of the Subcontractor's tender by an experienced and qualified Subcontractor who had:

- a) examined all information made available by or for John Holland to the Subcontractor; and
- b) carried out reasonably enquiries, to the extent practicable, having regard to access to the site and accessibility of relevant existing site conditions.

Loss includes any loss, damage, cost, expense fee or liability of any kind whether actual, currently ascertainable or arising under or in any way in connection with the Subcontract or arising at Law and any liability under an indemnity.

PPS Register means the Personal Property Securities Register established under section 147 of the PPSA.

PPSA means the Personal Property Securities Act 2009 (Cth)

Program means the Regional Treatment Plants Capital Works Program being undertaken by John Holland for the Principal.

Program Data means all drawings, specifications, reports, plans, flowcharts, procedures, data and other information or documents whether in written, printed, electronic or any other form, provided to the Subcontractor by John Holland or produced by or on behalf of the Subcontractor for or in the course of the Works, and includes the Subcontractor Documentation.

Records means records of the Subcontractor's tender and of the Works including but not limited to all documents referred to in the Subcontract (including the Scope of Works Description), design calculations, tender estimates, calculations and make ups, records as to progress of the Works, diary records of daily tasks, complete photographic records, quality system documents and record, manning and equipment records, results of the examination and testing of any work or materials, quality assurance records and reports, time records, all cost records relating in any way to delays, variations and day works, all consultants reports and opinions obtained by the Subcontractor in relation to the matters relevant to the Works and all necessary supporting documents invoices records and related financial statements whether in writing or stored on any other medium whatsoever.

Security Interest includes any mortgage, pledge, encumbrance, lien or charge or any security or preferential interest or arrangement of any kind. It includes:

- (a) anything which gives a creditor priority to other creditors with respect to any asset;
- (b) any assignment by way of security, hypothecation, option, lease, trust or assignment;
- (c) retention of title;
- (d) any 'security interest' under the PPSA; and

any agreement to create or give an arrangement to effect any of the above

Clause 1.2 (Interpretation) of the General Conditions of the Subcontract is amended by deleting (p)(v) and replacing it with:

(p)(v) the Subcontractor has no Claim against John Holland arising out of or in connection with this clause (q) (including any instruction or direction given by John Holland in accordance with clauses (p)(iii) and (p)(iv)), unless the Subcontractor can demonstrate the actual costs and a valid EOT claim at the time of the event, with evidence as requested by John Holland (acting reasonably).

Special Condition 3 – Subcontractor's Obligations

Clause 3.3 (Co-operation) of the General Conditions of the Subcontract is amended by deleting clause 3.3(c), and replacing it with:

(c) The Subcontractor is not entitled to any compensation or extension of time resulting from delay or disruption caused by an Other Contractor's works or services or a direction given by John Holland under clause 3.3(b)(ii), unless the Subcontractor can demonstrate the actual costs and a valid EOT claim at the time of the event, with evidence as requested by John Holland (acting reasonably).

Special Condition 4 – Security

Clause 4.5 (Parent Company Guarantee) of the General Conditions of the Subcontract is amended by deleting clause 4.5, and replacing it with:

Not Used.

Special Condition 5 – The Site

Clause 6.2 (Site Access) of the General Conditions of the Subcontract is amended by deleting the second paragraph and replacing it with:

Delay by John Holland in giving access to the Site in accordance with this clause 6.2 shall not be a breach of this Subcontract, but will entitle the Subcontractor to claim an extension of time in accordance with Clause 12 and, provided the Subcontractor can demonstrate the actual costs at the time of the event as well as the evidence as requested by John Holland (acting reasonably), costs.

Clause 6.3 (Site Obligations) of the General Conditions of the Subcontract is amended by inserting the following after 6.3(a)(iii)(C):

Despite 6.3(a), the Subcontractor may be entitled to costs, provided the Subcontractor can demonstrate the actual costs and a valid EOT claim at the time of the event, with evidence as requested by John Holland (acting reasonably).

Special Condition 6– Quality

Clause 11.7 (Extension of Defects Liability Period) of the General Conditions of the Subcontract is amended by deleting clause 11.7, and replacing it with:

Not Used.

Special Condition 7 – Time

Clause 12.6 (Notice of Delay) of the General Conditions of Subcontract is amended by deleting sub-clause (a) and replacing it with:

“(a) The Subcontractor must, within 7 days of the Subcontractor becoming aware, or when the Subcontractor ought reasonably to have become aware, of anything which will or is likely to delay the performance of the Works, give written notice to John Holland, providing details of the following (with as much detail as possible in the circumstances):

Clause 12.9 (Extension of Time) of the General Conditions of the Subcontract is amended by deleting clause 12.9(c) in its entirety.

Clause 12.10 (Unilateral Extensions) of the General Conditions of the Subcontract is amended by deleting clause 12(b) and replacing it with:

For the avoidance of doubt, the Subcontractor is entitled to claim demonstrated actual costs in compliance with this clause only to the extent the reason of such extension is not caused by the Subcontractor. Any claim must provide the evidence requested by John Holland (acting reasonably).

Clause 12.14 (Concurrent Delays) of the General Conditions of the Subcontract is amended by deleting clause 12.14 in its entirety.

Clause 12.15 (Delay Costs) of the General Conditions of the Subcontract is amending by deleting clause 12.15(a)(i), and replacing it with:

- (i) due to an event described in sub-clauses (a) or (b) of the definition of Extension Event (excluding Inclement Weather); and

Special Condition 8 – Variations

Clause 13.1 (Variation Orders) of the General Conditions of the Subcontract is amended by deleting the start of clause 13.1 and replacing it with:

John Holland may give to the Subcontractor a Variation Order pursuant to clauses 13.2, 13.3, 13.8 or 13.9 and the Subcontractor shall carry out the Variation the subject of the Variation Order only to the extent that both parties agree upon the valuation for the subject of the Variation Order before commencement.

The Subcontractor agrees that, subject to clause 13.3...

Clause 13.2 (Variation Price Request) of the General Conditions of the Subcontract is amended by deleting 13.2(a), and replacing it with:

(a) within 14 days of receipt of notice under clause 13.2(a), or such other period as reasonably agreed by John Holland, of the receipt of which the Subcontractor must provide John Holland with a Variation Quotation; and...

Special Condition 9 – Payment

Clause 14.1 (Basis for payment and sufficiency of Subcontract Sum) of the General Conditions of Subcontract is amended by deleting Clause 14.1(b)(ii), and replacing it with:

(b)(ii) If during the delivery of the Works there is a material change to the price of the project goods that could not have been reasonably avoided by a competent contractor, or where the delivery of material is delayed as a result of the shortage or unavailability of required materials, the Subcontractor may be entitled to a variation.

In order to claim escalation cost, the Subcontractor will provide sufficient substantiation to enable John Holland to assess the cost increases. The Subcontractor will provide the basis of the cost estimate at tender which will include quotations from its vendors, subcontractors, with comparison to the current quotations. Should the Subcontractor's subcontractor/vendor pricing increase, it is expected that the Subcontractor will obtain additional quotations for key materials and subcontractor quotations to ensure the best available market rates are obtained. John Holland will access the cost increases acting reasonably.

Clause 14.12 (Unfixed Goods and Materials) of the General Conditions of Subcontract is amended by deleting sub-clause 14.2(a)(ii)(A) and 14.12 (b).

Clause 14.16 (Statutory Declaration) of the General Conditions of Subcontract is amended by deleting 14.6 in its entirety and replacing it with:

The Subcontractor warrants it will not include in a Payment Claim amounts in respect of Sub-Subcontractors, workers or employees unless it has provided to John Holland:

- (d) a statutory declaration (together with any supporting evidence which may be required by John Holland (acting reasonably)) by the Subcontractor or, where the Subcontractor is a corporation, by a representative of the Subcontractor who is in a position to know the facts declared, that in connection with the Works up to the date of the declaration and for all periods prior to that date:
 - (A) as to whether the Subcontractor is a principal contractor, in that it has engaged Sub-Subcontractors to carry out some part of the Works on its behalf;

- (B) all workers who have at any time been employed by the Subcontractor have been paid all moneys due and payable to them;
 - (C) all Sub-Subcontractors have been paid all moneys due and payable to them;
 - (D) all payroll taxes due in respect of wages paid or payable to employees of the Subcontractor have been paid;
 - (E) all workers compensation premiums in respect of employees of the Subcontractor have been paid;
 - (ii) all Sub-Subcontractors have provided the Subcontractor with a statutory declaration in the same form as required by this clause; and
 - (iii) all contributions to any portable long service leave scheme has been paid; and
 - (h) documentary evidence that:
 - (i) at the date of the claim all workers who have been employed by a Sub-Subcontractor have been paid all moneys due and payable to them in respect of their employment on the Works;
 - (ii) it has current certificates of currency in respect of relevant workers compensation policies; and
 - (iii) that it is either exempt from or has a current registration for any payroll tax legislation; and
- any additional information, statements, certifications or evidentiary material in the form of a statutory declaration, as John Holland may require or consider is desirable (acting reasonably), to satisfy any Laws applicable to John Holland or the Works.

Clause 14.18(g) (Security of Payment Act) of the General Conditions of the Subcontract is amended by deleting clause 14.8(g) and replacing it with:

(g) The Subcontractor indemnifies John Holland against all Loss suffered or incurred by John Holland arising directly out of:

- (i) a suspension pursuant to...

Insert a new clause **14.18A** (Personal Property Security Act)

14.18A. Personal Property Securities Act

14.18A.1 Subcontractor obligations

For any Payment Claim in relation to any element of the Works which has:

- (a) been paid for by the Subcontractor prior to the submission of that Payment Claim, the Subcontractor must ensure that prior to submitting that Payment Claim no sub-subcontractor or any other person has a Security Interest in respect of any Collateral the subject of the Payment Claim, other than a Security Interest which will be extinguished upon payment to the Subcontractor; and
- (b) not been paid for by the Subcontractor, the Subcontractor must ensure that the Subcontractor pays the relevant sub-subcontractor or other person for those Works (including any Collateral) on or before the due date for payment and in accordance with the terms under which payments are to be made under the relevant agreement and, upon payment ensure that any Security Interest that the relevant sub-subcontractor or other person has in respect of those Works (including any Collateral) to which the relevant payment relates is extinguished.

14.18A.2 Registration

- (a) The Subcontractor must remove and ensure its sub-subcontractors remove any associated Security Interest from the PPS Register which they previously had upon request by John Holland.

- (b) The Subcontractor must not register, or permit to be registered by any third party, including a sub-subcontractor, a Financing Statement or a Financing Change Statement in respect of any Collateral without the prior consent of John Holland, which consent may be given or withheld at John Holland's absolute and sole discretion.

Special Condition 10 – Completion

Clause 16.6 (General Damages) of the General Conditions of the Subcontract is amended by deleting clause 16.6 (General Damages) in its entirety.

Special Condition 11 – Confidentiality

Clause 17 of the General Conditions of the Subcontract is amended by inserting a new sub-clause 17.3 after existing sub-clause 17.2:

17.3 Records

17.3.1 Inspection and audit

The Subcontractor must make and keep and must ensure all sub-subcontractors make and keep accurate Records.

John Holland and the Principal (or any person nominated by the Principal) may at any time audit, inspect or investigate any Records prepared or maintained by the Subcontractor or any of its sub-subcontractors in relation to the Works.

17.3.2 Holding of Program Data

- (a) The Subcontractor must not hold, or permit its sub-subcontractors to hold, any Program Data at any Location outside Australia without the prior written consent of John Holland.
- (b) If the Subcontractor wishes to obtain John Holland's consent to any Program Data being held at a Location outside Australia, the Subcontractor must provide John Holland with any information John Holland requires to enable the Principal to assess the risks to the Principal within 25 days of John Holland's request, including details of the Location at which the Program Data would be held.
- (c) Any consent given by John Holland under this clause 17A.2:
- (i) is specific to the Location and other details provided by the Subcontractor under clause 17A.2(b), and is not a general consent to Hold Program Data at a Location outside Australia; and
 - (ii) does not relieve the Subcontractor from any obligation or liability under this Subcontract.
- (d) Where required at any time:
- (i) in order to comply with any requirements of any regulatory obligations applicable to the Principal; or
 - (ii) as a result of any change in the security or political environment in the Location at which John Holland has consented to Program Data being held under this clause 17A.2 which in John Holland's reasonable opinion creates an unacceptable risk to the Principal,

John Holland may withdraw consent for any Program Data being held at a Location outside Australia by providing the Subcontractor with 60 days' notice in writing and require the Program Data to be held at a Location in Australia or an alternative Location as directed by John Holland. Upon receipt of that notice the Subcontractor must relocate the Program Data as directed in the notice.

- (e) Where in this clause 17A.2 the consent of John Holland is required, that consent may be given or withheld at John Holland's sole discretion and on such conditions as John Holland sees fit.

17.3.3 Publicity and Media

- (a) The Subcontractor must:
 - (i) refer all enquiries from the public and other third parties regarding this Subcontract or the Works to John Holland;
 - (ii) not make any statement or comment, or issue any information or document to the public or a third party (including media or customers) concerning this Subcontract, the Works, or any general policy matter; and
 - (iii) comply with any direction given by John Holland in relation to public relations, or any other matter the subject of this clause 17A.3.
- (b) The Subcontractor must ensure that all of its sub-subcontractors comply with the requirements of this clause 17A.3 and obtain John Holland's prior written consent (through the Subcontractor) before responding to enquiries or publishing anything of the type referred to in this clause 17A.3.

Special Condition 12 – WHS

Clause 18 (WHS) of the General Conditions of the Subcontract is amended by deleting clause sub-clause (a)(iii), and replacing it with:

“(a)(iii) at its cost comply with any reasonable Direction issued by John Holland to enable compliance with WHS and Industrial Relations laws”.

Special Condition 13 – Liability, Risk and Indemnities

Clause 21.7 (Proportionate Liability) of the General Conditions of the Subcontract is amended by deleting clause 21.7 in its entirety.

Clause 21.8 (Limitation on Liability) of the General Conditions of the Subcontract is amended by deleting sub-clause 21.8(b)(i).

Clause 21.9 (Consequential Loss) of the General Conditions of the Subcontract is amended by deleting sub-clause 21.9(d)(i), (vi) and (viii).

Special Condition 14 – Termination for Convenience or Head Contract Termination

Clause 24.2 (Rights and obligations following Head Contract Termination and Termination for Convenience) of the General Conditions of the Subcontract is amended by inserting the following after sub-clause 26.2(a)(iv)(E):

(F) John Holland shall promptly release all Security provided by the Subcontractor.

Special Condition 15 – Notification of Claims

Clause 26.1 of the General Conditions of the Subcontract is amended by inserting the following after 26.1(e):.

(f) For a Prescribed Notice given under clause 26.1, the assessment period must be within 14 days of receipt of notice.

Special Condition 16 – Liquidated Damages (NEW)

Special Condition 16 is inserted as follows:

If the Works under the Subcontract does not reach the Date for Completion, the Subcontractor shall certify, as due and payable to John Holland, liquidated damages of \$1,500 per day capped at 10% of the Subcontract Sum after the Date for Completion to and including the earliest of the Date for Completion or termination of the Subcontract or John Holland taking WUS out of the hands of the Subcontractor.

If an EOT is directed after the Subcontractor has paid or John Holland has set off liquidated damages, John Holland shall forthwith repay to the Subcontractor such of those liquidated damages as representative of the days, the subject of the EOT.

The parties agree that this rate is an agreed genuine pre-estimate of John Holland's loss and damage in the event that the Subcontractor fails to achieve the Date for Completion. John Holland agrees that liquidated damages should be John Holland's sole remedy for delay under the Subcontract.

Special Condition 17 – Excavation and Rock (NEW)

Special Condition 17 is inserted as follows:

Excavation and Rock

- (a) Encountering rock as required by the Works will be assessed by the John Holland representative and the Subcontractor jointly, on the immediate but reasonable notice given by the Subcontractor;
- (b) If rock is encountered, and the nominal production rate of the Subcontract cannot be achieved, the John Holland representative will agree on any extra or over rate taking into account any reasonable information provided by the Subcontractor;
- (c) If the agreement is made during daily Works activities, the agreement will be confirmed by John Holland, by providing written correspondence, within 24 hours of the Subcontractor giving notice;
- (d) Any extra or over rate will be treated as a Variation.

Special Condition 18 – Variation Uplift (NEW)

Special Condition 18 is inserted as follows:

1. The Subcontractor will be entitled to add a markup of 15% of invoiced actual costs, in the following circumstances:

- a) If the Subcontractor engages subcontractors or sub-consultants for additional works which are subject to a Variation Order; or
- b) If the Subcontractor engages a supplier for additional works (i.e. the supply of materials) which are subject to a Variation Order.

2. This markup will be applied to the actual costs, provided that the Subcontractor submits evidence to substantiate the actual costs to the satisfaction of John Holland (acting reasonably).
3. In addition to the 15% markup for subcontractors or suppliers engaged under a Variation Order, the Subcontractor may also charge its direct job overhead costs directly attributable to the additional works. Direct job overhead costs will be charged in accordance with the Subcontractor's schedule of rates identified in Schedule F.
4. All other variations costs will be subject to the schedule of rates identified in Schedule F.

Schedule B – Form of Unconditional Undertaking

Approved Form Of Unconditional Undertaking

At the request of [insert Subcontractor's name and ABN] ("the Subcontractor") and in consideration of [insert John Holland entity and ABN] ("John Holland") accepting this undertaking in respect of the contract for [insert identification of work], [insert name of Financial Institution] ("the Financial Institution") irrevocably and unconditionally undertakes to pay to John Holland immediately when a demand is made to the Financial Institution, without proof of any breach or any other conditions and notwithstanding any contest or dispute by the Subcontractor, any sum or sums which may from time to time be demanded by John Holland up to a maximum aggregate sum of \$ [insert \$ and amount in words].

Any demand for payment by the Financial Institution is to be made in writing, is to be purported to be signed by or for and on behalf of John Holland and will state the amount that John Holland desires payment to be made by the Financial Institution.

At no time will the Financial Institution have any reference to the Subcontractor, inform the Subcontractor of the demand and will make payment notwithstanding any notice given by the Subcontractor not to pay same.

The undertaking is to continue until notification has been received from John Holland that the sum is no longer required by John Holland or until this undertaking is returned to the Financial Institution or until payment to John Holland by the Financial Institution of the whole of the sum or such part as John Holland may require.

Provided always that the Financial Institution may at any time without being required so to do pay to John Holland the sum of \$ [insert \$ and amount in words] less any amount or amounts it may previously have paid under this undertaking or such lesser sum as may be required and specified by John Holland and thereupon the liability of the Financial Institution hereunder shall immediately cease.

Dated at [insert place] **this** [insert date]

Schedule C – Deed of Guarantee & Indemnity

THIS DEED is made on the [insert] of [insert] 20[insert].

BETWEEN [insert John Holland entity name and ABN] ("John Holland")

AND [insert Parent Company name and ABN] ("Guarantor")

AND [insert Subcontractor name and ABN] ("Subcontractor")

RECITALS:

- A. By the contract [insert short description of subcontract and date] ("Subcontract") the Subcontractor agreed to carry out the work described in the Subcontract ("Works").
- B. John Holland required the Subcontractor to provide this Deed to John Holland as a condition of entering into the Subcontract.

OPERATIVE:

1. Guarantee

- 1.1 The Guarantor unconditionally and irrevocably guarantees to the John Holland that the Subcontractor will perform and observe all of the Subcontractor's obligations under the Subcontract and will discharge all of its liabilities under the Subcontract.
- 1.2 In the event of default by the Subcontractor, the Guarantor covenants with John Holland to perform and observe all of the Subcontractor's obligations under the Subcontract and to discharge all of the Subcontractor's liabilities under the Subcontract or to cause those obligations to be performed and observed or liabilities to be discharged.

2. Indemnity

The Guarantor, as a separate, additional and primary liability, unconditionally and irrevocably will indemnify and keep indemnified John Holland from and against all losses, damages, costs and expenses of any kind which may be suffered or incurred by John Holland by reason or in consequence of:

- 2.1 default by the Subcontractor in performing or observing its obligations or discharging its liabilities under the Subcontract;
- 2.2 John Holland attempting to enforce any of the Subcontractor's obligations under the Subcontract; or
- 2.3 John Holland attempting to enforce or preserve any of its rights under this Deed.

3. Absolute Liability

The liability of the Guarantor under this Deed will be absolute and will not be subject to the execution of this Deed or any other instrument or document by any person other than the Guarantor, and will not be subject to the performance of any condition precedent or subsequent.

4. No Reduction or Release

- 4.1 The liability of the Guarantor under this Deed will not be affected by any act, omission, matter or thing that would otherwise operate in law or in equity to reduce or release the Guarantor from that liability.
- 4.2 Without limitation, that liability will not be affected by:
 - (a) the granting by John Holland to the Subcontractor of time, waiver, indulgence or concession or the making of any composition or compromise with the Subcontractor;
 - (b) John Holland forbearing to enforce or neglecting to exercise any right against the Subcontractor;
 - (c) any laches, acquiescence or other act, neglect, default, omission or mistake by John Holland;

- (d) any variation of any of the obligations and liabilities under the Subcontract, made either with or without the knowledge of the Guarantor;
- (e) the release of any of the obligations and liabilities under the Subcontract; or
- (f) any failure by John Holland to disclose to the Guarantor any fact, circumstance or event relating to the Subcontractor at any time prior to or during the currency of this Deed.

5. Payments Without Deduction

All payments by the Guarantor under this Deed are to be free of any set-off or counterclaim and without deduction or withholding.

6. Insolvency of Subcontractor

The Guarantor will not prove in the insolvency of the Subcontractor for any amount owing by the Subcontractor other than upon the basis that it irrevocably directs the payment of the proceeds of any such proof to John Holland to the full extent of the amount then required to satisfy the obligations and liabilities under the Subcontract.

7. Claim on the Guarantor

John Holland will not be required to make any claim or demand upon the Subcontractor or to enforce any right, power or remedy against the Subcontractor in respect of its obligations and liabilities under the Subcontract before making any claim or demand on the Guarantor under this Deed.

8. Severability

Any provision of this Deed which is illegal, void or unenforceable will be ineffective to the extent only of the illegality, voidness or unenforceability without invalidating the remaining provisions of this Deed.

9. Settlement Conditional

- 9.1 Any settlement between the Guarantor and John Holland will be conditional upon any security or payment given or made to John Holland by the Subcontractor, the Guarantor or any other person in relation to the obligations and liabilities under the Subcontract not being avoided, repaid or reduced by virtue of any provision or enactment relating to bankruptcy, insolvency or liquidation for the time being in force.
- 9.2 In the event of any avoidance, repayment or reduction, John Holland may recover the value or amount of the security or payment avoided, repaid or reduced from the Guarantor subsequently, as if the settlement or discharge had not occurred.

10. Governing Law

This Deed is to be governed by and construed in accordance with the laws of the State or Territory which governs the Subcontract.

Signed as a deed.

The Common Seal of [insert name of Parent
Company and ABN])
was affixed by the authority of a resolution of the)
Board of Directors in the presence of)
a Director and the Secretary)
who certify that they are the proper officers to affix)
the Seal and in the presence of:)
)

.....
(Signature of Secretary/Director)

.....
(Signature of Director)

.....
(Name of Secretary/Director in Full)

.....
(Name of Director in Full)

Schedule D – Final Account and Release**To:** [Insert JHG Entity named in the Subcontract Document] ("John Holland")**From:** [Insert Subcontractor name and ABN in the Subcontract Document] ("Subcontractor")**Project:** [insert]**Subcontract Number/Reference:** [insert]**Now It Is Hereby Agreed** as follows:

(a) Reconciliation of Account:

Original Subcontract Sum \$.....

Variations to the Subcontract Sum \$.....

Adjusted Final Subcontract Sum \$.....

Less Previous Payments

(including any Statutory Tax Deductions) <\$.....>

Balance Owning \$.....

(b) Security:

Value of Bank Guarantees/Bonds held: \$.....

(c) The Subcontractor agrees that [Insert details of relevant Bank Guarantees/Bonds] (in words) (\$[insert]) representing 50% of the Security as described in the Subcontract Details is due for release upon Completion of the project, provided that all Defects have been rectified to the satisfaction of John Holland.

(d) The Subcontractor agrees that [Insert details of relevant Bank Guarantees/Bonds] (in words) (\$[insert]) representing the balance of the Security as described in the Subcontract Details is due for release upon the later of:

(i) subject to clause 4.3 of the Subcontract, the expiry of the Defects Liability Period (as extended in accordance with the Subcontract) or if there are Stages, the expiry of the last Defects Liability Period (as extended in accordance with the Subcontract);

(ii) and

(iii) the Subcontractor providing John Holland with this document.

(e) The Subcontractor hereby:

(i) acknowledges [insert] dollars (in words) (\$[insert]) (being the Balance Owning) as being the final payment due to the Subcontractor in full and final settlement of all claims of any nature, whether past, present or future, arising in any way out of the Subcontract;

(ii) to the extent permitted by law, releases and holds harmless John Holland from all claims (other than defences) of any nature whatsoever arising out of, or in any way associated with, the Subcontract;

(iii) indemnifies and agrees to keep indemnified John Holland from and against all claims (other than defences) of any nature whatsoever arising out of, or in any way associated with, the

Subcontract brought by or on behalf of the Subcontractor in breach or disregard of the release in sub-paragraph (ii);

- (iv) confirms that all wages and allowances due and payable to any and all employees of the Subcontractor who were at any time engaged by the Subcontractor on the works under the Subcontract have been paid in full;
- (v) confirms that all its statutory requirements, including but not limited to superannuation, long service leave provisions, public liability and workers compensation insurance premiums, payroll tax and tax remittance requirements, have been paid in full;
- (vi) declares that it has provided to John Holland all warranties, guarantees, operating manuals, maintenance manuals, as-built drawings, quality assurance documentation and other documentation required under the Subcontract or as reasonably required by John Holland; and
- (vii) if required by John Holland it will furnish a statutory declaration at any reasonable time hereafter in the form required by clause 14.16 of the Subcontract notwithstanding the signing of this agreement.

Signed as a duly authorised Representative of the Subcontractor:

(Signature)

(Print Name)

(Position)

(Date)

Schedule E – Form of Statutory Declaration

If the Site is situated in NSW, then the following declaration must also be provided:

Statutory Declaration

(Oaths Act (NSW) Eighth Schedule)

REGARDING WORKER'S COMPENSATION, PAYROLL TAX AND REMUNERATION (Note 1 – see back of form)

For the purposes of this Statement a "subcontractor" is a person (or other legal entity) that has entered into a contract with a "principal contractor" to carry out work.

This Statement must be signed by a "subcontractor" (or by a person who is authorised, or held out as being authorised, to sign the statement by the subcontractor) referred to in any of s175B *Workers Compensation Act 1987*, Schedule 2 Part 5 *Payroll Tax Act 2007*, and s127 *Industrial Relations Act 1996* where the "subcontractor" has employed or engaged workers or subcontractors during the period of the contract to which the form applies under the relevant Act(s). The signed Statement is to be submitted to the relevant principal contractor.

SUBCONTRACTOR'S STATEMENT (Refer to the back of this form for Notes, period of Statement retention, and Offences under various Acts).

Subcontractor: ABN:

(Business Name)

of

(Address of Subcontractor)

has entered into a contract with ABN:

(Business Name of Principal Contractor)

(Note 2)

Contract number/identifier

(Note 3)

This Statement applies for work between:/...../..... and/...../..... inclusive

(Note 4)

subject of the payment claim dated:/...../.....

(Note 5)

I, a Director or a person authorised by the Subcontractor on whose behalf this declaration is made, hereby declare that I am in a position to know the truth of the matters which are contained in this Subcontractor's Statement and declare the following to the best of my knowledge and belief:

- a) The abovementioned Subcontractor has either employed or engaged workers or subcontractors during the above period of this contract. Tick ☐ if true and comply with and complete (b) to (e) below, as applicable. If it is not the case that workers or subcontractors are involved or you are an exempt employer

for workers compensation purposes tick [] and only complete **the signature box** below. You must tick one box.

(Note 6)

- b) All workers compensation insurance premiums payable by the Subcontractor in respect of the work done under the contract have been paid. The Certificate of Currency for that insurance is attached and is dated/...../..... (Note 7)
- c) All remuneration payable to relevant employees for work under the Subcontract for the above period has been paid. (Note 8)
- d) Where the Subcontractor is required to be registered as an employer under the Payroll Tax Act 2007, the Subcontractor has paid all payroll tax due in respect of employees who performed work under the contract, as required at the date of this Subcontractor's Statement. (Note 9)
- e) Where the Subcontractor is also a principal contractor in connection with the work, the Subcontractor has in its capacity of principal contractor been given a written Subcontractor's Statement by its subcontractor(s) in connection with that work for the period state above. (Note 10)

AND I MAKE this solemn declaration conscientiously believing the same to be true and by virtue of the provisions of the *Oaths Act 1900*.

SUBSCRIBED and DECLARED at)
this day of)
before me:)

Signature

Name and Position

A Justice of the Peace/Solicitor (Note 3)

VERIFICATION:

* please cross out any text that does not apply:

I, a

[name of authorised witness]

[qualification of authorised witness]

certify the following matters concerning the making of this * statutory declaration/affidavit by the person who made it:

1. * I saw the face of the person OR * I did not see the face of the person because the person was wearing a face covering, but I am satisfied that the person had a special justification for not removing the covering.
2. * I have known the person for at least 12 months OR * I have not known the person for at least 12 months, but I have confirmed the person's identify using an identification document and the document I relied on was

[describe identification document relied on]

[signature of authorised witness]

[date]

NOTE: Where required above, this Statement must be accompanied by the relevant Certificate of Currency to comply with section 175B of the Workers Compensation Act 1987.

Notes

1. This form is prepared for the purpose of section 175B of the *Workers Compensation Act 1987*, Schedule 2 Part 5 *Payroll Tax Act 2007* and section 127 of the *Industrial Relations Act 1996*. If this form is completed in accordance with these provisions, a principal contractor is relieved of liability for workers compensation premiums, payroll tax and remuneration payable by the subcontractor.

A principal contractor can be generally defined to include any person who has entered into a contract for the carrying out of work by another person (or other legal entity called **the subcontractor**) and where employees of the subcontractor are engaged in carrying out the work which is in connection with the principal contractor's business.

2. For the purpose of this Subcontractor's Statement, a principal contractor is a person (or other legal entity), who has entered into a contract with another person (or other legal entity) referred to as the subcontractor, and employees/workers of that subcontractor will perform the work under contract. The work must be connected to the business undertaking of the principal contractor.
3. Provide the unique contract number, title, or other information that identifies the contract.
4. In order to meet the requirements of s127 *Industrial Relations Act 1996*, a statement in relation to remuneration must state the period to which the statement relates. For sequential Statements ensure that the dates provide continuous coverage.

Section 127(6) of the *Industrial Relations Act 1996* defines remuneration as '*remuneration or other amounts payable to relevant employees by legislation, or under an industrial instrument, in connection with work done by the employees*'.

Section 127(11) of the *Industrial Relations Act 1996* states '*to avoid doubt, this section extends to a principal contractor who is the owner or occupier of a building for the carrying out of work in connection with the building so long as the building is owned or occupied by the principal contractor in connection with a business undertaking of the principal contractor*'.

5. Provide the date of the most recent payment claim.
6. For Workers Compensation purposes an exempt employer is an employer who pays less than \$7,500 annually, who does not employ an apprentice or trainee and is not a member of a group.
7. In completing the Subcontractor's Statement, a subcontractor declares that workers compensation insurance premiums payable up to and including the date(s) on the Statement have been paid, and all premiums owing during the term of the contract will be paid.
8. In completing the Subcontractor's Statement, a subcontractor declares that all remuneration payable to relevant employees for work under the contract has been paid.
9. In completing the Subcontractor's Statement, a subcontractor declares that all payroll tax payable relating to the work undertaken has been paid.
10. It is important to note that a business could be both a subcontractor and a principal contractor, if a business 'in turn' engages subcontractors to carry out the work. If your business engages a subcontractor you are to also obtain Subcontractor's Statements from your subcontractors.

Statement Retention

The principal contractor receiving a Subcontractor's Statement must keep a copy of the Statement for the periods stated in respective legislation. This is currently up to seven years.

Offences in Respect of a False Statement

In terms of s127(8) of the *Industrial Relations Act 1996*, a person who gives the principal contractor a written statement knowing it to be false is guilty of an offence if:

- (a) the person is the subcontractor;
- (b) the person is authorised by the subcontractor to give the statement on behalf of the subcontractor; or
- (c) the person holds out or represents that the person is authorised by the subcontractor to give the statement on behalf of the subcontractor.

In terms of s175B of the *Workers Compensation Act* and clause 18 of Schedule 2 of the *Payroll Tax Act 2007* a person who gives the principal contractor a written statement knowing it to be false is guilty of an offence.

Further Information

For more information, visit the SafeWork NSW website www.safework.nsw.gov.au, Revenue NSW website www.revenue.nsw.gov.au, or Office of Industrial Relations, Department of Commerce website www.commerce.nsw.gov.au. Copies of the *Workers Compensation Act 1987*, the *Payroll Tax Act 2007* and the *Industrial Relations Act 1996* can be found at www.legislation.nsw.gov.au.

Schedule F – Scope of Works

1. Scope of Works

1. Introduction

1.1. Background

SP322 is the largest sewage pumping station in the Bundamba wastewater transportation system, and discharges to the Bundamba Sewage Treatment Plant (STP) by way of a OD648 mm cement mortar lined steel main (MSCL). The pump station receives flow from the Bundamba Trunk Sewer (BTS), which extends from the Ripley Valley catchment to SP322. Approximately half the flow in the SP322 catchment comes from the Lobley Street Pump Station (SP331), which serves the Deebing Creek area.

An essential pump station capacity upgrade is required at SP322 due to catchment growth leading to higher inflows. This coupled with safety, performance, and reliability issues at SP322 have led to repeated dry and wet weather sewage overflows. A pump station upgrade was proposed in the 2018 Minor Capital Project Submission (MCPS) and has been confirmed as a no-regrets investment under the 2023 Ripley-Bundamba Integrated Catchment Plan (ICP). The pump station upgrade will address the safety, performance, and reliability issues and will ensure licenced wet weather capacity is not exceeded in 2025.

1.2. Location of Project

Existing Pump Station, Hanlon St, Bundamba.



Figure 1 - Existing Pump Station Aerial View



Figure 2 - Existing Pump Station - Front



Figure 3 - Existing Pump Station - Rear

1.3. Pipelines From Site

Four (4) pipelines are associated with the site, from top to bottom on following figure.

- Future DN700 Pipe
 - This new line is planned for 2033, Valve for future tie-in to be allowed for.
- Disused DN 450 AC RM
 - This line is currently only used for emergency flow but is able to be used during construction of downstream tie-in.
- Existing OD 648 MSCL (RM 322)
 - This line is in use to pump from Hanlon St SPS to Bundamba STP.
 - Tie-in to this line from new wet well.
- Existing DN700 MSCL (RM 351)
 - This line transits through site from the Tantivy St SPS.
 - Tie-in from this line into new grit chamber and from PS outlet.

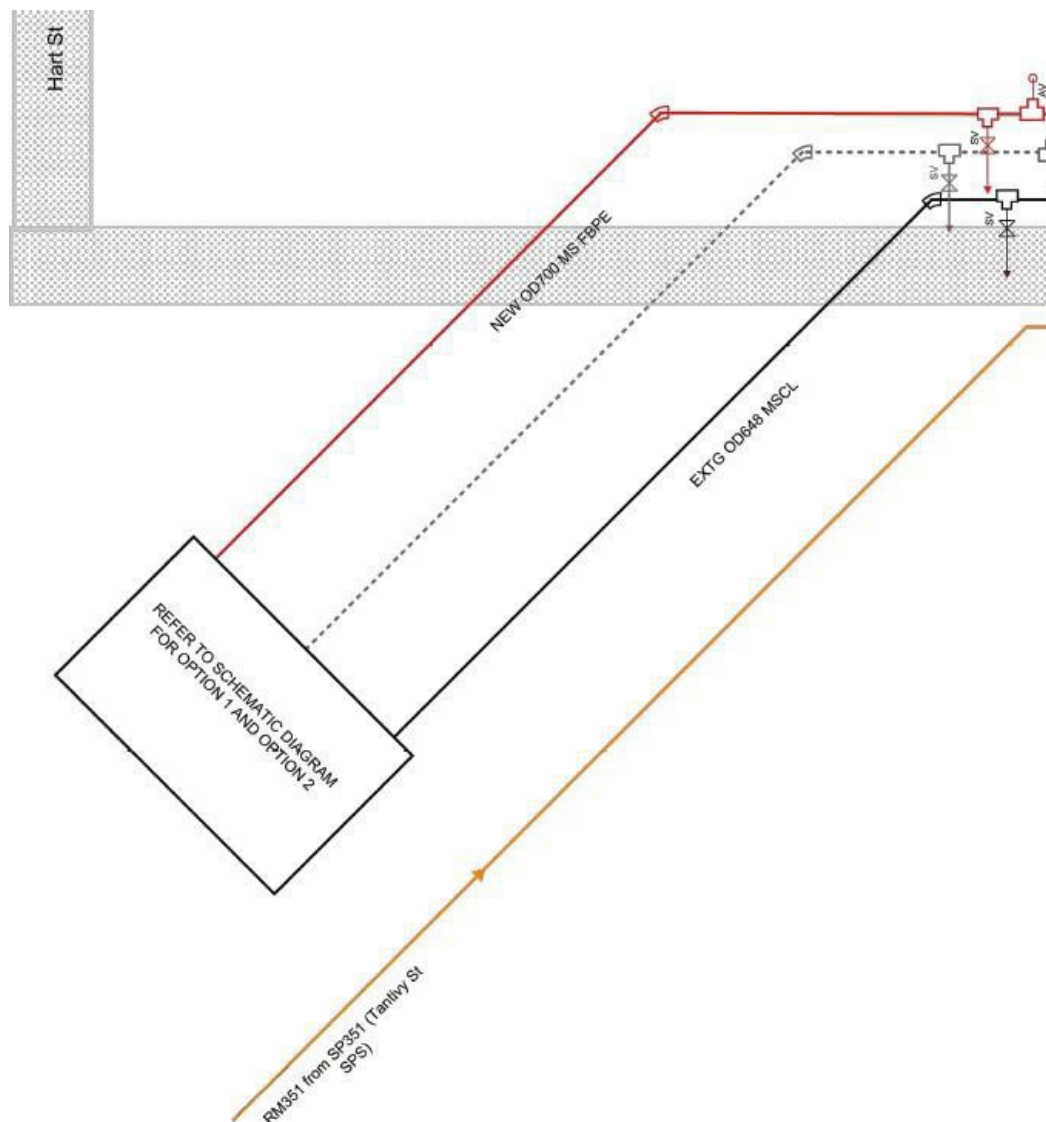


Figure 4 - Pipelines Associated with Pump Station

1.4. Mitigation of Key Risks

The following mitigation steps are to be considered

- Earthworks and civil construction to be undertaken in dry season to the greatest extent practical.
- Construction plan will be developed to ensure continuous unimpeded access to the existing pump station is maintained including considerations for laydown areas, vehicle and equipment parking, crane access, etc. for operation and maintenance activities.

1.5. Free Issue Materials and Services

1.5.1. Free Issue Materials

The following materials will be supplied free issue by John Holland

- Pumps, duckfoot bends, guiderails, guide bars, Intermediate guide rail brackets, and preroclean basins
- Surge Pressure Vessel

1.5.2. Scope Exclusions

John Holland shall free issue the following materials and services to the Subcontractor.

- Delivery of free issue materials, as per 1.5, to site laydown (to be unloaded by subcontractor).
- Survey – Easement setout
- Geotechnical investigation.
- Supply of construction water.
- Demolition of existing pump station building
- Removal of redundant structures from site

1.5.3. Initial Survey Setout and Control

John Holland shall provide the following:

- Provision of all design information in electronic format
- Provision of Survey Control data
- Easement Setout

1.5.4. Community Consultation

John Holland will, through Urban Utilities community engagement team, manage the community and stakeholder engagement for the project. The community and landowners shall be notified of upcoming works including changed traffic conditions, truck movements, noise, vibration, and dust.

Advance notification of 3 weeks will be required for all activities foreseen to impact on stakeholders including but not limited to any:

- Tree removal
- Driveway crossings
- Service outages e.g. water, sewerage
- Altered traffic (traffic management) and access impacts to properties and businesses.
- Noise and vibration
- Dust impacts
- Fencing and barriers

- Pedestrian and cyclist access

1.5.5. Test Run for DN450 Outlet Line

John Holland will conduct a test run of the DN450 outlet line to ensure suitability for the bypass operation prior to the subcontractor commencing works in the downstream outlet pit area.

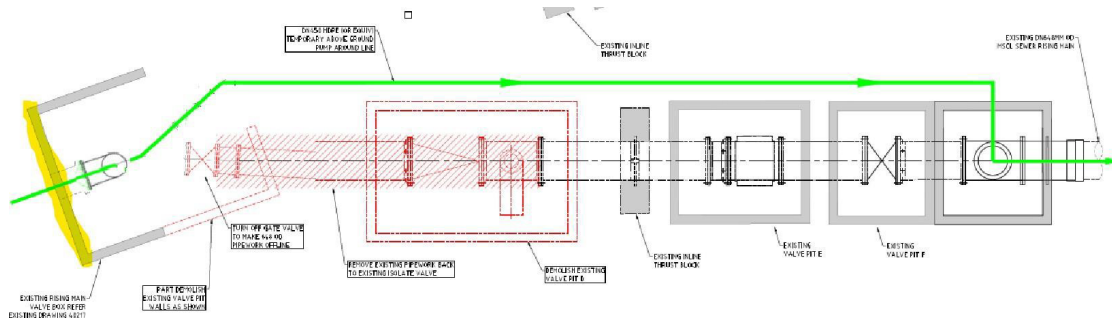


Figure 6 – Tie-in point for temporary bypass operation

John Holland will confirm the following assumptions for the proposed alternative tie-in methodology:

- The wall (highlighted in yellow) will be able to handle the thrust load during the entirety of the bypass period.
- The proposed tie-in point for the jump over line and the edge of the new outlet pipework pit is at least 1m apart to enable installation of the external formwork.
- An additional shutdown will be arranged by John Holland to allow for this proposed methodology.

The current design and methodology are heavily dependent on the above assumptions and condition of the existing DN450 line therefore if any of the above assumption(s) is invalid, it would require redesign and reassessment of the tie-in methodology. Any time and cost impact will be passed on to John Holland.

1.5.6. Site Facilities

John Holland will provide an established site compound approximately 100m to the North of the Site, 11 Hart St Bundamba, in accordance with the following. This layout may be amended by agreement between the Subcontractor and John Holland.

- Approximate area 30m x 20m
- Include facilities as per the below diagram



Figure 7 – Office Compound Area

Outside of the above, the Subcontractor is to be self-contained. Land will be available at the property to the north of the Site for laydown of material at 59 Hanlon St, Bundamba

1.5.7. Supply of Potable Water

A potable water connection will be provided at the site compound for the toilet block and lunchroom. Existing potable water connection on site may be used for construction works.

1.5.8. Site Power

John Holland will provide a property pole and mains power connection to the property pole for the site shed connection. 2 Off GPO's are available for use on the construction site and are located inside the existing pump station.

1.5.9. Traffic Control

The Subcontractor will supply road crossing and site access supervision (by the subcontractor's internal personnel only) for controlled heavy plant (deliveries, spoil and plant movement between Site and offsite Access Area 2). Given the low traffic volume, it is not expected any TGS or third-party traffic management/controllers will be required. John Holland will provide appropriate signage, third party traffic controller(s) for all other vehicle movement if required.

1.5.10. Water Monitoring

John Holland will manage water monitoring, testing and permit to discharge.

1.5.11. Grit Chamber Temporary Works Design

John Holland through Bonacci Infrastructure will provide the IFC Temporary Works Design for the construction of the in-ground sunken caisson Pump Station.

1.5.12. Flow Management and Tankering

John Holland and the Principal will manage all flow control and tankering except as explicitly noted in the Subcontractors scope below. Allowance for 10 tankers per day for 2 days has been included item 4.3.7

1.5.13. Platform Extension

John Holland will provide the complete design and structural construction of the platform extension required to house a new 1000 kVa transformer.

1.5.14. Demolition of Existing Pump Station

John Holland will provide the demolition existing pump station and the removal of redundant structures from site

1.5.15. Odour Control Unit

John Holland shall supply and install the following on the site.

- 1 x ZC8000 PE100 Single Filter Vessel with all media.
- 1 x ZC8000 AL6067 Single Platform with staircase.
- Vent pole footing
- Underground pipework run from PS to slab

1.6. Scope Inclusions

All other materials, plant and equipment required to complete works, not mentioned in 1.5, is to be allowed for by subcontractor.

- Initial Mobilisation of all materials (excluding free issued), crew, plant and equipment.
- Unloading of free issued materials from delivery truck
- Erosion and sediment control.
- Service Locating as required.
- Vegetation clearing.
- Valve and Penstock Supply
- Flowmeter supply
- Pipe supply
- Slit trenching along all excavations.
- Temporary works design required for shoring and scaffolding
- Conduit material (Solid heavy duty, sandwich construction not allowed)
- Safety perimeter fencing.
- Concrete and reinforcement.
- Redundant materials removed to 1000mm below surface level and anything removed to facilitate installation to be stockpiled on site.
- Final Demobilisation.

1.7. Tie-in Shutdowns

Two tie-in shutdowns will be required for the upstream tie-in

1.7.1. Tie-in Methodology (Upstream)

Tie-in methodology for upstream of pump station

- Install MH02 and downstream connect to pump station.
- Install MH01 over the existing pipe and seal around pipes
- Tie-in P1-1 from MH02 to MH01
- Install overflow pipework up to the point where it can be without affecting operation of current overflow.
- Plug existing overflow connection at manhole, replace headwall and existing line.
- Shutdown upstream, cutout pipe sections in manhole
- Once decommission of existing PS complete, abandon downstream infrastructure.

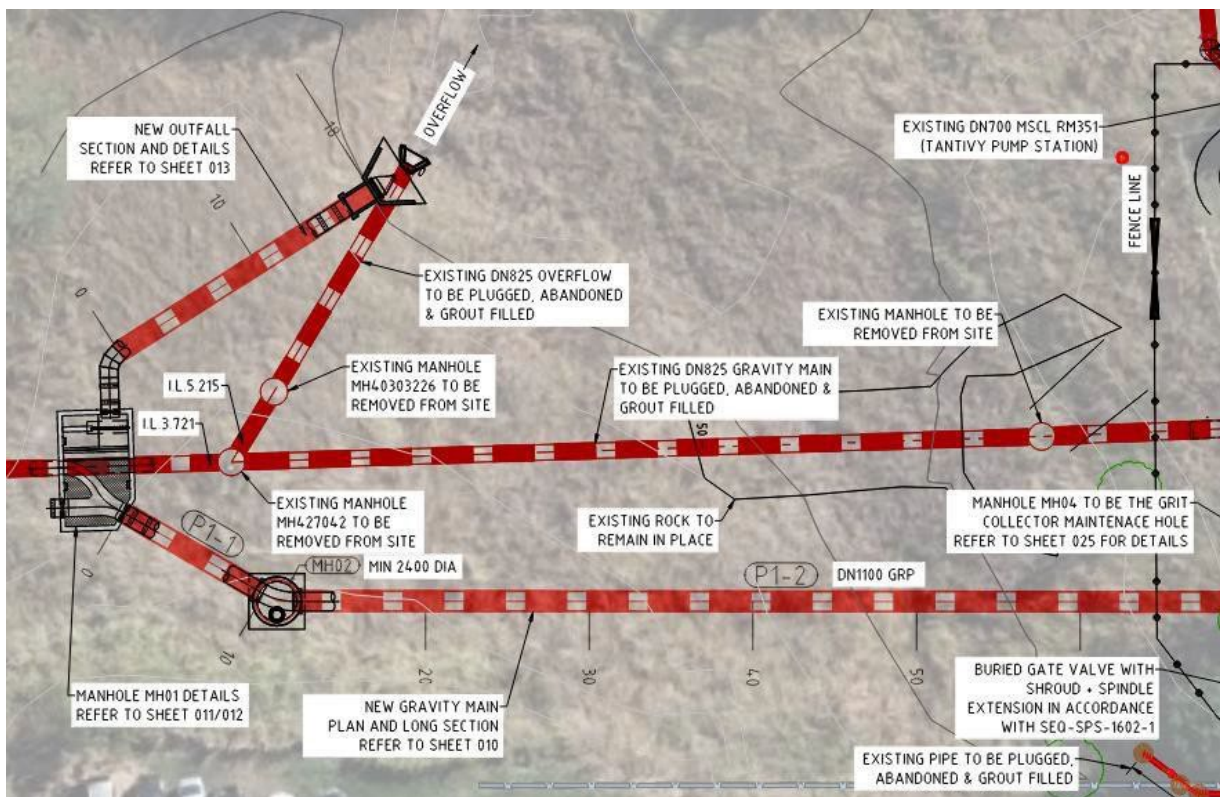


Figure 8 - Tie-in Methodology - Upstream

1.7.2. Tie-in Methodology (Downstream)

Tie-in methodology for downstream of pump station

Stage 1:

- Divert flow from DN600 to DN450 line
- Replace flowmeter and valve on DN600 line.
- Construct a new pit and install tee in the pipeline to allow temporary jump over

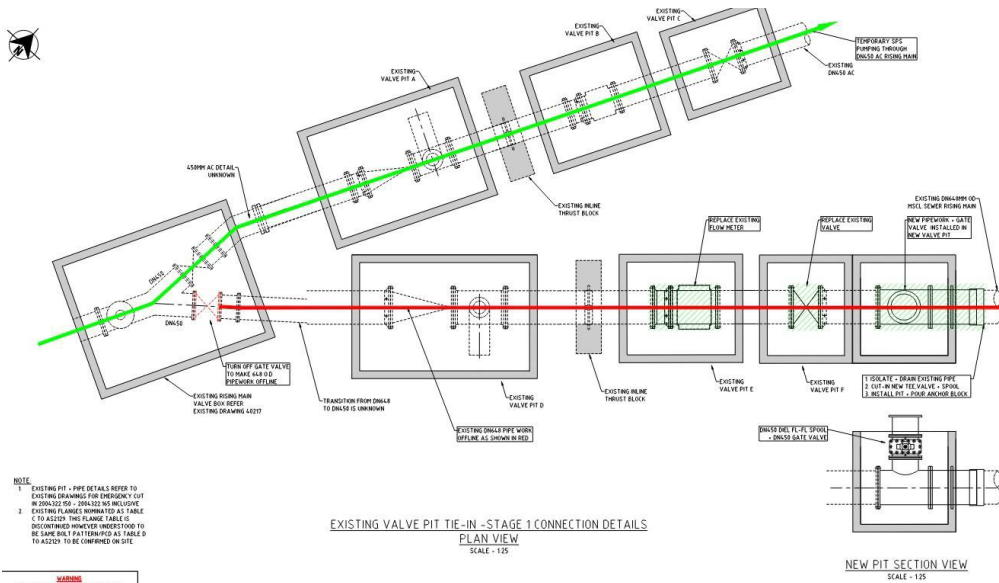


Figure 9: Stage 1 Tie-in

Stage 2:

- Divert flow from DN450 to DN600 line
- Replace existing flowmeter and valve
- Demolish Valve Pit A and remove redundant pipework
- Partly demolish Junction Valve Pit and install 90 degree bend up from valve to allow for temporary jump over

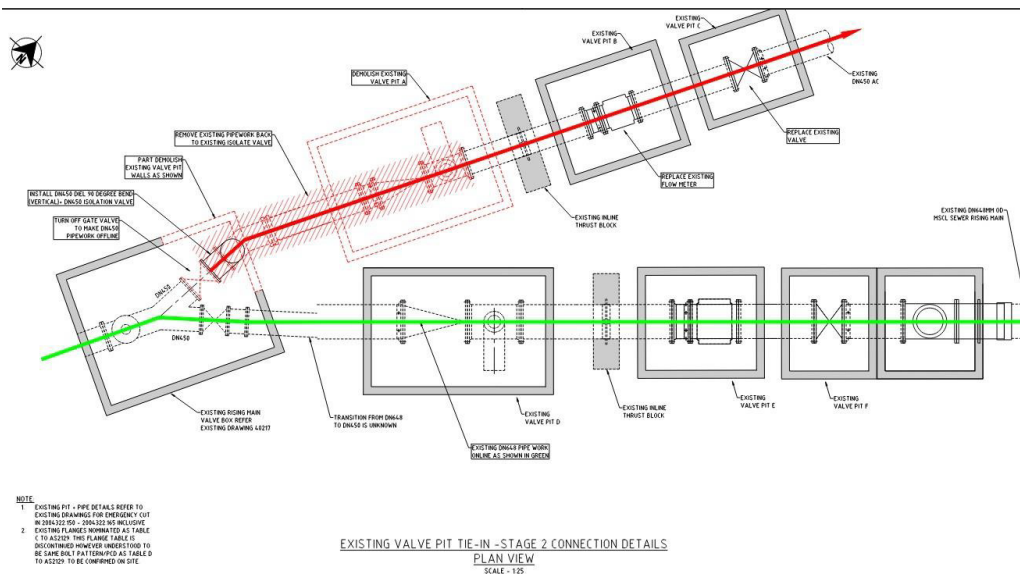


Figure 10: Stage 2 Tie-in

Stage 3

The subcontractor has allowed for an alternative methodology/staging for the Outlet Pipework Tie-ins and installation of the jump over line. John Holland has agreed that the proposed methodology will be more cost-efficient as this will allow the construction of Item 3.6.6.1 – New Valve Pit in a single stage rather than in 2 stages (Stage 5 & 6) as per Drawing 2207-054-A and 2207-055-A provided

- Install DN450 jump over spool to connect the DN450 outlet to the DN600. Alternative tie-in point is shown below
- Close isolation valve in Valve Pit F and divert flow to DN600 line via jump over spool
- Demolish Valve Pit D and remove redundant pipework

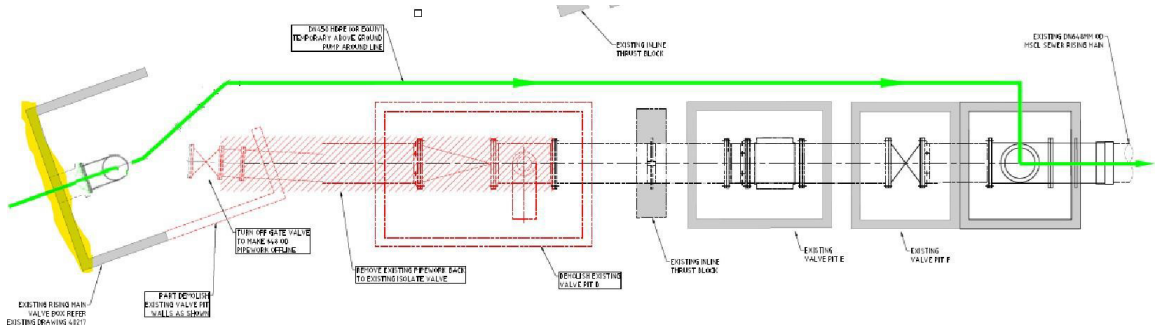


Figure 11: Stage 3 Tie-in

Stage 4:

- Install new valve pit pipework

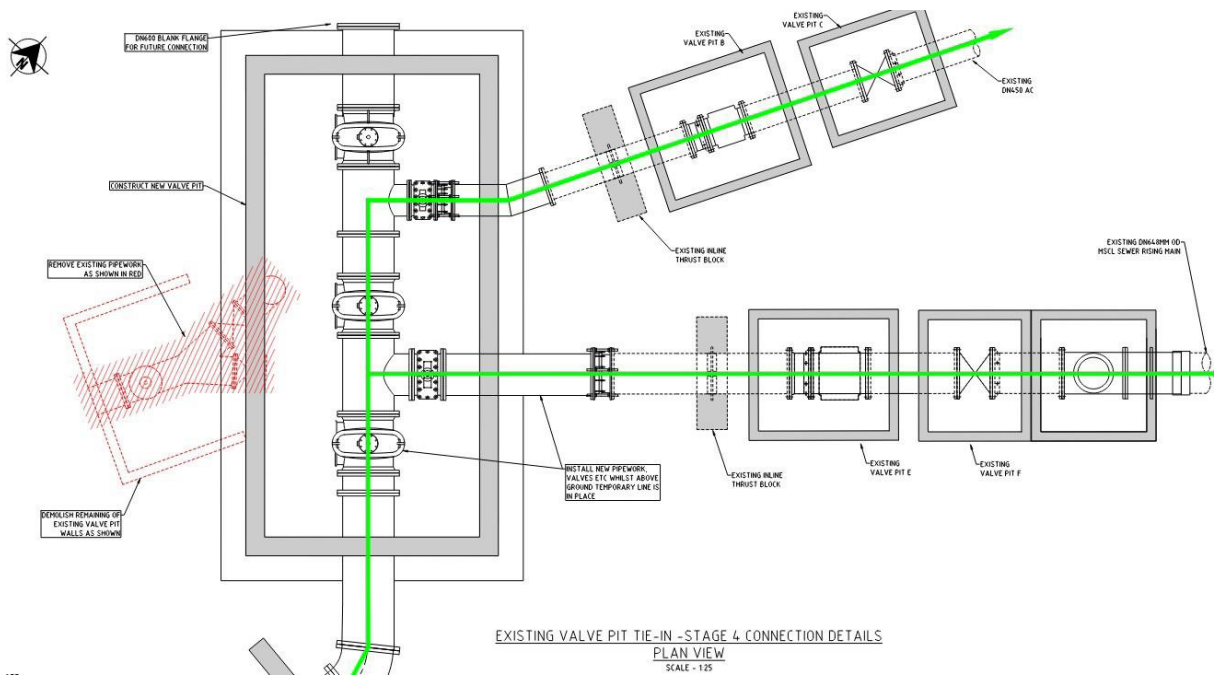


Figure 12: Stage 4 Tie-in

1.8. Concrete Structures

Water Retaining Structures

All water retaining structures (Pump Station Wet Well, MH01, and MH02), in-situ and pre-cast, are to be PE lined and require a grade of S50-10 calcareous aggregate concrete.

All Other Structures

Non-water retaining structures (Tantivy St. RM Pit and Downstream Pit) require a grade of S50-10 calcareous. All other structures will have N32 concrete grade.

1.9. Status of Scope of Work

Through the scope of work items that remain to be resolved are highlighted in yellow.

Program

Consider the following key dates;

Activity / Milestone	Milestone Dates
Contract Award	Quarter 3, 2024
Construction Start	Quarter 3, 2024

1.10. Pricing Schedule

The pricing schedule numbering aligns with the following scope of work and pricing should be included in the relevant section or clearly noted otherwise.

The breakdown has been developed to assist with the assessment of each submission. If any items are to be removed from the scope of work, they will be discussed further as it is understood that elements of a cost build-up are commonly distributed across a number (if not all) of items.

1.11. Excavation and Service Location

All excavation works will be subject to an excavation permit, copy included for reference.

Extensive NDD requirements including slit trench along all service routes and around the perimeter of any large open excavation are required for all excavation to prove no existing services are present.

Provision of hard barricading around all excavation works is required, ensuring operations team access is maintained where required.

1.12. Reference Documents and Drawings

Refer to Contract: Schedule F, Item 3, Subclause 3.1

2. General

This package Scope of Work (SOW) is to be read in conjunction with the Project SOW and associated drawings.

2.1. Project and Construction Management

All Subcontractor to provide supervision and suitably qualified personnel for execution of functions required by them for all aspects of the Scope of Work. Construction cards are required by all personnel working on the project and Verification of Competency for all operators prior to commencement.

Subcontractor to provide documentation for all components supplied plus as-built survey for all underground services.

2.1.1. Constructability Review Workshop

Subcontractor to provide an allowance of a 3-day (8-hour days) constructability review and workshop as per the project schedule.

2.2. Mobilisation

Subcontractor to include for mobilisation all required plant, material, and resources to complete the works.

All plant brought to site must undergo a plant pre-acceptance checklist to be approved for use on site. This includes the following documentation to be provided in addition to an inspection:

- Plant Hazard assessment (< 2 yrs old)
- Operator and maintenance manual available
- Logbook and service records

2.3. Site Running

Site sheds will be provided for the subcontractor's free issue by JH. Subcontractor will have access to potable water, 1 off 12m x 3m office, 1 off 8.4m x 3m crib room, and toilets, outside of this allowance the contractor is required to be fully self-contained.

A single toilet block will be provided at the compound.

On-site toilet facilities (Portaloo's or similar) to be organised and maintained by Subcontractor. John Holland will provide sucker truck for the emptying of the on-site portaloo as required.

2.4. Demobilisation

Subcontractor to Demobilise from site following completion of the Scope of Work

2.5. O&M, As Built and Other Documentation

Subcontractor to provide Documentation for all components supplied plus as-built survey for all underground services.

2.6. PFAS Management

Material testing has been completed on site and confirmed PFAS is not detectable in the soil. Material is suitable to be disposed of without treatment.

2.7. Wet Weather Delay Allowance

The subcontractor has allowed for two (2) weeks' worth of any wet weather or the effects thereof. John Holland has agreed to grant EOT's (time only - no cost) for any further delays post this allowance.

3. Hanlon St Site Works

3.1. Site Preparation Works

3.1.1. Tree Removal

- Felling of 7 notable trees from existing site at location of new pump station, highlighted in pink below in Figure 6. An arborist and fauna spotter will be required for removal.
- Mulch trees and spread mulch on site for landscaping reinstatement.



Figure 5 - Current Site Photo of Trees for Removal

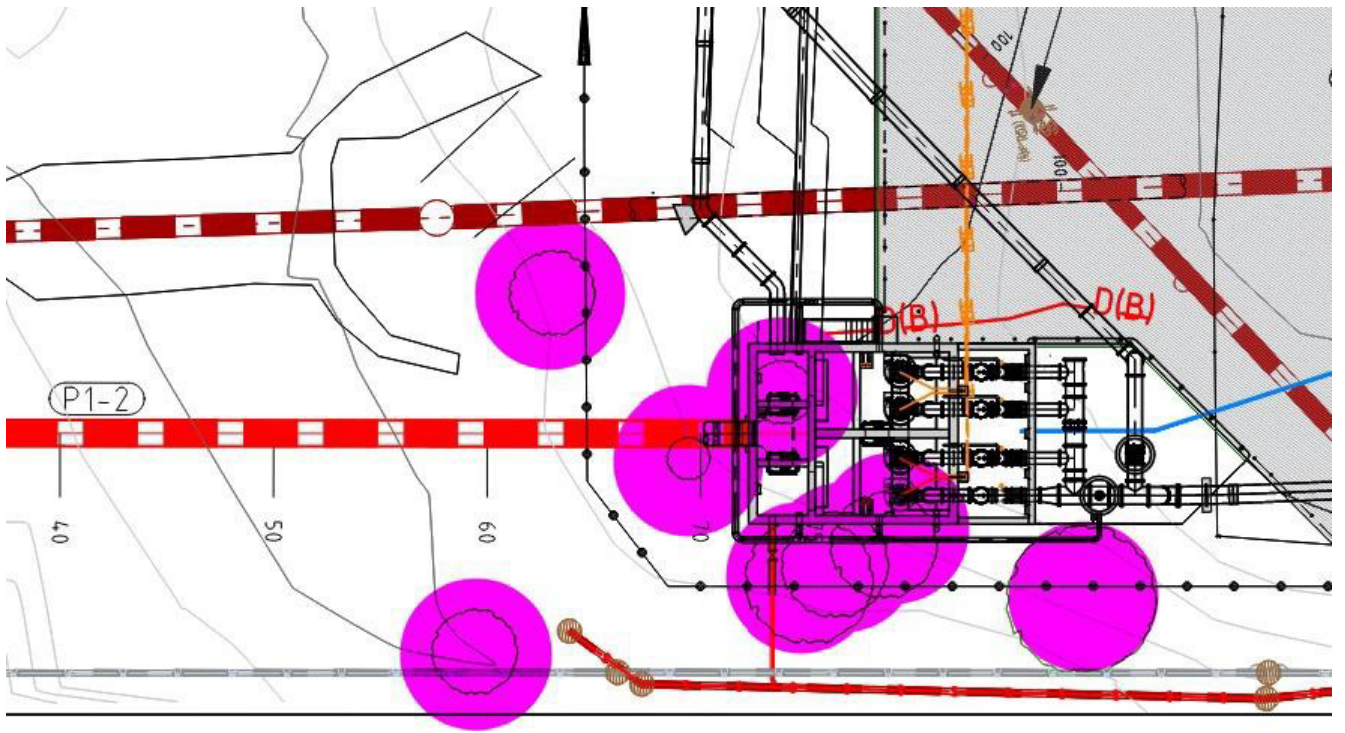


Figure 6 - Trees to be Removed.

3.1.2. Clearing and Grubbing

The back of the site, external to the fence, is currently overgrown and will require clearing prior to works commencing.

3.1.3. Temporary Hardstand

A temporary crane hardstand is to be constructed in area to allow for lifting and landing of materials and equipment.

Earthworks for engineered hardstand including clearing and levelling and imported fill required as show in B4849-0032

3.1.4. Temporary Laydown Area

A temporary laydown area is to be constructed in area to allow for lifting and landing of materials and equipment. The subcontractor will install of 200mm thick type 2.4 aggregate over the nominated surface area of 1000m².

3.2. Inlet Sewer Upgrade

Upgrade required to the Inlet Network pipework and structures as shown in drawings.

The pipeline and manhole replacements are to be built in parallel to existing to limit plant downtime during construction.

3.2.1. Emergency Relief Overflow Structure

Existing Emergency Relief Overflow Structure (EROS) from MH427042 as per 2207-013. Headwall replacement is to be located just beside the existing EROS pipeline.

3.2.1.1. Pipework Supply

- Supply and delivery of DN1100 GRP pipework and fittings

3.2.1.2. Pipework Installation

- Existing DN825 overflow pipe work to be replaced with DN1100 GRP pipework.
- Cut back minimum amount of existing pipework to allow installation of new pipe.
- Supply and Install DN1100 flap gate

3.2.1.3. Headwall Construction

- Replace existing outlet headwall to suit larger pipework.
- Handrail fall protection around top of headwall.

3.2.1.4. Erosion Protection

- Regrade ground level around headwall
- Geofabric layer
- 150-250mm Rip Rap, 350mm depth to 5m downstream
- The assumed dimensions nominated in the sketch below for the installation of the erosion protection.

Figure 13: Overflow Headwall

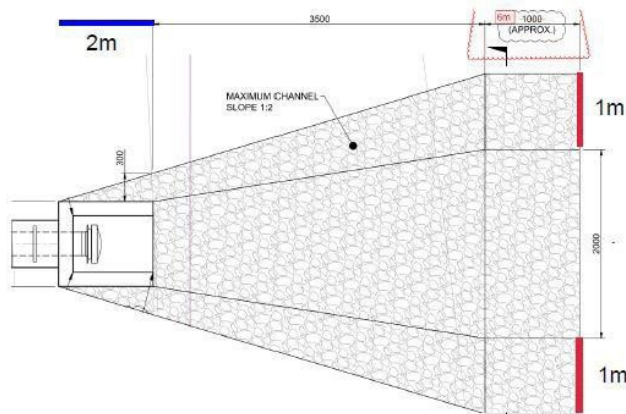
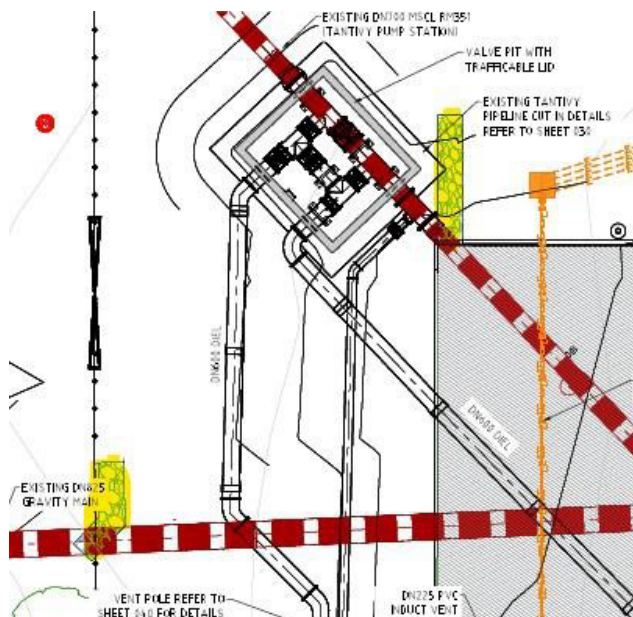


Figure 7 – Assumed lengths for missing segments.

The other ripraps shown in Drawing 2207-016 (highlighted in the sketch below) have been excluded due to limited information available.



3.2.1.5. Abandon Existing Infrastructure

- Remove existing manholes MH427042 and MH40303226 and stockpile on site. Removal and disposal from site covered under demolition scope. Existing infrastructure is able to be left in place with top removed to 1000mm below surface level if this assists construction.
- Stockpile any redundant pipework required to be removed for installation of new EROS.
- Subcontractor is to provide the most economical option out of plug, grout fill and abandoning or dig up remaining pipe and stockpiling on site for removal by others.

3.2.2. Trunk Main Replacement

Replacement of existing Bundamba trunk main from MH427042 to new grit chamber, as per 2207-004, 2207-005 and 2207-010. Construction of the new line is to be parallel to existing to avoid interference with operation of existing pump station.

3.2.2.1. Supply of Pipework

- Supply and delivery of DN1100 GRP pipework and fittings

3.2.2.2. Install Pipework

- New DN1100 GRP trunk main to replace existing DN825 RC Trunk main.
 - Section P1-1 – MH01 to MH02
 - Section P1-2 – MH02 to Grit Chamber

3.2.2.3. Plug, Grout and Abandon Existing Gravity Main

After commissioning of the new pump station is complete, any below ground sections of the existing gravity main are to be plugged, grout filled and abandoned.

- Plug and grout remaining below ground sections
- Remove and stockpile the manhole located in the middle of the main between the existing pump station and MH427042 for removal from site by others

3.2.2.4. Plug, Grout and Abandon Existing PS Overflow

Abandon the existing pump station overflow to the creek as shown below in Figure 8. There is a concrete apron from the headwall to the creek that is to remain in place

- Remove existing PS overflow headwall to creek
- Remove and stockpile manhole along the pipe for removal from site by others
- Plug and grout fill the remaining below ground section of pipe

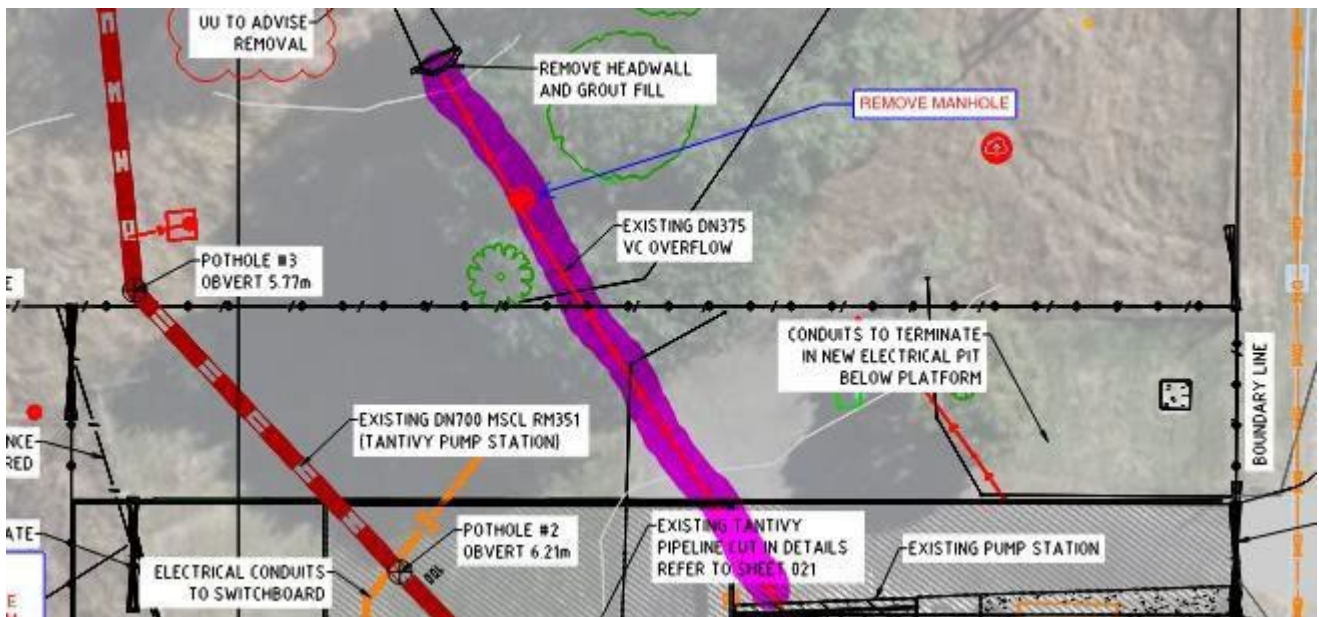


Figure 8 - Existing Pump Station Overflow

3.2.3. MH01

Install new manhole to replace functionality of existing ID1500 Manhole, MH427042, as shown in 2207-011 & 2207-012. The construction of this manhole is to not disrupt current operation and functionality of existing pump station, the tie-in methodology for this has been outlined in section 1.7 of this SOW.

3.2.3.1. Excavation and Shoring

- Excavation Including any requirements for either benching or shoring.
- Temporary support of RCP pipe in situ to allow construction of manhole base.

3.2.3.2. MH01 Base

- Cast in-situ base surrounding existing trunk main to allow continuous operation.

3.2.3.3. MH01 Walls

- Form reinforce and pouring of the manhole walls including pipe penetrations, concrete wall for screening connection and concrete weir
- Supply and install of PE lining for the entire structure

3.2.3.4. MH01 Covers

- Manhole covers and access hatches

3.2.3.5. MH01 Lid

- Form reinforce and pouring of the manhole lid
- Lift and place the manhole lid

3.2.3.6. Temporary Stop Logs

- 1x DN1100 316 SS stop log
- 1x DN825 316 SS stop log

3.2.3.7. Overflow Screening

- Overflow screening and frame

3.2.3.8. MH01 Fitout

- ladders
- floatable baffle

3.2.3.9. Benching and Overflow Weir

- Benching pour for MH01
- Install Overflow Weir

3.2.3.10. Existing Pipe Cut-in

- Cut into DN825 to existing pipe to match benching profile
- Shutdown to be included 4.3.7

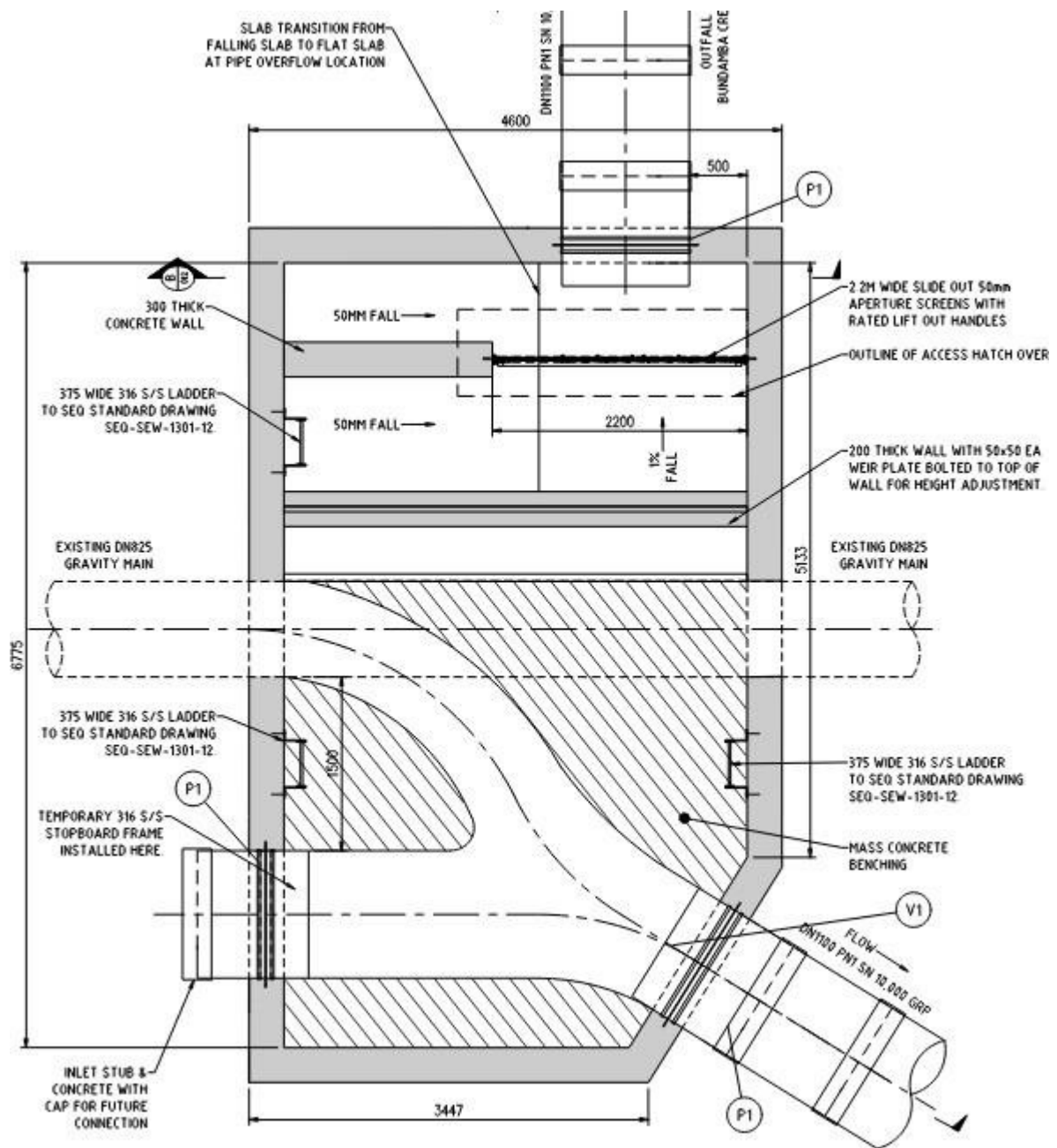


Figure 9 – MH01 - Inlet Manhole Layout

3.2.4. MH02

Installation of new precast manhole.

3.2.5. Excavation and Shoring

- Excavation including any requirements for either benching or shoring.

3.2.6. MH02 Install

- Form, reinforce and pour MH02 including pipe penetrations
- Pour benching

3.3. New Pump Station

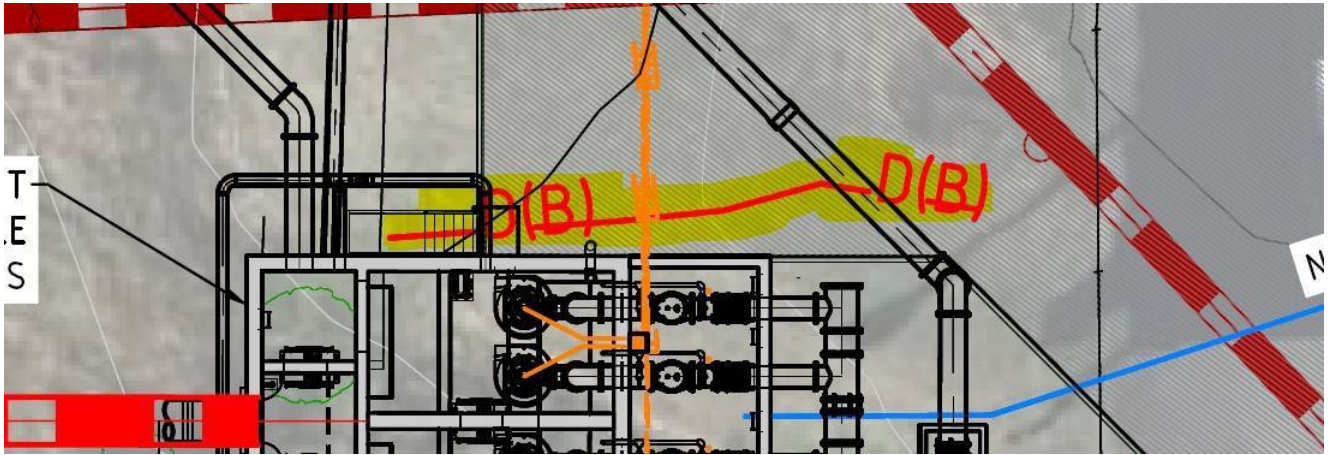


Figure 10 - Steel Pipe Removal

3.3.1. Pump Station Wet-Well and Grit Chamber

Construction of a split wet well / grit chamber caisson structure.

3.3.2. Installation of Caisson Jacking Rings

- Excavation to jacking ring design level
- Form, reinforce and pour jacking ring base
- Form, reinforce and pour caisson cutting shoe

3.3.3. Temporary Jacks (if required) (Provisional Sum)

- Supply and installation of 6 Off temporary jacks to assist with caisson sinking.

3.3.4. Excavation of Wet Well Caisson

Excavation to allow the sinking of the caisson structure. Allowance for dewatering with a 6" well point diesel piston pump and a lay flat hose c/w silt socks and sediment fencing for the dewatering works during the wet well excavation

- Excavation of the caisson structure
- Installation of props as the outlined in the temporary works drawings.

3.3.5. Caisson Structure

- Form and pour caisson structure sections
- Pipe penetrations to be cast in
- Install PE lining

3.3.6. Plug and Base Slab Pour

- Pour concrete plug
- Reinforce and pour concrete slab

3.3.7. Baffle Vortex Inhibitor

- Installation of baffle vortex inhibitor

3.3.8. Installation of Internal Split walls

- Form, reinforce and pour internal walls to split wet well and chamber

3.3.9. Benching of wet well and Splitter Chamber

4 Off Prero Clean pump basins and pump duckfoots will be supplied for installation as these are set into the wet well benching

- Install all 4x Prero Clean pumps basins and pump duckfoots
- Install benching in each wet well chamber to pump basin
- Install benching in each grit chamber to suction pipework
- Mass pour concrete in splitter chamber to fill to level and bench to allow flow splitting

3.3.10. Connection Grit Diversion Chamber to New Pump Station

- Interconnecting valves from grit chamber to wet well and between wet wells, as per 2207-009

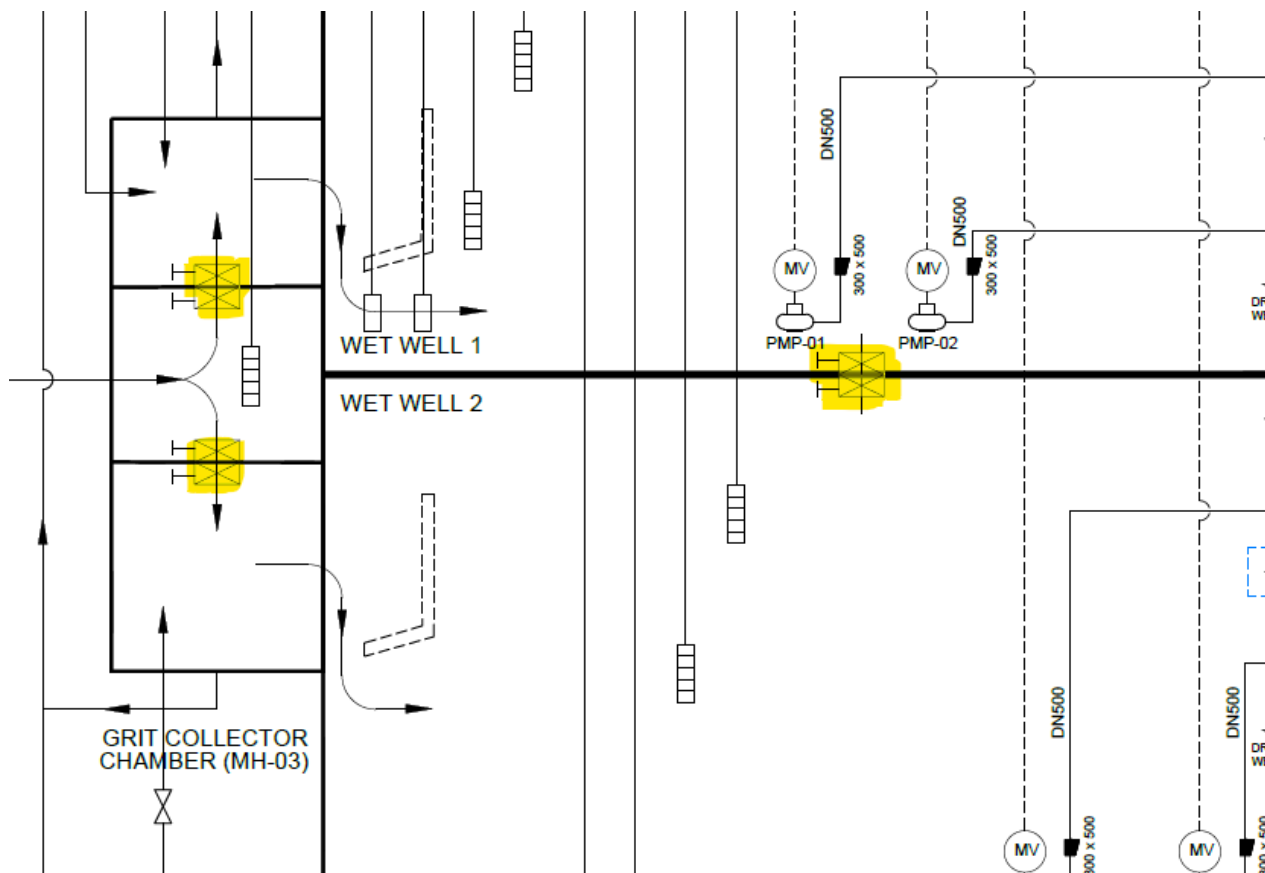


Figure 11 - Wet Well and Grit Chamber Isolation

3.3.11. Valve Supply (Wedge Gate Penstocks)

Supply of wedge gate penstocks, (V4 and V19 as per the valve schedule in Drawing 2207-037). Penstocks to be operated with IP68 rated spur gearboxes with extended input shafts. The following add-on options are excluded:

- Dial position indicators and input torque limiters fitted to input shafts of gearboxes
- Price adder for open & closed proximity sensors fitted to cover tubes

- Aluminium wedge gate anchor hole drilling template

3.3.12. Valve Installation

- Installation of 6 Off DN1100 wedge gate penstock valve, including spindle extension and bracing.

3.3.13. Pump station Cover and Access Hatches

Installation of concrete pump station cover.

3.3.14. Supply of Access Covers and Hatches

- Concrete wet well covers as per 4849-0160
- Allowance to be made for safety access hatches for each pump to access pumps for removal/maintenance.
- Allowance to be made for safety access hatch to ladder to allow entry.

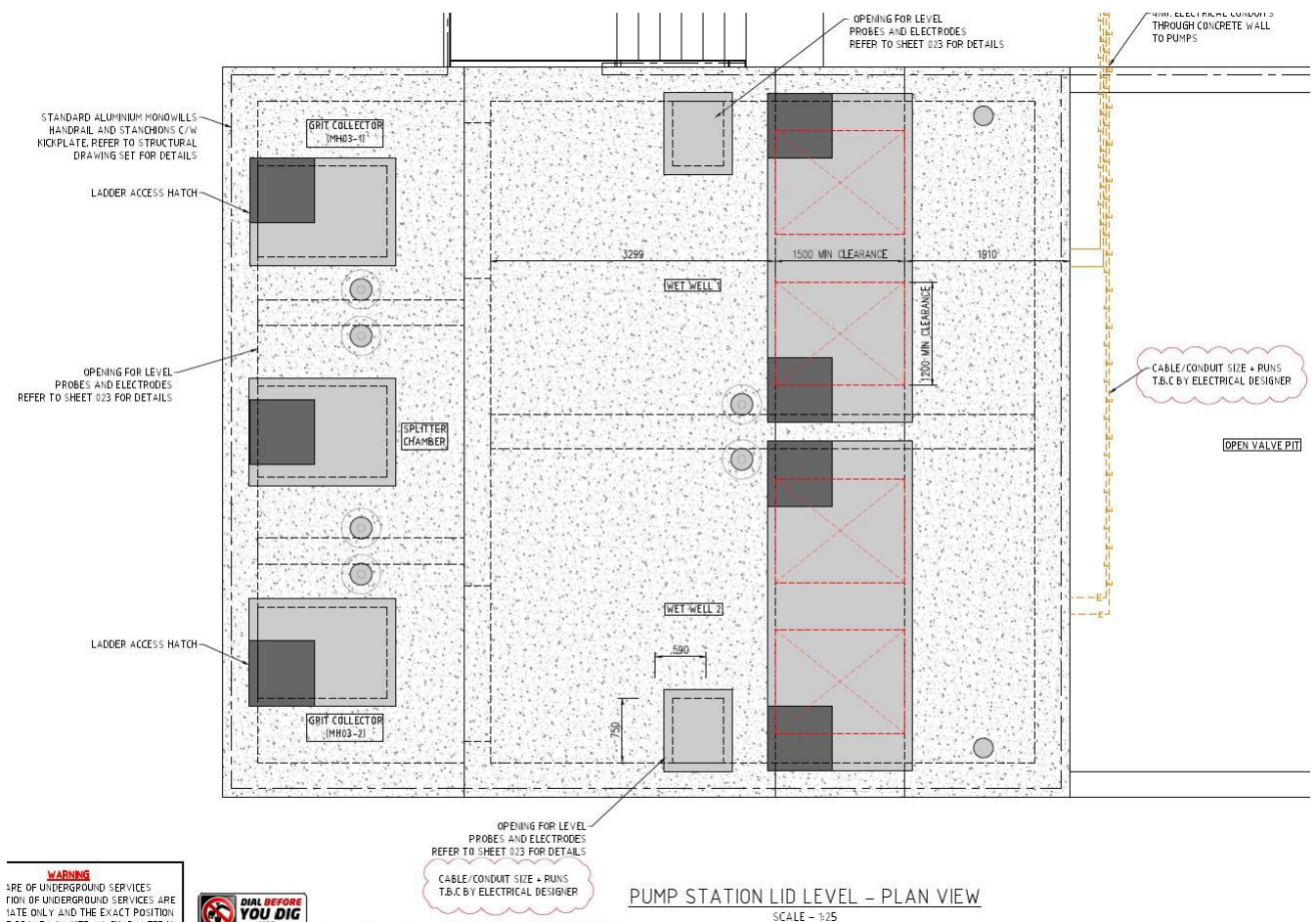


Figure 12 - Wet Well Cover Details

3.3.15. Pump Station Fit Out

Fit out of new wet well pump station

3.3.16. Pump Supply (By Others)

3.3.17. Pump Installation

- Install free issue pumps.

3.3.18. Pump Guide Rails and Wall Brackets

- Installation of pipework, guide rails and wall brackets.
- Level Sensors
- Ladders

3.3.19. Vactor and Air Connection Pipework

Vactor and Air Connection Pipework has been removed from scope

3.3.20. Induct vent

- DN225 PVC induct vent installed in each wet well

3.3.21. Pump Riser Pipework

- Supply of riser pipework as per 2207-037
- Install riser pipework from pump duckfoot bend to discharge pipework wall penetration

3.3.22. Ladder Access

- Supply of ladders for access to each wet well and grit collection chambers
- Installation of ladders

3.3.23. Odour Control and Ventilation

Wet well and grit chamber odour control and ventilation.

3.3.24. Supply of Odour Control Unit (By Others)

Supply of Odour Control Unit has been removed from scope

3.3.25. Odour Control Unit Slab (Provisional Sum)

Odour Control Unit Slab has been included as a provisional sum

3.3.26. Install of Odour Control Unit (By Others)

Install Odour Control Unit has been removed from scope

3.3.27. Ventilation Pipework (By Others)

Ventilation Pipework has been removed from scope

3.4. Access Structures

3.4.1. Pump Station Access

3.4.2. Access Stairs

- Supply and install access stairs to pump station as shown in B4849-0170. (Note: Install platform from Landing on concrete road section as shown below in Figure 13, no additional concrete landing is required)

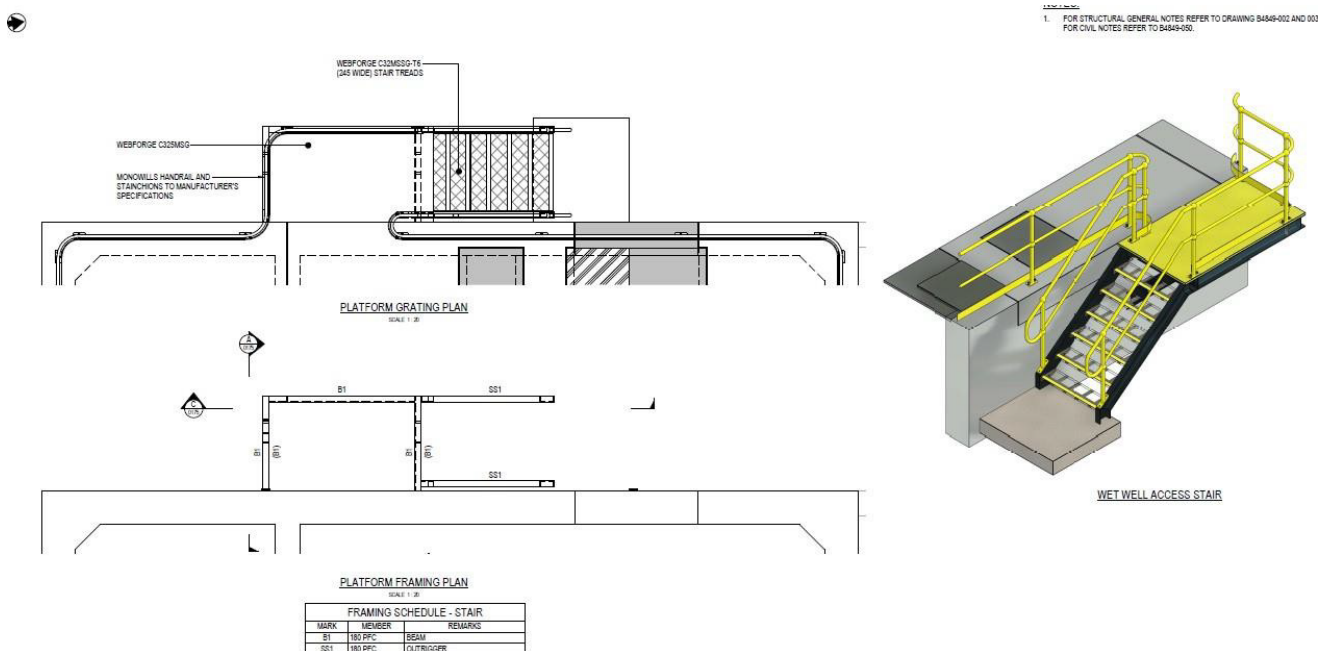


Figure 13 – Pump Station Access Stairs

3.4.3. Pump Station Handrail

- Supply and install of handrail around the outer edges of the above ground raised section of the pump station

3.5. Open Valve Pit Structure

3.5.1. Valve Manifold Slab

Installation of open valve pit base slab

- Concrete slab structure for open valve pit, connected to pump station

3.5.2. Retaining Wall

- Retaining wall to north and west of valve of open valve chamber.
- Construction of a 200mm high bund wall on the eastern side to prevent free draining of slab.
- The pit will have 2 Off manually operated DN100 valves (Not shown on drawing), one going to the wet well the other going on to the grass

3.5.3. Ladder Access

- Supply and install ladder access to valve pit chamber. 5 Off ladders are required for access to the valve pit (4 shown on drawing)

3.6. Outlet Pipework Tie-ins

Supply and install pipework for tie-in to existing DN450 AC and DN600 MSCL pipework, as per 1.7.2. Tie-in Methodology (Downstream)

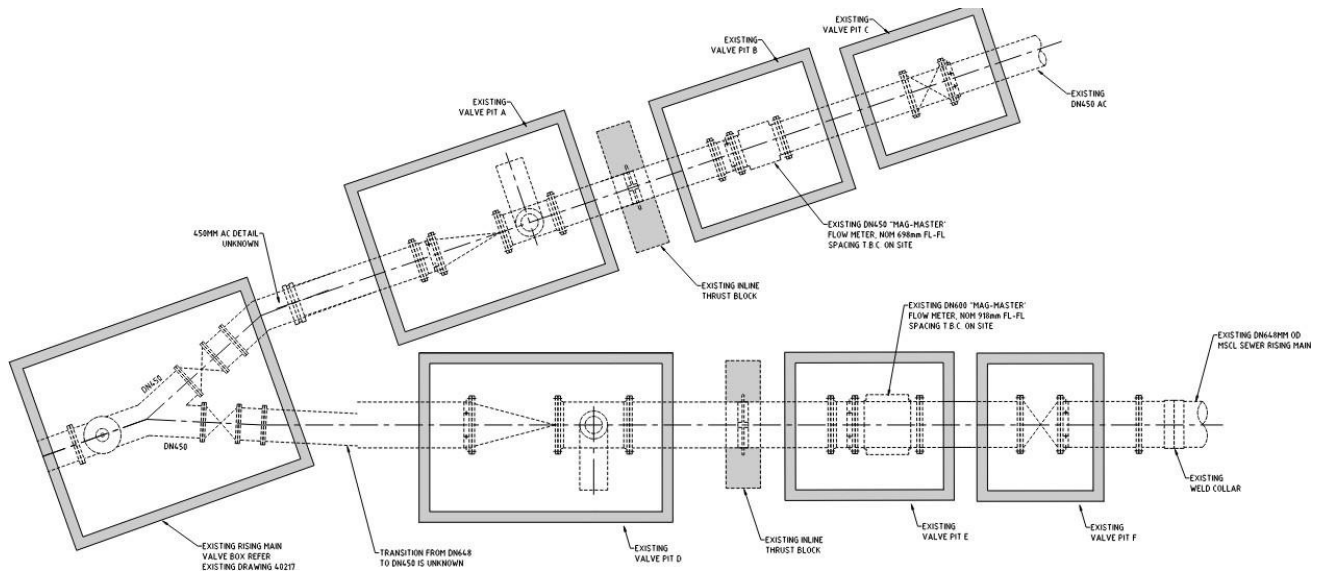


Figure 14 - Current Valve Chamber Arrangement

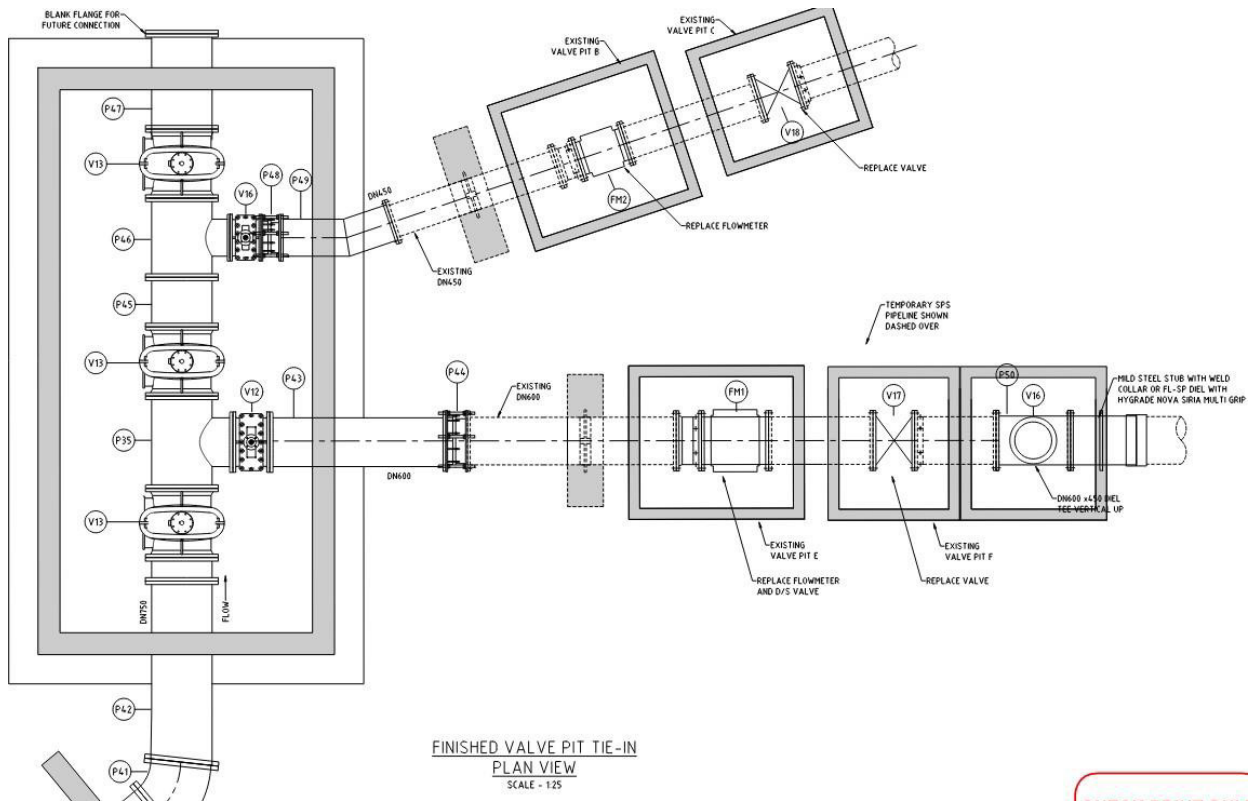


Figure 15 - Finished Valve Chamber Arrangement

3.6.1. Valve and Flowmeter Supply

- Supply of all valves as per 2207-037
- Supply of E&H DN450 Promag W 400 5W4C4F-AAKLHP3AHM3K0A+AACBEB
- Supply of E&H DN600 Promag W 400 5W4C6H-AAKLHP3AHM3K0A+AACBEB

3.6.2. Pipework Supply

- Supply of all pipework and fittings required as per 2207-037

3.6.3. Valve Pit Cover Supply

- Supply of valve pit covers to replace existing covers on Valve Pit B, C, E & F
- Supply of valve pit cover for new jump over connection pit
- Supply of safety access hatches for new Downstream valve pit as per 4849-0500

3.6.4. Stage 1 Connection

Installation as per 2207-050 Stage 1 Connection Details

3.6.5. Installation of New Valve Pit

- Installation of new valve pit to house jump over tee
- Valve cover to be installed after jump over connection no longer required.

3.6.6. Replace Pipework and Valves

- Divert flow, install new pipework, install valves and flowmeter

3.6.7. Stage 2 Connection

Installation as per 2207-051 Stage 2 Connection Details

3.6.8. Replace Pipework and Valves

- Divert flow, install valves and flowmeter
- Removal of pipework and Valve Pit A

3.6.9. Stage 3 Connection

Installation as per Stage 3 (Alternative Offer) in 1.7.2. - Tie-in Methodology (Downstream)

Installation of Jump Over Line

- Install pipework to connect DN450 line to DN600 line in the newly installed jump over tee pit.

3.6.10. Removal of Existing Valve Pit

- Remove existing Valve Pit D and associated pipework.

3.6.11. Stage 4 Connection

Installation as per 2207-053 Stage 4 Connection Details

3.6.12. New Valve Pit

- Installation of cast in-situ pit
- Supply and install of ladders to allow access to valves

- Installation pit cover and access hatches

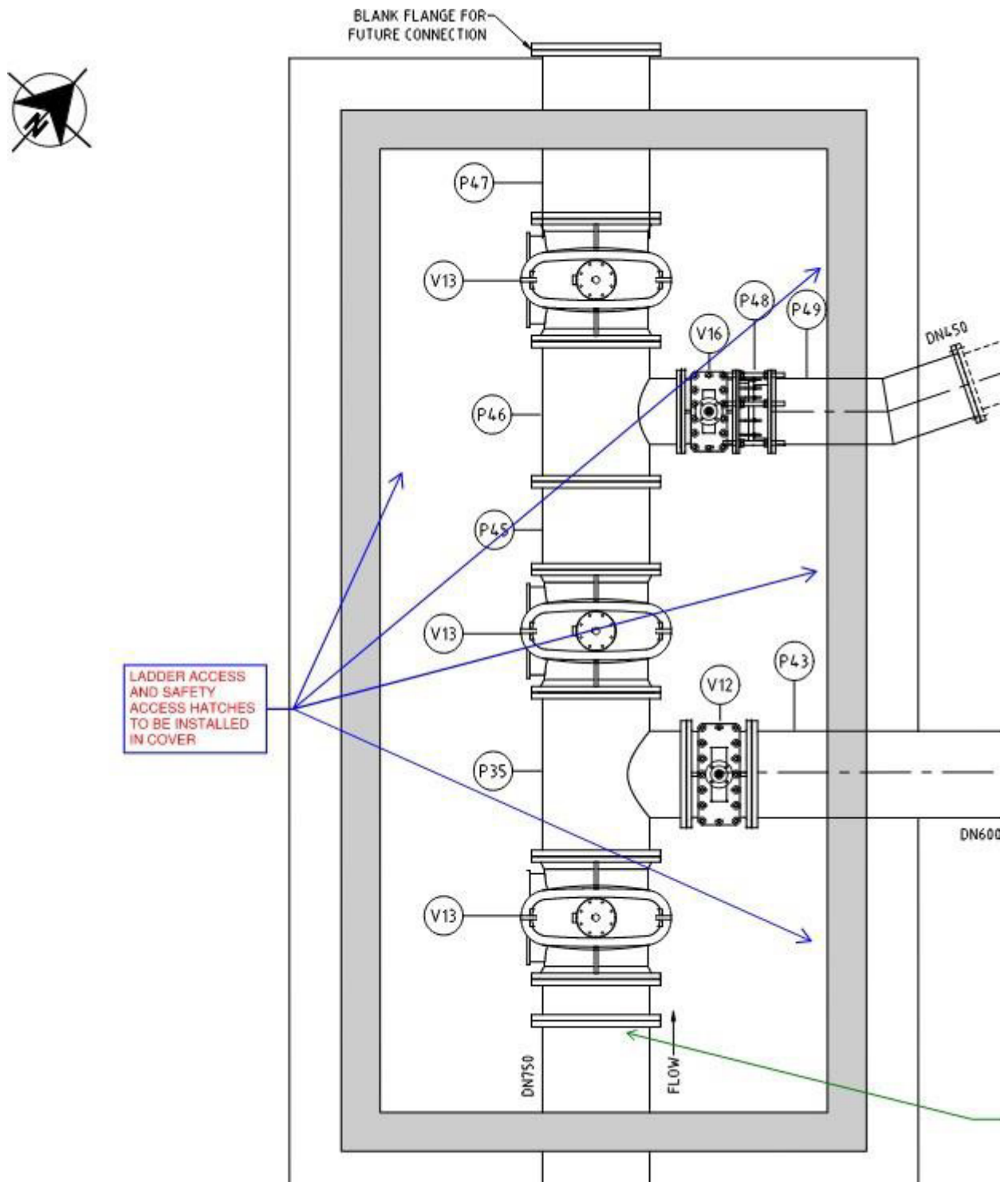


Figure 16 - New Valve pit

3.6.13. Installation of Pipework

- Installation of pipework, valves and fittings
- Installation of pipe supports

3.6.14. Removal of Existing Junction Valve Pit

- Disconnect the jump over tee post commissioning and remove the junction valve pit and associated pipework connecting to the existing pump station

3.7. Pipework

3.7.1. External Manifold

Installation of external manifold pipework. The pipework limits are shown below in Figure 17.

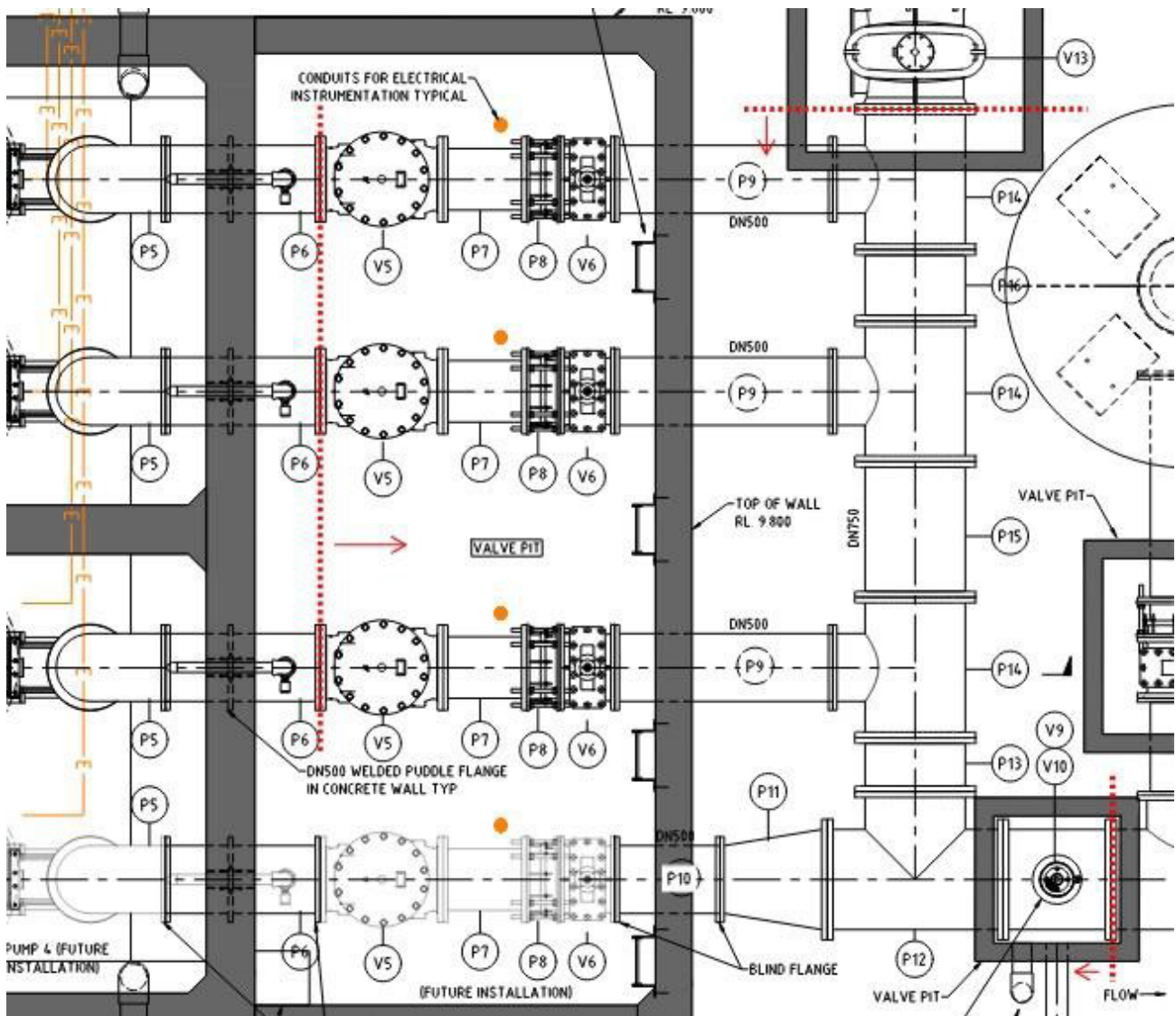


Figure 17 - Valve Manifold Pipework Limits

3.7.2. Pipework Supply

- Supply of pipework for the external manifold as per 2207-037

3.7.3. Valve Supply

- Supply of valves for the external manifold as per 2207-037

3.7.4. Installation of Valves and Pipework

- Installation of Valves and Pipework

3.7.5. Air Bleed Assembly

- Installation of pipe air bleed assembly with penetration through the pump station wall

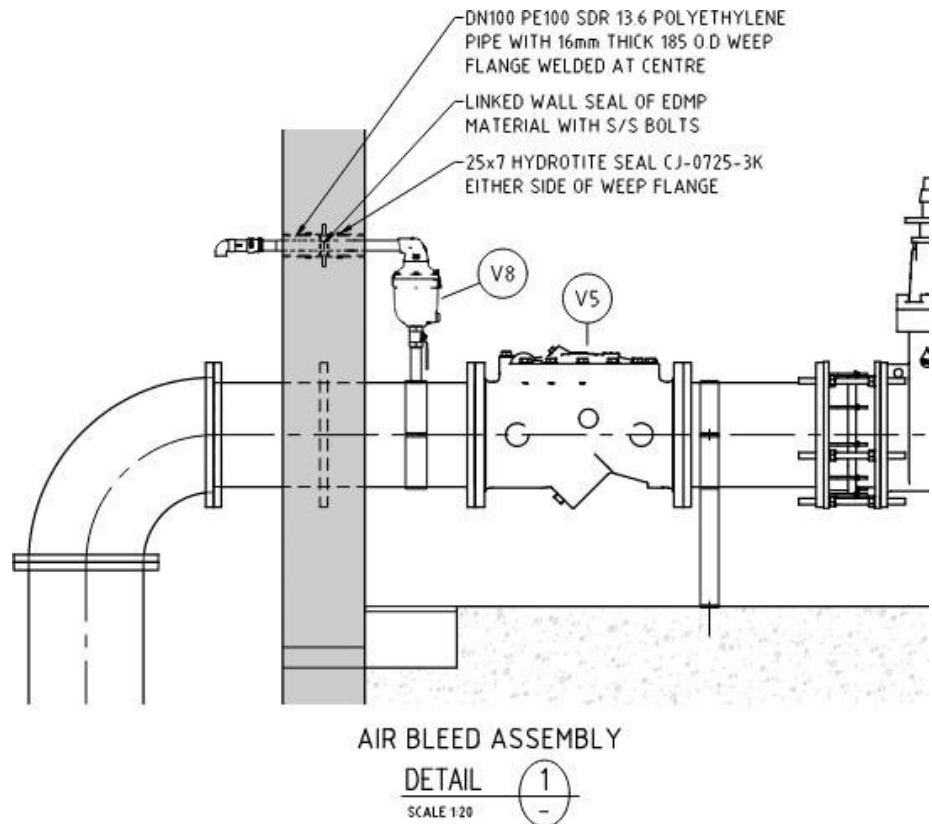


Figure 18 - Air Bleed Assembly

3.7.6. Pipe Supports

- Supply and Install Pipe Supports and grouting

3.7.7. Air Valve

- Supply of air valve as per 2207-037
- Installation onto pipework
- Installation of air valve pit and cover

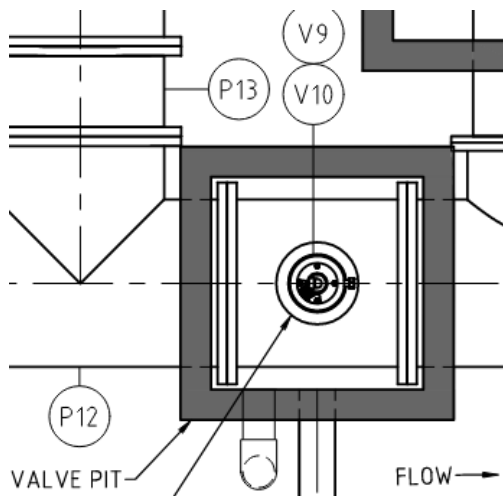


Figure 19 - Manifold Air Valve Install

3.7.8. Pump Station Rising Main

- Supply and install of the following:
 - DN750 rising main from air valve to the new downstream outlet pit
 - DN600 pipework from the Tantivy pit to the grit chamber
 - DN600 pipework from the Tantivy pit to the DN750x600 reducing tee.
 - Valve pit for the DN600 Valve
 - Thrust Blocks

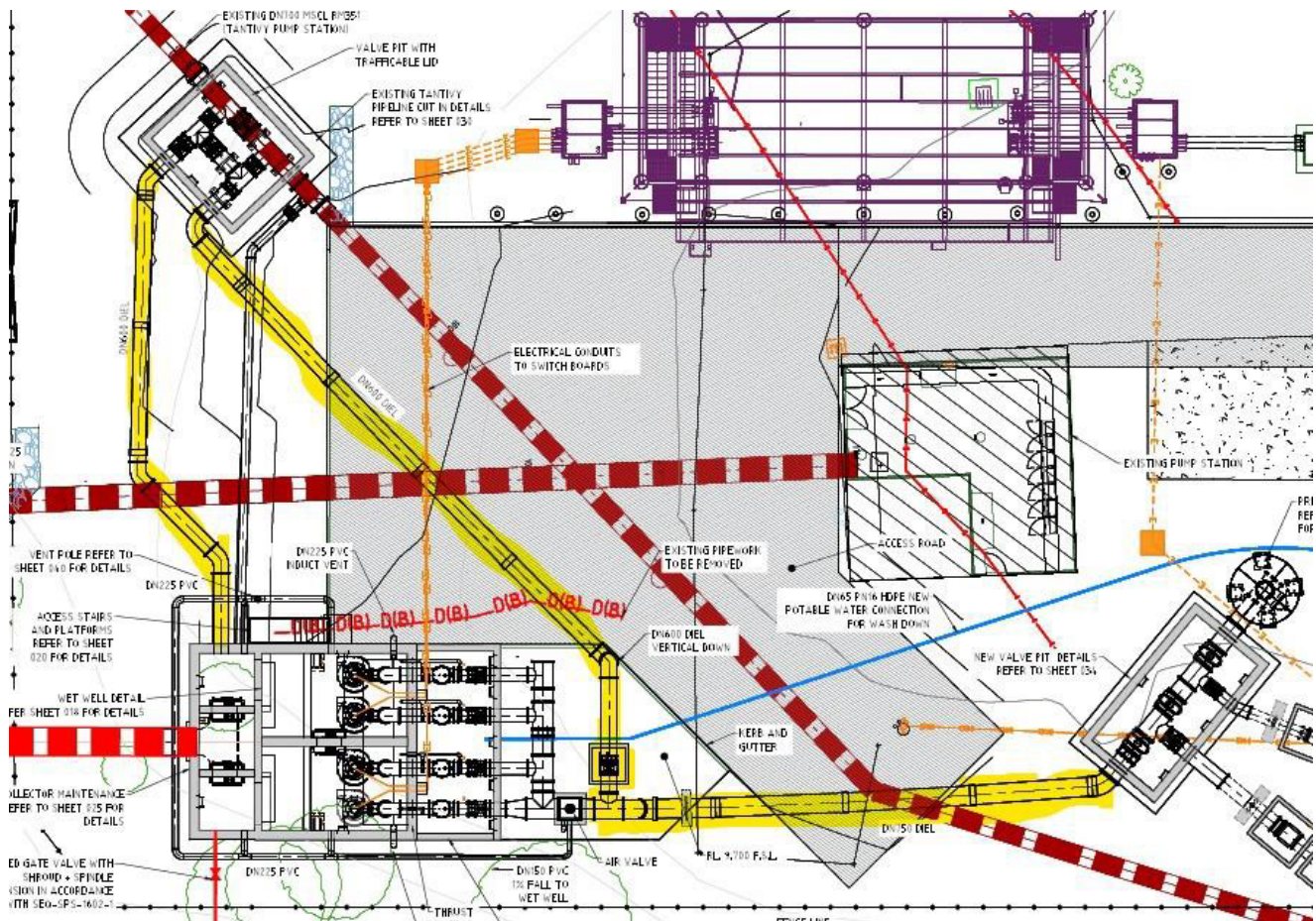


Figure 20 - Pump Station Rising Main Pipework Limits

3.7.9. DN300 Scour Line (Provisional Sum)

- Supply installation of DN300 Scour pipework from DN700 Tantivy pit rising main to the grit chamber

3.7.10. Surge Tank Pipework

Supply and install surge tank pipework, as per 2207-039 .

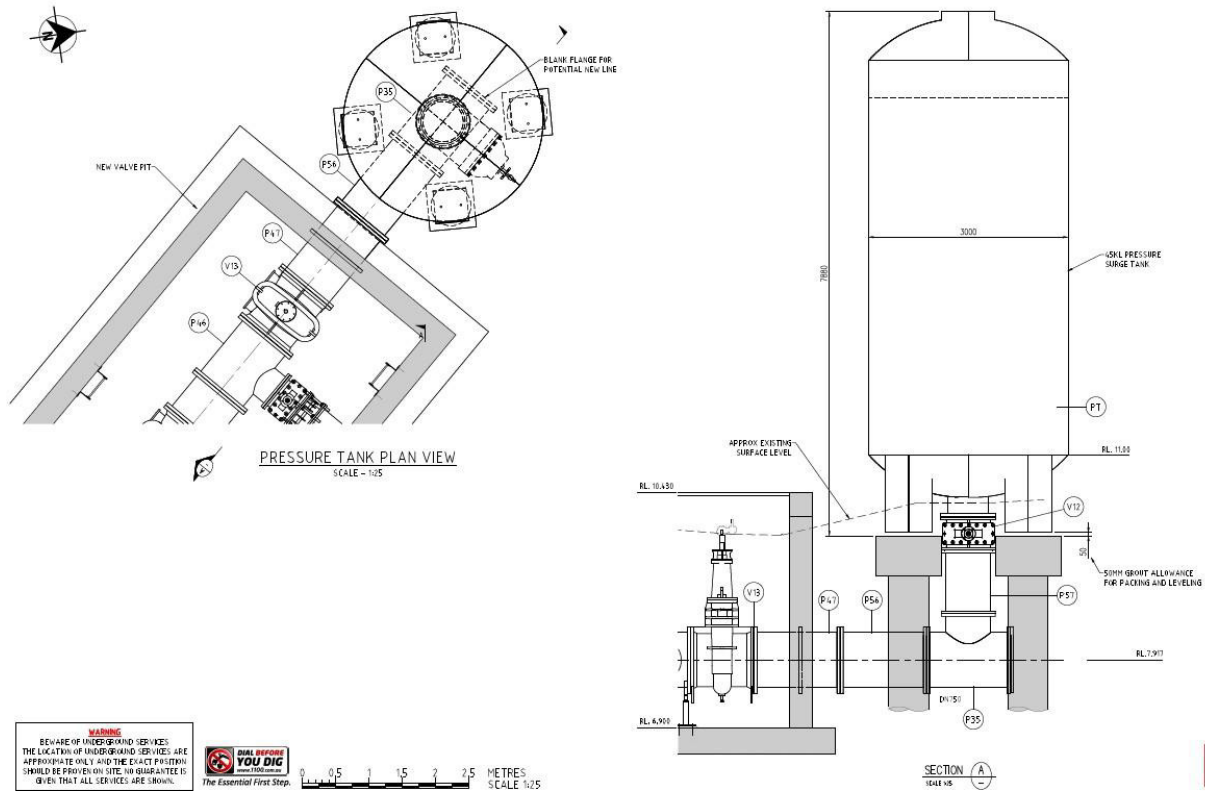


Figure 21 - Surge Tank Pipework

3.7.11. Pipework Supply

- Supply Pipework as per 2207-037

3.7.12. Valve Supply

- Supply Valve as per 2207-037

3.7.13. Installation of Valves and Pipework

- Installation of the valve and pipework required for the surge tank.

3.7.14. Potable Water Line to Valve Pit

- Installation of potable water line extension from existing connection pit on site
- Installation of RPZ
- Installation of water washdown hose in valve pit.

3.7.15. Cross Connection Tantivy St Rising Main to Pump Station

The cut in to existing Tantivy line is to be completed under a separate SOW to align with a Tantivy PS Shutdown. Works remaining will be construction of the pit surrounding the tie-in connection and the pipework and valves shown by the limits in [Figure 22](#).

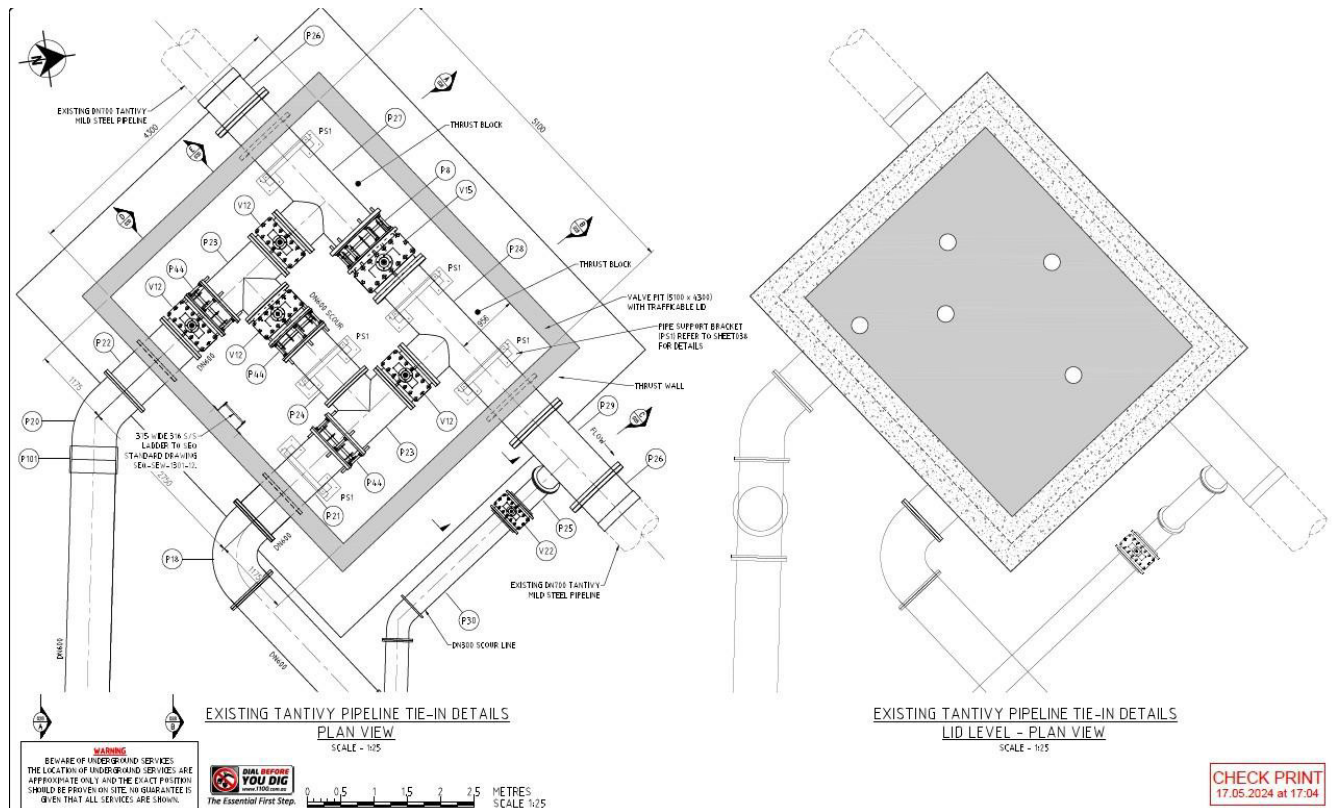


Figure 22 - Tantivy Tie-in Connection

3.7.16. Pipework Supply

- Supply of pipework as per 2207-037

3.7.17. Valve Supply

- Supply of valves as per 2207-037

3.7.18. Pit Cover Supply

- Supply of pit cover as per B4849-0400

3.7.19. Installation of Valves and Pipework

- Install tie-in pipework to the new grit chamber and pump station valve manifold.

3.7.20. Valve Pit

- Installation of concrete valve pit for the connection valve to the manifold

3.8. Hydrotesting

- All pressure pipework is to be hydrotested to 1200 kPa.

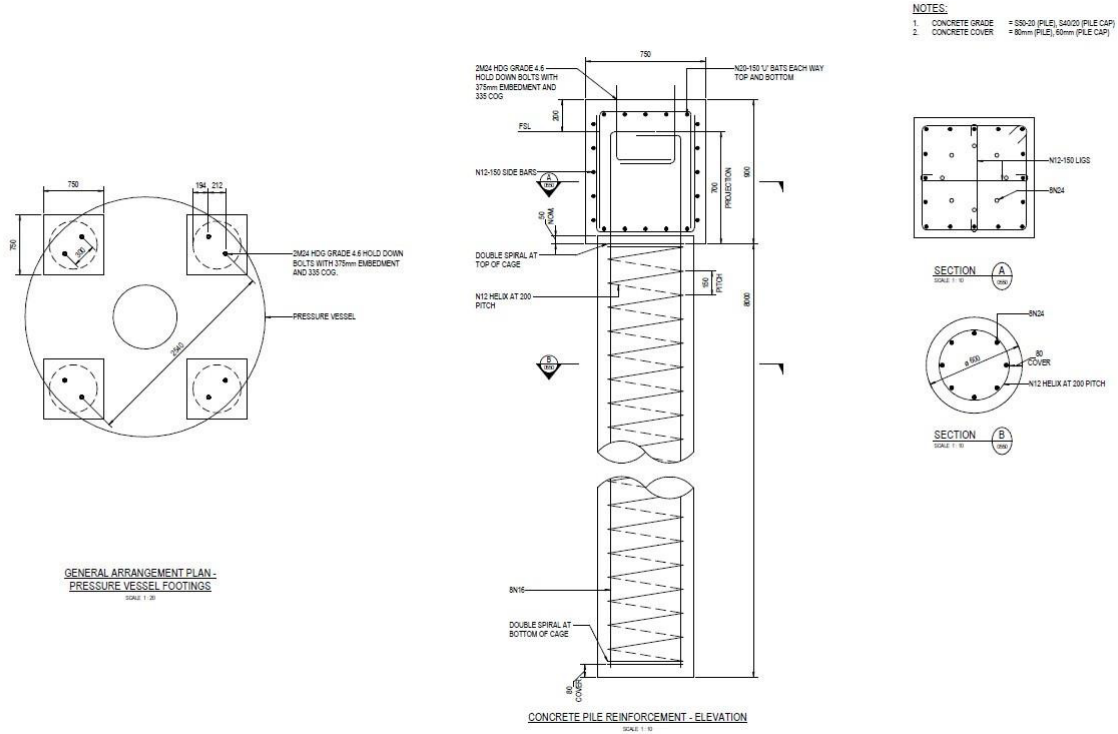
3.9. Surge Vessel Tank

3.9.1. Bored Support Piers

- 4 Off 8m deep x 600mm wide bored support piers to allow tie-down of tank

3.9.2. Site Installation & Foundation

- Installation of tank and supports on concrete slab



3.10. Conduit and Pit Network

3.10.1. Switchgear Platform to Pump Station

- Pits x 3 – Trafficable Covers
- 40m x 6 DN100 Conduit runs

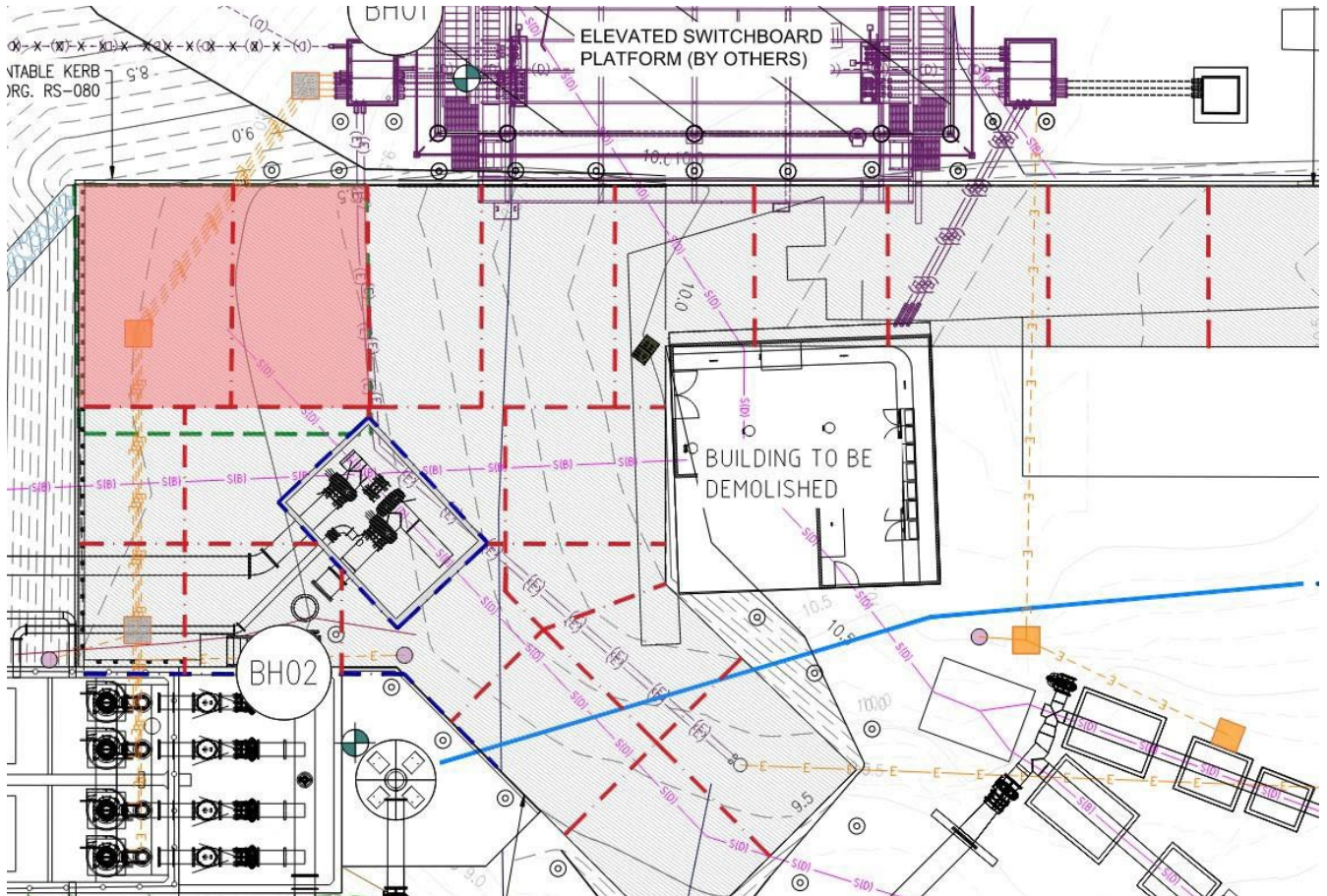


Figure 23 - Conduit Run to Pumps and Flowmeters

3.10.2. New Transformer to Switchgear Platform

As per concept model, not show in drawings.

- Pits x 2 – Trafficable Covers
- 10m x 4 Conduit

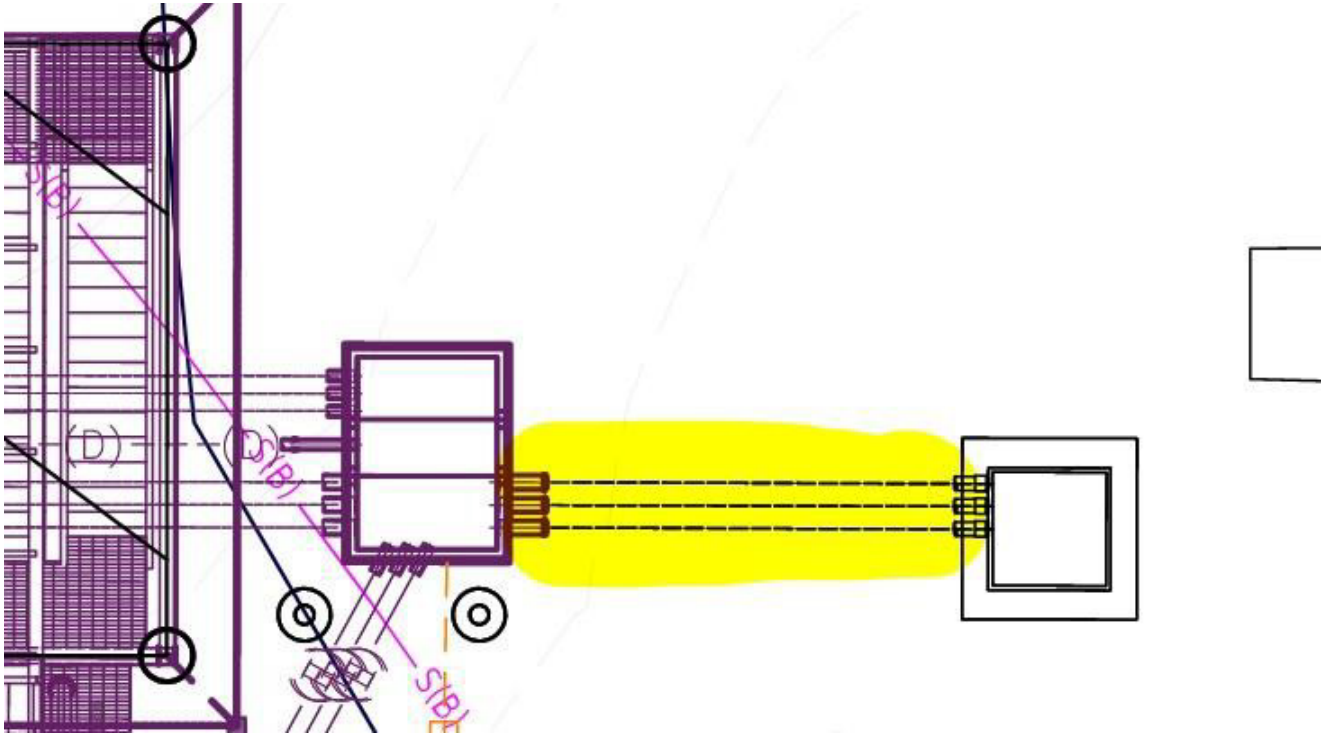


Figure 24 = Transformer Conduit - Plan

3.10.3. General Distribution to Field Devices

Allow a further conduit for flowmeters

- Pits x 3 – Trafficable Covers
- 30m x 2 DN100 Conduit runs

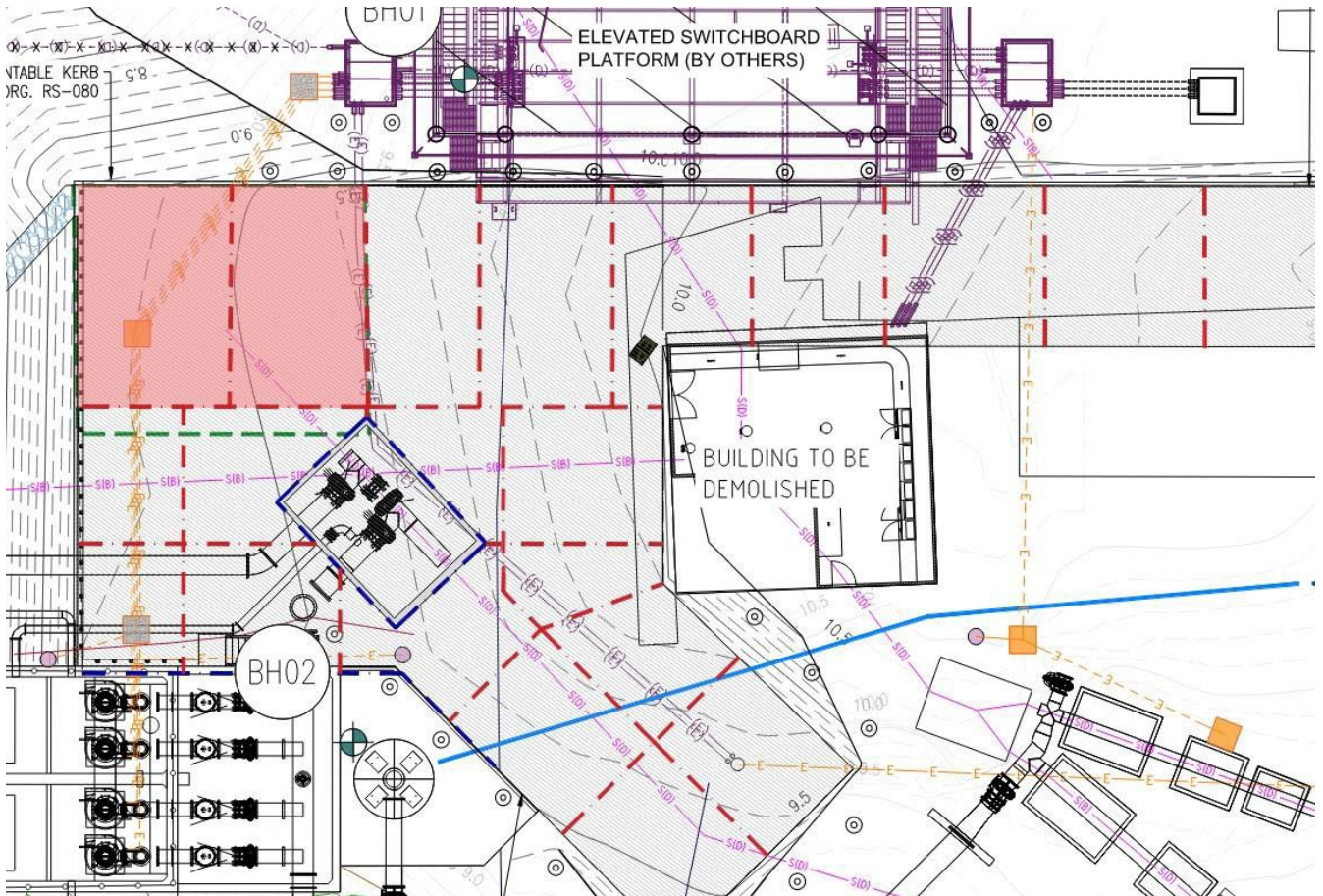


Figure 25 - Field Device Conduit

3.10.4. Lighting

- Cable run to a single handrail mounted light is to be installed to light up the access stairs to the top of the pump station.

3.11. Access and Roadway

Installation of access and roadway as per 4849-61.

3.11.1. Guard Rail

- W-Beam guard rail required for full length of open valve pit retaining wall, as shown below in [Figure 26](#).
- Rhino-Stop guard along the south end of the roadway
- Barrier Kerb along the western side of the roadway

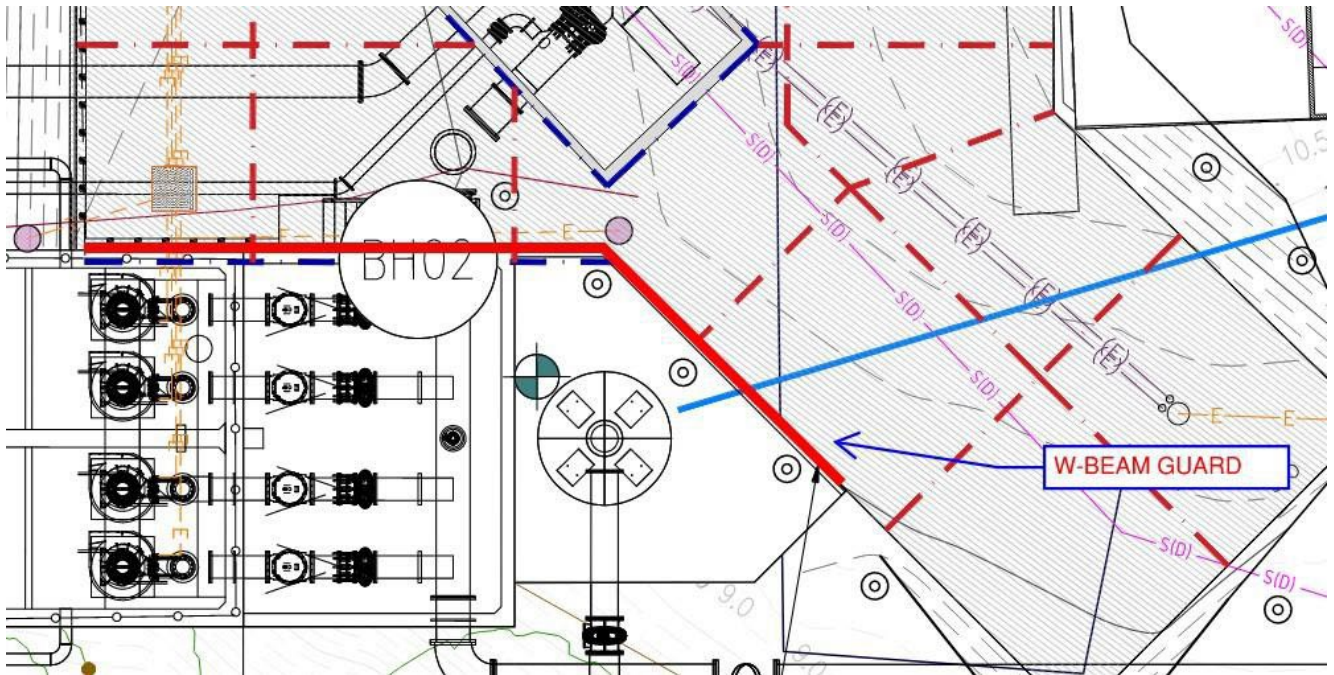


Figure 26 - Allowance for Road Edge Protection

3.11.2. Drainage

- Installation of rock fill to south end of roadway to allow drainage.

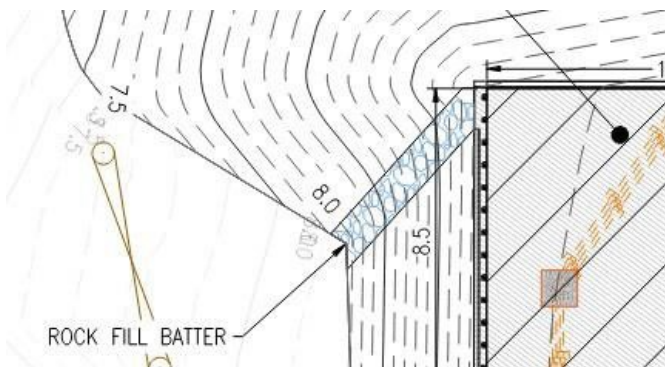


Figure 27 - Road Drainage

3.11.3. Bollards

- Allow for concrete-filled steel bollards as shown in 4849-61.

3.11.4. Bulk Earthworks

- Bulk Fill required build up batter as per civil works site layout drawing, 4849-32 & 4849-81.
- Fill gained from excavations that is suitable for use may be re-used for fill.

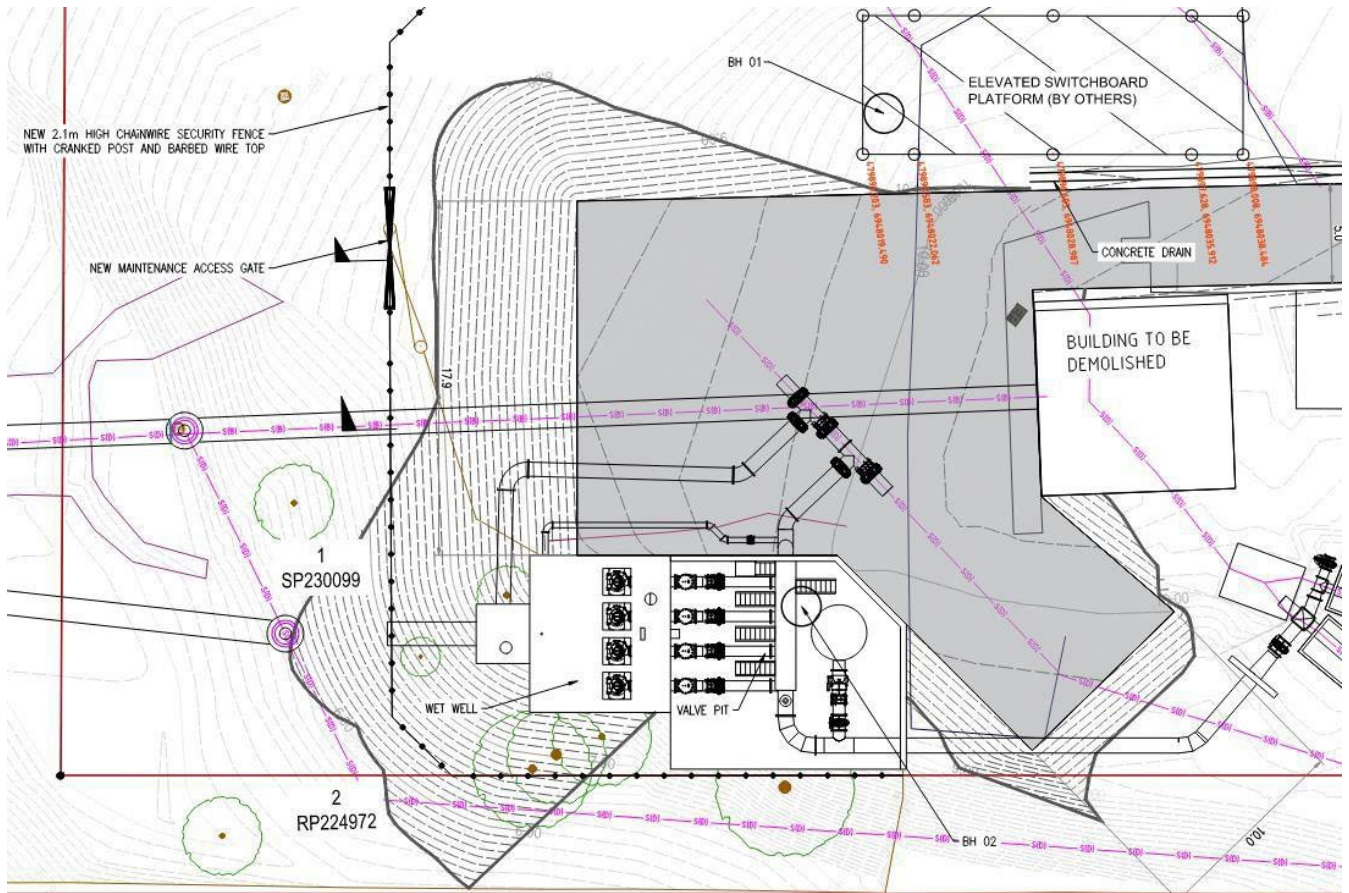


Figure 28 - Bulk Earthworks - Pump Station

3.11.5. Roadway – On Site

Supply and install of new site asphalt access road, as per 4849-81

- Remove and Dispose of Existing Asphalt
- Subgrade preparation
- Concrete pavement, on site dimensions shown below in Figure 29.

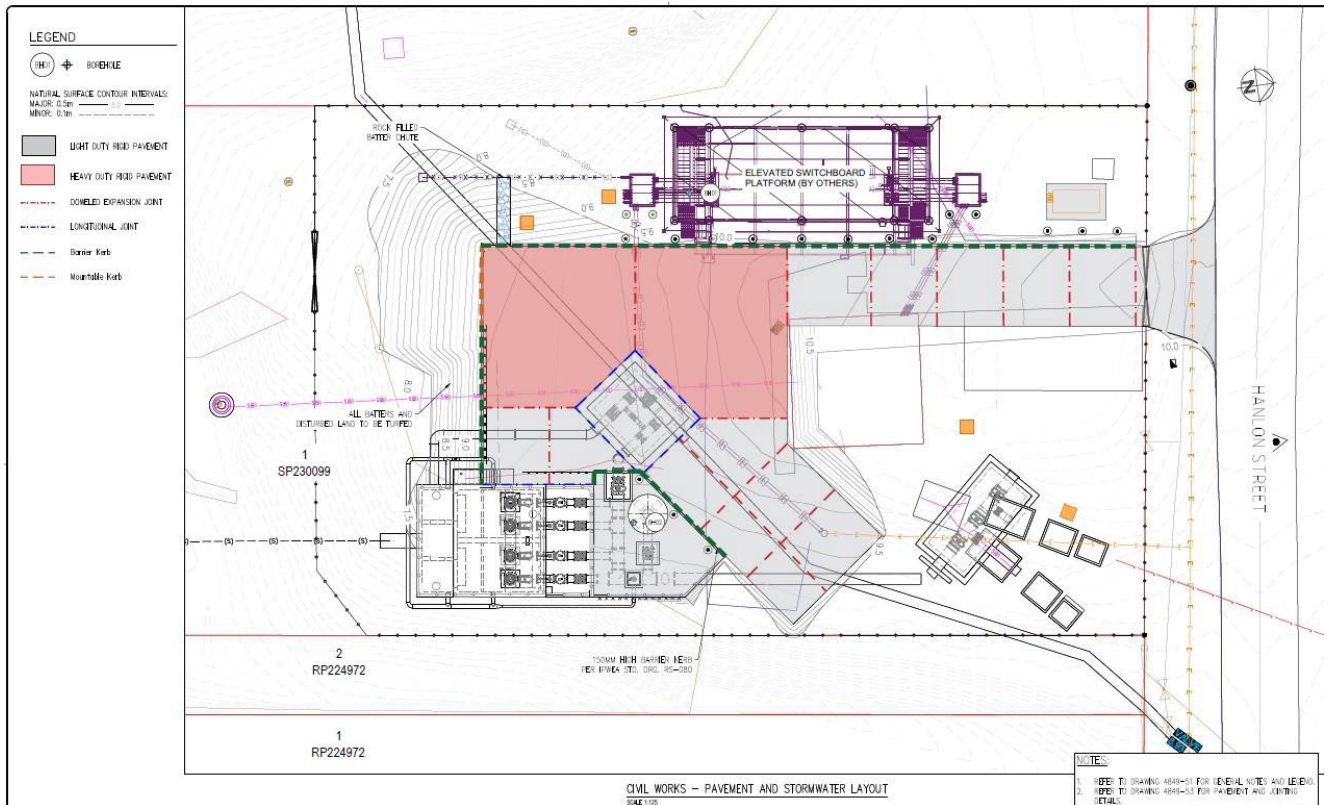


Figure 29 - New Site Access Road Layout

3.11.6. Roadway – Verge Sections

- Construct Pavement external to site and include transition to Halon Street Pavement
- No allowance for Culverts or similar structure

3.11.7. Fence

Replace existing on-site fence and extend to property boundary as per 4849-081.

3.11.8. Fence Removal

- Remove Existing Fence (include allowance to remove all existing site fencing - Approx 200m)

3.11.9. Fence Installation

- Install New Perimeter Fence (Highlighted in green – Allow 240m).
- Install New Gates – Allow 2 x Double Gates (one at front and rear)

3.11.10. Vehicle Access to EROS Area.

- Clean existing site access towards south of property to access MH01 after construction completion.

3.12. Existing Pump Station & Building – Done by Others

- The demolition works require are covered under a separate Scope of Works.

3.13. Temporary Works and Diversions

3.14. Miscellaneous

3.14.1. Landscaping Works

Landscaping Works as per 4849-91, 4849-92, and 4849-93.

- Turfing / hydro mulching / reseeding of disturbed grass areas to be allowed for. There is no specific requirement for type of grass reinstatement as long as it takes before demobilisation.
- Dense landscaping to be provided along Hanlon St SPS frontage

3.14.2. Generator Fill

- Allow to fill the generator with 1300 L of diesel fuel.
- A fill point has been installed at the base of the tower to fill the generator from.

3.15. EI&C Works

EI&C works are to be completed by others.

4. Provisional Sums

4.1. Removal of Existing Service (Provisional)

- A steel pipe runs through the excavation for the wet that is to be removed. This line is no longer in service and believe to connect with a pit beside the current pump station building
- Due to the unknown pipe type, size, and depth, the Subcontractor has provided a provisional sum for this item based on the following resources for 3 days:
 - 4-person pipe crew
 - 30t Excavator

4.2. Odour Control and Ventilation

Wet well and grit chamber odour control and ventilation to be complete by others

4.2.1. Odour Control Unit Slab

- Installation of slab for odour control unit.

4.3. New Electrical Equipment Installation

4.3.1. Cranage

Allowance to be made to lift the following equipment into place as not included in EI&C SOW, as per SP322-0100-CV-DRG-00020.00.IFC and SP322-0100-CV-DRG-00023.00.IFC.

- Remove existing \ Replace Generator with Cat C18-850kVA Enclosed Generator
- Remove Existing \ Replace VSD's with new VSD's pre-installed into MP6030, 6m x 3m enclosure.
- Remove \ Replace MCC
- Due to the unknown equipment type, design arrangement and dimensions, the Subcontractor has provided a Provisional Sum for this item based on the following resources for 2 weeks:
 - 3-person mechanical crew (including a dogman),
 - 100T Crane with counterweights.

4.3.2. Switchboard Access

Scaffold access to be provided to underside of new switchboard platform to allow cables to be run between new \ existing equipment.

- Due to the unknown specifications, dimensions, and location of the access, the Subcontractor has provided a Provisional Sum for this item based on the following resources for 3 days:
 - 3-person mechanical crew
 - EWP
 - Scaffold Hire
 - RPEQ (for temporary works)

4.3.3. Elevated Platform Modification

- Removable grating sections have been installed to allow installation of VSD enclosure building and generator.
- Subcontractor is to include allowance to bolt down frames of generator and VSD enclosure.
- Due to the unknown specifications, dimensions, and location of the modification, we have provided a Provisional Sum for this item based on the following resources for 3 days:
 - 3-person mechanical crew
 - EWP
 - Allowance for Steel Frames

4.3.4. VSD Enclosure Drainage

- Drainage from newly installed VSD enclosure and AC condensation lines to run and connect into existing stormwater drain on site located below in Figure 30.
- Due to the unknown specifications, dimensions, and location of the modification, we have provided a Provisional Sum for this item based on the following resources for 3 days:
 - 3-person mechanical crew
 - EWP
 - Allowance for Steel Frames

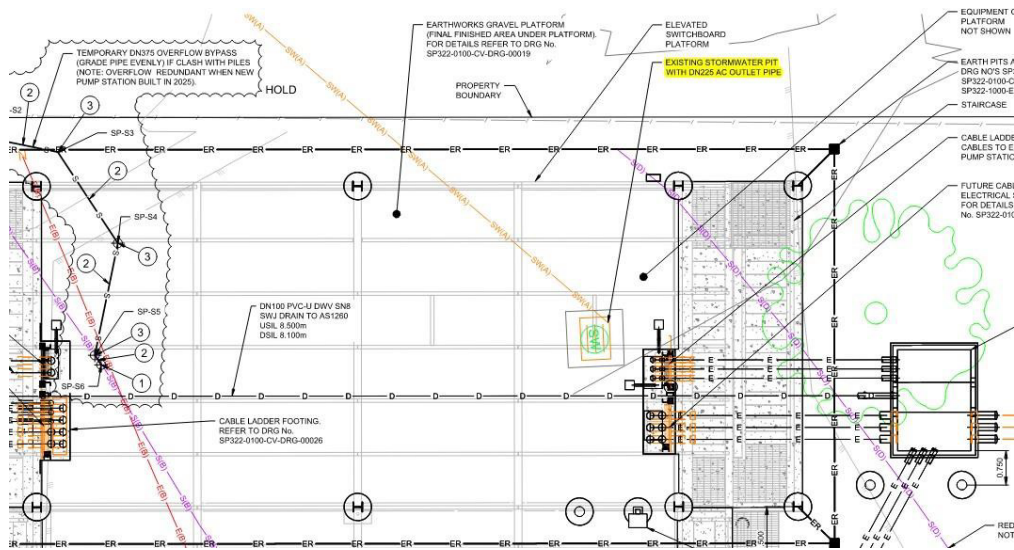


Figure 30 - Existing Stormwater Drain Location

4.3.5. Transformer Foundation

- Allowance to be made for new 2000mm x 3700mm x 500mm transformer slab.

4.3.6. Lighting

- Supply and install of a single handrail mounted light, similar to the below model, is to be installed to light up the access stairs to the top of the pump station.



4.3.7. Inlet Pipework Upgrade (Provisional Sum)

- Allowance for 2x Upstream tie-in shutdowns - allow 10 tankers for 1 day / shutdown

2. Specification

(a) Civil & Structural

DOC NO.	TITLE	VERSION
TMS1437	Technical Specification for Civil Works	2

Not sent to Pensar until after SOW and Pricing finalisation.

(a) Mechanical

DOC NO.	TITLE	VERSION
TMS1639	General Mechanical Works – Standard Technical Specification	2

Not sent to Pensar until after SOW and Pricing finalisation.

3. Drawings

The Subcontract is based on the below referenced drawings at the award date of this Subcontract. John Holland will provide a tracked changes table for IFT to IFC drawings for the Subcontractor to assess the cost impact accordingly. The Subcontractor may be entitled to a variation for the reasonable and necessary costs between the referenced drawings and the final Issued For Construction Drawings including the reasonable and necessary time for the additional cost assessment, valued in accordance with Table 4.2, in accordance with Clause 11.3.

- 2207 - Design Drawings-Rev D_240517 (version received via email on May 30, 2024)
- B4849_Structural Drawings_240524 (version received via email on May 30, 2024)
- 30% - Civil Drawings - Bon_Infra_Civil_B4849_2023-12-14

3.1 Mechanical, Civil and Structural Drawings

Drawing No	Mechanical	Rev
2207-001	COVER SHEET AND DRAWING INDEX	D
2207-002	STANDARD NOTES SHEET 1	D
2207-003	STANDARD NOTES SHEET 2	D
2207-004	OVERALL SITE LAYOUT	D
2207-005	LEVEL INTERACTION DIAGRAM	D
2207-006	PUMP RESISTANCE CURVES	D
2207-007	HYDRAULIC GRADE LINE	D
2207-008	P & ID LEGENDS AND SYMBOLS	D
2207-009	P & ID	D
2207-010	GRAVITY MAIN PLAN AND LONG SECTION	D
2207-011	OUTFALL DETAILS & SECTIONS MH01 PLAN	D
2207-012	OUTFALL DETAILS & SECTIONS MH01 SECTIONS	D
2207-013	OUTFALL DETAILS & SECTIONS LONG SECTION TO CREEK	D

2207-014	SITE LAYOUT - SETOUT PLAN	D
2207-015	TRENCH DETAILS	D
2207-016	PIPEWORK ARRANGEMENT GENERAL OVERVIEW	D
2207-017	WET WELL STRUCTURE ISOMETRIC VIEW	D
2207-018	WET WELL STRUCTURE GENERAL ARRANGEMENT PLAN AT PIPE HEADER LEVEL	D
2207-019	WET WELL STRUCTURE GENERAL ARRANGEMENT PLAN LID LEVEL	D
2207-020	WET WELL STRUCTURE ACCESS STEELWORK	D
2207-021	WET WELL STRUCTURE SECTIONS - SHEET 1 OF 2	D
2207-022	WET WELL STRUCTURE SECTIONS - SHEET 2 OF 2	D
2207-023	WET WELL STRUCTURE DETAILS - SHEET 1 OF 2	D
2207-024	WET WELL STRUCTURE DETAILS - SHEET 2 OF 2	D
2207-025	WET WELL STRUCTURAL HOLE SECTIONS - SHEET 1 OF 1	D
2207-026	WET WELL STRUCTURAL HOLE - DETAILS SHEET 1 OF 1	D
2207-027	RISING MAIN PLAN AND LONG SECTION	D
2207-028	TANTIVY TIE-IN CONNECTION PIT - SPS TO TANTIVY PIT - OVERVIEW	D
2207-029	TANTIVY TIE-IN CONNECTION PIT - SPS TO TANTIVY PIT - LONG SECTIONS	D
2207-030	TANTIVY TIE-IN CONNECTION PIT - PLAN VIEW	D
2207-031	TANTIVY TIE-IN CONNECTION PIT - SECTIONS SHEET 1 OF 1	D
2207-032	TANTIVY TIE-IN CONNECTION PIT - DETAILS SHEET 1 OF 1	D
2207-033	VALVE PIT TIE-IN CONNECTION - EXISTING PLAN VIEW	D
2207-034	VALVE PIT TIE-IN CONNECTION - NEW PLAN VIEW	D
2207-035	VALVE PIT TIE-IN CONNECTION NEW PLAN VIEW AT LID LEVEL	D
2207-036	VALVE PIT TIE-IN CONNECTION SECTIONS - SHEET 1 OF 1	D
2207-037	PIPEWORK SCHEDULE AND DETAILS - SHEET 1 OF 1	D
2207-038	PIPEWORK TYPICAL DETAILS - SHEET 1 OF 1	D
2207-039	PRESSURE TANK DETAILS - SHEET 1 OF 1	D
2207-050	PIPEWORK CONNECTION - STAGE 1 CONNECTION DETAILS	A
2207-051	PIPEWORK CONNECTION - STAGE 2 CONNECTION DETAILS	A
2207-052	PIPEWORK CONNECTION - STAGE 3 CONNECTION DETAILS	A
2207-053	PIPEWORK CONNECTION - STAGE 4 CONNECTION DETAILS	A
2207-054	PIPEWORK CONNECTION - STAGE 5 CONNECTION DETAILS	A
2207-055	PIPEWORK CONNECTION - STAGE 6 CONNECTION DETAILS	A

	Civil	
4849-0032	TEMPORARY WORK DETAILS CONSTRUCTION STAGING	A
4849-51	CIVIL GENEREAL NOTES AND LEGEND SHEET 1	A
4849-52	CIVIL GENEREAL NOTES AND LEGEND SHEET 2	A
4849-53	CIVIL GENEREAL NOTES AND LEGEND SHEET 1	A
4849-61	CIVIL PERMANENT WORKS GENERAL ARANGEMENT	D
4849-62	CIVIL PERMANENT WORKS VEHICLE TURN PATH 12.5M HEAVY RIGID VEHICLE	A
4849-63	CIVIL PERMANENT WORKS CRANE PAD ARRANGEMENT	A
4849-71	TYPICAL SECTIONS SHEET 1	D
4849-72	TYPICAL SECTIONS SHEET 2	A
4849-81	CIVIL PERMANENT WORKS PAVEMENT AND STORMWATER	D
4849-91	CIVIL PERMANENT WORKS LANDSCAPE LAYOUT SHEET 1	C
4849-92	CIVIL PERMANENT WORKS LANDSCAPE LAYOUT SHEET 2	B
4849-93	CIVIL PERMANENT WORKS LANDSCAPE ELEVATIONS	B
	Structural	
B4849-0001	COVER SHEET AND DRAWING INDEX	A
B4849-0002	GENERAL STRUCTURAL NOTES - SHEET 1	A
B4849-0003	GENERAL STRUCTURAL NOTES - SHEET 2	A
B4849-0005	TYPICAL STRUCTURAL DETAILS - SHEET 1	A
B4849-0006	TYPICAL STRUCTURAL DETAILS - SHEET 1	A
B4849-0015	WET WELL GENERAL ARRANGEMENT SITE PLAN	A
B4849-0100	WET WELL GENERAL ARRANGEMENT GEOTECHNICAL SECTION	A
B4849-0110	WET WELL GENERAL ARRANGEMENT PLANS - SHEET 1	A
B4849-0111	WET WELL GENERAL ARRANGEMENT PLANS - SHEET 2	A
B4849-0112	WET WELL GENERAL ARRANGEMENT PLANS - SHEET 3	A
B4849-0115	WET WELL GENERAL ARRANGEMENT SECTIONS - SHEET 1	A
B4849-0116	WET WELL GENERAL ARRANGEMENT SECTIONS - SHEET 2	A
B4849-0120	WET WELL TYPICAL DETAILS SHEET 1	A
B4849-0121	WET WELL TYPICAL DETAILS SHEET 2	A
B4849-0125	WET WELL REINFORCEMENT WET WELL - SHEET 1	A
B4849-0130	WET WELL REINFORCEMENT SECTIONS - SHEET 1	A
B4849-0131	WET WELL REINFORCEMENT SECTIONS - SHEET 2	A
B4849-0140	WET WELL CONCRETE DETAILS SHEET 1	A

B4849-0141	WET WELL CONCRETE DETAILS SHEET 2	A
B4849-0142	WET WELL CONCRETE DETAILS SHEET 3	A
B4849-0160	WET WELL GENERAL ARRANGEMENT PRECAST PLAN	A
B4849-0165	WET WELL REINFORCEMENT PRECAST DETAILS	A
B4849-0170	WET WELL GENERAL ARRANGEMENT ACCESS STAIR	A
B4849-0175	WET WELL ACCESS STAIR DETAILS	A
B4849-0200	MANHOLE MH01 GENERAL ARRANGEMENT PLANS AND ELEVATIONS	A
B4849-0210	MANHOLE MH01 BASE SLAB REINFORCEMENT PLAN AND SECTION	A
B4849-0211	MANHOLE MH01 WALL REINFORCEMENT ELEVATIONS - SHEET 1	A
B4849-0212	MANHOLE MH01 WALL REINFORCEMENT ELEVATIONS - SHEET 2	A
B4849-0213	MANHOLE MH01 TYPICAL DETAILS SHEET 1	A
B4849-0220	MANHOLE MH01 PRECAST LID GENERAL ARRANGEMENT	A
B4849-0221	MANHOLE MH01 PRECAST LID REINFORCEMENT	A
B4849-0300	MANHOLE MH02 GENERAL ARRANGEMENT PLANS - SHEET 1	A
B4849-0315	MANHOLE MH02 SECTIONS AND DETAILS SHEET 1	A
B4849-0316	MANHOLE MH02 SECTIONS AND DETAILS SHEET 2	A
B4849-0320	MANHOLE MH02 REINFORCEMENT PLANS AND SECTIONS	A
B4849-0400	TANTIVY TIE-IN PIT GENERAL ARRANGEMENT PLANS AND ELEVATIONS	A
B4849-0410	TANTIVY TIE-IN PIT BASE SLAB REINFORCEMENT PLAN AND SECTION	A
B4849-0411	TANTIVY TIE-IN PIT WALL REINFORCEMENT ELEVATIONS	A
B4849-0420	TANTIVY TIE-IN PIT PRECAST LID GENERAL ARRANGEMENT	A
B4849-0421	TANTIVY TIE-IN PIT PRECAST LID REINFORCEMENT	A
B4849-0500	DOWNSTREAM PIT GENERAL ARRANGEMENT PLANS AND ELEVATIONS	A
B4849-0510	DOWNSTREAM PIT BASE SLAB REINFORCEMENT SLAB AND SECTION	A
B4849-0511	DOWNSTREAM PIT WALL REINFORCEMENT ELEVATIONS	A
B4849-0520	DOWNSTREAM PIT PRECAST LID GENERAL ARRANGEMENT	A
B4849-0550	PRESSURE VESSEL GENERAL ARRANGEMENT FOOTINGS	A
B4849-0600	TEMPORARY WORKS GENERAL ARRANGEMENT PLAN AND ELEVATION	A
B4849-0610	TEMPORARY WORKS CONSTRUCTION SEQUENCE SHEET 1	A
B4849-0611	TEMPORARY WORKS CONSTRUCTION SEQUENCE SHEET 2	A

3.2 Design Reports

B4849	B4849_Detailed Design Advice Note_C_APPENDICES	
2207	2207 - Hanlon St SPS - Design Report RevA_Compiled	

Not sent to Pensar until after SOW and Pricing finalisation.

4. Pricing Schedule (Bill of Quantities, Schedule of Prices or Rates)

4.1 Pricing Schedule

The Subcontractor shall undertake and complete the Works in accordance with the requirements of the Subcontract, including the Specification and Drawings, for this Subcontract Sum (exclusive of GST) as detailed in this Table 4.1.1.

The Table 4.1.1 - Pricing Schedule includes a Lump Sum Breakdown, for the major elements of the Subcontract Works, to assist in determining the value of progress payments.

For the purposes of assessment of the Payment Claims of the Subcontract Sum (as adjusted from time to time), the value of Works complete shall be determined by multiplying the jointly agreed measurement of Works (or if agreement cannot be reached, then as determined by John Holland) by the relevant Rates set out in the Pricing Schedule.

For the avoidance of doubt, the value of the Subcontract is a lump sum. The Subcontractor has undertaken its own assessment of the information provided to ensure adequate allowance has been included in its lump sum price to complete all required Works.

The Subcontractor must not commence Works on any Provisional Sum items, unless and until, John Holland provides a Direction to the Subcontractor to commence those Works.

Table 4.1.1 - Pricing Schedule including Provisional Sums

Item #	Description	Unit	Quantity	Unit Rate	Amount
2	General				
2.1.	Project and Construction Management	LS	1.00	1,150,309.00	1,150,309.00
2.1.a	Constructability Review Workshop	LS	1.00	20,248.00	20,248.00
2.2.	Mobilisation	LS	1.00	129,594.00	129,594.00
2.3.	Site Running	LS	1.00	105,706.00	105,706.00
2.4.	Demobilisation	LS	1.00	23,587.00	23,587.00
2.5.	O&M, As Built and Other Documentation	LS	1.00	41,126.00	41,126.00
2.9	PFAS Management	LS	1.00		By Others
2.10	Wet Weather Delay Allowance	LS	1.00	106,443.00	106,443.00
3	Hanlon St Site Works				
<u>3.1.</u>	<u>Site Preparation Works</u>	-	-	-	-
3.1.1.	Tree Removal	LS	1.00	12,096.00	12,096.00
3.1.2.	Clearing and Grubbing	LS	1.00	5,776.00	5,776.00
3.1.3.	Temporary Hardstand	LS	1.00	32,798.00	32,798.00

3.1.4.	Temporary Laydown Area	LS	1.00	63,573.46	63,573.46
<u>3.2.</u>	<u>Inlet Sewer Upgrade</u>	-	-	-	-
<u>3.2.1.</u>	<u>Emergency Relief Overflow Structure</u>	-	-	-	-
3.2.1.1	Pipework Supply	LS	1.00	51,553.00	51,553.00
3.2.1.2	Pipework Installation	LS	1.00	66,243.00	66,243.00
3.2.1.3	Headwall Construction	LS	1.00	19,502.00	19,502.00
3.2.1.4	Erosion Protection	LS	1.00	14,155.00	14,155.00
3.2.1.5	Abandon Existing Infrastructure	LS	1.00	44,845.00	44,845.00
<u>3.2.2.</u>	<u>Trunk Main Replacement</u>	-	-	-	-
3.2.2.1	Supply Pipework	LS	1.00	132,223.00	132,223.00
3.2.2.2	Install Pipework	LS	1.00	155,586.00	155,586.00
3.2.2.3	Plug, Grout and Abandon Existing Gravity Main	LS	1.00	54,944.00	54,944.00
3.2.2.4	Plug, Grout and Abandon Existing PS Overflow	LS	1.00	20,357.00	20,357.00
<u>3.2.3.</u>	<u>MH01</u>	-	-	-	-
3.2.3.1	Excavation and Shoring	LS	1.00	113,296.00	113,296.00
3.2.3.2	MH01 Base	LS	1.00	62,282.00	62,282.00
3.2.3.3	MH01 Walls	LS	1.00	186,945.00	186,945.00
3.2.3.4	MH01 Covers	LS	1.00	59,694.00	59,694.00
3.2.3.5	MH01 Lid	LS	1.00	25,139.00	25,139.00
3.2.3.6	Temporary Stop Logs	LS	1.00	32,284.00	32,284.00
3.2.3.7	Overflow Screening	LS	1.00	42,940.00	42,940.00
3.2.3.8	MH01 Fitout	LS	1.00	13,475.00	13,475.00
3.2.3.9	Benching and Overflow Weir	LS	1.00	80,105.00	80,105.00
3.2.3.10	Existing Pipe Cut-in	LS	1.00	10,895.00	10,895.00
<u>3.2.4.</u>	<u>MH02</u>	-	-	-	-
3.2.4.1	Excavation and Shoring	LS	1.00	8,098.00	8,098.00
3.2.4.2	Pre-cast Manhole Supply	LS	1.00		Excluded
3.2.4.3	MH02 Install	LS	1.00	111,462.00	111,462.00
3.3.	New Pump Station				
<u>3.3.3</u>	<u>Pump Station Wet-Well and Grit Chamber</u>	-	-	-	-
3.3.3.1	Installation of Caisson Jacking Rings	LS	1.00	168,627.00	168,627.00
3.3.3.2	Excavation of Wet Well Caisson	LS	1.00		Included in 3.3.3.3

3.3.3.3	Caisson Structure	LS	1.00	1,049,017.00	1,049,017.00
3.3.3.4	Plug and Base Slab Pour	LS	1.00	218,293.00	218,293.00
3.3.3.5	Baffle Vortex Inhibitor	LS	1.00	42,479.00	42,479.00
3.3.3.6	Installation of Internal Split Walls	LS	1.00	413,821.00	413,821.00
3.3.3.7	Benching of Wet Well and Split Walls	LS	1.00	111,790.00	111,790.00
<u>3.3.3.5</u>	<u>Connection Grit Diversion Chamber to New Pump Station</u>	-	-	-	-
3.3.3.5.1	Valve Supply	LS	1.00	527,932.00	527,932.00
3.3.3.5.2	Install Wedge Gate Penstock Valves	LS	1.00	28,050.00	28,050.00
<u>3.3.6</u>	<u>Pump Station Cover and Access Hatches</u>	-	-	-	-
3.3.6.1	Supply of Access Hatch Covers	LS	1.00	317,231.00	317,231.00
<u>3.3.7</u>	<u>Pump Station Fit Out</u>	-	-	-	-
3.3.7.1	Pump Supply (By Others)	LS	1.00		By Others
3.3.7.2	Pump Installation	LS	1.00	34,437.00	34,437.00
3.3.7.3	Pump Guide Rails and Wall Brackets	LS	1.00	48,598.00	48,598.00
3.3.7.4	Vactor and Air Connection Pipework	LS	1.00		Excluded
3.3.7.5	Induct Vent	LS	1.00	4,475.00	4,475.00
3.3.7.6	Pump Riser Pipework	LS	1.00	258,395.00	258,395.00
3.3.7.7	Ladder Access	LS	1.00	38,948.00	38,948.00
<u>3.3.8</u>	<u>Odour Control and Ventilation</u>	-	-	-	-
3.3.8.1	Supply of Odour Control Unit - By Others	LS	1.00		By Others
3.3.8.3	Install of Odour Control Unit - By Others	LS	1.00		By Others
3.3.8.4	Ventilation Pipework - By Others	LS	1.00		By Others
3.4.	Access Structures				
<u>3.4.1.</u>	<u>Platform Access</u>	-	-	-	-
3.4.1.1	Access Stairs	LS	1.00	20,283.00	20,283.00
3.4.1.2	Pump Station Handrail	LS	1.00	23,726.00	23,726.00
3.5.	Open Valve Pit Structure				
3.5.1.	Valve Manifold Slab	LS	1.00	49,178.00	49,178.00
3.5.2.	Retaining Wall	LS	1.00	81,547.00	81,547.00
3.5.3	Ladder Access	LS	1.00	19,402.00	19,402.00
3.6.	Outlet Pipework Tie-ins				

3.6.1.	Valve and Flowmeter Supply	LS	1.00	182,268.00	182,268.00
3.6.2.	Pipework Supply	LS	1.00	144,593.00	144,593.00
3.6.2.1.	Valve Pit Cover Supply	LS	1.00	126,295.00	126,295.00
<u>3.6.3.</u>	<u>Stage 1 Connection</u>	-	-	-	-
3.6.3.1.	Installation of New Valve Pit	LS	1.00	78,124.00	78,124.00
3.6.3.2.	Replace Pipework and Valves	LS	1.00	7,475.00	7,475.00
<u>3.6.4.</u>	<u>Stage 2 Connection</u>	-	-	-	-
3.6.4.1.	Replace Pipework and Valves	LS	1.00	7,475.00	7,475.00
<u>3.6.5.</u>	<u>Stage 3 Connection</u>	-	-	-	-
3.6.5.1.	Installation of Jump Over Line	LS	1.00	44,457.00	44,457.00
3.6.5.2.	Removal of Existing Valve Pit	LS	1.00	8,890.00	8,890.00
<u>3.6.6.</u>	<u>Stage 4 Connection</u>	-	-	-	-
3.6.6.1.	New Valve Pit	LS	1.00	263,920.00	263,920.00
3.6.6.2.	Installation of Pipework	LS	1.00	20,177.00	20,177.00
3.6.6.3.	Removal of Existing Junction Valve Pit	LS	1.00	8,890.00	8,890.00
3.7.	Pipework				
<u>3.7.1</u>	<u>External Manifold</u>	-	-	-	-
3.7.1.1	Pipework Supply	LS	1.00	165,815.00	165,815.00
3.7.1.2	Valve Supply	LS	1.00	81,024.00	81,024.00
3.7.1.3	Installation of Valves and Pipework	LS	1.00	44,875.00	44,875.00
3.7.1.4	Air Bleed Assembly	LS	1.00	23,599.00	23,599.00
3.7.1.5	Pipe Supports (Supply and Install)	LS	1.00	79,192.00	79,192.00
3.7.1.6	Air Valve	LS	1.00	42,879.00	42,879.00
3.7.3	Pump Station Rising Main	LS	1.00	605,668.00	605,668.00
<u>3.7.4</u>	<u>Surge Tank Pipework</u>	-	-	-	-
3.7.4.1	Pipework Supply	LS	1.00	38,346.00	38,346.00
3.7.4.2	Valve Supply	LS	1.00	6,091.00	6,091.00
3.7.4.3	Installation of Valves, Pipework and Supports	LS	1.00	5,874.00	5,874.00
3.7.5	Potable Water Line to Valve Pit	LS	1.00	7,384.00	7,384.00
<u>3.7.6</u>	<u>Cross Connection Tantivy St Rising Main to Pump Station</u>	-	-	-	-
3.7.6.1	Pipework Supply	LS	1.00	137,762.00	137,762.00
3.7.6.2	Valve Supply	LS	1.00	74,158.00	74,158.00

3.7.6.3	Excavation and Shoring	LS	1.00	121,663.00	121,663.00
3.7.6.4	Pre-Assembly	LS	1.00	13,986.00	13,986.00
3.7.6.5	Tie-in to Tantivy Main	LS	1.00	42,924.00	42,924.00
3.7.6.6	Pit Cover Supply	LS	1.00	75,867.00	75,867.00
3.7.6.7	Installation of Valves and Pipework	LS	1.00	40,932.00	40,932.00
3.7.6.8	Valve Pit	LS	1.00	253,381.00	253,381.00
3.7.6.9	Hydrotesting	LS	1.00	5,298.00	5,298.00
<u>3.9</u>	<u>Surge Vessel Tank</u>	-	-	-	-
3.9.1	Supply Tank - By Others	LS	1.00		By Others
3.9.2	Bored Support Piers	LS	1.00	56,281.00	56,281.00
3.9.4	Site Installation & Foundation	LS	1.00	19,085.00	19,085.00
3.10.	Conduit and Pit Network				
3.10.1.	Switchgear Platform to Pump Station	LS	1.00	47,011.00	47,011.00
3.10.2.	New Transformer to Switchgear Platform	LS	1.00	12,145.00	12,145.00
3.10.3.	General Distribution to Field Devices	LS	1.00	28,005.00	28,005.00
3.10.4.	Lighting	LS	1.00	2,976.00	2,976.00
3.11.	Access and Roadway				
3.11.1.	Guard Rail	LS	1.00	34,684.00	34,684.00
3.11.2.	Drainage	LS	1.00	5,428.00	5,428.00
3.11.3.	Bollards	LS	1.00	24,209.00	24,209.00
3.11.4.	Bulk Earthworks	LS	1.00	24,361.00	24,361.00
3.11.5.	Roadway – On Site	LS	1.00	342,053.00	342,053.00
3.11.6.	Roadway – Verge Sections	LS	1.00		Included in 3.11.5
<u>3.11.7.</u>	<u>Fence</u>	-	-	-	-
3.11.7.1	Fence Removal	LS	1.00	3,704.00	3,704.00
3.11.7.2	Fence Reinstatement	LS	1.00	38,473.00	38,473.00
3.11.8	Vehicle Access to Grit Chamber	LS	1.00	3,175.00	3,175.00
3.14.	Temporary Works and Diversions				
3.15	Miscellaneous				
3.15.1	Landscaping Works	LS	1.00	47,984.00	47,984.00
3.15.2	Generator Fill	LS	1.00	6,919.00	6,919.00
	Total for Project ex PSum (excluding GST)				9,909,283.46

	Provisional Sum Items (Works to be Agreed and Directed by John Holland)				
3.3.2	Removal of Existing Service (Provisional)	P.Sum	1.00		12,500.00
3.3.3.3P	Temporary Jacks (if required) (Provisional)	P.Sum	1.00		50,000.00
3.3.8.2	Odour Control Unit Slab (Provisional)	P.Sum	1.00		21,000.00
3.7.3.1	DN250 Scour Line (Provisional)	P.Sum	1.00		220,000.00
3.13.	New Electrical Equipment Installation				
3.13.1.	Cranage (Provisional)	P.Sum	1.00		80,000.00
3.13.2.	Switchboard Access (Provisional)	P.Sum	1.00		22,500.00
3.13.3.	Elevated Platform Modification (Provisional)	P.Sum	1.00		20,000.00
3.13.4.	VSD Enclosure Drainage (Provisional)	P.Sum	1.00		10,000.00
3.13.5.	Transformer Platform	P.Sum	1.00		28,000.00
3.13.6.	Lighting	P.Sum	1.00		4,000.00
3.14.1.	Inlet Pipework Upgrade (Provisional)	P.Sum	1.00		100,000.00
3.15.3	Reinstatement of Spoil from the Stockpile Site (Provisional)	P.Sum	1.00		70,000.00
	Total Provisional Sums				638,000.00
	Total for Project (excluding GST)				10,547,283.46
	GST for project (GST rate = 10.00%)				1,054,728.35
	Total for Project (including GST)				11,602,011.81

Table 4.2 - Subcontractor Labour rates

 Pensar				
Labour Rates				
Description	Monday to Friday Hourly Rate	Overtime Rates Hourly Rate	Night Shift** Hourly Rate	All Other Hours Hourly Rate
	0600-1800 Up to 8hrs	Monday to Friday (Between 8 & 10hrs) Saturday (Up to 3hrs)	Monday to Friday Up to 8hrs	Includes Public Holidays
Project Manager	\$ 240	\$ 320	\$ 320	\$ 385
Construction Manager	\$ 265	\$ 350	\$ 350	\$ 425
Senior Executive	\$ 350	\$ 465	\$ 465	\$ 560
Project Engineer	\$ 180	\$ 240	\$ 240	\$ 290
Site Engineer	\$ 160	\$ 215	\$ 215	\$ 255
Supervisor / Foreman	\$ 165	\$ 220	\$ 220	\$ 265
Leading Hand	\$ 125	\$ 165	\$ 165	\$ 200
Labourer - Skilled	\$ 100	\$ 135	\$ 135	\$ 160
Labourer - Unskilled	\$ 85	\$ 115	\$ 115	\$ 135
Surveyor	\$ 220	\$ 295	\$ 295	\$ 350
Electrical or Control System Engineer	\$ 180	\$ 240	\$ 240	\$ 290
Engineer (RPEQ)	\$ 350	\$ 465	\$ 465	\$ 560
Electrician	\$ 125	\$ 165	\$ 165	\$ 200
Concreter	\$ 105	\$ 140	\$ 140	\$ 170
Line Marker	\$ 95	\$ 125	\$ 125	\$ 150
Plumber	\$ 125	\$ 165	\$ 165	\$ 200
Fitter (Mechanical)	\$ 125	\$ 165	\$ 165	\$ 200
Welder (incl. equipment)	\$ 230	\$ 305	\$ 305	\$ 370
Truck Driver	\$ 85	\$ 115	\$ 115	\$ 135
Plant Operator	\$ 90	\$ 120	\$ 120	\$ 145
Service locator	\$ 260	\$ 345	\$ 345	\$ 415
Traffic Controller	\$ 100	\$ 135	\$ 135	\$ 160
Environmental Representative	\$ 180	\$ 240	\$ 240	\$ 290
Safety Representative	\$ 180	\$ 240	\$ 240	\$ 290
Community Liaison Officer	\$ 140	\$ 185	\$ 185	\$ 225
Quality Representative	\$ 180	\$ 240	\$ 240	\$ 290

Table 4.3 - Subcontractor Plant and Equipment Rates

Type and Description		Unit	Dayworks Rate (Excluding GST)
4 hours min + travel (unless otherwise noted)			
Bobcat			
Caterpillar 246 or equivalent		hr	\$ 150
1800m Road Broom		hr	\$ 45
Borer		hr	\$ 45
Chain digger		hr	\$ 45
Profiler & Broom		hr	\$ 75
Power rake		hr	\$ 45
Positraks			
2100 Wide		hr	\$ 170
Backhoes			
Caterpillar 428 or equivalent		hr	\$ 170
Combos			
3 - 4 Tonne		hr	\$ 180
Borer		hr	\$ 30
Breaker		hr	\$ 70
5 - 6 Tonne		hr	\$ 195
Borer		hr	\$ 30
Breaker		hr	\$ 70
Excavators			
8 Tonne		hr	\$ 190
14 Tonne		hr	\$ 200
Breaker		hr	\$ 80
Grab/Compaction Wheel		hr	\$ 35
20 Tonne		hr	\$ 205
30 Tonne		hr	\$ 220
Breaker		hr	\$ 90
Grab/Compaction Wheel		hr	\$ 35
Rollers (*Excluding Operator)			
Smooth drum - single	12.0 tonne	day	\$ 560
	17.0 tonne	day	\$ 600
Smooth drum - double	10.0 tonne	day	\$ 545
Pad foot	12.5 tonne	day	\$ 560
	17.0 tonne	day	\$ 600
Rammax (or equivalent)	1-1.5 tonne (remote)	day	\$ 310
Road Trucks			
10 Meter Tandem		hr	\$ 140
20 Meter Truck & Dog or Semi		hr	\$ 200
Truck & Quads		hr	\$ 200
Crane truck (up to 5t lift)		hr	\$ 200
Crane truck (up to 10t lift)		hr	\$ 230
Crane truck (semi up to 22t lift)		hr	\$ 290
Flatbed 2-5m3 Tipper (*Excluding Operator)		hr	\$ 95
Watercarts			
7000L Single axle (*plus 1hr travel)		hr	\$ 130
10,000L Tandem axle (*plus 1hr travel)		hr	\$ 150
Water trailer – 1500L (*Excluding Operator)		day	\$ 360
Water truck – 2000L (*Excluding Operator)		day	\$ 400
4 hours min + travel (unless otherwise noted)			
EWP			
Insulated (23m)		hr	\$ 285
Borer Lifter			
(3 hr min + travel)		hr	\$ 315
Cranes			
20 tonne AWD Franna (*2 hrs min + travel)		hr	\$ 255
25 tonne AWD Franna (*2 hrs min + travel)		hr	\$ 275

All Terrain Mobile Cranes 60 tonne (*4 hrs min + travel)		hr	\$ 490
All Terrain Mobile Cranes 80 tonne (*4 hrs min + travel)		hr	\$ 530
All Terrain Mobile Cranes 110 tonne (*4 hrs min + travel)		hr	\$ 590
All Terrain Mobile Cranes 130 tonne (*4 hrs min + travel)		hr	\$ 685
All Terrain Mobile Cranes 160 tonne (*4 hrs min + travel)		hr	\$ 840
All Terrain Mobile Cranes 200 tonne (*8 hrs min + travel)		hr	\$ 1025
Crane Dogman / Rigger		hr	\$ 130
Generators			
15 – 20 kVa		day	\$ 250
Vacuum Excavators (rates exclude disposal fees)			
Up to 2500L (unit + single operator)		hr	\$ 285
5000L (unit + single operator)		hr	\$ 310
10000L (unit + single operator)		hr	\$ 350
Concrete Pumps (rates exclude primer and m3 pump)			
Line pump		hr	\$ 255
Up to 40m boom pump		hr	\$ 345
Over 40m and up to 50m boom pump		hr	\$ 475

5. Programming Requirements

5.1 Program and Milestone Dates

- (a) The Subcontractor must perform the work under this Subcontract diligently with due expedition and in an orderly manner so as to achieve the nominated Milestone Dates as set out in Table 5.1: Milestone Dates.
- (b) If the Subcontractor reasonably believes that it may be delayed in achieving, or will not achieve, the required milestone in the performance of the work under the relevant Milestone Date, the Subcontractor must provide notice of the missed milestone relevant Milestone Date to the John Holland Representative within 5 Business Days.
- (c) For the purpose of contract award, the Subcontractor has provided a work program with reference (W-T24-30 JHG Hanlon St PS Upgrade.Rev.E) and identified as "5.1.1 Work Program".
- (d) Following award of the Subcontract, the Subcontractor in collaboration with John Holland, will develop a detailed construction schedule to the satisfaction of John Holland (acting reasonably) to meet the nominated Milestone Dates, unless earlier Milestone Dates are agreed between the parties.

Table 5.1 – Milestone Dates

Milestone Description	Milestone Date
Design Phase IFC Drawings	9 th August 2024
Mobilise to Project Site	7 weeks from contract award
Completion and Demobilisation	60 weeks from contract award

5.1.1 Work Program



5.2 Christmas Shutdown

Note that the Site will be closed from the 21 December until the 5 January 2025.

5.3 Programming Requirements

The Subcontractor's program shall be developed using Critical Path Method (CPM) and presented on a time scaled bar chart fully continuous in logic that clearly highlights the critical path(s) throughout the network. The Subcontractor's program shall be submitted in both hard and electronic (native file) copy forms using a computer software package approved by John Holland. Unless approved otherwise in writing by John Holland, the preferred software packages accepted is MS Project.

The Subcontractor must ensure that the program is consistent with the Subcontractor's tender and, as a minimum, complies with the requirements set out below.

The Subcontractor shall break up the Works into identifiable items of work (called activities) for inclusion in the Subcontractor's program. Without limitation, each activity shall be defined using criteria including the following:

- be an activity of work, not a piece of equipment;
- be readily measurable for progress;
- express the logical progression of the work;
- where applicable, form part of one separable portion only;
- be suitable for critical path and dependency networking;
- be continuous from start to finish;
- be located in a single geographical area;
- generally be of a single "trade" or work content;
- have a duration less than 21 working days except for long lead procurement items;
- be compatible with quality assurance plans, e.g. include any dependant quality control activities; and
- activities be organised to equate to a line item in the progress payment claim break-up. There may be multiple activities to one progress claim item, but there should not be more than one progress claim item per activity.

The Subcontractor program shall be updated on a weekly basis including a narrative on reasons for any slippage and propose mitigation actions to recover lost time. The Subcontractor's program submitted for approval, and all subsequent updates shall show the orderly completion of the Works on or before the Date(s) for Completion and shall include (where applicable):

- the approved program as a baseline;
- the previous status update as a baseline;
- a data date line to indicate the cut-off date of progress measurement;
- resources necessary to complete the Works with due expedition and without delay;
- sufficient detail to enable John Holland to verify that the scheduling of the Subcontractor's activities are in accordance with the Construction Program;
- include or be accompanied by a calendar specific to the Works and showing all working days (as well as weekends), public and statutory holidays, and any vacation periods;
- show dependencies between activities and activities start and finish dates including time for mobilisation for the Works;
- show activity durations including float at task and project levels;
- show the activities and milestones for which John Holland is responsible;
- depict any relevant off-site construction and procurement activities, and
- provide sufficient details of administrative and trade activity to fully describe the Subcontractor's planning for the execution of the Work including:

- allow for procurement and submission of Design Documents and management plans;
- allow for procurement of all key elements of the Works;
- allow for inspection and testing for key elements of the Works;
- allow for provision and approval of samples of key elements of the Works;
- show as Milestones all critical activities and the Payment Milestones;
- the satisfaction of Legislative Requirements or other consents relevant to the Works;
- provision of Commissioning and Testing Procedures and carrying out of the Commissioning Tests, Performance Tests and Reliability Acceptance Test;
- provision of manuals, survey records, certificates, warranties, quality records as and when such other items as are required by the Subcontract, and
- the coordination with works to be supplied by others.

5.4 Subcontractor Program and Reporting Guideline Checklist

To assist in the review and approval of the Subcontractor's program, John Holland may utilise the below Program Guideline Checklist.

Item #	Requirement	Compliant / Not Compliant	Comments
1	The Schedule was developed using the primary approved scheduling software and conforms to the standards supplied by John Holland regarding schedule format.		
2	The Subcontractor's schedule was submitted through both a hard and soft copy using the primary approved scheduling software.		
3	Activity must be working task, not equipment.		
4	Tasks must be readily measurable for progress through duration, logic, percent complete and activity type.		
5	Must express the logical progression of work to completion and with regards to the final deliverable product.		
6	Task networks must form part of one separable portion only and cannot be included in multiple facilities, areas, or parts of the works. This does not apply to summary and level of effort tasks.		
7	Be suitable for dependency networking. Generally, be of a single trade or work content. Be continuous from Start to Finish.		
8	Have duration of less than 21 calendar days with the exception of long-lead procurement items and summary activities.		
9	Be compatible with QA plans e.g. include any dependant quality control activities where required.		
10	Use activity codes to organize tasks to a (Grouping) line item in the progress payment claim break-up. There may be multiple activities to one progress claim item, but there should not be more than one progress claim per item.		
11	Schedule must be able to provide Longest Path as well as critical activity paths through the dependency networks. No tasks will be represented as having less than 0 days total float prior to commencement of the works.		
12	Activities must include/accurately represent: Duration of each task as it relates to the works and Early/ Late Dates with no allowance for unrealistic variances between them (Total Float and Free Float).		

Item #	Requirement	Compliant / Not Compliant	Comments
13	Budgeted direct labour hours by trade, and indirect labour hours as resources against activities.		
14	Dates for submissions to John Holland of documents requiring review		
15	Dates for submissions to John Holland of specifications (design data) of subcontractor supplied equipment.		
16	Any activities to be completed by others which may affect the completion of the work including: Issue of information, materials or equipment for use or incorporation in work. Inter-related activities by any other subcontractors engaged by John Holland; Review time for drawings and calculations in accordance with the subcontract. Delivery dates for John Holland supplied equipment, with ties to installation tasks.		
17	Activities must be tied into existing services and utilities with reference made to these integration points found within the schedule. (Where applicable)		
18	Statutory approval dates		
19	Date for possession of the site as per the subcontract provided date.		
20	Date for practical completion of the whole works and where a date for practical completion is specified, for a part of the works, that part; manufacture and delivery durations/dates for subcontractor supplied equipment and materials, with ties to installation tasks. This includes Required on site dates for necessary equipment per the construction requirements.		
21	Activity durations shall be in working days, with the activity calendar reflecting time off and required non-work intervals. Weather delays must not be included in the calendars. The calendars must include contractually agreed RDO's, public holidays for the location and workdays per week where the work is being executed. Calendars also have to reflect the agreed hours of work per day e.g. 6:30am to 6:30pm Monday to Saturday unless agreed otherwise		
22	Off Site and On Site tasks shall be clearly stated. This can be done as either level 2 of the WBS or within documented coding. These must be included with the submitted hard copy schedule and within submitted layouts.		

Item #	Requirement	Compliant / Not Compliant	Comments
23	No constraints shall be used to force activities to show as critical when they could be performed earlier. Subsequently, the Subcontractor's schedule should show, to the best of their ability, a baseline method for completing the subcontract; adhering to contractual dates. Delays to the works will be shown through the schedule updates following baseline submission. User imposed restrictions to work will also be represented logically and used in accordance with the work being performed and the mandate being established. Constraint overuse will dictate Non-Conformance.		
24	From the Subcontractor's Schedule, the subcontractor shall prepare a histogram for the purpose of estimating manning for each week of the subcontract period for the baseline case.		
25	Contain a "Key Milestone" grouping listing all of the Key Dates provided within the subcontract document. These dates must match the Key Milestone Schedule in section 5.3 below and not be the product of manipulation.		
26	Schedule Content complies with total scope of subcontract, including offsite work such as Engineering, Procurement, fabrication, Onsite work such as Temporary works		
27	Schedule Log Statistics meets criteria:		
28	Work Breakdown Structure aligns with John Holland Work Breakdown Structure		
29	Project Redundancies (Tasks, Milestones and WBS/Coding Elements):		
30	P6 User Preferences:		
31	Duration Type Recorded:		
32	Percent Complete Type Recorded:		
33	Activity Type Recorded:		
34	Calendars Recorded/Issues and Concerns:		
35	Coding Libraries: (List Code and Purpose)		
36	Code Level 1: Package No.		
37	Code Level 2: Phase		
38	Code Level 3: 5 Level Schedule Breakdown Structure (SBS)		
39	Discipline Code		
40	Open-Ends: (Listed Instances)		

Item #	Requirement	Compliant / Not Compliant	Comments
41	Schedule Errors (Out of Sequence, Invalid Relationships) (Listed Instances)		

Design Brief and Other Documents

Not Used.

Schedule G – Project Conditions

1. Facilities

1.1 General

John Holland shall not be liable to the Subcontractor for any interruption or withdrawal of utility services which are beyond the reasonable control of John Holland.

1.2 Electricity

The Subcontractor shall provide;

- All electrical power to enable the performance of the Works (up to 3kVA generator)
- Leads, lead hooks and safety stands.

1.3 Storage on Site

John Holland will provide limited storage space. The Subcontractor acknowledges and agrees that the use of any storage area within the Site is subject to availability and any such use is solely at the discretion of John Holland.

Subcontractors shall be responsible for;

- accurately quantify all materials delivered to site to minimise site storage, waste and unnecessary materials handling.
- notifying John Holland at least 24 hours in advance of planned deliveries. Unscheduled deliveries may be turned away by John Holland.
- ensuring that the surrounding roads are kept open and clean for traffic at all times and disruptions minimised.
- providing any additional traffic control required for deliveries or pick-ups
- complete re-instatement of the area to John Holland's satisfaction

1.4 Subcontractor's Tools and Equipment

Storage of Subcontractor's Tools and Equipment on Site is solely at the Subcontractor's own risk. John Holland bears no responsibility and has no liability for loss of Subcontractor's tools and/or equipment stored on Site by the Subcontractor. The Subcontractor must arrange for all tools and materials to be stored in lockable storage held on Site, or remove his tools daily to and from Site.

1.5 Design Review

The Subcontractor's proposal is based on the drawings provided and have assumed the IFC drawings would be provided at contract award. The Subcontractor has allowed to prepare the management plans as required upon project award and have included an allowance for 3 days (8-hour per day) constructability review and workshop in Item 2.1.1.

1.6 Existing Services

The Subcontractor has made no allowance for the temporary support or relocation of any existing onsite services unless noted specifically in the [scope of works](#) drawings, where those services impact the proposed methodology. The Subcontractor assumes all existing services do not conflict with the design.

1.7 Groundwater

The Subcontractor's offer has allowed for a 6" the well point diesel piston pump and a lay flat hose for the dewatering works during the wet well excavation. This allowance was based on the Subcontractor's

assessment of the provided Geotechnical Investigation Report, Job No DE21/275. No spearing methodology for dewatering has been included in the Subcontractor's tender.

Allowance has been made for dewatering to the capacity of a 2" flexdrive pump c/w wilt socks for all other excavation due to the unknown groundwater conditions at time of tender.

1.8 Ground Conditions / Geotech

The Subcontractor has assumed that 100kPa bearing capacity for all thrust blocks, footings/pits and roadways / access tracks is achievable and no allowance has been made for subgrade remedial works or imported materials.

Based on the Subcontractor's preliminary assessment, the Subcontractor assumed existing ground conditions are suitable for the proposed construction methodology. Any significant changes to the methodology (incl. any shoring requirements) due to poor ground conditions which could not have been anticipated would be deemed as a variation to the contract. No allowances have been made for any piling activities.

1.9 Unsuitable and/or Contaminated Material

No allowance has been made for encountering, identification, testing, treating, removing, or replacing unsuitable or contaminated material including acid sulphate soil on site.

1.10 Excess Spoils

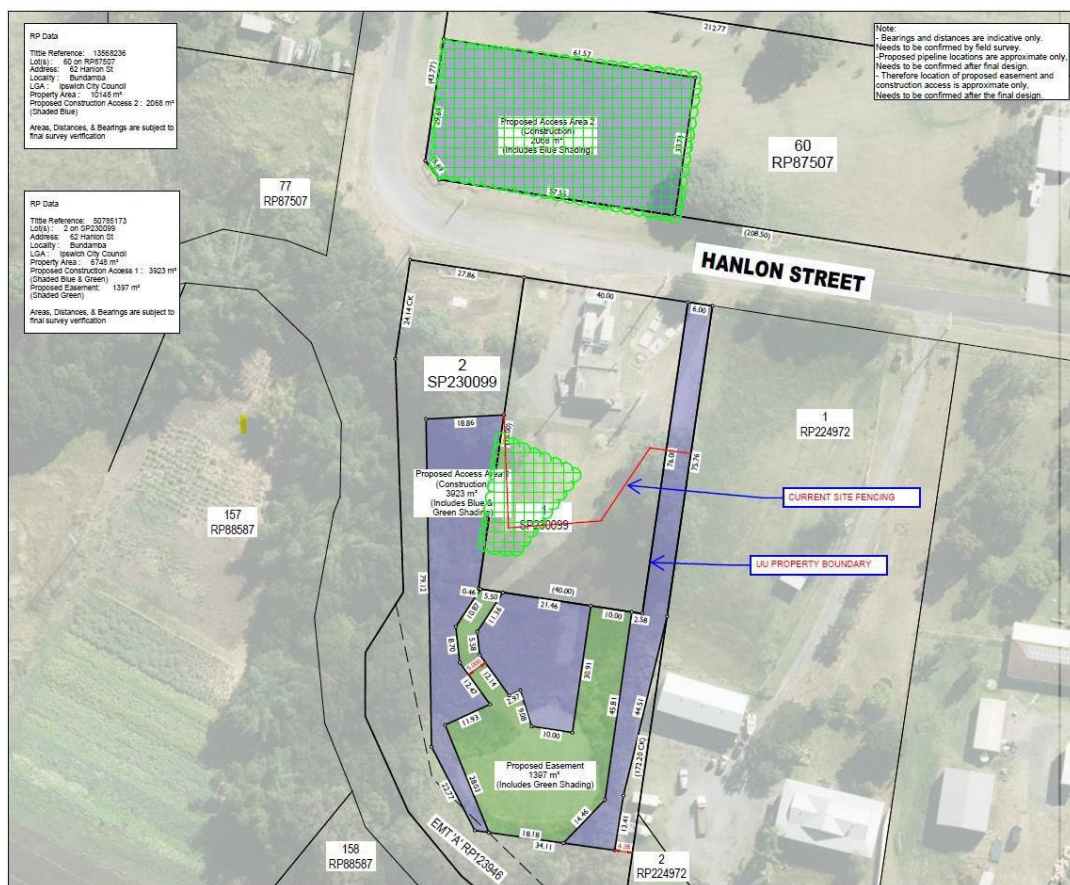
The Subcontractor's offer has allowed for all excess spoils to be stockpiled on John Holland's nominated offsite Access Area 2.

The Subcontractor has conducted a spoil quantity assessment against John Holland's nominated areas highlighted in the following image. The Subcontractor would like to note that any excess spoil can only be stockpiled on site in a very temporary capacity (up to 1 – 2 days only) as it will impinge on the Subcontractor's ability to carry out the works due to the limited space available on site. Therefore, most of the excess spoils will need to be stockpiled offsite in the proposed Access Area 2.

The Subcontractor has calculated the total spoil quantity of approximately 3100 m³ which consists of 500m³ of temporary spoils (can be backfilled) and 2600m³ of permanent excess spoils. Based on the assumption of average stockpile height of 1m, the calculated spoil volume is highly likely to exceed the capacity of Access Area 2. As such, the Subcontractor strongly recommends John Holland to extend the area of Access Area 2 if its intended function is for stockpile of spoils and temporary laydown for plant and materials.

The Subcontractor would like to further note that the offer is currently based on leaving all the excess spoil in Access Area 2, no allowance has been made at this point to bring the spoils back to the SPS site upon completion of the construction activities or any capping or rehabilitation of the stockpiles over the stockpiles. If this is the intent is to bring the stockpiles back to the SPS site, John Holland, please advise the backfilling requirement, eg. controlled/uncontrolled fill, backfill locations and requirement for excess topsoils. Due to limited information at time of tender, a provisional sum Item 3.15.3 – Reinstatement of Spoil from the Stockpile Site has been nominated for this activity.

No allowance has been made for any off-site disposal.



Stockpile location nominated by John Holland.

1.11 Rock

No allowance has been made for encountering rock onsite in any open trench excavations or piling activities. Rock is considered to be any rock-like or rock-based material that requires a change in plant and equipment or has a negative impact on overall productivity. Based on the Geotechnical Investigation Report, Job No DE21/275 provided, the Subcontractor believes the risk of encountering rock is low.

1.12 Piling

Allowance has been made for bored piles only. The Subcontractor assumes the ground is dry and self-supporting. No water ingresses to the boreholes. This is based on Table 4 - Groundwater Conditions Summary, Geotechnical Investigation Report, Job No DE21/275 provided, where it has indicated the groundwater was only encountered at the depth of 9m below the exiting ground surface level. The Subcontractor notes that the piling methodology would need to be reassessed if the Subcontractor found the above assumptions incorrect. The Subcontractor reserves the rights to revise the Subcontractor's quotation to suit the new ground condition in this case. No allowance has been made for any pile testing.

1.13 Shutdown Works

All isolation/draining required would be carried out by UU/JHG as required to accommodate works.

1.14 Valves Supply

The Subcontractor's offer has allowed for the valves and gearboxes described in the valve schedule shown on 2207-037. The Subcontractor would like to note that the Subcontractor's strongly suggested allowing for coupling with gearboxes and spindle extensions for all valves sizes DN300 and above, which is not the case in the current design. The Subcontractor is happy to reprice these items should John Holland request these valve upgrades.

1.15 Reinstatement

The Subcontractor has included proof roll and grade finished surface levels to the extent disturbed during construction works.

1.16 Interface with Other Contractors

Allowance has been made for interface with sperate contractors on site, such as EC&I etc. The Subcontractor assumes, however, any delays caused by sperate contractors will be claimable delays.

No allowance has been made for liaising with any third-party authorities such as Energex, DTMR, BCC etc.

1.17 Commissioning

The Subcontractor has not included commissioning assistance at this stage and assume this is covered by John Holland and the relevant electrical contractor engaged.

Facilities and services to be provided, if required

Note: Every Line In The Schedule Must Be Completed. If A Line Is Not Completed The Obligation Will Be On The Subcontractor.

Item	Description	Supplied By John Holland	Supplied by Subcontractor
A - Site Accommodation			
1	Lunch Room	☒	☐
2	Toilets	☒	☐
3	Storerooms and Sheds	☐	☒
4	Cleaning of above facilities	☒	☐
5	Shower rooms	☒	☐
6	Hand wash facilities	☒	☐
		☐	☐
B - Temporary Services			
1	Electricity – 240v	☒	☐
2	Electricity – 415v – 3 phase	☒	☐
3	Distribution Sub-boards	☒	☐
4	Generator 3kVA	☐	☒
5	Access Lighting	☐	☒
6	Other lighting, leads, etc.	☐	☒
7	Water at fixed points	☒	☐
8	Temporary Access	☒	☐
C – Plant			
1	Scaffolding	☐	☒
2	Craneage	☐	☒
3	Unloading	☐	☒
D – General			
1	Telephone	☐	☒
2	Prototypes and Samples	☐	☒
3	Set Out	☐	☒
4	Shop Drawings	☒	☐
5	Clean-up of Subcontract Works	☐	☒

Item	Description	Supplied By John Holland	Supplied by Subcontractor
6	Rubbish Bins	☒	☒
7	Protection of Subcontract Works	☐	☒
8	First aid stations/kits	☐	☒
		☐	☐

2. Health & Safety Requirements

Definitions:

'Act' means the State and or as applicable Federal parliamentary act (including associated regulations) relating to work health and safety applicable to the relevant State or Territory jurisdictions of Australia in which the Subcontractor carries out the work under the Subcontract.

1. Legislation, Regulations, Codes and John Holland Policies and Standards

Without limiting the generality of any other provision of this Subcontract, the Subcontractor must comply with the provisions of the Act and any Regulations made under the Act, Codes and Draft Codes of Practice including Industry Standards issued which are relevant to any part of the work under the Subcontract.

In performing the work under the Subcontract, the Subcontractor shall comply with:

- a. all Laws (which shall include the provisions of any Work Health or Safety Act, Regulation or approved Code of Practice) including the harmonised Work Health and Safety (WHS) laws effective from their date of commencement by Government proclamation) ; and
- b. the John Holland WHS Standards (Global Mandatory Requirements); and
- c. the John Holland Workplace Safety Management Plan; and
- d. the John Holland WHS Policy; and
- e. the John Holland Safety, Quality Environment Risk Management procedures; JH-APP-WHS-003-02 Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack and
- f. agreed fatigue management guidelines or procedures; and
- g. any policy or procedures of the Principal (communicated to the Subcontractor via John Holland or otherwise) relating to safety and public health (including, without limitation, work health and safety); and
- h. any other requirements that John Holland may reasonably prescribe with respect to health and safety or related matters, including site safety rules; and
- i. consultative requirements established on the Site for health and safety consultation

2. The Subcontractor is for the purposes only of the Act:

- a. the PCBU engaging workers (whether under a contract of employment or otherwise) for the work under the Subcontract; and
- b. an occupier (to the exclusion of Principal and John Holland) of the Site and all parts of the Project required to undertake the Works, and shall undertake all the duties and responsibilities of a PCBU and the occupier of a workplace as set out in the Act or any other legislation or authority requirements relating to occupational health and/or safety or welfare.

3. Incident Notification and Reports

In carrying out the Works, or performing any work under the Subcontract, the Subcontractor, in addition to, and not in derogation of the requirements of the Subcontract must:

- a. verbally notify John Holland immediately of all injuries, property damage and incidents (including dangerous occurrences or dangerous incidents as defined in work health and safety legislation) that may occur (whether to property or persons of the Subcontractor, John Holland, the Principal, or members of the public or any other third party);
- b. ensure that the scene of any notifiable incident (as defined in work health and safety legislation) is not disturbed until notified by John Holland (unless to the extent allowable pursuant to that work health and safety legislation)
- c. notify the relevant State authority of any workplace incidents involving serious injury to workers or the public in accordance with any Act or Regulation and provide a copy of that notification to John Holland;
- d. provide to John Holland, reports of:
 - (i) all injuries and incidents involving Subcontractor workers engaged on work at the Site;
 - (ii) any injuries and incidents involving members of the public;
 - (iii) any damage to property occurring on the Site; and/or
 - (iv) any dangerous occurrences or dangerous incidents,
 arising from or associated with the carrying out of the Works by the Subcontractor or any other activities on the Site, including steps taken or to be taken to prevent recurrence;

4. Risk Management

- a. The Subcontractor shall document and submit for acceptance by John Holland and/or the Principal, [Safe Work Method Statements](#) and/or Process Procedures and high-level Risk Assessments for review in accordance with section 12.14 Risk Management in the Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack -.
- b. As a minimum, the documents required under [4a.](#) shall be submitted 5 working days prior to commencing work and shall state the following: Note: Activity methodology information required for the development of an Activity Method Statement (AMS) must be provided at least 10 days prior to commencement of work,
 - (i) the Subcontractor's representative and Supervisor for the purpose of the Act;
 - (ii) the tasks and activities to be performed;
 - (iii) methodology on how the tasks and activities are to be conducted;
 - (iv) the hazards associated the with tasks/activity (including the John Holland Global Mandatory Requirements)
 - (v) the proposed method of controlling the hazards identified (including the John Holland Global Mandatory Requirements)
 - (vi) the training (including required licenses, accreditations, permits, certification and the like), experience and any particular attributes required of workers performing the tasks/activities;
 - (vii) The Codes and Regulations the tasks/activities are covered by.
- c. The Subcontractor shall ensure all direct and indirect workers are suitably supervised, trained and instructed in the work under the Subcontract performed by the Subcontractor and how the tasks and activities are to be conducted safely, including through:
 - (i) Convening and facilitating, or participation in Task Risk Assessments (TRA) or their equivalent risk assessments formats in accordance with section 12.14 Risk Management in the Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack, to assess and document the hazards and risks of tasks and activities and develop methods to eliminate or control the hazards and risks.
 - (ii) Participation in risk workshops that assess the proposed work methodology (referred to as Activity Method Statements).
 - (iii) Co-operative participation in regular safety onsite inspections at times nominated by John Holland.
 - (iv) Immediate discontinuance of any practice (including removal of equipment) considered by John Holland to be dangerous, notwithstanding that the relevant practice, or equipment may have previously been approved.
 - (v) Being subjected to and cooperating with TRA or equivalent reviews and/or audit by John Holland to determine the suitability of these risk assessments.
- d. The Subcontractor will review each TRA or its equivalent risk assessment against the John Holland TRA Review as indicated in section 12.14 Risk Management in the Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack, before works commence and provide a copy of those reviews to John Holland and/or the principal as required.

- e. The Subcontractor will ensure that every direct and indirect worker completes a Start Card (situation awareness risk assessments) each day before commencing work or when a new activity commences or when the activity changes in accordance with section 12.14 Risk Management in the Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack;
- f. A failure by the Subcontractor to comply with the provisions of these requirements shall constitute a fundamental breach of the Subcontract.

Housekeeping

The Subcontractor shall not, at any time, leave work in an unsafe condition or any condition that might cause damage to existing work, plant or equipment or injury to persons but shall continue that work until it is at a safe stage. The cost of any such continuation of work shall be borne by the Subcontractor.

Hazardous Chemicals including Dangerous Goods

- a. Prior to bringing any substance onto the site, whether for incorporation into the Works or otherwise, the Subcontractor shall provide John Holland and/or the principal with a Safety Data Sheet and a completed Hazard Identification and Risk Assessment Sheet in accordance with Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack – Materials Control and Hazardous Chemicals including Dangerous Goods for the handling and/or application of the substance.
- b. John Holland and/or the principal may reject any Safety Data Sheet which does not provide adequate information to make an assessment of the health or safety risk of the substance.
- c. Notwithstanding John Holland's or the principal's approval for the use or incorporation of a substance, the Subcontractor shall remain wholly responsible and liable for the work under the Subcontract and for the Works.
- d. John Holland's or the principal's failure or refusal to approve of any substance for use or incorporation into the Works shall not entitle the Subcontractor to an extension of time or to claim cost, loss expense or damage for delay, disruption, breach of Contract, or in tort, including negligence, misrepresentation or otherwise, or to claim on any other basis whatsoever whether under the Subcontract, arising out of it, in relation to it or otherwise.
- e. The Subcontractor shall establish and maintain a Register of Hazardous Chemicals retained on Site, and obtain, for each hazardous chemical, a Safety Data Sheet, copies of which should be made available to users, and other workers upon request.
- f. The Subcontractor's attention is specifically drawn to and the Subcontractor must:
 - I. Comply with the provisions of the Act which prohibit the manufacture, supply, storage, transport, sale, use, re-use, installation or replacement of all forms of asbestos and asbestos-containing material;
 - II. Where any testing is required, be in accordance with AS 4964 – 2004 Method for the qualitative identification of asbestos in bulk samples; and
 - III. Ensure any testing is undertaken by a NATA accredited laboratory, or where conducted outside Australia, a laboratory that is a signatory to a Mutual Recognition Agreement with NATA.
- g. The storage and handling of flammable and combustible liquids shall be carried out in accordance with all relevant Australian Standards (including AS1940 and AS1988). The Subcontractor shall advise John Holland and/or the principal before flammable materials are brought to the Site for storage.
- h. Storage of oxyacetylene, when not in use, shall be in a locked store. Bottles shall not be left freestanding. Any storage trolleys used for this purpose shall have an appropriate fire extinguisher attached.

Occupational Hygiene and Health Monitoring

- a. The Subcontractor must conduct TRAs/Safe Work Method Statements for work in an area that may have a contaminated or flammable atmosphere in accordance with section 12.14 Risk Management in the Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack.
- b. The Subcontractor must manage occupational hygiene risks including exposure to airborne contaminants in accordance with the WHS Laws, Codes of Practice and the Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack – 12.25 and 12.25.1 Materials Control, Hazardous Chemicals Dangerous Goods and Airborne Contaminants. This includes ensuring that the relevant Workplace Exposure Standard (WES) is not exceeded by implementation of controls as required by WHS laws and Codes.
- c. The Subcontractor must ensure that it provides and maintains respirable protective equipment where required, and that instruction, training and fit testing is provided to its workers.
- d. The Subcontractor must ensure that, where relevant to the work, a health monitoring program is in place and to the standards required in accordance with the WHS Laws, Codes of Practice and Subcontractor Health,

Safety, Environment and Rail Safety (HSE) Pack – 12.21 Health Monitoring and 12.15.3 Health Surveillance.

- e. In the event there is an adverse health monitoring result the Subcontractor must inform John Holland so that any medical recommendations which may require adjustments to work conditions can be actioned.

Confined Spaces

- a. Entry to confined spaces shall be in accordance with the Act, AS/NZS 2865 Safe Working in a Confined Space and with Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack – Confined Space.
- b. The Subcontractor is required to submit to John Holland and/or the principal, a request for approval of a Confined Space Entry Permit and to receive confirmation of approval and issue of same before entering any confined space

Protective Clothing and Equipment (PPE)

- a. The subcontractor shall ensure that each of its workers or personnel in attendance on the Site wears, as a condition of entrance to the Site, the following mandatory personal protective equipment (PPE) (and provides such PPE to its workers at the Subcontractor's own cost):
- (i) high visibility clothing;
 - (ii) long sleeve shirt;
 - (iii) long pants;
 - (iv) gloves;
 - (v) safety glasses;
 - (vi) hard hat; and
 - (vii) safety boots;
 - (viii) hearing protection in signposted areas;
 - (ix) other personal protective equipment relevant to the task being undertaken

Electrical Tools and Equipment Safety

- a. The Subcontractor shall comply with the 'relevant Industry Standard for Electrical Installations on Construction Sites'.
- b. Where the Subcontractor proposes not to adopt the 'relevant Industry Standard for Electrical Installations on Construction Sites' it shall advise John Holland and/or the principal of the proposed alternative procedure or practice and the reason for not wanting to comply with the industry guidelines. Any such alternative procedure must be demonstrated to be to a higher safety standard than industry guidelines.
- c. In any event, the Subcontractor accepts the full liability in it choosing not to comply with any provision of the industry guidelines regardless of any discussions with or advice it may have provided to or received from John Holland and/or the Principal on alternative practices.
- d. All electrical equipment and tools shall be checked and tagged in accordance with industry guidelines.
- e. The Subcontractor is required to provide adequate facilities to ensure that electrical leads are elevated in accordance with industry guidelines.
- f. Where tools or equipment fail to meet the requirements of the applicable electrical safety acts and AS 3000 the tools and equipment shall be immediately repaired, checked and tagged at the Subcontractor's expense or removed from the site and replaced with compliant tagged tools or equipment as is necessary to carry out the work under the Subcontract.

Alcohol and Drugs

- a. Under no circumstances is alcohol or non-prescribed drugs to be taken on to the Site or consumed on the Site by the Subcontractor or its workers. Persons found to be under the influence of alcohol or non-prescribed drugs shall immediately cease work and either be removed from the Site or be confined to a safe non-working area of the Site. All Subcontractor workers will be subject to and comply with John Holland and applicable principal Drug and Alcohol Policies and Procedures which include prescription medication that can impair fitness for duty.

Work at Height

- a. Any work performed where there is a potential to fall from one level to another shall be carried out in

accordance with the relevant WHS legislation and Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack – Work at Heights.

Plant and Equipment

- a. Prior to bringing any plant or equipment to the Site, the Subcontractor must carry out and provide to John Holland and/or the principal, copies of Plant Hazard Identification Risk Assessments in accordance with Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack – Plant and Equipment Control for the work to be undertaken, up to date Maintenance Records, Log Books and copies of any plant certification (Crane Industry certification or equivalent) where relevant.
- b. Each item of plant brought onto Site must be approved by John Holland and/or the principal in accordance with Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack – Plant and Equipment Control. Such approval shall not relieve the Subcontractor of its sole and absolute responsibility for that plant and to execute the Works safely.
- c. All craning and lifting operations on the site shall be performed by competent operators, doggers and riggers utilizing well maintained and fit for purpose rigging and slinging gear. All cranes shall comply with the relevant parts of AS1418 and shall be used in accordance with the relevant parts of AS2550. Lift studies will be required for significant lifts as defined in John Holland's Craning Procedures.

Excavation and Trenching

- a. Any excavation and trenching work shall be carried out in accordance with the Act and Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack – Excavation and Trenching.
- b. The Subcontractor will be required to submit to John Holland and/or the principal a request for approval of an Excavation and Trenching Permit in accordance with Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack – Excavation and Trenching and to receive said approval before breaking ground.

Heavy Vehicle Chain of Responsibility

- a. The Subcontractor will ensure compliance with the Heavy Vehicle National Law. This requirement will ensure that:
 - (i) Vehicles do not exceed vehicle mass and dimensions
 - (ii) Loads are correctly restrained
 - (iii) Drivers fatigue is managed appropriately
 - (iv) Speed limits are not exceeded
- b. The subcontractor will identify their role in the delivery of goods and use of heavy vehicles. The role the subcontractor will play may include one or more of the following;
 - (iii) Consignor / Dispatcher
 - (iv) Consignee / Receiver
 - (v) Loading / Unloading Manager
 - (vi) Packer
 - (vii) Employer
 - (viii) Scheduler
 - (ix) Operator / Manager

Temporary Works

- a. Prior to commencing any work associated with the installation, use, alterations and/or removal of Temporary Work (TW) at a JH Workplace, the subcontractor must appropriately risk assess the activity to prevent TW from collapsing and exposing people to hazards associated with TW.
- b. TW design must be certified and verified by appropriately qualified persons
- c. The subcontractor is to ensure the installation of TW is in accordance with the design and TWs are not used until they have been validated by an appropriately qualified and competent person prior to initial use and loading
- d. The subcontractor must ensure no changes are made to any installed TW without approval from the designer and when required, further design verification and validation
- e. The subcontractor must ensure that any TW of a **proprietary** nature (such as hoists, tower cranes, concrete

placement booms etc.) are planned and installed by competent persons in accordance with the manufacturer's instructions. Persons involved in the installation and dismantle must be trained in the plant specific requirements of the manufacturer's instruction.

Communication and Safety Meetings

- a. The Subcontractor shall meet regularly (nominally monthly) with John Holland and/or the principal's Site management team to discuss Health & Safety activities and safety interface requirements and to review incident reports and trends. It is anticipated that the Subcontractor (depending on the number of workers) would be represented by a Safety Representative from the workforce and one from the management staff.
- b. The Subcontractor shall conduct Daily Pre Start meetings in accordance with Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack – Communication and provide a copy of those Daily Pre Start meeting records to John Holland and/or the principal [insert frequency of record submission].
- c. The Subcontractor shall conduct weekly Toolbox meetings in accordance with Subcontractor Health, Safety, Environment and Rail Safety (HSE) Pack - Communication with their workers to promote and discuss WH&S matters or attend toolbox meetings as directed by John Holland and/or the principal and provide a copy of those Pre Start meeting records to John Holland and/or the principal [insert frequency of record submission].
- d. The Subcontractor shall participate in Safety Education Programs that are provided for workers of the Subcontractor at times to be nominated by John Holland and/or the principal. Such Safety Education Programs shall be provided by John Holland and/or the principal free of charge to the Subcontractor. However, the Subcontractor will allow his personnel to attend such Safety Education Programs and shall pay the costs of his worker's time with no reimbursement of such costs from John Holland and/or the principal.
- e. The Subcontractor shall display on notice boards pamphlets, posters and notices in respect of work safety, as directed by John Holland and/or the principal.

Training and Certificates of Competency

- a. The Subcontractor shall carry out the Subcontractor's Activities in such a manner as to avoid injury or damage to any person or property. Notwithstanding the foregoing, the Subcontractor shall:
 - (i) Ensure that prior to commencing work on the Site; the Subcontractor's personnel (including invitees) and sub-Subcontractor personnel have completed the appropriate construction industry induction and will attend a Site Induction Course provided by John Holland or the principal;
 - (ii) Provide to John Holland and/or the principal on the commencement of work at the workplace, all relevant licenses to operate high risk plant, verification of competency for operators of plant and equipment and records of training;
 - (iii) Allow any member of their workforce elected to a Health and Safety Committee (HSC) time to attend to their duties as a member of such a committee or Work Group. The cost of this shall be borne by the Subcontractor.

Vaccinations

- a. For persons who may come into contact with waste-water and or blood it is strongly recommended that personnel have the following vaccinations:
 - (i) Hepatitis A
 - (ii) Hepatitis B
 - (iii) Polio
 - (iv) Tetanus.

An example of such personnel would be a peggie or first aider. When the work Site is within a Treatment Plant it is strongly recommended that vaccinations are given to all personnel.

It should be noted that these vaccinations can take time to provide the maximum protection against infection and the Subcontractor is advised that to pre-plan accordingly. Advice should be obtained from a Medical Practitioner in these regards.

The cost of vaccinations and related Medical advice shall be borne by the Subcontractor

Summary of Health and Safety Deliverables

Pursuant to the requirements in the Subcontract, the Health and Safety deliverables are detailed in the Section 13 – Subcontract HSE Pack. Also refer to section 5.4 “*Subcontracting*” of the RTP Program Safety Management Plan (7216-MP-O-SM-001)

3. Industrial Requirements

3.1 INDUSTRIAL RELATIONS

- (a) John Holland ("JH") is responsible for the overall management of industrial relations on the Project in a manner that is consistent with the objectives of the Commonwealth industrial law and the Building Code 2016 (Building Code) and the Queensland Code of Practice for the Building and Construction Industry (Queensland Code).
- (b) The Subcontractor (and any sub-subcontractors/suppliers engaged by the Subcontractor) must comply at all times with all relevant legislative requirements.
- (c) The Subcontractor must allow JH sufficient access to accurately assess the Subcontractor's compliance with regards to industrial relations matters. The Subcontractor must also comply with any directions made by JH regarding industrial relations and bear any losses, costs, expenses or damages it incurs as a result. The Subcontractor will be responsible for any losses, costs, expenses or damages incurred by any person arising out of the Subcontractor's failure to comply with JH's directions.
- (d) Where required, not less than seven (7) days prior to mobilisation of labour to Site, the Subcontractor must advise JH as to the following:
 - (i) The names and classifications of employees to be engaged on the Project;
 - (ii) Confirm the details of the applicable industrial instrument and provide a copy upon request;
 - (iii) identify any sub-subcontractors, material suppliers (where required under Queensland Code) or consultants that are intended to be engaged on the Project.
- (e) The Subcontractor undertakes to advise JH of any new or amended industrial agreement proposed to be implemented through the course of the Works.

3.2 GENERAL REQUIREMENTS

- 3.2.1 Prior to commencing work the Subcontractor shall make itself aware of the procedural requirements particular to the Works in respect of industrial matters. The Subcontractor shall ensure that all persons engaged by it are paid at rates which are not less than those fixed by any relevant industrial instrument (e.g. award, determination, judgment or order of any tribunal) and are employed under the conditions prescribed in any such award, determination, judgment or orders.
- 3.2.2 At least ten (10) days prior to their proposed commencement on Site, the Subcontractor shall submit to JH a completed induction form (as supplied by JH) for each employee that the Subcontractor proposes to commence work on the Site. JH reserves the right, at its sole discretion, to reject any employee without giving a reason.
- 3.2.3 The Subcontractor accepts the risk of and indemnifies JH against any increased labour costs or for any other costs, loss, expense or damage arising as a result of any:
 - (a) amendment to any award;
 - (b) any agreement, award, settlement, fee or like payment made by the Subcontractor or any organisation or person acting on behalf of the Subcontractor with any union or any other body or any person; or
 - (c) any industrial action through which occurs a strike, work stoppage, work ban or work limitation of any kind.
- 3.2.4 Notwithstanding anything to the contrary in this Agreement the Subcontractor acknowledges and agrees that the Subcontract Sum, and where applicable the Rates include:
 - (a) the cost of all wages and other costs arising from the requirements of the awards, the project agreements, certified agreements and enterprise flexibility agreements to which it is bound;

- (b) all allowances to compensate the Subcontractor for all risks whatsoever and howsoever arising concerning, connected or associated with industrial relations at the Site or the where the components of the Works are being manufactured, assembled or stored, including:
 - (i) demarcation disputes;
 - (ii) increases in labour costs and site allowances;
 - (iii) any temporary or permanent reduction in construction industry working hours per week;
 - (iv) demonstrations or labour disputation;
 - (v) special allowances or compensation; and
 - (vi) any reduction in labour or hours worked in providing the Goods,and no adjustment will be made to the Subcontract Sum or Rates on any account.

3.2.5 The Subcontractor shall:

- (a) ensure all industrial instruments which have been certified, registered or otherwise approved under the relevant industrial relations legislation are adhered to;
- (b) ensure safety practices in accordance with the relevant Legislative Requirements, awards and procedures contained in the relevant industrial instrument are maintained;
- (c) promptly report to JH any acts, facts, matters or things with respect to labour relations that may affect performance of the Works or the Head Contract Works, lead to an industrial dispute or claim by any union, affect the progress or cost of performing the Works or the Head Contract Works; and
- (d) ensure a good industrial climate is maintained on the Site.

3.2.6 The Subcontractor shall not claim any compensation from JH for any cost whatsoever associated with any of the foregoing and hereby indemnifies and agrees to keep indemnified and release JH from and against any claim, loss, cost or expense which is incurred by or made against JH howsoever as a result thereof or arising from the cost of, provision of an absence of labour for or from the Works and with industrial relations concerning, connected or associated with, or arising at the Site or the performance of the Works.

3.3 INDUSTRIAL RELATIONS INSTRUMENT

No later than 10 days prior to commencing works on the Site, the Subcontractor must provide to JH a copy of the Industrial Instrument/s which applies to its workforce on this Project. "Industrial Instrument" means any agreement made pursuant to the *Workplace Relations Act 1996* (Cth.) or the *Fair Work Act 2009* (Cth).

- 3.3.1 The Subcontractor must also provide details of any other Industrial Instrument or any other agreement, written or oral, which provides benefits to the employee or places obligations on either party.
- 3.3.2 JH may require the Subcontractor to provide further information as to the Subcontractor's employee relations practices and procedures.
- 3.3.3 Throughout the term of the Agreement, the Subcontractor must ensure that its employees comply with the Terms and Conditions of their Industrial Instrument. The Subcontractor must further ensure that all custom and practice that is detrimental to the proper conduct and productive operation of the Project, and is outside the Terms and Conditions of the Industrial Instrument will not be applied to this Project. In the event that such practices are applied, for example the engagement of "non working delegates", this will constitute a breach of the Agreement and JH will be entitled to take appropriate action including the withholding of monies otherwise due to the Subcontractor until the breach is rectified.
- 3.3.4 Prior to commencing work on the Site, the Subcontractor must provide a Statutory Declaration declaring that it is not paying or providing any other conditions to its employees other than those either contained in the supplied information or otherwise disclosed to JH.

3.4 WORKPLACE RELATIONS MANAGEMENT PLAN (WRMP)

- 3.4.1 JH may require the Subcontractor to prepare and submit a Workplace Relations Management Plan. In order to assist in the preparation of the ERMP, the Subcontractor may be required to participate in an IR Risk Workshop conducted by JH.
- 3.4.2 Once an WRMP has been approved by JH, it shall form a condition of the Subcontract.

3.5 MOBILISATION OF SUBCONTRACTOR'S EMPLOYEES

- 3.5.2 No employee of the Subcontractor may be mobilised to Site unless and until the employee has been accepted by JH and the Subcontractor has been advised in writing of that acceptance.
- 3.5.3 In order to gain authority to mobilise employees to site, the Subcontractor must provide to JH the employee's name, address, classification, details of applicable qualifications, licences and tickets, schedule of previous three years' work history and the names and contact details of three referees (recent, immediate past or present supervisors). This information shall be provided at least 2 weeks prior to the Subcontractor's Date for Commencement or mobilisation to site (whichever is the earlier), and include details for each employee, signed by the Subcontractor and the employee.
- 3.5.4 Entry to the Project Induction, places in which will be booked by JH, shall be restricted to only those employees of the Subcontractor who have been accepted by JH as per 2.5.2 above.
- 3.5.5 For each employee nominated for mobilisation to Site, the Subcontractor must provide a written statement from the employee, authorising the release of personal information pertaining to the employee's employment to JH for the duration of the employee's presence on Site.
- 3.5.6 In addition, proposed employees may be subject to a medical assessment. The medical assessment will require the completion of a questionnaire, a drug and alcohol test and may include a physical examination by JH's nominated Medical Officer (Audiometry may be excluded if evidence of such test and results conducted in the last 12 months is provided).
- 3.5.7 JH reserves the right to withhold or withdraw its acceptance of any Subcontractor employee at its discretion. This right applies both prior to mobilisation on the site and after work has commenced on the Site. The Subcontractor must immediately remove from the Site any employee whose acceptance has been withdrawn.

3.6 GENERAL CONDITIONS APPLICABLE TO SUBCONTRACTOR'S EMPLOYEES

- 3.6.2 All Subcontractor employees must comply with all JH safety policies, procedures and systems and must cooperate in achieving the JH occupational health and safety objectives (Refer to the WH&S Special Conditions in this Agreement).
- 3.6.3 JH may conduct tests for drug and alcohol on any person including Subcontractors' employees. The Subcontractor must cooperate with JH in the carrying out of tests. In the event of a positive test or the refusal of the employee to be tested, the Subcontractor must comply with JH instructions, including removing the employee from Site.
- 3.6.4 The Subcontractor must apply JH policies in relation to Drug and Alcohol, Discrimination, Bullying, Sexual Harassment and Freedom of Association to their employees.
- 3.6.5 All Subcontractor employees must be supplied with suitable and appropriate attire, i.e. long sleeved shirts, long pants, correct PPE and safety footwear, which is to be worn at all times.

3.7 SUBCONTRACTOR'S COMPLIANCE WITH INDUSTRIAL LAW

- 3.7.2 The Subcontractor may be required to submit evidence of compliance on a monthly basis including a signed Declaration that the information is true and correct and covers all employees employed or to be employed on the Project.
- 3.7.3 JH reserves the right to audit the Subcontractor's time and wages records to ensure that the Subcontractor is complying with all obligations arising from the Industrial Instrument and applicable law. This may include obtaining confirmation from third parties to ensure that all deductions and remittances are properly made.
- 3.7.4 Where, in the reasonable opinion of JH, the Subcontractor has failed to satisfy any of its obligations to its employees or to third parties, JH reserves the right to make the requisite payments and withhold an equivalent amount from monies otherwise due to the Subcontractor under the Subcontract.

3.8 MANAGEMENT OF GRIEVANCES AND DISPUTES

- 3.8.2 The Subcontractor must advise JH of all grievances and threatened or actual disputes, including any threatened or actual industrial action immediately that the Subcontractor becomes aware of such events.
- 3.8.3 The Subcontractor must comply with all reasonable directions issued by JH in respect of the process for resolution of any grievance.

- 3.8.4 The Subcontractor must comply with all reasonable directions issued by JH in respect of the settlement of any industrial dispute, including but not limited to standing down, standing aside or termination of employees; initiating proceedings with Fair Work Commission; the Federal Court of Australia or the Supreme Court of Queensland. The cost of complying with the requirements of JH for settlement of any industrial dispute will be borne by the Subcontractor.
- 3.8.5 JH may require the Subcontractor to provide statements or affidavits in respect of any threatened or actual industrial action, including details as to losses incurred by the Subcontractor as a result of the industrial action.
- 3.8.6 The Subcontractor shall immediately provide JH with the name of any person, legal firm, agent or advisor it has retained or appointed to provide industrial relations advice or assistance in general and specifically in relation to the management of any industrial dispute. JH reserves the right to instruct the Subcontractor to cease using any person, legal firm, agent or advisor if in the opinion of JH the use of that advisor is not in the best interest of the overall Project and JH.

3.9 PAYMENT OF EMPLOYEES FOR PARTICIPATION IN INDUSTRIAL ACTION

- 3.9.2 The Subcontractor must not make any payment to employees in respect of any lost time, resulting from Industrial Action, except where directed to do so by any court or Fair Work Commission.
- 3.9.3 The Subcontractor must report any claim for payment for lost time to JH.

3.10 AUSTRALIAN BUILDING & CONSTRUCTION COMMISSION (ABCC)

- 3.10.2 In the event that the Subcontractor is subject to any query or inspection from the ABCC, the Subcontractor must immediately advise JH.
- 3.10.3 Where the Subcontractor produces any documents to the ABCC, the Subcontractor must immediately forward copies of those documents to JH.
- 3.10.4 The Subcontractor shall not produce JH documents to the ABCC, or any other person or organisation without the express written permission of JH except where compelled by Law to do so.

3.11 SUB-SUBCONTRACTORS/SUPPLIERS

- 3.11.2 The Subcontractor may not subcontract any part of the Works to any sub-supplier/subcontractor without the express written permission of JH.
- 3.11.3 In the event that such permission is granted the sub-supplier/subcontractor shall be subject to these provisions of clause 3.1(b) herein.
- 3.11.4 JH reserves the right to inspect any subcontract and any sub-supplier contract to ensure compliance with JH's requirements.

3.12 AMENITIES

Where a Subcontractor's Industrial Instrument requires that employees' site amenities be provided to a standard that is in excess of that provided by JH, the Subcontractor shall provide the requisite standard of amenities at its cost.

4. Quality Assurance Requirements

1. Quality System and Quality Management Plan Requirements

- (a) The Subcontractor shall, subject to the provisions of paragraph (b) below, develop and implement a Quality Management Plan under a Quality System for the work under the subcontract, which complies with AS/NZS 9001:2016 (ISO 9001:2015).
- (b) If the Subcontractor cannot comply with the requirements of paragraph (a) above then it must demonstrate to John Holland that it has a similar or other appropriate system in place. Details of the Subcontractor's similar or other appropriate system and quality plan shall be submitted to John Holland in accordance with paragraph (e) below.

- (c) If following receipt of information from the Subcontractor in accordance with paragraphs (b) and (e), John Holland considers the Subcontractor has not been able to demonstrate that the Subcontractor has a similar, or other appropriate system and quality plan in place, the Subcontractor shall undertake the reasonable Quality Management Plan requirements for the Suppliers Activities as directed from time to time by John Holland, under John Holland's Quality Management Plan (QMP). Without limiting the generality of any other provision of the Subcontract, the Subcontractor shall undertake, as a minimum, the requirements set out under Clauses 2 to 11 below.
- (d) Unless otherwise approved, the Subcontractor shall engage a person experienced in the development of quality systems and plans to formulate and set up and implement the Subcontractors Quality Plan.
- (e) The Subcontractor shall submit to John Holland for approval within 28 days of the Date of Award, its Quality Management Plan which sets out the specific practices, resources and sequence of activities relevant to the work under the Subcontract. If the Quality Management Plan fails to meet the approval of John Holland then the Subcontractor shall rectify such failings and re-submit the quality plan for approval within 7 days of the date of John Holland's non-approval. The Subcontractor's failure to obtain John Holland's approval of the quality plan within 42 days of the Date of Award shall be deemed to be a substantial breach of the Subcontract.
- (f) The Subcontractor shall ensure that any sub-subcontractor it engages complies with the requirements of the Subcontractor's approved Quality System and Quality Management Plan.

2. Monitoring and Testing

The Subcontractor shall, throughout the duration of the Subcontract carry out monitoring and testing in accordance with the approved Quality Management Plan.

In the event of any non-conformance to the requirements of this Subcontract, the Subcontractor shall immediately advise John Holland the details of such non-conformance, including its location in the Works, and proposed corrective actions prior to such corrective actions being taken.

3. Inspections and Tests

3.1 General

- (a) The Subcontractor shall, as part of its Quality Management Plan under the Quality System, carry out inspections and tests including, but not limited to, the requirements of this Clause.
- (b) All inspections and tests shall be carried out in accordance with the requirements of this Subcontract and the requirements of the relevant Standards and Codes issued by the Standards Association of Australia, or in their absence those issued by the British Standards Institution or the American Society for Testing and Materials, in that order of precedence.
- (c) The Subcontractor shall notify John Holland not less than 7 days prior to commencing any inspection or test or to enable John Holland, the Principal's Representative, or other authorised representative to be present during such inspection or test.
- (d) The Subcontractor shall provide and maintain all documentary information or evidence pertaining to all inspections and tests.
- (e) The results of all inspection and testing carried out in accordance with the Quality Plan shall be

submitted to John Holland within 3 days of any inspection and testing being carried out.

3.2 Rework

- (a) In the event that repairs or remedial work to any part of the Works are found to be necessary as a result of inspections and tests, the Subcontractor shall carry out repairs generally in accordance with the requirements of this Subcontract.
- (b) The Subcontractor shall allow sufficient time in its Program to enable any necessary repairs or remedial work to be carried out prior to the Date for Completion.

4. Documentation To Be Accessible

The Subcontractor shall maintain, in a readily accessible manner, all documentation and records as are necessary to provide objective information or evidence in support of the Works meeting the various requirements of the Subcontract and shall upon request or within an agreed period of time, make them immediately available for inspection by John Holland. On completion of the Works, the Subcontractor shall supply all, or such portion as may otherwise be directed, of the documentation and records to John Holland.

5. Inspection and Test Plans and Procedures

Inspection and Test Plans (ITPs), Checklists and Inspection Procedures shall be submitted to John Holland for acceptance not less than 15 days prior to their being required for any part of the Works.

- (a) Inspection and Test plans (ITPs), Checklists, or other suitable equivalent records of inspection, testing and verification shall be generated for all phases of the work to be performed under the Subcontract. Such records shall list all inspection, testing and verification activities to be undertaken for a particular operation in a sequential manner.
- (b) Each relevant activity on ITPs and Checklists shall be signed off by the Subcontractor, when compliance to the requirement has been achieved.
- (c) The Subcontractor shall provide effective quality verification practices to ensure that the Subcontractor's Activities meet the requirements set out in the Subcontract document.

6. Inspection, measuring and testing equipment

If requested by John Holland evidence of current calibration status of inspection testing and measuring equipment to be used for the Subcontractor's Activities shall be made available. Such evidence shall consist of relevant calibration certificates/checklists which can be readily traced to the equipment.

7. Design

Quality requirements for design include but are not limited to:

- (i) **Design Control:** Design performed as part of the Subcontractor's Activities or any other design requirements specified in the Subcontract shall be verified in accordance with the Design & Development of Products & Services Element of AS/NZS 9001:2016 (ISO 9001:2015).
- (ii) **Design Verification:** The Subcontractor shall ensure that appropriate methods of design verification are included in the quality plan including, where appropriate, independent verification by suitably qualified personnel.
- (iii) **Design Records and Qualifications:** The Subcontractor shall hold all design records relating to the Subcontract that demonstrate conformance with the Subcontract requirements. This will include details of qualifications of persons undertaking design and design verification.

8. Audits

John Holland, the Principal or the Principal's Representative may carry out such quality audits as they deem necessary to ensure that the Subcontractor is conforming to the approved Quality Management Plan and Quality System and to the various requirements of this Subcontract.

9. Quality Audit Certifications

The Subcontractor shall carry out audits of its Quality Management Plan, Test & Inspection Procedures under the Quality System on a regular basis. Subcontractors' quality plans and systems shall be deemed to be part of the Head Contractor's Quality Management Plan and Quality System.

10. Non-Conformances

In the event of any non-conformance in accordance with the Quality System the Subcontractor shall immediately supply John Holland with a copy of the non-conformance which will identify its location in the Works and shall provide details of the corrective or preventative action taken or to be taken to eliminate the non-conformance.

11. Materials and Equipment Specified By Name

- (a) Whenever any material or equipment is specified by patent, proprietary or trade name, or by the name of a manufacturer, such specification shall be considered as used for the purpose of describing the material or equipment desired but does not imply that such material or equipment automatically complies with any further requirements of the Specifications. Such name shall be considered as if followed by the words "or approved equal" whether or not such words appear.
- (b) The Subcontractor may offer material or equipment with equal or better quality performance in substitution for those specified. If material or equipment with equal or better quality performance is substituted for those specified then it will be at no extra cost to John Holland or the Principal.
- (c) The Subcontractor shall make such offer as in paragraph (b) above in writing to John Holland for consideration at least 28 days in advance of time at which the Subcontractor wishes to order the material or equipment for use in the Works. The Subcontractor shall include in its offer sufficient data which, together with any other data John Holland may require, will enable John Holland to assess the acceptability of the material or equipment. It shall be solely the Subcontractor's responsibility to prove that any alternative item offered is equal or superior to the item as specified. Where the substitute material or equipment necessitates changes to or co-ordination with any other portion of the Works, the data submitted shall include drawings and details showing all such changes and the Subcontractor shall perform these changes as part of any acceptance of substitute material or equipment at no extra cost to John Holland or the Principal.
- (d) The use of any material or equipment so offered will be permitted only after written acceptance of the offer by John Holland. Such acceptance shall not relieve the Subcontractor from full responsibility for the efficiency, sufficiency, quality and performance of the substitute material or equipment in the same manner and degree as the material and equipment specified by name.

Checklist

(These requirements are to be read in conjunction with the relevant specification, drawings and contract terms)

Supplier / Subcontractor:

EOI/Tender

Refer To Contract/Schedule:

Quality Standard Required: ☒ **ISO: 9001** ☐ Others, Specify:

1	Quality Plan	☐ With Tender ☐ Not Required ☐ Award PlusWeeks	
2	Inspection And Test Plans To be submitted (15) working days prior to activity commencing	☐ For John Holland Review ☐ For Client Review / Acceptance	
3	Detail/Shop Drawings Review ☐ Acceptance ☐	☐ Required ☐ Not Required When...	
4	Manufacturers Data Report (Mdr) To be progressively compiled	☐ Required ☐ Not Required When...	
5	Traceability On	☐ Required ☐ Not Required When...	
6	Inspection And Certification Data Required (Tick if required)		
	☐ NDT Reports ☐ Heat Treatment Records ☐ Welded Maps ☐ Calibration Certificates ☐ Survey Reports ☐ Material Test Certificates	☐ Release Notes/Certificates ☐ Hardness Test Report ☐ Hydro Test Certificate ☐ Load Test ☐ Concrete Test Reports ☐ Certificates of Conformity	☐ Noise Level Report ☐ Paint Test Certificates ☐ Galvanising Certificates ☐ As Built Drawings ☐ Compaction Test Reports
7	Qualifications / Procedures Required To Be Submitted Prior To Activity Commencing (Select If Required)		
	☐ Weld Procedure Specification ☐ Weld Proc.Qualification Rec. ☐ NDT Procedure ☐ NDT Operator Certificates ☐ Transit Procedure	☐ Welder Qualifications ☐ Weld Inspector ☐ Qualifications ☐ Fabrication Procedure ☐ Dimensional Control Proc. ☐ Quarantine Procedure	☐ Weld Control Procedure ☐ Erection Procedure ☐ Samples To Be Provided ☐ Painting Procedure ☐ Other Proc.(See13.0)
8	Pre-Manufacture / Fabrication / Erection Meeting	☐ Required	☐ Not Required
9	Programme / Schedule / As Per Contract	☐ Required	☐ Not Required
10	Sub-Orders - Unpriced	☐ Required	☐ Not Required
11	Operating & Maintenance Manuals	☐ Required	☐ Not Required

12	Warranty Required: (State type, period and submittal dated)		
13	Additional Requirements: (E.G. 3 rd Party Inspection)		
	Print Name	Signature	Date
Prepared By			
Reviewed By QA			

5. Environmental Requirements

General

The Subcontractor must not do anything that will put John Holland in breach of its obligations under Legislative Requirements relating to:

- Acts or omissions that may cause harm to the environment;
- Meeting any reporting requirements; and/or
- Notification of incidents or near miss incidents which directly result in, or may cause, harm to the environment.

The Subcontractor must do those things necessary to comply with Legislative Requirements and John Holland environmental policy and procedure, including the Environmental Management Plan(s) for the project.

Environmental Management System

The subcontractor shall adopt and implement the John Holland Project Environmental Management Plan (PEMP) for the Works.

Section 1.01 Objectives, Measures and Procedures

The Subcontractor shall implement and comply with measures and procedures addressing environmental aspects, which are necessary to effect compliance with environmental legislative requirements and the objectives set out in the Project Environmental Management Plan, and in accordance with the requirements listed below.

Section 1.02 Hazard and Incident Management

The Subcontractor shall immediately report all environmental hazards, incidents and near miss incidents to the John Holland Workplace Environmental Representative or Supervisor.

Section 1.03 Environmental Control

The Subcontractor must observe and comply with all environmental requirements that apply to the area in which the Subcontractor's activities are to be carried out, including (without limitation) the following:

(a) Site Control

a) General

The Subcontractor shall at all times:

- Comply with the regulations, specification and restrictions imposed by John Holland relating to the transport, storage, handling and use of materials (especially hazardous materials), the routing of construction traffic, the interruption of existing services and facilities and any other Regulations in force on the site;
- Comply with all Statutes, Regulations and By-Laws relating to the protection of the Environment;
- Store hazardous materials on site (where approved by John Holland) in adequate storage Bunds;
- Ensure that materials, plant and equipment shall be stored in lay down area(s) approved by John Holland when not in use;
- Obtain written approval from John Holland for the erection of temporary structures not specifically documented;
- Not light fire without the written approval of the John Holland;
- Store flammable or explosive products in accordance with the relevant Statutes and to the approval of the John Holland.

b) Responsibility for Environmental Management

The Subcontractor shall nominate an Environmental Representative with responsibility for management of all environmental aspects of the subcontracted works. The Subcontractor must provide details of the nominated Environmental Representative to John Holland prior to commencing works.

It is the Subcontractors responsibility to ensure that prior to commencing works:

- Requirements specified in the PEMP have been reviewed; and
- Controls related to the subcontracted works as specified in the PEMP are implemented.

(b) Delivery of the Subcontracted Works

a) Permits & Authorisations

The Subcontractor shall ensure that it has obtained all necessary permits/authorisations prior to commencing any aspect of the subcontracted works that must be conducted under an authorisation or permit.

b) Noise & Vibration

The Subcontractor shall, at all times, take adequate measures to control noise & vibration associated with the delivery of the subcontracted works. This includes:

- complying with the nominated hours of work
- ensuring all guards and noise suppression devices are fitted and used as per manufacturer specifications; and
- ensuring sound levels and vibration levels are within nominated criteria as specified in the PEMP or in relevant legislation.

No appliance shall be used if the noise emitted by the appliance exceeds the maximum sound levels:

- listed in the John Holland PEMP;
- noted in manufacturer documentation; and/or
- described in relevant legislation.

Measurements shall be made in accordance with AS1217 (Methods of Measurement of Airborne Sound Emitted by Machines), or where applicable for pneumatic driven appliances, the measurement procedures set out in the Cagi-Pneurop Test Code For the Measurement of Sound from Pneumatic Machines 1969 may be used.

John Holland may require the Subcontractor to produce a Certificate of Acoustic Performance issued by a Laboratory registered with the N.A.T.A. for any appliance before permitting its use, or continued use, on the site.

On occasions, for emergency reasons, John Holland may direct that all noise on the site ceases or be reduced. The Subcontractor shall direct all his subcontractors on site to meet these requirements.

c) Dust & Air Quality

The Subcontractor must take all practical steps to prevent nuisance caused by dust. This includes ensuring that airborne dust is not a nuisance to residents or users of adjacent roads and recreational areas, and that any ambient air quality criteria specified in the PEMP are not exceeded.

d) Water Quality, Erosion and Sedimentation

Subcontractor must take all practical steps to retain all rainfall falling on the work under the subcontract within the site boundary, and to ensure that any uncontrolled discharge during severe storm events will not cause a nuisance to residents, or result in negative environmental impact to any areas or body of water offsite.

No water is to be discharged/pumped offsite without the prior approval of John Holland. This includes water collected in excavations, concrete washout bins and sedimentation ponds. Any water

quality criteria specified in the PEMP must be complied with during any approved discharge of waters offsite.

e) Light Escape

The Subcontractor must take all practical steps to ensure that light escaping from the work under the subcontract within the site boundary outside of daylight hours does not impact on the community or sensitive fauna habitat.

This may include participating in a lighting assessment and planning activity to determine site lighting requirements and control measures to be implemented to avoid or minimise light escape from the site.

f) Contaminated and Acid Sulfate Soils

The Subcontractor must ensure that at all times it complies with any requirements specified in the PEMP regarding contaminated and/or (Potential) Acid Sulfate Soils

The Subcontractor must notify John Holland immediately if it discovers suspected contaminated or (Potential) Acid Sulfate Soils that have not been previously identified during delivery of the subcontracted works.

g) Weeds, Pests & Pathogens

The Subcontractor must ensure that at all times it complies with any requirements specified in the PEMP regarding weeds, pests & pathogens.

The Subcontractor must notify John Holland immediately if it discovers suspected weed or pest infestations that have not been previously identified during delivery of the subcontracted works.

h) Wastes

The Subcontractor is responsible for the proper disposal of all solid, liquid and gaseous wastes arising from the execution of work under the subcontract in accordance with all statutory requirements, and will comply with the John Holland policy to maximise reuse or recycling of construction waste including but limited to paper, metal, timber, glass, asphalt, clay based products, cement based masonry, other material identified by John Holland for reuse or recycling.

The Subcontractor shall ensure that waste disposal is only undertaken by a licensed waste contractor, to approved waste facilities.

Refuse arising from the execution of work under the Subcontract (including food scraps and the like) must be removed from the site. Refuse must not be dropped uncontrolled, but bins and shutters, chutes or refuse buckets must be used. All bins, chutes or buckets for refuse must be covered or be of such design as to fully confine the material and prevent dissemination of dust, materials and odours.

Records for all materials (including asphalt and concrete) removed by the Subcontractor will be submitted to John Holland on a monthly basis, including quantities, disposal methods, disposal locations, waste tracking documentation and costs.

All prescribed/classified industrial wastes such as asbestos must be stored, handled, transported and disposed of in accordance with local Regulations.

All concrete wastes and washout waters must either be returned to the batching plant for recycling or disposed of in the site concrete washout facilities specified in the PEMP.

Sanitary wastes and sewage shall be collected and stored in accordance with local regulations. Disposal of sewage waste shall be by a licensed waste contractor and records shall be maintained by the Subcontractor and included in the monthly report.

i) Recycled Material Usage

All recycled materials to be used on site must have tests results provided by the Subcontractor as required by legislative requirements, to allow reuse of recycled material. In addition to provision of test results the Subcontractor must provide written certification that the material does not contain

prescribed contaminants or foreign material including asbestos, PCBs, hazardous biological materials, weeds.

j) Preservation of Flora & Fauna

The Subcontractor must not destroy, remove or clear trees or shrubs from any lands used or occupied by the Subcontractor in the execution of the Works without the prior approval of John Holland. In addition, the Subcontractor must not enter any designated 'No Go Zone' areas without approval from John Holland except in the event of an emergency as defined in the local Emergency Management Act.

The Subcontractor shall not harm, feed or interfere with any fauna encountered on site, and shall immediately notify John Holland if the presence of fauna on site is interfering with conduct of the works. The Subcontractor must immediately notify John Holland of any fauna injured during delivery of the subcontracted works.

k) Cultural & Aboriginal and Torres Strait Islander Heritage

The Subcontractor must not destroy, remove or clear any identified cultural or Aboriginal and Torres Strait Islander heritage items encountered by the Subcontractor in the execution of the Works without the prior approval of John Holland.

The Subcontractor must immediately notify John Holland of any previously unidentified cultural or Aboriginal and Torres Strait Islander heritage items encountered during delivery of the subcontracted works (e.g. aboriginal artefacts, suspected scar trees, homestead foundations, etc.)

l) Traffic Management

No motor vehicles will leave the site laden with any material unless it is loaded in a manner that will prevent the discharge or dropping of any of the materials. All trucks exiting the site must have their tailgates secured and loads covered for all trips.

All vehicles entering or exiting the site must use the defined entry and exit points, including a wheel wash facility or shaker where provided.

No fuel is to be stored on site, except in approved fuel bunds.

m) Plant & Equipment

Where subcontractors are utilising plant or equipment on John Holland projects that are located within 'Key Locations' (within 50 km from Brisbane, Gold Coast, Melbourne and Sydney CBD), preference for use of renewable fuel such as biodiesel should be given for operating 'eligible plant and equipment' as defined by each project.

n) Emergency Preparedness & Response

The Subcontractor is responsible for identifying any potential environmental emergencies that could occur during the execution of the work under the subcontract (e.g. spills). In addition, the Subcontractor is responsible for identifying and implementing preventative measures (e.g. bunded dangerous goods storage) and response measures (e.g. spill kits).

In the event of an emergency, the Subcontractor must immediately notify John Holland. In responding to an environmental emergency, the Subcontractor must comply with any lawful directions given by John Holland whilst taking due regard for the safety of all persons responding to the emergency.

Section 1.04 Monitoring and Reporting

The Subcontractor shall submit an updated environmental report monthly in a format directed by John Holland and at any intervening occasions if so directed by John Holland. The requirements of the Subcontractor environmental report are detailed in the sections below.

a) General

John Holland requires the Subcontractor to supply environmental management and monitoring data monthly. The information to be provided monthly by the Subcontractor includes the following:

- Details of environmental permits/approvals obtained by the Subcontractor for project works;
- Details of all environmental incidents;
- Details of environmental inspections/audits and any actions raised as a result;
- Fuel usage by plant and equipment type (diesel/biodiesel, including in 'eligible plant & equipment'/petrol/LPG/ethanol/etc);
- Electricity usage (non-renewable/renewable) – only where the Subcontractor is billed separately for electricity usage on the project;
- Electricity generation (where the generator is => 500 kVA maximum capacity);
- Waste re-used/re-cycled/dumped to landfill;
- Water usage – potable (drinking water) and non-potable (i.e. re-use, dams, and creeks) separately.
- The quantities of materials used, including aggregates (quarried/recycled), asphalt, composites, concrete, steel (including as used in precast elements) and timber.

Subcontractor must submit requested data electronically via the Subcontractor NGER and Sustainability Reporting portal provided by John Holland. The details of this NGER and sustainability reporting requirement can be found in the Subcontractor NGER and Sustainability Report (JH-FRM-ENV-002-01) form. John Holland requires subcontractors to submit monthly report by COB 25th of the following month.

b) Incident Management and Reporting

Should any non-conforming environmental work practices, spills, pollution, harm to the environment or other incidents be detected or environmental controls be observed to be ineffective or fail to operate, the Subcontractor must immediately notify John Holland, and promptly apply controls and corrective action(s) to address any environmental management deficiencies.

The Subcontractor must ensure prompt and thorough containment measures, clean-up and restoration of the environment as well as rectification of deficient environmental protection measures to prevent recurrence.

c) Requirements of the National Greenhouse & Energy Reporting Act 2007

John Holland and its Subcontractors have responsibilities under the *National Greenhouse & Energy Reporting Act 2007* ("NGER") to report on greenhouse gas ("GHG") emissions, energy production and energy usage.

In particular, the Act requires John Holland to report on the GHG emissions and energy usage associated with **all** activities at facilities where John Holland has day to day managerial control.

In accordance with Section 20 of the Act, if the Subcontractor is not willing to provide the information required under the Act, John Holland is legally bound to notify the Greenhouse & Energy Data Officer ("GEDO") of the non-compliance. The GEDO may then issue a binding determination in regard to the required information. Failure to comply with a determination under the Act may result in penalties being applied to the Subcontractor.

Reporting for NGER purposes is to be as per the NGER and sustainability reporting requirement identified in the John Holland Subcontractor NGER and Sustainability Report (JH-FRM-ENV-002-01) form.

Schedule H – Expert Determination Agreement

To: [Name of expert]

By a Subcontract dated [insert date] (the **Subcontract**) between [insert John Holland entity] (**John Holland**) and [insert Subcontractor] [(#####)], John Holland and [#####] agreed to submit disputes that might arise between them to an expert for determination through an expert determination process, as established by the deed and the Rules for Expert Determination which are attached to this letter (**Expert Determination**).

A dispute has arisen between the parties. A short summary of the dispute is attached to this letter.

The parties agree to appoint you [Name of expert] of [address] as the sole expert to determine the dispute in accordance with the above procedures. The parties agree to pay you [\$ insert] an hour.

The determination of the dispute must be completed within [insert] days of the date of your acceptance of this appointment.

The parties agree that you are not liable for anything you do which is *bona fide* and in the exercise of purported exercise of your functions as expert.

Dated

.....
.....

For []

.....

For the Expert

Rules for Expert Determination

1. Commencement

The Expert Determination will commence with the acceptance by the Expert of the appointment to make a determination in accordance with these Rules.

2. Submissions in respect of the deadlock

- 2.1 Within seven days of the date of the commencement of the Expert Determination, the party issuing the notice identifying the particulars of the dispute (Referror) must provide to the Expert a copy of the Subcontract, a written submission on the dispute and at the same time must provide a copy of its submission to the other party (Respondent).
- 2.2 Within seven days after the provision of the above submissions, the Respondent must provide to the Expert and to the Referror a written response to the Referror's written submission.
- 2.3 If the Expert decides that further information or documentation is required to determine the dispute the Expert may:
 - (a) require a further written submission or documents from either or both parties, giving each party a reasonable opportunity to make a written response to the other's submission; and
 - (b) call a conference between the parties and the Expert in accordance with clause 3.

3. Conference

- 3.1 If the Expert decides that a conference between the parties is necessary the Expert must arrange for a conference at a venue and time convenient for the parties and must notify them accordingly.
- 3.2 At least five days prior to the conference the Expert must inform the parties in writing of any specific matters the Expert wishes to be addressed at the conference.
- 3.3 At the time and place notified for the conference the parties must appear before the Expert and may make oral representations in respect of the matters notified to them in accordance with clause 3.2.
- 3.4 At the conference the Expert may permit the making of further submission and the provision of further information as may be fair and expedient in the circumstances.
- 3.5 Transcripts of the conference must be taken and made available to the Expert and the parties.

4. Determination

- 4.1 As expeditiously as possible, but not later than 20 Business Days after the execution by the parties and the Expert of this expert determination agreement, unless the time has been extended by agreement between the parties, the Expert must advise the parties in writing of his determination of the dispute.
- 4.2 In making a determination the Expert is only entitled to adopt one of the written submissions lodged by one of the parties and is not entitled to impose upon the parties a position other than one submitted by one of the parties. The submission selected by the Expert must be the one the Expert considers best reflects the terms of the Subcontract.
- 4.3 The determination of the Expert will be binding on the parties, unless appealed pursuant to clause 25.3(c) of the Subcontract.

5. Procedural Rules

- 5.1 Neither party may communicate directly or indirectly with the Expert in respect of any matter relating to the dispute or the Subcontract other than in accordance with these Rules.
- 5.2 At any conference the parties may have legal or other representation.
- 5.3 The conference must be held in private.

- 5.4 All proceedings and submissions relating to the Expert Determination must be kept confidential between the parties and the Expert. No information may be divulged to any other person, except with the prior written consent of the parties.

6. Termination

- 6.1 The Process will terminate upon the first to occur of the following:
- (a) the notification by the Expert of his determination;
 - (b) the death of the Expert;
 - (c) by agreement of the parties upon the failure of the Expert to act through illness or other cause; or
 - (d) the expiration of 20 Business Days after the execution by the parties and the Expert of this expert determination agreement (unless extended by agreement of the parties).
- 6.2 If the Expert Determination terminates prior to the notification of the Expert's determination then the dispute will be determined by a further expert appointed under clause 25.3 of the Subcontract.

7. Costs

- 7.1 Each party will bear its own costs and the parties will share equally the fees and costs of the Expert and the Expert Determination (such as cost of rooms and transcript services) unless otherwise determined by the Expert. Security for costs must be deposited by both parties at the commencement of the Expert Determination at the direction of the Expert.

8. Conduct of Expert

- 8.1 The function of the Expert is to make a determination on the dispute as submitted by the parties, in accordance with these Rules.
- 8.2 The Expert must conduct the Expert Determination in accordance with the requirements of procedural fairness.
- 8.3 The Expert must make the determination on the basis of information received from the parties and the Expert's own expertise. The determination will be made as an expert and not as an arbitrator.
- 8.4 The Expert is not bound by the rules of evidence.
- 8.5 The Expert must disclose all information and documents received from a party to the other party. The Expert must not consult with a party except in the presence of the other party except where a party fails to make a written submission or appear at any conference after having received due notice.
- 8.6 If the Expert becomes aware of circumstances that might reasonably be considered to adversely affect the Expert's capacity to act independently or impartially, the Expert must immediately inform the parties.

Schedule I – RCTI Agreement

Words or expressions used in this Schedule I that are defined in the GST Act have the same meaning given to them in that Act.

John Holland and the Subcontractor agree to the following:

- (a) Subject to clause 14.19(i), John Holland can issue RCTI's in respect of supplies provided by the Subcontractor under or in connection with this Subcontract;
- (b) the Subcontractor will not issue tax invoices in respect of any supplies provided by the Subcontractor under or in connection with this Subcontract;
- (c) the Subcontractor acknowledges that it is registered for GST when it enters into the Subcontract and that it will notify John Holland if it ceases to be registered for GST;
- (d) John Holland acknowledges that it is registered for GST, and that it will notify the Subcontractor if it ceases to be registered for GST or if it ceases to satisfy any of the requirements for raising RCTI's under taxation legislation or rulings ("RCTI Requirements");
- (e) John Holland will not issue a document that would otherwise be an RCTI, on or after the date when John Holland or the Subcontractor has failed to comply with any of the RCTI Requirements;
- (f) The Subcontractor acknowledges that John Holland is not obliged to and will not issue an RCTI in respect of a supply until:
 - (i) a Payment Schedule has been issued and John Holland is obligated to pay an amount to the Subcontractor under clause [insert] of the Subcontract; and
 - (ii) the Subcontractor has provided the necessary documentation to allow an RCTI to be raised.
- (g) The Subcontractor's ABN is [insert ABN].
- (h) John Holland may at its sole discretion, by written notice to the Subcontractor, terminate this RCTI Agreement and from the date of the notice of termination the Subcontractor will be responsible for issuing any and all tax invoices in respect of all supplies provided by the Subcontractor to John Holland under or in connection with this Subcontract.
- (i) The Subcontractor shall be liable for and indemnifies John Holland against any cost, expense, loss or damage that John Holland and / or the Subcontractor may incur or suffer as a result of or in any way relating to termination of this RCTI Agreement. This indemnity is reduced to the extent that John Holland caused or contributed to any Loss or Claim. John Holland must use reasonable endeavours to mitigate any Loss.

Schedule J – Compliance with the State Code

Not Used

Schedule K – Provisional Sums

Schedule L – Supplier Code of Conduct

A copy of the John Holland Supplier Code of Conduct can be found in the following link:

<https://pub.jhg.com.au/external/JH%20Supplier%20Code%20of%20Conduct%202022.pdf>